

History of England

From the Fall of Wolsey
to
the Death of Elizabeth

Volume IV

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CHAPTER XVIII

SCOTLAND AND IRELAND

WHOEVER has attended but a little to the phenomena of human nature has discovered how inadequate is the clearest insight which he can hope to attain into character and disposition. Every one is a perplexity to himself and a perplexity to his neighbours; and men who are born in the same generation, who are exposed to the same influences, trained by the same teachers, and live from childhood to age in constant and familiar intercourse, are often little more than shadows to each other, intelligible in superficial form and outline, but divided inwardly by impalpable and mysterious barriers.

And if from those whom we daily meet, whose features are before our eyes, and whose minds we can probe with questions, we are nevertheless thus separated, how are the difficulties of the understanding increased when we are looking back from another age, with no better assistance than books, upon men who played their parts upon the earth under other outward circumstances, with other beliefs, other habits, other modes of thought, other principles of judgment! We see beings like ourselves, and yet different from ourselves. Here they are acting upon motives which we comprehend; there, though we try as we will, no feeling will answer in unison. The same actions which at one time are an evidence of inhumanity may arise in another out of mercy and benevolence. Laws which, in the simpler stages of society, are rational and useful, become mischievous when the problem which they were meant to solve has been complicated by new elements. And as the old man forgets his childhood—as the grown man and the youth rarely comprehend each other—as the Englishman and the Frenchman, with the same reasoning faculties, do not reason to the same conclusions—so is the past a perplexity to the present; it lies behind us as an enigma, easy only to the vain and unthinking, and only half solved after the most earnest efforts of intellectual sympathy, alike in those who read and those who write.

Such an effort of sympathy, the strongest which can be made, I have now to demand on behalf of Scotland, that marvellous country so fertile in genius and chivalry. so fertile in madness and crime, where the highest heroism coexisted with preternatural ferocity; yet where the vices were the vices of strength, and the one virtue of in-

domitable courage was found alike in saint and sinner. Often the course of this history will turn aside from the broad river of English life to where the torrents are leaping, passion-swollen, down from the northern hills. It will open out many a scene of crime and terror; and again, from time to time, it will lead us up into the keen air, where the pleasant mountain breezes are blowing, and the blue sky is smiling cheerily. But turn where it may in the story of Scotland, weakness is nowhere; power, energy, and will are everywhere. Sterile as the landscape where it will first unfold itself, we shall watch the current winding its way with expanding force and features of enlarging magnificence, till at length the rocks and rapids will have passed—the stream will have glided down into the plain to the meeting of the waters, from which, as from a new fountain, the united fortunes of Great Britain flow on to their unknown destiny.

Experience sufficiently stern had convinced the English Government that their northern neighbours would never stoop to the supremacy which they had inflicted upon Wales. The Welsh were Celts, a failing and inferior race. The lowland Scots were Teutons, like the Saxons; and a people who showed resolutely that they would die to the last man before they would acquiesce in servitude; that they might be exterminated, but could not be subdued. After the battle of Bannockburn the impossible task had been tacitly relinquished, and the separate existence of Scotland as an independent kingdom was no longer threatened. The effects of the attempts of the Edwards, nevertheless, survived their failure. The suspicions remained, though the causes had ceased; and though of the same race with the English, speaking the same language, and living for the most part under the same institutions, the Scots, as a security for their freedom, contracted a permanent alliance with 'the antient enemies' of their rivals across the Channel, and settled into an attitude of determined, and only occasionally suspended, hostility against the 'Southrons.' For twenty miles on either side of the Border there grew up a population who were trained from their cradles in licensed marauding. Nominal amity between the two countries operated as but a slight check upon habits inveterately lawless; and though the Governments affected to keep order, they could not afford to be severe upon offences committed in time of peace, by men on whom they chiefly depended for the defence of the frontiers in war. The scanty families in the fortified farms and granges in Roxburgh and

Northumberland slept with their swords under their pillows, and their horses saddled in their stables. The blood of the children by the fireside was stirred by tales of wild adventure in song and story; and perhaps for two centuries no boy ever grew to man's estate, along a strip of land forty miles across and joining the two seas, who had not known the midnight terror of a blazing homestead—who had not seen his father or brother ride out at dusk harnessed and belted for some night foray, to be brought back before morning gory and stark across his saddle, and been roused from his bed by his mother to swear with his child lips a vow of revenge over the corpse. And the fierce feuds of the moss-troopers were but an expression in its extreme form of the animosities between the two nations. The English hated Scotland because Scotland had successfully defied them: the Scots hated England as an enemy on the watch to make them slaves. The hereditary hostility strengthened with time, and each generation added fresh injuries to the accumulation of bitterness.

Fortunately for mankind the relations between nations are not eventually determined by sentiment and passion. The mutual sufferings inflicted by the existing condition of things produced its effect in minds where reason was admitted to influence; and after the accession of the Tudors to the English throne there grew up in the princes and ministers of the new dynasty a desire to prepare the way for a union of the kingdoms. As more roads were opened, and intercourse between place and place became more easy, the geographical position of the two countries was more sensitively felt. Two nations in one small island must either be friends or they would eventually destroy each other; and in an intermittent period of quiet which followed the exposure of Perkin Warbeck's imposture, Henry VII. succeeded in arranging a marriage between the fourth James Stuart and his daughter Margaret. A commencement was thus happily formed, and a better feeling began to make its way. But the fair weather was of brief duration. On the breaking out of the war of 1513 between France and England, the usual overtures were made to the Scottish King from the Court of Paris. The old associations were appealed to with the usual success. Fatally for himself—fatally for his country—James invaded Northumberland in the absence of his brother-in-law, and Scotland paid for his fault in the defeat of Flodden, in which the King and the flower of the nobility perished miserably.

By this overwhelming blow the Scots were prostrated; and Henry VIII., returning from victory in France with an ample exchequer and the martial spirit of the English thoroughly roused, might with no great difficulty have repeated the successes of Edward I. He could have overrun the Lowlands, have stormed or starved out the fortresses and placed Southern garrisons in them, and thus have for the time provided one solution of the Scottish difficulty. But Henry profited by Edward's ultimate failures. He was aware that he might succeed for a time, but he was aware also that such success was really none; and he took advantage of the depression of the nation which followed Flodden rather to conciliate their friendship by forbearance than to pursue his advantage by force. The dead King had left two sons—the eldest, James V., then but two years old; the second an infant. In a Parliament held after the battle, the widowed Queen Margaret was declared Regent; the Government was re-established without interference from England, yet indirectly under English influence; and, by a judicious temperance at a critical time, the nucleus of a Southern party was formed at the Court which never after was wholly dissolved.

The time, however, was still far distant when the national enmity could even begin really to yield, and the French faction would, sooner or later, have recovered from the unpopularity which had followed upon their great disaster. A reaction at last could not have been avoided, but it arrived sooner than was anticipated through the conduct of the Queen Regent. Margaret of England, whose life and behaviour reflect little credit either on her country or her lineage, within a year of her husband's death married the young Earl of Angus, the head of the house of Douglas.¹ Her tenure of power had been limited to her widowhood. The Scottish lords could not tolerate in one of themselves the position of husband of the Regent, and a second Parliament immediately pronounced her deposition, and called in as her successor the late King's cousin, the Duke of Albany, who, in the event of the deaths of the two princes, stood next in blood to the Crown. Albany, who had lived from his infancy on the Continent—French in his character and French in his sympathies—brought with him a revolution inimical in every way to English interests. His conduct soon gave rise to the gravest alarm.

¹Flodden was fought September the 9th, 1513. Margaret's second marriage was on the 9th of August, 1514.

The royal children were taken from the custody of their mother, who with her husband was obliged for a time to find refuge in England; and the Duke of Rothsay, the younger of the two, dying immediately after, suspicions of murder were naturally aroused. The prince was openly said to have been assassinated; the remaining brother who lay between Albany and the Crown it was expected would soon follow; and a tragedy would be repeated which England as well as Scotland had too lately witnessed.²

The sustained and powerful remonstrances of Henry at the Court of France at length produced an effect. Albany remained nominally Regent, and French garrisons were maintained in Dunbar and Dumbarton; but he was obliged to leave Scotland. Margaret and her husband had previously been enabled to return, and the country was governed by a congress of deputies, consisting of Angus, the Earls of Arran, Huntley, and Argyle, and the Archbishops of St Andrew's and Glasgow. This arrangement was a compromise which could be of no long continuance. The Archbishop of St Andrew's, James Beton, was devoted to France; Angus was true to England; while in spite of a superficial reconciliation, a blood-feud, deep and ineffaceable, divided the Douglasses and the Hamiltons. For centuries the law in Scotland had been too weak to reach the heads of powerful clans or families. The great nobles avenged their own injuries by their own swords; and, where justice could only be executed by crime, each act of violence provoked fresh retaliation. A plot was laid by the Earl of Arran, supported by Beton, to seize Angus in Edinburgh. The latter had with him but a small train of half-armed followers, not more than eighty or a hundred; but they were all knights and gentlemen; they were popular in the city; and, when the fray commenced, the citizens, seeing them defending themselves with their swords, reached them lances out of the windows.³ The Douglasses gained the advantage; and after a severe skirmish, in which Sir Patrick Hamilton, Arran's brother, was killed, the defeated Earl and his confederates escaped for their lives, and Angus remained master of the field and of the Government.

²In like manner as one of the royal princes has been put to death, so also will he (the King of France) rid himself of the only one remaining, in order that the Duke of Albany may inherit the kingdom.'—GIUSTINIANI's *Letters from the Court of Henry VIII.*, vol. i. p. 110.

³CALDERWOOD's *History of the Kirk of Scotland*, vol. i p. 62.

But the oscillations of fortune were rapid, and again Queen Margaret's conduct was the cause of a change most adverse to the interests which she ought to have defended. She had married hastily, and as hastily grown weary of her choice. She had allowed the Duke of Albany, after her return from England, to steal his way into her affections.⁴ She had exposed herself to dishonourable remarks, which she shaped her behaviour laboriously to justify; and failing, through the bad terms on which she had placed herself with Angus, to recover her authority as Regent, she united with the faction of the defeated lords, and wrote to the King of France, entreating him, if he valued the regard of the people, to restore the Duke.

Francis at once acquiesced. He was himself on the edge of a rupture with England. The opportunity of securing his old allies was not to be neglected; and again the Duke of Albany appeared in Edinburgh. The old Scotch jealousies were blown into flame. The cry was raised that the country was betrayed to slavery by the Douglas; and, as the Regent resumed his power, Angus was again banished. The revolution was complete, but, as before, it was transient. Henry treated the reappearance of so dangerous a person as a breach of an engagement with himself. He despatched a herald to require the Duke's departure, and the demand being disregarded, he refused to acknowledge a peace with Scotland while Scotland acknowledged Albany. The Borders on both sides were wasted with the usual recklessness; the Regent levied an army to invade England. But he was one of those imbecile persons who can take no advantage of the turns of fortune; his musters forsook him as incapable; and a truce being arranged for a few months, he stole away once more into France for direction and assistance.

His weakness in the midst of danger, and his haste to escape from it, slackened the enthusiasm which had been raised for him; Henry took the opportunity of his absence to make another effort at conciliation. Preparing for either alternative which the Scots might prefer, he sent Lord Surrey to the Border with ten thousand men, while, with a practical and statesmanlike moderation, he followed his father's policy, and offered them an alliance which, had it been accepted, would

⁴The quene, by evill and senistre counseill, is mekill inclinet to the pleasure of the duke in al maner of thingis, and are never sundrie, but every day to gidre owther forrowe nowe or after, and as it is supposed he is intendit a divorce betwix the Earl of Angus and the quene. In manner they set not by who know it; and if I durst say it for fear of displeasure of my sovereign, they are over tendre.'—ELLIS, second series, vol. i. p. 285.

have been a noble termination of the quarrel. The vanity of the weaker nation might be flattered with the thought that they had given a king to their haughty neighbours. Henry at that time possessed but a single daughter. He proposed that she should be betrothed to James, and the uncertainties of the succession might be determined at once and for ever. Should the Princess Mary die, and the Scottish sovereign claim to inherit as a right, every English sword would be drawn to resist him; could the betrothal be arranged, he might come in peaceably under a parliamentary sanction, and the enmity of centuries would terminate in the union of the crowns. 'It was not his fault,' Henry wrote to the Scottish council, 'that there was not perpetual amity between the two kingdoms;' he was not seeking to gratify any poor ambition. He desired nothing but the real welfare of Scotland; and 'the Scots, if they accepted his proposal, would not come over to the Government of the English, but the English to that of the Scots.'⁵

Although the Earl of Angus was in exile, there were statesmen in Edinburgh not wholly deaf to reasonable arguments. In a discussion of the English overtures, it was admitted that, after all, the Scots and English were one people, 'born in the same island, brought up under the same climate, agreeing in language, manners, laws, and customs.' They were rather one nation than two, while they differed from the French in soil and climate, and character. The hostility of France could not injure Scotland; the friendship of France could scarcely be of benefit to her; while England must be either her most valuable ally or most dangerous enemy. But although reason could make itself heard, sentiment was still too strong for it. Constant, like the English, to their traditionary habits, the majority of the Edinburgh convention adhered to their foreign associations; and their patriotism was judiciously kept alive by gratuities and pensions.⁶ Prudence was thrust aside. The Estates remained faithful to Albany and to Francis, and defied Henry to do his worst against them. The Duke meanwhile had transferred his inclination to a fresh mistress. Margaret, jealous and exasperated, was no longer under a temptation to be false to her brother, and kept the Earl of Surrey informed of the disposition of the nobility. They were careless, she said, of the hurt which he might

⁵BUCHANAN, vol. ii. p. 138.

⁶'Ye know how the lords are blinded with the Duke of Albany for gifts of benefices (and all is at his gifts), and that he gives to hold them at his opinion with part of money that the French King sendeth them at his request.' *State Papers*, vol. iv. p. 3.

do upon the Borders, knowing that the Borderers could retaliate in kind. She urged his advance upon Edinburgh, where a thousand men with artillery would make the Parliament vote as he pleased.⁷ The military judgment of Margaret was on a par perhaps with the rest of her understanding. Surrey, besides, was unprovided with stores or means of transport for so long an expedition. Instead of marching on Edinburgh, he confined himself to the districts which paid habitually for the nation's offences. He carried fire and sword through Teviotdale, as soon as the harvest had been gathered in, and could be utterly destroyed; he burnt Jedburgh, and remained for some days within the Scotch frontier wasting and pillaging.

At length, in October, Albany came back in high hopes and confidence, this time bringing with him six thousand French men-at-arms.⁸ The exasperation of the people with the English increased the cordiality with which he was received, and hastily placing himself at the head of as large a force as could be collected, he marched immediately to the Borders, expecting, or being expected, to revenge Jedburgh and destroy Surrey. But Albany was a man who carried failure written in his very demeanour. 'When he doth hear anything contrarious to his pleasures,' Lord Surrey said, 'his manner is to take his bonnet suddenly off his head and throw it in the fire. My Lord Dacre doth affirm that at his being last in Scotland he did burn above a dozen bonnets in that manner.' This was not a temper to cope successfully with the ablest of living generals. 'If he be such a man,' Surrey wisely judged, 'with God's grace, we shall speed the better with him.'⁹

The weather was foul.... Snow had already fallen heavily, and the rivers were swollen and dangerous; but Surrey's name was a talisman in the northern counties.... Lord Dorset, Lord Latimer, the Earl of Northumberland, Darcy, Clifford, and all the gentlemen of Yorkshire hastened to the rescue. The musters of Lancashire, Cheshire, Nottingham, and Derby were not far behind: a second Flodden was

⁷The immediate object was to liberate the young King from the control of Albany's faction. 'The lords set not by the hurt of poor folks, but laugh at the same,' wrote Margaret. 'Wherefore, my lord, either come to Edinburgh, or near about it, and I shall take upon me that the lords shall send to you and make offer themselves and put forth the King: for I assure you a 1000 men with artillery may do with Edinburgh and the lords in the same as they will. And failing of this ye will neither get the King forth nor yet the hand of France destroyed.—*State Papers*, vol. iv. p. 26.

⁸BUCHANAN, vol. ii.

⁹The Earl of Surrey to Wolsey: ELLIS, first series, vol. i. pp. 226, 227.

looked for—an action so considerable as should decide the fate of Scotland for the lifetime of the existing generation.¹⁰ The only fear in the English camp was that Albany's courage would fail him. The Scotch army came down upon the Tweed opposite Newark, which was held by Sir William Lisle and a small garrison. The river was high, but Albany had guns with him, which played on the castle across the water. A detachment of the French came over in boats, and, under cover of the fire, attempted to storm.¹¹ They were beaten off with loss; and an express having been sent off to Surrey, the whole English, power came up with forced marches. 'In all my life,' said the gallant Earl, 'I never saw so many Englishmen so well willed as those who were with me, from the highest to the lowest.'

The Scots were as eager as their enemies. 'The gentlemen of the Border' gathered about Albany, entreating him to do something worthy of his mighty preparations, and give them their revenge for their wasted harvests and blackened villages. But at the prospect of a general action the Duke's cowardice was too much for him. An order was issued for retreat; and, in their rage and disappointment, 'the said gentlemen being evil contented,' tore the badges of their craven Regent from their breasts, and dashed them on the ground. 'By God's blood,' they cried, 'we will never serve you more. Would to God we were all sworn English.'¹²

Albany's disgrace was followed by universal disruption. Henry again offered peace, on condition of his expulsion; while the Regent

¹⁰Of likelihood no man living shall ever see the Scots attempt to invade this realm with the powers of Scotland if they be well resisted now.'—ELLIS, first series, vol. i. pp. 226, 227.

¹¹The Duke sent over 2000 Frenchmen in boats to give assault to the place, who with force entered the base court, and by Sir William Lisle, captain of the castle, with a hundred with him, were right manfully defended by the space of one hour and a half, without suffering them to enter the inner ward, hut finally the said Frenchmen entered the inner ward, which perceived, the said Sir William and his company freely set upon them, and not only drove them out of the inner ward, but also out of the outer ward, and slew of the said Frenchmen ten persons; and so the said Frenchmen went over the water.'—The Earl of Surrey to Henry VIII.: ELLIS, first series, vol. i. p. 233. In a subsequent letter to Wolsey the Earl says: 'At the assault of Newark the captain of the first band of French footmen that came into Scotland was slain, with nine more with him; and the same night died twenty-two more, and eight score sore hurt. I assure your Grace never men did better than they within the castle did, which were but one hundred; and there was within the base court above a thousand Frenchmen and five hundred Scots.'—*State Papers*, vol. iv. p. 52.

¹²Surrey to Wolsey: *State Papers*, vol. iv. p. 52.

and his friends imagined measure after measure, which they wanted resolution to execute. But their despair was dangerous; and in the failure of their open policy they were tempted to fall back upon crime. The Queen sent warning that the life of the young King was in danger.¹³ In the beginning of December it was expected either that he would be poisoned or that Albany would carry him away to France.¹⁴ On the 27th a stormy council was held at Stirling, where Albany attempted his usual shift in difficulty, and required five months' leave of absence to go to Paris. This time the nobles refused to be left to bear the consequences of the Regent's weakness. If he went again, his departure should be final; nor should he depart at all, unless the French garrisons were withdrawn. The Duke, 'in marvellous great anger and foam,' agreed to remain; but his cause sank daily, and misfortunes thickened about him. He was without the means to support the French auxiliaries, they were obliged to shift as they could for their own security. Some escaped to their own country; others, sent away in unseaworthy vessels, were driven among the Western Islands, engaged in piracy, and were destroyed in detail.¹⁵ At length, for the last time, on the 20th of May, Albany turned his back upon the country with which he had connected himself only to his own and others' misery. He sailed away, and came again no more.

The friends of the English alliance were now recovering the ascendant. The young King was twelve years old. It was concerted between Margaret and Henry that the minority should be considered at this point to have expired. No fresh regency should be established, and the Government should be conducted in the King's own name. James was in Stirling Castle, virtually a prisoner in the hands of the Duke of Albany's friends. Henry wrote to him with encouragement and promises of help; and the queen-mother, pressing to know explicitly to what extent she might rely on support from England if she

¹³I see great appearance of evil and danger to the King my son's person, when that they that are true lords to the King my son be put from him; and them that loveth the governour put to him, and that I know perfectly would bare my son destroyed for the pleasure of the Duke.—Queen Margaret to Surrey: *State Papers*, vol. iv. p. 57.

¹⁴Surrey to Wolsey: *ibid.* p. 63.

¹⁵A party of the Frenchmen that the said Duke despatched home again into France, were found in the out isles of Scotland, driven with stormy weather, and many of them were famished for lack of victuals, and the residue of them made war in the said out isles for getting of victuals to sustain them with, and so there were famished and killed of them there to the number of four or five hundred.—Dacre to Wolsey: *State Papers*, vol. iv. p. 70.

attempted a *coup d'état*, was told that she might expect unlimited assistance in men, in money, and in advice, which she equally needed. This was enough. On the 26th of July she escaped through Stirling gates, carrying her son with her, and made her way to Edinburgh. A convention of the lords was immediately summoned; and with almost unanimous consent they pronounced the Regent deposed, and swore fealty to the King. The Archbishop of St Andrew's and the Bishop of Aberdeen, who alone remained constant to France, were committed to custody in Edinburgh Castle. Negotiations were at once set on foot for the betrothal of James and the Princess Mary, and now at length all obstacles seemed to be removed, and quarrels five centuries old promised to be finally buried.

Scotland has suffered much from vicious queens. The licentiousness of a profligate woman was permitted to spoil the opportunity and obscure the clearing sky. The Earl of Angus, on hearing of the revolution, left France, and repaired with his brother, Sir George Douglas, to the English Court, preparatory to his return to his own country. Margaret, whose honour had already once been compromised, had again, in the first giddiness of her success, committed herself in such a manner as to make the reappearance of her husband the worst of misfortunes. She had surrounded herself with a circle of frivolous young men, the most worthless of whom, Henry Stewart, afterwards Lord Methuen, she had chosen as her peculiar favourite. Careless alike of her good name, her interest, or even of ordinary decency, she dared to write to her brother, threatening that, if Angus was again forced upon her, she would turn elsewhere for help before she would allow him 'to trouble her in her living.'¹⁶ She affected to colour her objections with stories of Angus's injuries to herself, and of his unpopularity with the nobles. Her *liaison* with Stewart being as yet a secret from the world, the English Government did not understand the motive of her urgency: they were anxious to avoid fresh complications or difficulties; and Wolsey replied that, if the return of Angus was so distasteful to her, he would find some pretext to detain him in London till affairs had settled down into a more regular train. At the particular moment both Henry and his minister were desirous to be on good terms with the queen-mother, in the hope that through her influence they might obtain possession of the persons of the two imprisoned bishops, whose French tendencies they dreaded, and for

¹⁶*State Papers*, vol. iv. p. 83.

whom Berwick appeared a more secure place of confinement than Edinburgh.¹⁷

This, however, was not easy. Margaret was now the instrument of her paramour, and politically was again not to be depended on. She pretended, and perhaps with justice, that the Scotch council would never entrust to the English Government the custody of their own State-prisoners; but she was entangled in her private intrigues, and Methuen and his friends preferred to retain in their hands the means of making themselves formidable. The Earl of Surrey, now Duke of Norfolk, began, to comprehend the Queen's character, and with the assistance of spies to understand her motives. So far from Angus being unpopular, he ascertained that half the realm would take his part if he returned, and he suggested to Wolsey that it would be well if a priest could be found to give Margaret some wholesome counsel. She was playing an underhand game with the Harniltons in order to be secured from her husband; 'the grudge was universal against her for her ungodly living' and open infidelity.¹⁸ The extent of her fault was even yet scarcely credited at the English Court; but at least it was not thought desirable to detain Angus longer. Both he and his brother were impatient to be again in Scotland. The Earl promised Henry that he would not force himself into his sister's presence without her consent; that in any disputes which might arise with her he would submit to be guided by the English Government, he would forget his personal feuds and quarrels, and would bend himself wholly to carry out the policy which he had learnt to be best for his country. Sir George Douglas accepted the same obligations, and under these engagements the brothers repaired to the Border to the English camp, and Norfolk was directed to interpose no obstacle in the way of their return.

And in Scotland there was no little need of the presence of honourable men. The nobles were playing severally their own game for their own advantage. Such government as existed was conducted by the Earl of Arran and the Queen; the Hamiltons were altogether French; and Margaret, in whom hatred of her husband and an infatuated passion for Methuen had superseded every other consideration, had fallen off, as she had threatened, in the same direction. As soon as she was assured that Angus was really on his way, she threw off

¹⁷*State Papers*, vol. iv. pp. 122–130.

¹⁸Norfolk to Wolsey: *State Papers*, vol. iv. pp. 146–149.

all concealment. She wrote insolently to the Duke of Norfolk, saying that the King of England might act as he pleased, but he would do wisely to consider other interests besides the pleasure of Lord Angus; 'and as to my part,' she added, 'if his desires be more regarded than mine, I will labour no more to the pleasure of the King my brother, but look the best way I may for myself.'¹⁹ Acting upon her menace, she released the imprisoned prelates from the Castle: David Beton, the nephew of the Archbishop of St Andrew's, was accredited to the Court of France: again the stone which had been dragged with so much labour to the crest of the hill, was bounding helplessly back into the plain.

Opposition of policy in Scotland generally, when it grew hot, took the form of an attempt at assassination. Before the approaching return of the Douglasses had been announced, the Earls of Lennox, Argyre, Murray, and Glencairn, the leaders in the absence of Angus of the English faction, informed the Duke of Norfolk that, if he was detained any further, they did not intend to tolerate the present scandalous Government. Angus, if he came, could give peace to Scotland;²⁰ but, peace or no peace, there should be a change of some kind. They might have waited his arrival but for the haste of the Queen. The liberation of the bishops, however, put an end to their forbearance. Lennox collected five hundred horse three miles from Edinburgh. They had scaling ladders ready prepared, and the intention was to surprise Holyrood and kill Arran; and probably Methuen. The design was well laid, and would in all likelihood have succeeded, but it was betrayed by the treachery of a confederate; a certain 'unhappy James Pringle,' as Norfolk called him, in deep regret at the failure, 'let a good deed to have been done for the welfare of Scotland and of England.'²¹

Lennox having missed his aim, the Government sat the firmer in their seats for it, especially as having earned the support of the Church by the release of the Archbishop. Dr Magnus, an English diplomatist, had been sent by Henry to observe and report on his sister's conduct and, if possible, reconcile her with her husband. He

¹⁹Queen Margaret to the Duke of Norfolk: *State Papers*, vol. iv. pp. 167, 168.'

²⁰'The noblemen and commons do much desire the amity of England, and the commons universally hate the Duke of Albany of all men living. The Earl of Angus is desired universally amongst them.'—Norfolk, Dacre, and Magnus to Wolsey: *State Papers*, vol. iv. p. 188.

²¹Norfolk to Wolsey: *State Papers*, vol. iv. p. 189.

reached Edinburgh at the end of October, and on the 1st of November was admitted to an interview. In the opening conversation Margaret was tolerably moderate, and Magnus had hopes that, after all, he might win her back to some sense of propriety; but he soon found the uselessness of his labour. The day following he reported that she was clean gone from all her first concessions. 'A certain young man' was at the bottom of the change; she would listen to no advice except it was approved by Methuen, with whom she was so infatuated as to have induced the King to make over to him the seals of State and all such powers as went along with them.²² Methuen was devoted to Arran and Archbishop Beton, and Arran and the Archbishop were devoted to France. Margaret was thus wholly committed to the faction most inimical to England; supported by the whole ecclesiastical strength of Scotland, the ruling faction believed that they could defy her brother with impunity, and to feel the real temper of the people they summoned the Estates to meet at Edinburgh on the 15th of November.

Henry was profoundly angry. The behaviour of the queen-mother, he said, 'sounded openly to her extreme reproach an the blemishing of the royal house and blood whereof she descended. He accounted her rather like an unnatural and transformed person than like a noble princess or a woman of wisdom or honour.'²³ For the present, however, he was forced to leave events to their own course, and to wait for the effect of the restoration of the Douglasses. The French faction only among the nobility answered to the call of the camarilla; those exclusively who shared their schemes and sympathies. The remainder, either acting under Angus's advice or because they disdained to pay even outward obedience to the authority which had summoned them, held a separate convention by themselves, and prepared to assert their influence in a more effective manner. The Parliament had sat for eleven days. On the 26th of November, Angus, Lennox, the Laird of Buccleugh, and several hundred followers, scaled the walls of Edinburgh at four in the morning. They took possession of the gates, and when the day broke, the citizens, looking out into the twilight, saw the dark mass of horsemen drawn up in arms at the cross

²²He keepeth, as is said, all the seals, and ordereth all causes in such a manner as is without any other counsel either of wisdom, honour, or reputation.'—Magnus to Wolsey: *State Papers*, vol. iv. p. 215.

²³Wolsey to Norfolk: *ibid.* p. 219.

before St Giles's Church. The two Earls were come (so ran their manifesto) to claim their rights, their place, and privileges as barons of the realm. They presented themselves before the council, protesting against the faction by whom the King was governed; and saying that they had come thus into the city 'to do no displeasure to any person,' but to invite the nobility to put an end to a shameful scandal.

The Queen was at Holyrood. It was expected every moment that she would set the Castle guns playing upon her husband's followers; and Dr Magnus, at the entreaty of the council, hastened down to anticipate the danger. He found the palace in confusion: dense throngs of men were arming and preparing their horses. He pushed his way into Margaret's presence, but she ordered him at once to be gone, and not to meddle in matters of no concern to him. A moment after the heavy boom of a cannon told him that the order had been given. The shot was intended for the Douglasses, but it was ill-aimed. Two tradesmen, a priest, and a woman were killed by it; and the mistake was more effective than the English minister in preventing a fresh experiment.²⁴ All day the two parties lay watching one another, each waiting to be attacked. At dusk Angus withdrew to Dalkeith, and amidst the glare of torches the Queen and the young King were seen sweeping up out of the palace, behind the stronger shelter of the Castle wall.²⁵ Civil war appeared to be imminent; but, happily, civil wars are not always possible; and where a nation is to suffer, the passions of the nation must first be interested in the quarrel. The French and English factions were each of them strong; but neither was the French nor the English feeling so strong as to make a compromise impossible.

²⁴This disaster was the occasion of an Act of Parliament in the session which followed. 'It is statut and ordanit that for sa mekle as the lords of counsale and utheris our Soverane Lord's lieges resortand and repairand to the toun of Edinburgh may be invadit, pursewit, or trublit be evill avisit persouns being in the Castell of Edinburgh be schot of gun, that therefore the capitain of the said castell suffiris na gunis to be schot furth of the samin to the hurt, damage or skaith of ony of our Soverane Lord's lieges: ne that be suffiris nane of the artilyery gunis, pulder, bullets, or uther municious now being in the castell forsaide to be remuvit furth of the samyn to ony uther place, bot be the advise and comand of the lords chosin of counsale under the pane of treasoun. And that na gunaris pass to the Castell of Edinburgh without comand and charge of the said lords under the pane of deit.'—*Acts of Parliament of Scotland*, vol. ii. p. 290.

²⁵*State Papers*, vol. iv. p. 258.

Money and promises had been freely distributed by Francis.²⁶ Angus hesitated at drawing the sword openly against his wife; and Margaret consented to be reconciled to him if he would agree to a divorce. Anxious for entire possession of Methuen, she contrived a plea that her first husband was alive at the time of her second marriage, which was therefore of no validity.²⁷ The ecclesiastical courts accepted the extraordinary story as the ground of a suit; and the technical difficulties could be overcome the more easily, if the husband offered no opposition. Peace was thus possible; but at the price of increasing scandal to the queen-mother. Perhaps her profligacy had become too patent for endurance; perhaps her interest was becoming of less importance. At any rate, as the factions drew together, even the Archbishop of St Andrew's consented to unite with Angus and Argyle in a representation to Henry on the character of the person whom his sister allowed to associate with the King, with an entreaty that, if his mother was to remain in authority, she should consent to have 'discreet and honourable persons appointed for the high offices of State and for the chairs of the judges.'²⁸ Margaret herself had almost resolved upon concessions. She ventured on one last effort to escape the hard necessity. Her husband and Lennox remained at Dalkeith: she implored the Earl of Cassilis and Lord Murray to attack and destroy them. But the two lords refused to undertake a crime which had no object but the gratification of a woman's revenge: she agreed to treat; and while the terms were being discussed, the Edinburgh citizens, on the 14th of February, shortened the debate by throwing open their gates and inviting Angus's presence among them. Three weeks of consultation

²⁶The French King will give unto her Grace (the queen-mother), to be of favourable inclination to his desire, a great country in France; and the said King hath sent great sums of money to the lords.'—*State Papers*, vol. iv. p. 283.

²⁷The Queen's Grace sueth fast for a divorce between her said Grace and the Earl of Angus, surmitting her cause to be that she was married to the said Earl, the late King of Scots her husband being alive, and that the same King was living three years after the field of Flodden.'—Magnus to Wolsey; *ibid.* p. 385.

²⁸Our Sovereign Lady the Queen now taking and having the care and guideship of her son, as well of his most noble person as of his rents and profits, is by certain indisposed persons, not able nor worthy sic any charge, so misguided that her Grace, in all matters concerning the commonwealth, proceeds upon will and not upon reason; where through our said Sovereign Lord is drawn and inclined to mischiefs and unvertuous usages; and therewith justice is all entirely neglected; slaughters, murders, reiffs, depredations, and other crimes are common, and many committed about the place of their residences, and no correction nor punishment is made therefore,' &c.—Beton, Angus, Argyle, Lennox, &c., to Henry VIII.; *State Papers*, vol. iv. p. 312.

terminated, at last, in the formation of a Council of Eight, who should govern Scotland in the King's name under the nominal presidency of the Queen. The Church was represented by the two Archbishops of St Andrew's and Glasgow, the Bishops of Aberdeen and Dunblane; the half-reconciled parties among the nobles by Angus and Lennox, Arran and Argyle.

The friends of England, though not absolute, were thus once more of considerable weight; and the future relations of the two countries could now be deliberated on with a hope of settlement. As yet so much as a formal peace had not been concluded. The war had closed with a truce which, as it expired, had been renewed for limited periods. The final treaty had been postponed till it could be conceived upon a basis which promised perpetuity. The proposals of Henry were brought forward by Dr Magnus. With his 'poor reasonings' he dwelt 'upon the nigh marching together of the two realms within one isle, and of one speech and language;' upon 'the proximity in blood between the King's Highness of England and the young King his tender nephew;' upon 'the said young King's possibility of inheritance to the two crowns;' and, finally, upon 'the great likelihood he had to be preferred afore all others to the marriage of the lady princess, if favourably and in loving manner his Grace could and would use him towards the King his uncle.' These points at once invited union, and showed the possibility of it; but the outstanding differences, Magnus urged, if they were to be settled satisfactorily, must be settled between themselves without the intervention of a third party; and he desired the new council, as an evidence of their good intentions, to agree at once to a perpetual peace with England, in which France should not be comprehended.²⁹

Scotland was as much interested as the sister kingdom in the acceptance of the English minister's overtures; but the necessary confidence was still, as it seemed, impossible; and 'there was a great personage, neither favourable in word nor countenance.'³⁰ The Bishop of Aberdeen replied in the name of the council. He declined to consider Henry's political philosophy, confining himself to facts. He desired security before his country would commit itself to a treaty. Let the marriage between their young King and the Princess Mary, which was held out to them as a temptation, be converted into a fact—let

²⁹ Magnus to Wolsey: *State Papers*, vol. iv. p. 335.

³⁰ Evidently Margaret.—*State Papers*, vol. iv.

there be a formal and legal betrothal—and then, he said, 'the whole realm of Scotland was minded and inclined utterly to abandon and leave France, and wholly to be conjoined with England.... Else, remembering their old leagues with France, continued by the space of five or six hundred years, it was thought to the lords of Scotland to be greatly to the reproach of their honour to agree to peace, either perpetual or temporal.'³¹ Neither Government would venture a step upon trust. The King of England required evidence of a sincere desire for peace on the part of the Scotch before he would determine the succession to the English throne in favour of his nephew. The Scotch would not sacrifice their old allies till the bargain which was to purchase them was concluded beyond recall.³²

The Edinburgh council were immovable; and delay could not now be avoided, for three years must pass before James would be of age to be a party to a valid contract. The immediate difficulty of the unsettled war was disposed of by a treaty of peace to last for that time. When the three years were expired the whole question should be reopened. Possibly the temper of Scotland would not have permitted a more satisfactory conclusion; but the young James, weary to his heart of the heartburnings and quarrels which surrounded him, told Magnus he wished he was in England with the King his uncle.

Something had been gained in this negotiation. A partial respect had been paid to good sense; and the principles had been acknowledged at least outwardly and in a limited degree which ought to govern the counsels of the two kingdoms. But no sooner was the treaty determined than the lords and gentlemen made haste to indemnify themselves for their temporary interval of sanity. The English minister found himself, he knew not why, an object of general suspicion. The fall of the year was wild and wet, the harvest was in danger, and a rumour went abroad that Magnus was an enchanter who in years past, by a diabolic art, had blighted the vines in France and Flanders, and had now overlooked Scotland with an evil eye. As he walked through the streets of Edinburgh the women 'banned, cursed, and wirried' him and his servants 'openly to their faces; and gave them the most grievous maledictions that could be.' He entreated to be allowed to return home at once, and abide no longer 'in that cumbrous

³¹Ibid.

³²*State Papers*, vol. iv.

country where ever was confusion without trust, disdain, slander, malice, and cruelty, without virtue, or dread of God or man.³³

The departure of the ambassador was a signal for the dissolution of the short-lived coalition. In the caprices of passion and humour we look vainly for any guiding principle. Every one did what was right in his own eyes, and his estimate both of interest and fitness varied from day to day. In the beginning of 1526 Arran and Angus quarrelled. Angus, supported now by Archbishop Beton, kept possession of the Government and the person of the King. Then James, instructed by his mother, complained that he was held in thralldom, and threw himself on the loyalty of the nobles. The friends of Angus fell off; but he was still powerful. Sir George Douglas kept guard at the King's door night and day, to prevent an attempt at capture. Suddenly the partners changed in the game. On the 2nd of September Angus and Arran had been reconciled; Lennox and the Archbishop had dropped away to the party of France, and the feud of the Hamiltons with the Lennoxes bursting into sudden flame, there was a battle at Linlithgow, where Lennox himself was killed, with the Abbots of Melrose and Dunfermline, the brother and nephew of the primate, and two Stewarts, brothers of the worthless Methuen.³⁴ Anarchy now followed. Gordon of Lochinvar killed the Laird of Bumbie at the door of St Giles's church, and though Parliament was sitting, appeared openly in the streets, unchallenged by any one.³⁵ Angus, with his English friends, was able at intervals to maintain, by mere violence, some shadow of authority; but order was limited to places immediately controlled by his own dependents. The will of every man was every man's law—the tribunal of justice his inclination—the executive government his own arm and sword. The sister island remained the ideal of confusion, but Scotland was earning rapidly the secondary merit of successful imitation.

Angus continued dominant till the summer of 1528. In the spring of that year the Court of Rome, which at the moment, we are assured by Catholic historians, was engaged in defending the sacredness of matrimony against the licentious demands of Henry VIII., gave its sanction, nevertheless, to the most impudent request for a divorce

³³Magnus to Wolsey; *State Papers*, vol. iv. p. 406

³⁴Magnus to Wolsey; *State Papers*, vol. iv. p. 458.

³⁵Sir Christopher Dacre to Lord Dacre; *ibid* p. 46.

ever prosecuted in a court of justice:³⁶ and forthwith the Queen married Methuen, and shut herself up with him in Stirling Castle. The dismissed husband was able partially to revenge this final insult to his honour. He surrounded Stirling, compelled Methuen to surrender, and threw him into prison.³⁷ But it was the last effort of his waning power, and precipitated his fall. The Archbishop of St Andrew's supported the dignity of the Church's judgment; and the united strength of the ecclesiastics proved always, in the long run, too much for the resistance of a section of the divided lords. A revolution followed, which restored Margaret and her lover to each other's arms, and replaced James in their edifying custody. With the assistance of the bishops, and of every one with whose self-indulgent tendencies the late Government had interfered, they recovered an absolute superiority. An assembly called a Parliament met at Edinburgh on the 2nd of September, composed of the personal enemies of the Earl of Angus. The two Douglasses, Sir George and the Earl, were accused of having betrayed their country to the English, and were attainted of treason. Their lands were confiscated, and given away among the profligate companions of the Queen's paramour.

Angus did not yield without an effort. He fell back upon the Castle of Tantallon, where he was followed by Margaret's friends. Once he sallied out, drove off his besiegers, and seized their artillery. But his means were small; and two years of power had exhausted his popularity. The commons had found him scarcely better able to maintain order than his predecessors, and saw no reason to risk their lives or properties in his defence. Henry vainly interceded for him; and the French alliance being at that moment of importance to himself, he could not impair its stability by declaring war against the friends of France in Scotland. Angus therefore gave way to necessity. He retired a second time into exile; and the nation settled back into its old suspiciousness, which it disguised under the name of independence.

³⁶The divorce of Margaret from the Earl of Angus, demanded, as I have said, on the plea of the legend of the escape of James IV. from Flodden, was not huddled over in a provincial court in Scotland. It was decided in Italy after two years' deliberation, with all the usual solemnities.—*State Papers*, vol. iv. p. 491. The moderate surprise which I experienced on reading the speeches of Roman Catholic members of Parliament in the late debate on the Divorce Bill was increased to wonder at the silence with which the assertions of the purity of the Papal courts were allowed to pass unchallenged.

³⁷Lord Dacre to Wolsey: *State Papers*, vol. iv. p. 490.

James meanwhile was growing towards manhood, and with his increasing years assumed in full proportions the distinguishing characteristics of his countrymen. He was brave, high-spirited, and chivalrous; but he was moved generally by sentiment, rarely guided by judgment. In the miserable examples which surrounded him he learnt early the lesson of licentiousness, as well as the easy terms which he could secure for his indulgences, by devotion to the Church and to orthodoxy. He was possessed of every quality which interests without commanding respect. Like the rest of his unfortunate family, he seemed to be formed by nature to choose the wrong side—to pursue a conduct fatal to himself and mischievous to Scotland; yet, at the worst, retaining the affection even of those who regarded his career with the saddest displeasure.

Inevitably, being what he was, when the ruffle of the Reformation arose in England, James inclined to the Papacy. As the English were then on friendly terms with France, their antagonism, diverted from its old quarter, was directed against the Pope and the Emperor: the King of Scotland, therefore, or his advisers, followed with a corresponding opposition. The Emperor humoured his new friend with the prospect of an alliance. The Queen Regent of the Netherlands was suggested to the boy-bridegroom as a venerable wife; and although James continued to write respectfully to his uncle, his efforts were all bent steadily, in a mischievous direction, towards the revival of the animosities which Henry had so temperately laboured to overcome. The sea, from the Humber to the Forth, was infested with Scotch pirates; the rough night-riders of the Borders perceived the leanings of the Court, and were swift to indulge in excesses for which they assured themselves of impunity. Still Henry continued patient, till James arrived at an age when he could be treated as responsible; and then, at last, he wrote to him a letter of moderate remonstrance,³⁸ following it up with the despatch of a herald, for special complaint on the disorders of the Marches, and with the following message, which ought to have been received as it was intended. 'The herald,' so the King said, 'need use no accumulation of words, save only to put his nephew in remembrance, and to exhort him, like a wise young prince, to look upon the King his uncle's deeds towards him, and consider whether they had tended to kindness or not; adding thereunto, the sort and fashion how his nephew and his realm have demeaned them-

³⁸*State Papers*, vol. iv. p. 576.

selves again towards his Highness. Which things well pondered by wise men, it shall be facile to perceive whether to the King's Highness can be asserted the least scruple or spark of the name of an unkind uncle, or whether the King of Scots, laying apart the excuses of minority, might be suspected with the name of an unkind nephew. Wherein shall need no further rehearsal, seeing that the King's very trust is that, like as his said dearest nephew increaseth and groweth in years of knowledge and wisdom, so he will and shall more and more perceive and better discern the King's many and many gratuities past.³⁹

The spirit which is here expressed was that which uniformly dictated Henry's early behaviour to James. But the nature of the young King was a destiny to him. He perhaps had no deliberate desire to quarrel with England; but he listened instinctively to the advisers who most sought to make the quarrel perpetual. The cause of nationality was identified now with the cause of the faith, and Henry was far off, and the Catholic clergy were on the spot. The Spanish alliance was eagerly courted. Instead of seeking for a recognition of his place on the line of succession to the English crown from the English Parliament, he boasted in public of a promise which the Emperor had made to him, of the title of Duke of York. He fell into correspondence with the Irish rebels, and allowed McConnell of the Isles to cross over to them with assistance. At length, in the winter of 1532-3, it became necessary to resent his own or his subjects' excesses with something more severe than words. Efforts at conciliation, persisted in till their repetition was an invitation to insult, had failed utterly. War again broke out; and in two desolating invasions the Earl of Northumberland and Sir Thomas Clifford read to the Scotch lords, at the sword's point, those lessons of moderation which had been vainly urged with gentleness.

The struggle lasted for a year and a half. It terminated, through weariness of enduring and inflicting suffering, on the 11th of May, 1534. The two Kings signed a treaty of peace, which was to last so long as they both lived, and a year beyond the death of either. It was but a cessation of hostility, not a return to friendship. It was the best which was possible at the moment, but promised little when the recollection of misfortune should have been displaced by desire of revenge. Henry, however, was steadily on the watch to recommence his

³⁹ *State Papers*, vol. iv. p. 590.

overtures and pave the way to a real and sound alliance. The council of Scotland had refused to enter upon a course, during the King's minority, from which they could not retire. The minority was now expired, and Lord William Howard, the brother of the Duke of Norfolk, went down to Edinburgh to renew the advances which had been twice made and twice rejected. The burial of ill-will on all sides—a forgiveness to Margaret on the part of England—an intercession for the Douglasses, especially for Angus, 'who had ever in heart been as true and loyal unto his sovereign lord as any of his house had been afore time'—a remonstrance against the encouragement which had been given to Lord Thomas Fitzgerald, softened by the avowal of a belief that it 'had proceeded rather of the obstinacy and malice of his nephew's subjects, than by his mind, will, and consent'—formed the object and material of Howard's commission, and the overtures were gracious enough to have been accepted, following upon a victorious campaign. The Garter was sent to James, 'the King's Highness minding by some noble means, to declare the integrity of his heart towards him;' and, finally, he was informed that his uncle desired nothing so much as to see his person, 'to have communication and conference in matters that should redound to both their honours and glory, and the weal of their realms and subjects.'⁴⁰

This time the King of Scots replied frankly, and apparently with sincerity. The proposal for an interview grew from a suggestion into a settled purpose. Lord Howard returned to England, and went again to Edinburgh to make concluding arrangements; and James not only replied in his own person, to the ambassador's satisfaction, but desired his mother—who had by this time repented of her past misdoings—to write to Henry in his name, 'that not only he would meet, and commune with and visit the King of England, but also would love his Grace better than any man living next himself, and would take his part in his person, and within his realm, against all living creatures.' The council had made difficulties, but he would not listen to them. His uncle had only to settle, by his own convenience, the time and place of meeting, and on his part there should be no failure.⁴¹ The language was as warm as could be desired; and though past failures must have forbidden Henry to be sanguine, he

⁴⁰Henry VIII. to Lord William Howard: *State Papers*, vol. v. pp. 1–6.

⁴¹Queen Margaret to Henry VIII.: *State Papers*, vol. v. pp. 10, 11; Queen Margaret to Cromwell: *ibid.* pp. 12, &c.

showed no signs of suspicion. It was possible that the happy change was at last approaching; and in a letter to James himself he expressed his confidence that his nephew's words and doings would at last be found conformable; in which case, he said, 'you shall in fine reign in such honour, and govern your realm in such quiet, as shall be correspondent to our desire, and for your renown and glory.'⁴²

Had the confidence been justly grounded, the reign of James V. would have been as fertile in utility as, in fact, it was fertile in folly and sin. He would have saved Scotland from a century of wretchedness, and his daughter and his daughter's grandson from the scaffold. Leaning to England, he would have learnt to feel like an Englishman; and English influences would have surrounded the cradle of his child and of his race. But it might not be. The house of Stuart, like the house of Atreus, could not escape its destiny of blood and calamity. The meeting continued to be talked of. As late as March, 1536, James professed to be steady to his resolution. He was environed with 'spiritual, unghostly councillors, who,' wrote an English minister from Edinburgh, 'if they might destroy us with a word, their devilish endeavours should nothing fail.'⁴³ But the King, he said, was '*bonæ indolis*,' of honest disposition; and on the 16th of that month the queen-mother assured her brother that 'her son was still constant to the meeting, and would not be solicited therefrom by no person.'⁴⁴ To sustain him in his purpose Henry at this time proposed to do for him what the Emperor had idly boasted that he would do to create him Duke of York, and nominate him by Act of Parliament in the line of inheritance.⁴⁵ Unluckily, 'the unghostly councillors' were strong, and James was weak. They were many, and he stood alone; and an interview between their King and a monarch whose name made the blood run cold in the veins of every priest in the three kingdoms, was too dreadful a peril to be endured.⁴⁶ With the whole energy of their united powers the clergy flung themselves into an opposition. From their pulpits they poured out execrations against heresy and the arch-heretic Henry of England;⁴⁷ and the old Archbishop Beton

⁴²Henry VIII. to James V.: *ibid.* p. 6.

⁴³Barlow to Cromwell: *State Papers*, vol. v. p. 36.

⁴⁴Margaret to Henry VIII.: *ibid.* p. 39.

⁴⁵BUCHANAN, vol. ii. p. 161.

⁴⁶MELVILLE'S *Memoirs*.

⁴⁷They shew themselves in all points to be the Pope's pestilent creatures, very limbs of the devil, whose Popish power violently to maintain, these lying friars cease

especially, with his nephew David, appealed to the King's superstition to avoid the desperate temptation. Religion would be betrayed. The ancient Church of the true saints would be exposed to ruin; and with the Church would fall the kingdom. At the moment, too, when the Catholic world was rising in arms for the faith,⁴⁸ it was no time for a King of Scotland to take the hand of its enemy. Finally, the clergy were rich, the King was poor: golden promises were thrown into the scale till it turned as they desired;⁴⁹ and in April the English ambassadors were obliged to report that James's tone was less favourable, and that they knew not what to expect. They had been required to give a particular statement in writing of the subjects which Henry desired to discuss with him; and a further difficulty was raised on the time and the place of the meeting. York had been originally fixed upon; but the King of Scotland could go no further beyond his own frontier than Newcastle. Nor could he leave his country before Michaelmas, which to his uncle he knew would be inconveniently late.

It seemed as if he was creating difficulties to relieve himself of the burden of a direct refusal. But should the patience of Henry be too much for his manœuvres, he had provided himself with another expedient. When weak men change their resolutions, they mistake passion for strength, and their changes are always in excess. James persuaded himself that he was to be betrayed to the English, and carried prisoner to London. He reproached his mother with being accessory to treachery; and, finally, to escape his promise, should the fulfilment of it still be exacted from him, he sent 'a clerk' 'to procure of the Bishop of Rome a brief to encharge him by commandment that he should agree to no meeting.'⁵⁰ Henry spared him the discredit

not in their sermons, we being present, blasphemously to blatter against the verity, with slanderous reproach of us.'—Barlow to Cromwell: *State Papers*, vol. v. p. 37.

⁴⁸Paul's first Pastoral Letter for a crusade against England had been issued about two months.

⁴⁹With these engines they battered James's mind, which of itself was inclined enough to superstition: and, moreover, they corrupted those courtiers who could the most prevail with him, desiring them in their names to promise him a great sum of money, so that by these artifices they wholly turned away his mind from the thought of an interview.'—BUCHANAN, vol. ii. p. 163; and see MELVILLE.

⁵⁰The delay of time and the new appointment of the place is for none other purpose than to provoke that your Grace, by such occasion, should break off without any default to be suspected of his part; and lest this colour might fail, he hath sent a clerk, Master John Thornton, who passed through your realm to procure of the

of employing the last excuse. If the King of Scotland would come to York fourteen days before Michaelmas, he repeated his proposal to meet him there. He could not travel later in the season; and unless James consented, the interview must be considered broken. James answered that the time named was too early for his convenience, and that York was too distant from his frontier. As if purposely to expose the shallowness of both pretences, when September came, he sailed away to France to meet another sovereign, to choose a bride where England least desired, and to proclaim his contemptuous indifference by marrying in silence, without caring to send to London even the ordinary communications of courtesy.

The uncertain prince had taken his part, as it seemed, finally with the Catholics; and he chose a time for the decisive rupture with Henry when the insurrection was blazing through the northern counties, and when Pole's mission was in contemplation to France and Flanders. He lingered at the Court of Francis for many months. On the 1st of January Magdalen de Valois became Queen of Scotland at Notre Dame. On Christmas-eve the sword and cap were consecrated at St Peter's. In this miserable result the forbearance of twenty years, through unexampled provocation, had at length concluded.

Meanwhile the queen-mother was reaping the harvest of her own folly. There had been a moment when it rested with her to have anticipated the union of the kingdoms, and to have coloured (it is impossible to conjecture how deeply) the complexion of their fortunes. Had she played her part, the marriage would have been arranged between James and Mary. An Act of Parliament would have declared them, should no male heir be born to the King, joint inheritors of the two crowns. Then there would have been no divorce of Catherine; for there would have been no object for a divorce. The declining years of Henry would have escaped the scandals which will envelop them for ever. Perhaps there would have been no breach with Rome, and no Reformation in the form which it in fact assumed. On the behaviour of such poor creatures as Margaret events of so mighty moment at times depend. Her own condition, as might have been expected, was become entirely deplorable. She was growing old; her pleasant vices

Bishop of Rome a brief, to encharge him by commandment that he agree to no meeting with your Grace. The Queen, because she hath so earnestly solicited in the cause of meeting, is in high displeasure with the King her son, he bearing her in hand that she received gifts of your Highness to betray him.'—Howard and Barlow to Henry VIII.: *State Papers*, vol. v. p. 46.

had lost their charms. She was neglected by her son, despised by the Court, ill-treated by her husband. Methuen had valued in his intrigue only the influence which he gained by it. When the power departed from the queen-mother his interest in her departed also. He spent her money, he involved her in debt, and ventured during James's absence on coarse ill-usage. She had squandered in profligacy her opportunity of being of use to England. In her misfortune she remembered her birth, and cried out passionately for protection to her brother.

Provoked as Henry had been with her conduct, he would not leave her in distress. He made inquiry into the circumstances of which she complained; and, although the accounts of others scarcely tallied with her own,⁵¹ he sent Sir Ralph Sadler privately to Edinburgh to ascertain her real condition. ⁵² Sadler assured himself that Margaret's

⁵¹*State Papers*, vol. v. p. 63.

⁵²Sadler's mission was in January, 1537, just at the time of the second rising in Yorkshire and Cumberland; and two curious letters written by him to Cromwell during the journey are printed in the *State Papers*, vol. i. pp. 526–529. He spent a night at Darlington, which he describes thus: 'My chance was to come into the town in the evening, about six of the clock, or somewhat afore; and when I alighted at my lodging, I think there was not passing three or four persons standing about the inn door. Assuring your lordship that I was scant ascended up a pair of stairs into my chamber but there was about thirty or forty persons assembled in the street afore my chamber window, with clubs and bats; and there they came running out of all quarters of the street, and stood together on a clump, whispering and rounding together. Wherefore I called unto me mine host, who seemed to be an honest man, and I asked him what the people meant to assemble so together. He answered me that when they saw or heard of any coming out of the south, they used always so to gather together to hear news. I told him it was ill suffered of them that were the heads of the town to let them make such unlawful assemblies together in the street; and that it was a very ill example, and hard to judge what inconveniences might follow or what attemptates they would enterprise when such a number of light fellows were assembled. He answered me by his faith the heads of the town could not rule them, ne durst for their lives speak any foul word unto them. But, quoth he, I think myself to be in some credit with them; and ye shall see, quoth he, that I shall cause them to scatter abroad, and every man to go to his home bye and bye. Marry, quoth I, if ye do well ye should set some of them by the heels. No, quoth he, God defend, for so might we bring a thousand men in our tops within an hour; but ye shall see me order them well enough with fair words. And thereupon he went to the route in the street as they stood whispering together, and with his cap in his hand, prayed them to leave their whispering, and every man to go home. And then came they all about him, and asked him who I was, whence I came, and whither I would. Mine host told them I was the King's servant, and going from his Highness in ambassade into Scotland, whereunto one of them replied, and said that could not be true, for the King of Scots was in France. Nevertheless, in fine, mine host so pacified them, that every man went his way; but much ado he had, as he told me. I assure your

story was generally true. Her principal desire was now for a divorce from Methuen. The grounds on which the new petition was founded are not stated. She had, perhaps, ascertained by this time that the rumour of the protracted life of James IV. had been ill-founded; but any means seemed admissible which would liberate her from a disgraceful connection. If not divorced, she might be formally separated; and on Sadler's return to London, Henry, who was bound to sympathize in matrimonial calamities, sent him into France to request James to interpose his authority in his mother's defence.⁵³

At the moment of Sadler's arrival the King of Scotland was preparing to return home with his bride. The weak health of the Queen being likely to suffer from a voyage which might possibly be protracted, an application had been made to Henry, through the French ambassador, for permission for herself and her husband to pass through England. There was some hesitation, for the state of the country was critical, and James's general behaviour had not entitled him to confidence. The Duke of Norfolk considered, nevertheless, that the signs of wealth and prosperity which he would witness in his journey might produce a wholesome effect upon him; and the required favour might, perhaps, have been granted eventually, had not James interpreted the delay into refusal, and sailed resentfully for Scotland. As he passed up the Yorkshire coast he received deputations from parties of the late insurgents, and he was heard to say that he trusted, 'before a year was out, to break a spear on an Englishman's breast.'⁵⁴ In such a humour he was not likely to look more affectionately on his mother, or attend to Henry's representations on her behalf. On his arrival in Scotland, 'omitting all manner of his usual pastimes,' he spent his time with unknown intentions in military preparations. Margaret, in addition to her other misfortunes, found herself suspected and hated as a spy of England. She had contrived to carry her suit for a divorce to the verge of a successful termination in a Scotch Ecclesiastical Court. But Methuen, who lived upon her dowry, which he would have lost if she escaped him, persuaded the King that she intended to retire across the Border, and rejoin the Earl of Angus. James forbade the

lordship the people be very tickle, and methinketh in a marvellous strange case and perplexity, for they gape and look for things, and fain would have they cannot tell what.'

⁵³ Henry VIII. to Sadler: *State Papers*, vol. v. p. 70.

⁵⁴ Sir Thomas Clifford to Henry VIII.: *State Papers*, vol. v. p. 80.

sentence to be pronounced, and, as the queen-mother declared—but, it is to be hoped, misled by misery—he shared with Methuen the proceeds of her property.⁵⁵ Eventually this last grievance was brought to an end. She was parted from her husband; and the rest of her story may be concluded in this place. She struggled on through life for four years longer; and after the King's second marriage to Mary of Guise she was treated at the palace with some increase of courtesy; but her worst enemies, her pitiable folly and vanity, continued to adhere to her till the 24th of November, 1541, when she was suddenly struck with paralysis, and died—died, we are told, penitent. 'When she perceived that death did approach, she did desire the friars that were her confessors that they should set on their knees before the King, and beseech him that he would be good and gracious unto the Earl of Angus; and did extremely lament and ask God mercy that she had offended the said Earl as she had.'⁵⁶

Well might she lament her behaviour to Angus. She had dishonoured him as his wife, she had driven him from his country to fret out his life in banishment, she had taught her son to suspect and dread the worthiest subject that he possessed; and in this one only point he had remained obedient to her influence. Not only did James share his mother's hate of Angus, but he extended his animosity to his kindred. Almost his first act on his return from France was to order an execution, for which charity must hope, with difficulty, that some just cause existed. He landed in May. In July the Earl's sister Lady Glamis, his brother-in-law the Master of Forbes, and Archibald Campbell, Lady Glamis' second husband, were accused of conspiracy against the King's life. They protested their innocence; they had not been at the Court or near it: and the people saw in the accusation the offences of Angus rather than of his relations; but they were condemned peremptorily. Campbell attempted to escape out of Ed-

⁵⁵Dearest Cousin, I must make my complaint to you how I am heavily done to in this realm, for I have obtained my cause of divorce betwixt me and my Lord of Meffen; and it is so far past that the judge has concluded and written my sentence ready to be pronounced, and the King my son has stopped the same and will not let it be given; and he promised me, when I gave him my manor of Dunbar for a certain money, that I should have the same sentence pronounced.... They cause the King my son to believe that an the Lord of Meffen be my husband, that he may give the King my lands and living as long as he is my husband; and through this way he thinks to hold me daily in trouble, and to make him master of my lands.'—Queen Margaret to the Duke of Norfolk: *State Papers*, vol. v. p. 103.

⁵⁶Ray to the Privy Council: *State Papers*, vol. v. pp. 193–4.

inburgh Castle: the rope was too short, he fell and was killed. The Master of Forbes died on the scaffold, 'attainted of such matter as he at his death did take upon him that he was sackless.'⁵⁷ Lady Glamis was burnt alive, 'to the great commiseration of the spectators.' 'The nobleness both of herself and of her husband did much affect the beholders. She was, in the vigour of her youth, much commended for her beauty, and in her punishment she shewed a manlike fortitude.'⁵⁸

The relations between the Scotch and English Governments, meanwhile, were in a condition of negative hostility. As long as the war lasted between France and the Empire, the Pope's much-desired combination against Henry was impossible. It was not till after the pacification of Nice that better prospects seemed to open. Magdalen de Valois died rapidly in the inhospitable northern atmosphere. Her place was filled immediately after by a princess whose steady devotion to the Catholic cause gave consistency to James's weakness. Mary, daughter of the Duke of Guise, and widow of the Duke de Longueville, landed in Scotland on the 16th of June, 1538. Her person was a link which bound the country to France and the Papacy. Her character, at once fearless and cunning, passionately religious, and unembarrassed with moral scruples, qualified her in no common degree for the remarkable part which she was to play. A coadjutor devout and treacherous as herself, and even more able, came forward at the same time, in the person of David Beton, who had succeeded his uncle in the archbishopric of St Andrew's, and had been raised by the discretion of those who had discerned in small services the greatness of his powers, to the dignity of a cardinal. These two, the Queen and Beton, became the supporters of the throne; and, except for brief luminous intervals, were thenceforward the directors of Scottish policy.

In the winter of 1538–9 earnest messages were going to and fro between Holyrood, Flanders, Paris, and Rome; and in the end of March, when the mysterious fleet was arming in the harbours of the Netherlands, English spies reported from Edinburgh that Francis had desired James to have an army in readiness by the 15th of May, either

⁵⁷Sir T. Clifford to Henry VIII.: *State Papers*, vol. v. p. 95.

⁵⁸BUCHANAN, vol. ii. p. 165. Buchanan adds: 'Their accuser was William Lyon, their near relative. He afterwards, perceiving so eminent a family was like to be ruined by his false information, repented when it was too late, and confessed his offence to the King; yet he could not prevent the punishment of the accused or hinder their estates from being confiscated.'

to co-operate with an invading force, or to distract the attention of Henry, while French and Imperial troops were landed at some point on the southern coast. It was added that James had hesitated, and that Beton had in consequence gone to Paris to learn in detail the nature of the proposed measures, and whether or how far Scotland would be supported should the invasion fail, and should she, after being tempted into a participation in the quarrel, be left exposed to English vengeance.⁵⁹ The information was the more important from the caution with which it was given. It spoke of likelihood, not of certainty, and recommended the application of a test to prove its accuracy. 'Let the Duke of Norfolk send to the King of Scots,' the informants added, 'and say by his writings that he trusts the King of Scots will not suffer any men of war to land in his realm against England; and by the King's answer shall be known whether these sayings be true or not.'⁶⁰ The communication was laid before Henry, who adopted the last advice; and the skilful Sir Ralph Sadler was again commissioned to Edinburgh, if possible to pour oil over the waters, or at least to ascertain the truth.⁶¹ The language of his instructions was courteous, but plain. The King said he knew by good authority the efforts which were made by the Pope to create a coalition of the Catholic princes against England. He had been obliged to place the realm in a state of defence; and he took the present opportunity of assuring the Scotch Government that the additional garrisons and fortifications at Berwick were a consequence of the threatened attack upon him, and were meant in no way for a demonstration against his neighbours. He believed, notwithstanding, that the Pope, regardless of everything but the success of his own schemes, had endeavoured to entangle his nephew in the conspiracy. The King of Scots, he trusted, would be too wise to

⁵⁹Duke of Norfolk to Cromwell: *State Papers*, vol. v. p. 154. Sir Thomas Wharton to the Duke of Norfolk: *ibid.* p. 156.

⁶⁰*Ibid.* p. 156.

⁶¹His instructions are printed in the first volume of the *Sadler Papers*, and in the fifth volume of the *State Papers*, p. 81. The date of the document, as usual, must be determined by internal evidence; and the editor of the *Sadler Papers* has given it to the year 1541: the editor of the *State Papers*, to 1537. The latter has shown that the first date is wrong. I believe it is as certain that he is mistaken himself. From the matter of the instructions, it is clear that the Papal Bull had been published, which was not till the close of 1538. It was at a time when an invasion was looked for, when Pole, in the Pope's name, was urging the Emperor to declare war against England, and the Emperor's refusal was not yet known. It was, therefore, before the breaking up of the Flanders fleet in April, 1539, and Pole's disappointment at Toledo.

condescend to such purposes; 'but because his realm adjoined unto England, and as a prince and king on whose peril they had not much regard,' the Pope and cardinals 'designed to make him a ringleader and chief setter forth of hostility against his uncle, not caring whether both uncle and nephew should consume each other,' so they might have their way. Let James consider whether the conduct of England towards him for the last twenty years deserved that he should lend himself to its enemies. Let him weigh well what the amities of other princes had cost him, and 'foresee what might chance if he should fortune, for other men's pleasure, to attempt any enterprise, specially where the matter which his Highness defended was God's and his Word's own cause.'

The verbal message was supported in a manner to give it emphasis. The Duke of Norfolk advanced from York to Berwick, and his dreaded name carried with it a panic across the Border. The Catholic league gazed wistfully from Flanders at their intended prey, half drew their swords, and, faint-hearted, thrust them back into the scabbards. They dared not land upon the English shores; and James and his advisers dared not offer them Scotland as a basis of operations. The excommunications, the intrigues, the embassies, the preparations, exploded in vapour. The lesson, as Henry believed, would not be lost. He supposed that James must have seen the risk which he would have incurred, had he been drawn into the dangerous quarrel; and allowing him a few months to reflect, again, at the close of the year, he sent the same ambassador on a similar errand, not only this time to warn the Scotch Government against acts of aggression, but to induce the King at last, if possible, to relinquish Beton and the Papacy; to fulfil his old promise of visiting England, where he might learn of his uncle to reform his own Church. Once more James was reminded how splendid a prospect might open to his ambition, would he really and heartily attach himself to the English alliance. Henry had but one legitimate child; and though he hoped 'by God's grace to have better store of issue,' yet he was now 'stricken in years,' he said, and he was empowered by Act of Parliament to determine the succession in his will. Not from any fear that 'either the French King or the Emperor would now move him to any such attempt as should utterly banish him for ever out of the favour of his Majesty and the realm,' but from goodwill to himself, from a hearty desire for his welfare, and, above all, for the peace and

happiness of the two countries, the King of England implored his nephew to meet his overtures with the frankness with which they were made.⁶²

There was an element of good sense in James, which might have prevailed had he been free; but he was under the spell of the Cardinal and the Queen, which he could not break, and the Scotch nation was as unmanageable as himself. Sadler carried down the gracious message, but only to fail at the Court and to be insulted by the people. The provost of Edinburgh refused him a lodging for his train; and it was not till the King interfered that they could be entertained.⁶³ Although in some of the younger noblemen—in the young Earls of Argyle and Ruthven, and in Sir David Lindsay—he found a sounder feeling, the Church on one side, and national pride on the other, were too strong to give a chance of success to the English advances.⁶⁴ Pol-

⁶²*Sadler Papers*, vol. i. p. 3, &c.

⁶³The provost said the town was full. James mentioned a particular house which might be made over to the English embassy. The provost said the Bishop of Ross lodged there. 'I say,' quoth the King, 'in the foul evil dislodge the Bishop, and see that the house be furnished against the ambassador's coming.'—*Ibid.*

⁶⁴Sadler relates a grotesque illustration of the suspicion with which he was regarded. His stay was protracted into Lent. 'They raised a bruit here that I and all my folks did eat flesh here as heretics and Jews, and thereupon open proclamation was made by the commandment of the Cardinal, that whosoever should buy an egg or eat an egg, within those dioceses, should forfeit no less than his body to the fire to be burnt as an heretic, and all his goods confiscate to the King. And because they bruited that I and my folks did eat flesh (wherein they falsely belied me, whereupon, as I gather, the proclamation was made), I seemed not to be content withal, and complained thereof in honest sort to such gentlemen of the Court as resorted to me, insomuch that the King had knowledge thereof, and incontinently sent Rothsay the herald to me declaring that, whatsoever publications were made, the King's pleasure was I should eat what I would, and that victuals should be appointed for me of what I would eat. I thanked humbly his Grace, and said I was belied and untruly said of. 'For,' quoth I, 'I eat no flesh nor none of my folks, nor,' quoth I, 'is it permitted in England in the Lent. Marry,' quoth I, 'I confess I eat eggs and white meats, because I am an evil fishman, and I think it none offence; for if it were,' quoth I, 'I would be as loth to eat of it as the holiest of your priests that thus have belied me.' 'Oh!' quoth he, 'know ye not our priests? a mischief on them all. I trust,' quoth he, 'the world will amend here once.' Thus I had liberty to eat what I would. Another bruit they made that all my men were monks; that I had them out of the abbeys of England, and now they were serving men. I gave a Greek word on my men's coat sleeves, which is *μόνιω ἀνακτι δουλεύω*, the Latin whereof is *Soli regi servio*. Now the bishops here have interpreted my word to be, as they called, *monachulus*, which, as they say, is in English 'a little monk,' as a diminutive of *monachus*, and thus they affirmed for a verity. Whereupon they bruited that all my men were monks; but it

icy had laboured for a union, and had laboured fruitlessly. It was not till a new power had been introduced, and a bond of concord had arisen between the two nations in a common Protestantism, that the inveterate antagonism consented at length to give way. Here too, by a mischievous fatality, the spirit of disagreement contrived to enter; but the uniting influence was stronger than the separative, and the work of fusion was accomplished at last, though painfully and arduously. The political condition of Scotland has been traced downwards to a point where it runs parallel to the general current of the story. I must go back a few years, to follow to its fountain the already visible stream of the spiritual Reformation.

In Ireland it was observed that the heresy laws were inoperative, because unneeded. In the midst of infinite license of conduct, neither priest nor layman, chieftain nor serf, in that country, indulged himself in liberty of thought. The Roman Catholic religion satisfied the intellectual desires of the Irish nation, which on this one point forgot its besetting inconstancy. Between Scotland and Ireland there was much superficial resemblance. The O'Neils and O'Donnells were indeed of an inferior mettle to the Bruces and the Wallaces. The Milesian Celts never rose into a national consciousness—never in any sense were a people with a cause and a country—until enmity to England was sanctified by religious separation. On the other hand, the feuds of the Scottish chiefs were superseded by their patriotism, whenever the liberty of the nation was imperilled. They were a 'people' in the distinctive sense of the word. They had bought their freedom with the sword; and with the sword they continued to defend it. Yet their independence was an isolated virtue, compatible with unrestrained indulgence in crime and licentiousness: the annals of the sister island are not more rich in aimless feuds, murders, and conspiracies than those of the country which we are describing; and if the Scots had remained as a nation under similar spiritual trammels with the Irish, they would have come down into the modern world equally shrouded in misery—equally the despair of the statesman, the problem of the moralist. But there was a something in all races of the Teutonic blood which rose in rebellion against so barren a destiny. The seeds of liberty were scattered simultaneously in England and in Scot-

appeareth they are no good Grecians. And now the effect of words is known, and they be well laughed for their learned interpretation.'—Sadler to —: *Sadler Papers*, vol. i. pp. 47, 48.

land; and the initial symptoms of growth in both countries are visible together. When the first Acts of Parliament were passed by the Lancastrian princes against the Lollards—perhaps even earlier—heretics, by the Scotch law, were consigned to the stake.⁶⁵ The Glasgow register shows that in 1422, and again in 1431, various persons suffered death for their religion; and under James IV. as many as thirty were indicted whose fate is not discoverable.

In the reign of the same King, in the year 1505, an event occurred of vaster consequence. In the house of a retainer of the Earl of Bothwell, in the suburbs of Haddington, there was born into the world an infant who became, perhaps, in that extraordinary age its most extraordinary man, and whose character became the mould in which the later fortunes of his country were cast. John Knox was forty years old before Scotland knew him as more than a poor priest, a plain yeoman's son: it is chiefly through his eyes, however, that the religion of the Scottish people is visible to us from his early manhood. He grew himself with the growth of the spirit of the Reformation; and the history of the outward occurrences is the history of them in the effect which they worked in shaping the mind of the Reformer.

The world went smoothly with the Church for the first quarter of the century. The bishops and abbots ate, and drank, and sinned, and married their children, and believed their houses would continue for ever; till suddenly Luther started up in Germany, and the expanding circles of the great wave which he had created penetrated into Scotland. Patrick Hamilton, the Earl of Arran's nephew, a youth little more than twenty years old, was among the first of her children who was shaken with the undulation. The young abbot (he was the titular superior of Ferns) crossed to the Continent, 'to see that great sight.' He spoke with Luther himself; he spoke with Melancthon; and in the beginning of the year 1527 he carried back the lessons which he had learnt to his countrymen. It was a time when there was neither law nor order, when the strong trampled on the weak, and the ruling

⁶⁵'Hæretici debent comburi,' is to be found in the *Regiam Majestatem*; but the date of that treatise, or the introduction into it of particular phrases, is uncertain. In the Parliament held at Perth, in 1398, 'cursed men heretics' were directed to be put forth from the kirk, and specially punished: the form of the penalty was not specified.—*Acts of Parliament of Scotland*, vol. i. p. 211. The word 'heretic,' which to contemporaries was the one expression fraught with the deepest associations of horror, is sought for eagerly among the Records by the modern historian as the green blade of promise bursting out of the barren soil.

powers of the Church were happy in their adulteries, and there was no justice but to the strong. But authority, unequal to the protection of men's lives and properties, could rouse itself in defence of their souls. A friend of Hamilton, an Alexander Campbell, with whom he had shared his treasure, whispered the news that heresy was in Scotland. The rank of the offender made him peculiarly dangerous. He was seized, and convicted of Lutheranism before Archbishop Beton; and on the last of February, in front of the old college of St Andrew's, he was brought out to be burnt.⁶⁶ He bore himself with a courage worthy of the cause of which he was the protomartyr. 'At the place of execution,' says Knox,⁶⁷ 'he gave to his servant, who had been chamberchield to him of a long time, his gown, his coat, and his bonnet. They will not profit in the fire; they will profit thee; I have no more to give now but the example of my death. Think well on that. It seems to be dreadful; but it is the gate of eternal life.'

The bishops killed him, hoping that they had done service both to God and to themselves. It seemed that they had failed. From each drop of his blood sprung up a fresh heretic. But as in England, so in Scotland, it was rare that men of the rank of Patrick Hamilton went astray after his example. Among the poorer commons chiefly 'the new learning' found a home. It was they who came in contact with superstition in its grossest form, and who suffered at once from the vices of the clergy and their avarice. Their understandings were too direct to sublimate absurdities into mysteries; and they had plain tongues, which spoke their feelings without disguise. There was little or nothing transcendental in the first religious confessors of Scotland; little or nothing doctrinal; the Calvinist gloom was of later birth; and Knox, a man pre-eminently of facts, and untroubled with theological subtleties, has sketched the popular feeling in a series of scenes shining with laughter and humorous defiance, but so free from bitterness, that even anger seems to melt into contemptuous pity.

There was no occasion to look far for scandal. In Scotland all the chiefest ecclesiastical vices were in the bloom of maturity, coarse, patent, and palpable. The scattered pictures of them which Knox has left are, in fact, the history of Scottish Protestantism.

⁶⁶Knox says the last of February. Calderwood, the last week in March the first in April.

⁶⁷*History of the Reformation*, p. 7.

In a skirmish in one of the Border wars a certain Alexander Ferrier was taken prisoner, and being unransomed, remained several years in captivity. On returning home, at last, he found that 'a priest, according to the charity of kirkmen, had entertained his wife, and wasted his substance.' He was loud in his outcries, and in consequence was 'delated' for heresy, and cited before a tribunal of bishops at St Andrew's. The following sketch appears to have been a literal transcript of the scene which took place in the court: 'Mr Alexander,' being brought in, 'leapt up merrily upon the scaffold, and casting a gamound, said, 'Where are the rest of the players?' Mr Andrew Oliphant (the clerk of the court), offended therewith, said, 'It shall be no play to you, sir, before you depart;' and so began to read his accusation, the first article whereof was that he despited the mass. His answer was, 'I hear more masses in eight days than the bishops there sitting say in a year.' Accused, secondly, for contempt of the sacraments. 'The priests,' he said, 'were the most common contemnrs of the sacraments, and especially of matrimony,' and that he witnessed by many there present of the priests, and named the men's wives with whom they had meddled; 'and because,' he said, 'I complain of such injuries, I am here summoned and accused as one that is worthy to be burnt. For God's cause,' said he, 'will ye take wives of your own, that I and others, whose wives ye have abused, may be revenged upon you.' The old Bishop of Aberdeen, thinking to justify himself, said, 'Carle, thou shalt not know my wife.' Alexander answered, 'My lord, ye are too old; but with the grace of God, I shall drink with your daughter before I depart.' And thereat was smiling of the best and loud laughter of some, for the Bishop had a daughter married in the same town. Then the bishops bade away with the carle. 'Nay,' he answered, 'I will not depart this hour; for I have more to speak against' the vices of priests than I can express the whole day.' After divers purposes they commanded him to burn his bill,⁶⁸ and he demanding the cause, they said, 'Because ye have spoken those articles whereof ye are accused.' 'The muckle devil bear away them that first and last spake them,' he said. He took the bill, and chewing it, spit it in Mr Oliphant's face, saying, 'Now burn it, or drown it, whether ye will; you shall hear no more of me. But I must have somewhat of every one of you, to begin my pack again, which a priest and my wife, a priest's whore, have spent.' And

⁶⁸Equivalent to pleading guilty and appealing for mercy.

so every prelate and rich priest, glad to be quit of his evil tongue, gave kiru somewhat, and so he departed; for he understood nothing of religion.⁶⁹

Tetzel carried on a trade in pardons. The Scotch bishops sold bills of excommunication—more innocent, if not more effective. A friar entering an alehouse on a Sunday, at Dunfermline, found a number of peasants drinking. He proposed to join them. 'Yea, father,' said one, 'ye shall drink, but ye mun first resolve a doubt which has risen among us—to wit, what servant will serve a man best on least expenses?' 'The good angel,' said the friar, 'who is man's keeper, who makes great service without expense.' 'Tush,' said the peasant, 'we mean no such high matters. 'What honest man will do greatest service for least expense?' While the friar was musing, the peasant said again, 'I see, father, the greatest clerks are not the wisest men. Know ye not how the bishops and their officials serve us husbandmen? Will they not give us a letter of cursing for a plack to last for a year to look over our dyke? And that keeps our corn better nor the sleeping boy that will have three shillings of fee, a sark, and a pair of shoon by the year.'⁷⁰

In these scenes, and the scenes which they suggested and from which they arose, lay the secret of Scotland's second life, and it was swiftly growing. Whatever the truth of God might be, it was not in the doctrines of these priests; nor could any human soul, to whom, truth was dearer than falsehood, believe any longer that his hopes of heaven lay in listening to profligate impostors. The bishops burnished up their arms. Another victim died at St Andrew's who had called Patrick Hamilton a martyr. Catherine, Patrick's sister, was called before the Bishop of Ross at Holyrood, and examined on 'justification.' No man, she said, could be saved by water; but only by the grace of God. A learned lawyer expounded to her the mysteries of 'works,' of works of 'condignity' and works of 'congruity.' 'Work here,' she cried, 'and work there, what kind of working is all this? No work can save me but the work of Christ my Saviour.' It would have gone hard with her had not James interfered. She escaped her persecutors and found a shelter in England. Thither also many others were flying from the same danger, so long as Cromwell lived,

⁶⁹Knox's *History of the Reformation*, p. 16.

⁷⁰Knox, *ibid.* p. 14.

secure of protection.⁷¹ Henry, too, himself showed occasional favour to these exiles. One of them, Andrew Charteris, a priest, had called the Scotch clergy 'children of the devil.' 'When they perceive any man take up their craft and falsehood,' he said, 'or challenge them of fornication, incontinently they accuse him of heresy. If Christ Himself were in Scotland He should be made more ignominious by our spiritual fathers than He was of old by the Jews.' Henry heard of the words, and sent for Charteris, and talked with him for an hour. At the end of the conversation the King dismissed him with a phrase which in Henry's mouth contained the highest compliment. 'It is a pity,' he said to him, 'that ever you were a friar.'⁷²

But the attitude of the Scotch Government naturally threw upon the Romanizing bishops an increase of power, and they grew more vindictive as the times grew dangerous. Religion and politics had become so identified, that Protestants were not only hated in themselves, but they were allies of the English, traitors to the Commonwealth, to be hunted down and annihilated. In 1534 a fisherman named David Straiton was burnt. He had been required to pay tithe of what he caught. If the priests would rob him, he said, they might come for their tithe to the place where he got it; and as each tenth fish came up, he flung it back into the sea. He was excommunicated for disrespect; the lighter punishment soon drew after it the worst; he was executed at the stake.⁷³

In 1538, the conduct of the persecution fell into the hands of David Beton, and in him ultramontaniam became absolute in its most relentless form. The attempt was no longer to conquer heresy, but to exterminate it; nor can it be said that a process which in Spain was absolutely successful, was in itself unwisely calculated. If the Scotch had been a people over whom bodily terror could exert a power, they would have yielded as the Spaniards yielded.

But Beton had to deal with dispositions as hard as his own; and borne up also, as perhaps his disposition was not, by a consciousness of the sacredness of their cause. He could break, but he could not bend; he could burn, but he could not melt. 'This is your hour,' a Glasgow friar cried at the stake; 'the powers of darkness sit as judges, and we are unrighteously accused; but the day comes which will show

⁷¹SPOTSWOOD: *History of the Church of Scotland*, pp. 65, 66.

⁷²CALDERWOOD, vol. i.

⁷³KNOX's *History of the Reformation*.

our innocence, and you, to your everlasting confusion, shall see your blindness. Go on, fill up the measure of your iniquity.'⁷⁴ Forret, the Yicar of Dolor, was tied among the faggots waiting for the fire. 'Will ye say as we say,' exclaimed a learned abbot to him, 'and keep your mind to yourself and save yourself?' 'I thank your lordship,' he answered; 'you are a friend to my body, but not to my soul. Before I deny a word which I have spoken, you shall see this body of mine blow away with the wind in ashes.' To give Forret a last chance they 'wirried and burnt' another victim before him, that he might profit by the spectacle. The man died quickly. 'Yea, yea,' the vicar only said, 'he was a wylie fellow; he knew there were many hungry folks coming after him, and he went before to cause make ready the supper.'⁷⁵

Happy contrast to the Court, with its intrigues and harlotries, its idle and paltry schemings. We need not wonder at the regeneration of Scotland, when she had such men as these among her children. When the battle was begun and was fought in such a spirit, the issue was certain: the first death was an earnest of victory. But our story must now turn to another country, which contained no such leavening element, and which had longer to wait for the tide of misfortune to change.

The Irish difficulty, under the Plantagenets, the Tudors, the Stuarts, and the House of Hanover, has preserved one uniform characteristic. The country has exerted a magical power of transformation upon every one connected with it. The hardest English understanding has given way before a few years of residence there; the most solid good sense has melted under the influence of its atmosphere.

On the close of the rebellion of Lord Thomas Fitzgerald, Lord Leonard Grey, to whom he surrendered, repaired with his prisoner to London; and after receiving a handsome present as the reward of his services, returned to his post as marshal of the army. In his absence the deputy, Sir William Skeffington, and Lord James Butler extinguished the remains of disaffection which were still smouldering in the southern counties. They made an armed progress through Tipperary and Cork into Limerick, receiving the submission of the leading chiefs. Dungarvon, which had been fortified by the Earl of Desmond, and was intended as a place of landing for the Spaniards, attempted a resistance; but a few English fishing-vessels, acciden-

⁷⁴SPOTSWOOD

⁷⁵CALDERWOOD, vol. i. p. 129.

tally on the coast, blockaded the harbour.⁷⁶ Skeffington had cannon with him; and after six hours' bombardment the garrison yielded. Opposition had everywhere ceased. O'Brien, calling himself Prince of Thoinond, wrote a letter to the King, professing his obedience, and only entreating that the Duke of Richmond, or some English nobleman of rank, might be sent over to govern;⁷⁷ and on the 31st of December the Master of the Rolls and Mr Justice Aylmer were able to tell Cromwell that 'since the first conquest Irishmen were never in such fear.' Sessions had been held, and the royal writs respected in five additional shires; eighteen thieves had been hanged in Kildare. And 'there, as well as manywheres else,' they said, 'the poor earth tillers do peaceably occupy the earth, and fear not to complain upon them by whom they be hurted.'

Leaving the country in this improved condition, Skeffington, who had suffered long from ill-health, retired at once from his office and from life—he died on the last day of the year—and, according to O'Brien's desire, a person of higher birth was chosen to succeed him. Lord Leonard Grey, brother of the Marquis of Dorset, and brother-in-law of the Earl of Kildare, formed as it were a connecting link between the two kingdoms, and seemed fitted by rank and circumstances to be a successful administrator of Ireland. His personal character remained to be brought out by authority. In past years he had dabbled in dangerous arts, and had been connected with treasure-seekers; but he was then young: he had followed in his errors the respectable example of the Duke of Norfolk,⁷⁸ and he had since distinguished himself as a hardy adventurous soldier, no slight qualification for so dangerous a command.

He found Ireland outwardly quiet; but his position, it soon appeared, would require a strong head as well as a strong hand. In June, 1536, the Earl of Desmond and O'Brien were again conspiring; and the English soldiers were in mutiny for want of pay. The King had been encouraged to believe that, when the insurrection was over, their numbers might be reduced, and that the Irish revenues would support as many as would remain. It was found that the revenue existed only in the imagination of the treasurer. Neither rent of crown

⁷⁶*State Papers*, vol. ii. p. 288, &c.

⁷⁷*State Papers*, vol. ii. p. 287.

⁷⁸Confession of a Monk of St Bennett's, addressed to Wolsey, touching his dealing with spirits: *Rolls House MS.* second series 64.

lands, nor customs dues, nor taxes could be collected. The Irish Parliament could grant no money, for the people, exhausted by the war, had none to give; while not a man could be spared from the force at the command of the deputy. The Irish chiefs had but paused to take breath, or had been tranquil as a variation of amusement from the monotony of war; and, when Henry expected to hear that the country would be self-supporting, he was informed that 'the English blood was worn out, and the Irish blood ever more and more increased.' If peace was to be maintained permanently, three armies would be needed instead of one, to invade simultaneously north, south, and west, to build fortresses and garrison them, and to hold the people under military rule.⁷⁹ Evil tongues whispered, also, that difficulties had brought disputes where there ought to have been only cordiality; that the deputy was arbitrary, and his subordinates more anxious to prove him to be wrong than to teach him what was right. Whether this was calumny the future would show: for the present, all parties hurried to deny the existence of so early a disagreement. There were enemies by this time in the field, and Lord Leonard was at least a soldier. He composed the mutiny for a time with promises, and he resolved to escape the dissensions of Dublin, and distinguish, by some marked success, the first year of his command. Henry had sent him orders to break, if possible, the coalition in the west. In July he marched with a thousand men into Kilkenny, and thence turning towards Limerick, he took possession of a deserted castle belonging to Desmond, in an island on Lough Gyr. Carrigogonnell, a strong fortress on the Shannon, fell next into his hands. He placed it in the custody of an Irish chief who was supposed to be faithful; and, pausing for a day in the town of Limerick, he set himself to destroy the celebrated bridge at Castle Connell, a few miles distant, which O'Brien had thrown across the river to command the ingress from Clare into Munster. His way led up the southern bank of the Shannon. On reaching the spot he found four arches of the bridge broken down. On the portion of it which was left standing there were two castles, one of them 'very strong, builded all of hewn marble;' the other, on the Clare side, less formidable, but only to be approached through the first. 'The gunners,' wrote the council who accompanied the expedition, 'bent all their ordnance upon the castle, shooting at it all day; but

⁷⁹Lord Deputy and Council of Ireland to Cromwell: *State Papers*, vol. ii. p. 318; Cowley to Cromwell: *ibid.* p. 323.

it was of such force that the ordnance did in manner no hurt, for the wall was at the least twelve or thirteen feet thick, and both the castles were well warded with gunners, gallowglass, and horsemen, having made such fortifications of timber and hogsheads of earth as the like had not been seen in that land. They had one great piece of iron which shot bullets as great in manner as a man's head. They had also a ship piece, a Portugal piece, certain 'hagbushes,' and 'hand-guns.'⁸⁰

Lord Leonard, finding his cannon made no impression, fell back on the rough material of the English soldier. He gave his men the night to rest themselves. At daybreak every one was directed to prepare a faggot of wood a fathom long, 'to fill that part of the water between the land and the castle.' A party of volunteers were told off as a forlorn hope, who, with ladders in their hands, plunged across the chasm, and, 'with plain manhood and force,' scaled the bridge. The spectacle was sufficient: the garrison did not wait to make closer acquaintance with men who would venture such an enterprise. 'They scope out at the other end by footmanship,' leaving their guns and both castles in the hands of the English. The exploit passed as more than an ordinary success. 'O'Brene's Bridge' was so potent an instrument of mischief, that it was regarded in the neighbourhood with a kind of superstitious terror. The mayor and alderman of Limerick came out to witness the demolition, as the German burghers crowded about the body of the dragon; and remaining too long examining the castles the joists were suddenly loosened, the arches fell, and the city dignitaries were precipitated into the Shannon. Two lives were lost; there were boats at hand which rescued the remainder.

The victory thus closed in misfortune, and a worse followed. Henry had desired that, if the season allowed, the army should advance into Thomond, and bring O'Brien to his senses in his own country. Grey was ready to go forward; but the troops believed that they had done enough till they were paid with coin more substantial than words. The northern horse, the best men that he had, drew aside, and declared fiercely that, if their arrears were given them, they would go where the deputy would lead; if they were to be cheated of their right, though in the midst of an enemy's country, and in a moment of victory, they refused to stir another step.⁸¹ Payment on the spot was of course impossible; and Grey's triumph

⁸⁰*State Papers*, vol. ii. p. 349.

⁸¹*State Papers*, vol. ii. pp. 347–353.

was snatched from him. Fortunately, the threats of the men exceeded slightly their intentions, or the expedition might have ended in a serious disaster. The warden of Carrigogonnell, hearing of the mutiny, turned traitor, and declared for O'Brien. The castle was a formidable structure; but the soldiers were prevailed upon at least to maintain their conquests and revenge an act of treachery. They returned under the walls, and sent in a message that, if the Irish would surrender, they might depart with their lives; if they resisted, they should die, man, woman, and child. There were seventy of them—all men, it would seem; so that the latter part of the menace was needless. They believed themselves secure, and replied with a defiance. The place was assaulted instantly. Thirty English were killed; but the defence, though desperate, was useless. 'I suppose I kept promise with them,' wrote the deputy in his despatch to the King; 'and there was such an order taken as I trust all Irish rebels will take heed how they keep castles or holds? against your Grace's power.' The garrison had 'the pardon of Maynooth,' and were hanged to a man.

In this campaign Grey had done well. He had succeeded so far as success was in his power; and he was not to blame because the Irish treasury was bankrupt; or because the treasurer, with the national desire to say whatever was most immediately pleasing, had sent to the King such a splendid account of his expected revenue that no preparations had been made for the deficit. But the disappointment from his failures was greater than the enjoyment of his achievements. He returned to Dublin, irritated at the behaviour of the men, the mutilation of the enterprise which it had caused, and the neglect of those whose reports had been so unfaithful; and reproached, on the other side, by the council, with mistaking the character of the people, with trusting those whom he ought to suspect, and making 'skurrs of light matters.' Thus the expedition, brilliant as it had been, was followed by heartburnings and bickerings; and those whose reasonable faculties, at their highest strain, would have sufficed imperfectly for the work of governing Ireland, spent their time in quarrelling, thwarting, and calumniating each other. Grey, haughty and passionate, could control neither his temper nor his language. He would start on his feet in the council-chamber, lay his hand on his sword, and scatter carelessly invectives and opprobrious epithets. The council, who, amidst their many faults, understood Ireland better than the deputy, com-

plained to Cromwell that he would never listen to their advice. The deputy retorted with stories against the council; he declared that he was haunted with detraction; that 'it was predestinate to that country to bring forth sedition, invention, and lies.'⁸² To add to the embarrassment, the Irish Parliament, then in their session, continued recalcitrant in money matters. The proctors who were returned to Convocation, not being more than seven or eight in number, claimed to be a part of the general legislature, with a right of veto on every measure which might be proposed;⁸³ and certain ringleaders and

⁸²See the Correspondence of the Deputy and Council with the English Government: *State Papers*, vol. ii. pp. 382–501.

⁸³This very Irish feature in our constitutional history deserves particular attention. 'The frowardness and obstinacy of the proctors of the clergy,' the deputy and treasurer wrote to Cromwell, 'from the beginning of this session, hath been such that we can do no less than advertise your lordship thereof. After the assembly of the Parliament at this session, some bills were past the Common House, and by the speaker delivered to the High House to be debated there. The spiritual lords thereupon made a general answer that they would not commune nor debate upon any bill till they knew whether the proctors in the Convocation had a voice or not.... My lord, it were well done that some mean may be devised whereby they may be brought to remember their duties better. Except the mean may be found that these proctors may be put from voice in the Parliament, there shall but few things pass for the King's profit, for hitherto have they showed themselves in nothing conformable. We think that no reasonable man would judge them to have such a pre-eminence in a Parliament, that though the King, the Lords, and Commons assent to an Act, the proctors in the Convocation House (though they were but seven or eight in number, as sometimes they be here no more) shall stay the same at their pleasure, be the matter never so good, honest, and reasonable. It doth well appear that it is a crafty cast devised betwixt their masters the bishops and them. It is good that we have against the next session a declaration from them under the King's great seal of England of this question whether the proctors have a voice in the Parliament or not? and that every Act passed without their assents is nevertheless good and effectual.'—*State Papers*, vol. ii. pp 438–9. The reply of the Crown, as embodied in an Act of Parliament (*Irish Statutes*, 28 Henry VIII. cap. 12), is a good authority as to the constitutional, as distinct from the ecclesiastical, theory of the functions of Convocation. The Irish and English practice, however, before the Reformation, seems to have been curiously different. In England custom allowed the clergy to constitute themselves an independent legislative body. In Ireland the proctors seem to have regarded themselves as returned to the Parliament, like the bishops and abbots. 'Forasmuch,' says the Act, 'as at every Parliament begun and holden within this land, two proctors of every diocese within the same land have been used and accustomed to be summoned and warned to be at the same Parliament, which were never by the order of law, usage, custom, or otherwise, any member or parcel of the whole body of the Parliament, nor have had any voice or suffrage in the same, but only to be there as councillors and assistants to the same, and upon such things of learning as should happen in controversy, to declare their opinions, much like as the

bellwethers, presuming to have more excellent wit than those in England,' caused the rejection of the 'Act for the Suppression of the Religious Houses,' although the discipline, it was said, was even more relaxed, the religious personages less continent or virtuous, than in England—keeping no hospitality saving to themselves, their concubines, and children.'⁸⁴

The King, who personally knew Grey, and liked him, believed at first that the fault was rather with the council than the deputy. Cromwell entreated the latter, if there was any truth in the accusations of the other party, to acknowledge it. 'I need not tell you,' he said, 'how much the King's Highness delighteth in plain-dealing; how much he abhorreth occult handling of things.' But Grey protested that he had written nothing but truth; and Henry, accepting his word, sent orders in his imperious style, that the discord of which he had heard should cease. The council should submit to the deputy; the deputy should take advice of the council; above all, those who were maintained in their places to reduce a barbarous country into order, should not set an example of anarchy. A more serious matter than paltry wranglings and quarrels lay in the misrepresentations which had been made to him on the finances. He wrote angrily, expatiating upon the sums which he had spent, and the gulf into which they seemed to have been thrown. 'For all this,' he said, 'what have we gotten since the first stay of the violence of the late rebellion of Thomas Fitzgerald? In words you say we have now great revenues, and so indeed we have; but when anything is there to be paid, we see not what stead the same do stand us in, or to what purpose they serve. Good councillors,' he continued, 'should before their own private gains have respect to their prince's

Convocation within the realm of England is commonly at every Parliament begun and holden by the King's special license, as his Majesty's judges of his said realm of England, and other substantial and learned men, having groundedly examined the root and first establishment of the same, do clearly determine; and yet, by reason of this sufferance and by the continuance of time, and for that most commonly the said proctors have been made privy to such matters as within this land at any time have been to be enacted and established and their advices taken to the same, they now of their ambitious minds do temerariouly presume and take upon themselves to be parcel of the body, in manner claiming that without their assent nothing can be enacted at any Parliament within this land: wherefore, be it ordained and established by authority of this present Parliament,' &c. The conclusion from such a preamble may be easily supplied.

⁸⁴Cowley to Cromwell: *State Papers*, vol. ii. p. 371.

honour, and to the public weal of the country whereof they have charge. A great sort of you—we must be plain—desire nothing else but to reign in estimation, and to fleece from time to time all that you may catch from us.⁸⁵ The rebuke was partially deserved. In part it arose from the misrepresentations of the deputy, whose hasty accusations fell in for the present with the King's anxiety and vexation. On the same authority, Henry singled out for especial admonition Archbishop Brown, who had succeeded the murdered Allen—a man who was perhaps as foolish as he was supposed to be, but he was tolerably right-minded, and scarcely merited the tone in which he was addressed.

'We have advanced you,' the King said, 'in consequence of your supposed good qualities; yet nevertheless, as we do both partly perceive, and partly by sundry advertisements be informed, the good opinion that we have conceived of you is in manner utterly frustrate, for neither do you give yourself to the instruction of our people there in the Word of God, ne frame yourself to stand us in any stead for the furtherance of our affairs. Such is your lightness in behaviour, and such is the elation of your mind in pride, that, glorying in foolish ceremonies, and delighting in 'we' and 'us,' in your dreams you compare yourself so near to a prince in honour and estimation, that all virtue and honesty is almost banished from you. Reform yourself therefore with this gentle advertisement. Do first your duty towards God in the execution of your office; do then your duty towards us in the advancement of our affairs, and we shall put your former negligence in oblivion. If this will not serve, but that ye will still persevere in your fond folly, let it sink into your remembrance that we be able, for the not doing of your duty, to remove you again, and to put another man of more virtue and honesty in your place.'⁸⁶

The King's interference did not soothe the disagreements. He trusted too absolutely to Grey; and Grey, who at the outset seems to have divided the blame with the council, was every day deserving a larger share of it. Through this period of Irish history there is one standard which will rarely mislead the judgment. The relation in which any man in high office placed himself towards the Earl of Ormond, was a sure measure either of his understanding or his loyalty; and to the deputy's misfortune, either through personal

⁸⁵Henry VIII. to the Deputy and Council of Ireland: *State Papers*, vol. ii. p. 422.

⁸⁶Henry VIII. to Archbishop Brown: *State Papers*, vol. ii. p. 465.

antipathy, or because in his connection with the Geraldines he shared the Geraldine prejudices, he would neither accept Ormond for an adviser, nor could be brought to regard him except with passionate dislike. He even ventured to suggest a suspicion to Henry that Ormond was disloyal; and the King now felt that, if he was capable of so considerable an error, he could no longer himself be absolutely free from blame.

To ascertain the true state of things, therefore, if truth in Irish matters was ascertainable at all, a commission was appointed on the 31st of July, composed of George Paulet, a brother of Lord St John, two gentlemen named Moyle and Berners, and Sir Anthony St Leger. These four, taking with them funds to satisfy the claims of the army, were instructed to proceed to Dublin, and—after settling with the men as moderately as might be possible, but 'so as they might be contented, without grudge or murmur,'—to dispose of the plans of conquest, by disbanding all except three hundred and forty of the best troops. The expense of a large force could no longer be endured, until the Irish revenues became productive. Costly expeditions wore a fair appearance in a despatch; but meanwhile O'Brien's Bridge had been reconstructed, and O'Brien himself was independent and indifferent. The money was gone; the result was nothing. After dismissing the soldiers, the commissioners were to survey the Crown estates, to examine the treasurer's accounts, noting down accurately the receipts and disbursements; to inquire into the real conduct of the deputy, the council, the judges, 'how far every man was doing his duty in his degree;' whether there were complaints of bribery, extortion, or oppression, or whether such complaints were well founded; and generally they were to avail themselves of all means of information as to the condition and prospects of the country and the conduct of the Irish Government.⁸⁷

On arriving in Dublin they found themselves in a chaos of quarrel, calumny, and contradiction. Moderation seemed the one impossible and unimagined virtue. The loyalists in the council, who had done good service in the Geraldine rebellion, were in the humour of the modern Orangemen. The deputy, goaded by opposition and unreason, had dashed into toleration of the rebels. Immediately after the

⁸⁷Instructions by the King's Majesty unto his trusty and wellbeloved servants Anthony St Leger, George Paulet, Thomas Moyle, and William Berners, Esqrs., whom his Grace sendeth into his land of Ireland.'—*State Papers*, vol. ii. p. 452.

landing of the commissioners, an occurrence took place which illustrated the temper in which they would find Lord Grey, who but two years before had been a rational English nobleman. In the August of the same summer an expedition was ordered into King's County against O'Connor; and the knights and landowners of the Pale as usual were in attendance on the deputy. The weather had been wet, the rivers were in flood, and on coming to a dangerous ford Lord Leonard insisted on swimming his horse across the water. Being powerfully mounted he passed safely, although with some difficulty; and immediately, although there was no enemy to be sought or peril to be escaped, no object to be gained either in time or convenience, he insisted that the whole force should follow him. They objected reasonably to incurring a needless risk. Whereupon 'his lordship did not only revile them, calling them traitors, but also caused his marshals to spoil and take away from the Baron of Delvin, being an old man and an ancient captain, Viscount Gormanstone, and the other lords and gentlemen, their horses, harness, and weapons, they then being in the midst of an enemy's country, and left them, to the peril of their enemies and danger of their lives, to travel home on foot through bogs and mire.'⁸⁸ The Irish nature had made deep inroads upon the deputy. If the lords and gentlemen had broken the articles of war, they should have been brought home and tried for it. 'My Lord Deputy,' said Sir John Allen, 'is a nobleman and a good gentleman; but it should be good to reduce him to rule by order and counsel. I would have the King's deputy remember whose person he representeth; be sober in language, being more displeased with the offence than with the person. He ought to be the mirror both of justice and chivalry. It is not seeming to his estate and nobility to use vile language, which doth not conquer his enemy, but rather exasperate him to more malice; and, to be plain, unless my Lord Deputy use another moderation than he hath done of late, he shall be more meet to be ruled than rule, for he hath lost the hearts of English and Irish, friend and foe.'⁸⁹

Allen, the writer of this passage, was, with the exception of Ormond and his son, the only person in Ireland competent to furnish the commission with any tolerable information; and the Butlers were supposed to be interested parties, and open to exception as

⁸⁸ Articles of the Enormities of the Lord Leonard Grey: *State Papers*, vol. iii. p. 37.

⁸⁹ Articles of the Enormities of the Lord Leonard Grey: *State Papers*, vol. iii. p. 488.

witnesses. On the Master of the Rolls, therefore, St Leger chiefly depended; and with his assistance soon saw his way, not to Lord Leonard's removal, but to a limitation of the confidence which had been placed in him. Allen and St Leger together might have struck out some reasonable plan of action, if left uncontrolled. Unluckily, the commission was composite. Paulet, who belonged to the party in opposition to Cromwell in England, attached himself in Ireland to the deputy; and the reports sent home by the different commissioners contradicted each other little less than those which had before perplexed the English Government. It appeared, however, at least, that the revenue ought to be something, though it was actually nothing. It depended chiefly on the rents of lands confiscated for rebellion, which the tenants would not pay unless they were compelled; and with a diminished army would be diminished the means of compulsion. This was a fact which both factions admitted, and to which Henry must resign himself. He was encumbered with a country from which he could not retreat; which he could not govern; which was incapable of a noble independence, and incapable equally of a noble submission; which remained, and would remain, in a chronic disorder, exhausting alike to the English exchequer and the English patience. In other respects, as the Reformation advanced in England, Romanism with the Irish was deepening into a national principle. 'Irishmen,' said Allen, 'have long supposed that the royal estate of Ireland consists in the Bishop of Rome for the time being; and the lordship of the Kings of England to be but a governance under the same.' The Anglo-Irish of the Pale, and the Celts of the provinces, shared so far in the same convictions; and the commissioners concluded that the spirit was too strong to subdue. The King might conquer the country as often as he pleased; but his victories did but wound the air, which would close again behind his sword.⁹⁰ The Archbishop of Dublin could find no spiritual man in all his diocese who would preach the word of God or declare the King's supremacy.⁹¹ The Butlers alone among the resident noblemen could

⁹⁰*State Papers*, vol. ii. p. 535.

⁹¹Neither by gentle exhortation, evangelical instruction, neither by oaths of them solemnly taken, nor yet by threats of sharp correction, can I persuade or induce any, either religious or secular, once to preach the word of God, or the just title of our most illustrious prince. And yet before that our most dread sovereign were declared to be (as he ever was in deed) supreme head over the Church, they that then could, and would, even till the right Christians were weary of them, preach after the old

be depended on for English sympathies or English opinions;⁹² and the deputy, though afraid to avow his Papal bearings, yet exhibited his tendency in the insults which he heaped upon the Archbishop;⁹³ and in the oblique encouragement of the opposite faction.

St Leger, though he was too wise to commit himself, comprehended tolerably the condition of the various matters which he was sent to inspect. Especially he consulted Ormond, and carried away with him Ormond's views.⁹⁴

He returned with his companions in the April, spring of 1538; but the different conclusions at which they had arrived prevented any active resolution on the part of Henry, and the deputy, the council, and the country were again left to their own guidance. The slender restraints which had been imposed by the presence of the commissioners disappeared on their departure. The Bishop of Meath from his pulpit railed 'against the Archbishop of Dublin, calling him heretic and beggar, with other rabulous revilings.' The Archbishop was present, but his brother prelate, nevertheless, spoke of him 'with such a stomach that the three-mouthed Cerberus in hell could not have uttered it more viperiously.'⁹⁵ A priest of St Patrick's neglected to read the prayer for the King in the Church-service. The Archbishop put him in confinement. Lord Leonard Grey immediately set him at liberty. The 'stations' which had been closed were reopened. The pardoners resumed their trade, and were not to be checked; and the Archbishop wrote to Cromwell, imploring that he might be supported or else be allowed to resign.

The conservative reaction in England which, two years later, overthrew the Privy Seal, was gaining strength at the time; and the deputy, it appeared, possessed the confidence of the Duke of Norfolk and his friends, and looked to their support. George Paulet had told him that Cromwell was on the edge of destruction, and he, perhaps,

fashion, will not now open their lips; but in corners and such company as them liketh they can full earnestly utter their opinions.'—Archbishop Brown to Cromwell: *ibid.* p. 539.

⁹²The King's Majesty hath one champion, the Lord Butler, that dare repugne against the abusons of such sects as this miserable land is overflown withal.'—White to Cromwell: *State Papers*, vol. ii. p. 567.

⁹³*Ibid.* p. 539.

⁹⁴*Ibid.* p. 562–3.

⁹⁵*State Papers*, vol. iii. p. 2

believed himself safe in acting on the expectation.⁹⁶ But a clearer brain than belonged to Lord Leonard Grey was required to tread safely the narrow ridge which divided reaction from treason. The deputy was encouraged to oppose the semi-Lutheran Protestants; he dared at last to countenance the Romanists. The home Government had nominated a Dr Nangle to the Bishopric of Clontarf. The Pope, in opposition, appointed one of the Bourkes of Clanrickard. Nangle was expelled from the See; and the deputy, though ordered to prosecute the intruder under the Statute of Provisors, left him quietly in possession.⁹⁷ Following the same policy, he had come to an open rupture with Lord Ormond and his son, and as he advanced further along his perilous road his Irish connections gained increasing influence over him. He ceased to hold communications with the council, and selected a private circle of advisers from the partisans and relations of the Earl of Kildare. Gerald Mac Gerald, who had been a prominent leader in the rebellion, was appointed marshal of the army; and Geraldine marauders, who had been in prison, were let loose from their cages, and returned to their old habits. Kildare's two sons-in-law, O'Connor and O'Carroll, were received into favour; and Grey's Irish tendencies had developed themselves so rapidly, that at the Midsummer of 1538, four months after St Leger had left Dublin, Lord James Butler wrote, 'My Lord Deputy is the Earl of Kildare newly born again, not only in destroying of those that always had served the King's Majesty, but in maintaining the whole sect, band, and alliance of the said Earl, after so vehement and cruel a sort as hath not been seen.'⁹⁸ The frontier fortresses which had been built for the defence of Kilkenny were taken out of the hands of the Earl of Ormond, and bestowed on O'Carroll.⁹⁹ The family retainers of the Butlers could not appear in Dublin streets without danger of being insulted. 'If all Ireland,' Lord Butler said, 'should devise to enfeeble the Englishry of this land, and by a mean under-colour of indifferency to strengthen the Irishry, they would not imagine more earnest ways than my Lord Deputy now doth.' Desmond, through his connivance,¹⁰⁰ was stronger than ever

⁹⁶*State Papers*, vol. ii. p. 551, &c.

⁹⁷Cowley to Cromwell: *ibid.* vol. iii. p. 51.

⁹⁸Lord Butler to Cowley: *State Papers*, vol. iii. p. 32.

⁹⁹Ormond to Cowley: *ibid.* p. 53.

¹⁰⁰'My Lord Deputy hath so strengthened this James of Desmond, that all the captains of Munster, in effect, are of his band; and is of greater strength by means of my

in the south. 'Through comfort of him' O'Neil again levied black rent in Meath, Mac Morrough in Wexford and Kilkenny, O'Carroll in Tipperary. Finally, Lord Butler declared that he would never again 'take harness' under Lord Leonard, unless with special orders from the King; and the old Earl of Ormond, who four years before had saved Ireland, was with difficulty prevented from crossing the Channel, sick and dying though he was, and being carried to London in a horse-litter to lay his complaints before the throne.¹⁰¹ Ormond was true as steel; wilful falsehood never crossed his lips, and charges which he guaranteed by his own knowledge may be assumed to have been certainly true. His evidence furnishes, with Sir John Allen's, the single firm spots of ground on which we can place our feet in the quaking morass of Irish State papers.

Desmond was at this moment contriving the scheme, which he had laid before the Pope, of another insurrection, to be supported by the Spaniards, and was busy consulting the Irish chiefs, and reconciling their feuds with one another. The O'Neils in the north had been checked hitherto by their hereditary rivals the O'Donnells. Religion was rapidly obliterating this and similar dissensions, and weaving a Catholic confederacy. The union promised well throughout the island; and Desmond's exertions were ably seconded by a sister of the late Earl of Kildare. Lady Eleanor Fitzgerald had been the wife of McCarty Reagh, of Munster. In the fastnesses of the Cork mountains she had given a shelter to her nephew Gerald, Lord Thomas's brother, and now titular earl. Her husband dying, she resolved to gain over another powerful clan to the common cause, by giving her hand to the chief of the O'Donnells. The marriage was regarded as the sacrament of the general reconciliation. It was arranged at a conference which her son the McCarty, the Earl of Desmond, and Lord Gerald held with ambassadors from O'Neil. When the meeting was over, Lady Eleanor began, without delay, her progress to the north to her future husband, and, taking her nephew with her, she paid a visit first to O'Brien in Thomond. Thence she went into Galway to the Bourkes, and so through Sligo to O'Donnell's own country. O'Neil, who had married her sister, joined her there; and thus the interests

Lord Deputy than any Earl of Desmond that has been these many years. And as I am credibly informed, he hath counselled the said Desmond to make war upon me for such lands as my son James hath in his wife's right.'—Ormond to Cowley: *ibid.* p. 54.

¹⁰¹Lord Butler to Cowley: *ibid.* p. 30; Ormond to Cromwell: *ibid.* p. 93.

of the young Gerald were adopted by a coalition of all the great Irish leaders. A body-guard of four-and-twenty men was assigned to him, as a security against attempts at assassination; and the chiefs took an oath never to rest till they had restored him to his rank and estates.¹⁰² This was the opportunity which Lord Leonard Grey had chosen to play into the hands of the Geraldines of the Pale, to put important fortresses into the hands of his Irish neighbours, to strengthen Desmond at the expense of the Butlers. The follies of the council may have been great; but if the deputy was to be acquitted of treason, his own were incomparably greater.

His other proceedings were not calculated to restore the confidence of the loyalists. He could not have been ignorant of the confederacy. But he imagined that he might gain the hearts of the Irish by placing himself in their power. The chiefs, who could not desire to see the Government at Dublin in more convenient hands, were delighted to encourage him with hospitality. He accepted a safe-conduct from them—an action of itself dangerously culpable—and crossed with a small retinue, under an escort from O'Connor, into Connaught. Here he was met by Desmond, whose usurpation of authority in Cork and Kerry he recognized and sanctioned.¹⁰³ With the rebel Earl for a companion, he then paid a visit into Thomond, where, with his servants in the King's uniform, he accompanied O'Brien in an attack upon a bordering clan.¹⁰⁴ Following the steps of Lady Eleanor, he went next to Galway, to the Bourkes, where he received the rival Bishop, whom he had allowed to supersede Dr Nangle in the See of Clontarf. In the expedition to Limerick, two years before, he had left his heavy guns under the care of the mayor. The guns were shipped at Limerick by his order, brought round, and left among the Irish. Wherever he went, so far as his ability or knowledge extended, Lord Leonard deposed and deprived every person well affected to the English, of whatever power or authority they possessed, and replaced them with adherents of Kildare.¹⁰⁵

¹⁰²Ormond to the Council: *State Papers*, vol. iii. p. 44

¹⁰³*State Papers*, vol. iii. p. 54, &c.

¹⁰⁴For a certain reward which O'Brien gave to my Lord Deputy he is gone with the said O'Brien and James of Desmond to war upon Murrough O' Brien with all his host; and have promised, for a like reward, to go with Ulick Bourke upon Mac William.'—Ormond to Cowley: *ibid.* p. 48.

¹⁰⁵The late O'Carroll being deceased, he preferred to his room Fergananym O'Carroll, son-in-law of the late Earl of Kildare, delivering the whole strengths and

After these achievements, represented as I have described them by those who wished well to England, he returned to Dublin, and sent a report of his expedition to the King, relating it as a brilliant success—a triumphal progress—in which the Irish chieftains, being reasonably dealt with, had conducted themselves like reasonable men, and had promised and had given pledges that ever after they would be loyal subjects to the Crown.¹⁰⁶ Lord Grey's story was supported by his confidential servant Ap Parry, who attended the progress, and furnished the Government with an account of it. Viscount Gormanstone, on the other hand, who was also one of the party, and was a disinterested witness, confirmed the story of Aylmer and Allen, and shook the credit of the follower as well as his master, by mentioning that he had shared in the bribes which had been largely offered to both of them, and had been as largely received.¹⁰⁷ The deputy asserted that he had gone by the advice of the council; the council absolutely disclaimed the responsibility;¹⁰⁸ while Gormanstone again gave the inconvenient opinion that his safety and seeming success were due solely and entirely to his connection with the Geraldines.¹⁰⁹

Among so many contradictions, the King knew not what to believe. Grey had powerful friends among the English noblemen; and the experience of the last few years had wearied the patience both of Henry and Cromwell. Their hands were already full, and they were without leisure for a minute investigation. It was more easy to distribute the fault among all parties; and instead of entering on the merits of the quarrel, they addressed a rebuke both to the deputy and the Earl of Ormond, who was his chief accuser, commanding them to be rec-

garrisons of the country into his hands; and, as we be informed, took divers garrisons in Ormond, delivering the same to O'Connor and O'Carroll's friends, being of the Geraldine band. Being in Counaught, he hath put down Mac William, and hath made one Ulick de Burgh captain, which Ulick is of the Geraldine band.'—Brabazon, Aylmer, and Allen to Cromwell: *State Papers*, vol. iii. p. 56.

¹⁰⁶*State Papers*, vol. iii. p. 57. The value of the pledges was not considerable. O'Brien, for instance, put in his son, but stipulated that he should remain in the hands of the Earl of Desmond.—*Ibid.* p. 59.

¹⁰⁷*State Papers*, vol. iii. p. 62, note.

¹⁰⁸As concerning this journey that he made, there was none of the King's council privy that he would have gone any further than O'Carroll's country, neither can we hitherto know the cause or ground thereof. It was in God's hands that he ever returned, for he had not with him above a hundred Englishmen, and most of them without harness.'—Brabazon, Aylmer, and Allen to Cromwell: *ibid.* p. 83.

¹⁰⁹*Ibid.* p. 62.

onciled without delay, and to show in future better temper and better judgment. The points in which Ormond professed to have been injured should be settled by arbitration of the Chancellor, the Master of the Rolls, and the Lord Treasurer. The order was peremptory, and was in form obeyed. The Earl, Lord Butler, the council, and the deputy met in Dublin. Lord Leonard had called the Butlers traitors he was required to prove his words; and he and Ormond brought forward their respective charges in writing.¹¹⁰ The arbitrators, under Cromwell's direction, decided that on both sides the accusations should be dropped. The Earl and his son should swear to serve in future loyally under the deputy; the deputy should accept the Butlers as faithful subjects. The proud noble men consented with haughty reluctance. They shook hands, and there was outward peace. But it was a peace which was ill founded and ill cemented. The Irish confederacy remained, though the personal quarrel was at an end. If on each side there had been faults of manner, the essence and reality of the fault had been confined to one. Ormond was a loyal nobleman and a sensible man. The conduct of Grey can be interpreted only as rising out of treachery, or from a folly which approached insanity. The Master of the Rolls, in reporting to Cromwell the result of the meeting, assured him, again and again, that the Earl had been entirely correct in his account of the expedition into the west that the reconciliation could not be of long endurance; and that if the King desired an effective administration of Ireland, he must recall Lord Leonard Grey.¹¹¹

It would have been well for the deputy had he been spared further opportunity of doing injury. But Henry determined to give him another chance. The discovery of Desmond's intrigues with Paul III. made further trifling in that quarter impossible; and, believing in Grey's loyalty, he trusted that, when his eyes were opened, his abilities as a soldier would be useful. The intentions of the Irish, indeed,

¹¹⁰*State Papers*, vol. iii. pp. 74–82.

¹¹¹"We have communed with the Earl of Ormond and his son for proof of their book; they say the most part of the matter is so notorious that it needeth no further proof. But we must be plain to your lordship that, as far as we can perceive, this agreement will not long endure between my Lord Deputy and them. Neither can we perceive (whereof we be sorry) that my Lord Deputy is meet to make longer abode here, for lie is so hawte and chafing that men be afeared to speak to him, doubting his bravish lightness, nevertheless, it is much pity of him, for he is an active gentleman."—*State Papers*, vol. iii. p. 83.

no longer were open to any uncertainty. Messengers were found to be passing to and fro between O'Neil, James of Scotland, and the Pope.¹¹² In the spring of 1539 they March. had drawn out a plan of an intended campaign, in combination with the movements which were then contemplated in Europe. When the Emperor and Francis landed in England, the King of Scots was to cross into Ulster, and would descend on Dublin with the force of the North. The Geraldine clan would rise in the Pale, and sweep the English into the sea; and O'Neil would proclaim himself King of Ireland on Tara Hill.¹¹³ If James was required on his own Border, as he might be, he could be dispensed with. The chiefs were resolute, and equal to the work of themselves. 'The friars and priests of all the Irishry did preach daily that every man ought, for the salvation of his soul, to fight and make war against the King's Majesty and his true subjects; and if any of them did die in the quarrel, his soul that so should be dead should go to heaven, as the souls of St Peter and St Paul, which suffered death and martyrdom for God's sake.'¹¹⁴ The enterprise in Ireland, as elsewhere, terminated abortively, the Emperor, who was its central spring, declining to be set in motion. The Celtic chiefs, however, who, had the business become serious, would not perhaps have been the most effective of the confederates, were the last to relinquish the agitation. Their menaces continued loud till the summer; and in July Desmond 'began the dance' by attacking Kilkenny. Lord Leonard, who for the time had recovered his senses, now found O'Connor, whom the year before he had called 'his right hand,' to be the rank-est of traitors.¹¹⁵ He thought there was more falsehood in the Irish 'than in all the devils in hell;'¹¹⁶ and he had so weakened the Earl of Ormond that it was doubtful whether any part of Munster could be protected.... He was roused at last, it seemed. The plan of the rebels was that O'Neil and O'Donnell should make their way with young Fitzgerald to Maynooth. Desmond was then to join them; and

¹¹²The Bishop of Rome is the only author of their detestable purpose, and the King of Scots a special comforter and abettor. There passeth daily messengers from them to Scotland, and from thence to Rome.—Allen to Cromwell: *State Papers*, vol. iii. p. 136.

¹¹³Confession of Connor More O'Connor: *ibid.* pp. 139, 140.

¹¹⁴Confession of Thomas Lynch: *State Papers*, vol. iii. pp. 140, 141.

¹¹⁵I think certainly there is no ranker traitor inwardly in his heart than he is, whatsoever he sayth outwardly.—Lord Leonard Grey to Cromwell; *ibid.* p. 144.

¹¹⁶*Ibid.*

they calculated that the name of Kildare would set the country about Dublin in a flame. Lord Leonard, accompanied by Allen, who was now Lord Chancellor, anticipated the move by meeting O'Neil on the borders of Ulster. An action followed, attended with the usual results; the gallowglass could not stand before the English men-at-arms;¹¹⁷ they fled hopelessly, and the coronation of O'Neil at Tara was for a time deferred. The Butlers, with more difficulty, kept at bay the Earl of Desmond. The clans were prevented from joining; and at length, in the autumn, having accomplished nothing, they settled back into quiet.

Community of danger, and apparent community of desire to act rightly, for the moment reconciled the deputy and the council, and restored the former to the respect of Ormond. In the winter Lord Leonard made a progress in Munster, undoing, so far as he was able, his previous mistakes; and the Earl, on the 20th of December, wrote in better spirits to Cromwell, saying that the old differences were at last forgotten, and, 'God willing,' should neither be revived nor remembered.¹¹⁸ The deputy wrote with equal cordiality. The council united in a joint despatch, extolling Grey's gallantry in the insurrection, and entreating the King to confer upon him some mark of approbation; and Henry, eager to encourage the improvement which at last seemed real, replied with a New-year's gift.¹¹⁹ But the moral state of Ireland was as fickle as its climate, and tempests quickly alternated with sunshine. In the midst of the general goodwill, Lord Leonard sent home a request that he might be allowed a few days' or weeks' respite from his labours. He was anxious to marry, he said, and, if only for a short time, to breathe English air again. The council endorsed his petition; and Henry, in acquiescing, showed so little intention of remembering bygone failures, that he advised him, if he was coming over, to lose no time; in May operations would recommence against the Irish, and his presence would be required.¹²⁰ In the interval between the presentation of the request and the arrival of the King's reply, dissension had returned in all its fury; and with dissension, one of the periodic fits of what may be called madness in the deputy. It seems that the English residents at or near Dublin,

¹¹⁷Cowley to Cromwell: *State Papers*, vol. iii. p. 149.

¹¹⁸Ormond to Cromwell: *ibid.* p. 154.

¹¹⁹The Council of Ireland to Henry VIII.: *ibid.* p. 173.

¹²⁰Henry VIII. to Grey: *State Papers*, vol. iii. p. 194.

with the majority of the army, were inclined to treat the Irish as an inferior race—as a nation of treacherous, cowardly slaves, who deserved neither the privileges nor the respect of free, honourable men. The King had insisted that all his loyal subjects, whatever was their blood, were equal before the law, and equal in his own estimation.¹²¹ But his injunctions were imperfectly attended to; he was contending with a feeling which the reluctant subjugation of an alien race rendered inevitable in their conquerors—at once conscious of the weakness of their numbers, and proud of their personal superiority. The antagonism of English and Irish could be understood and partially excused; and although the deputy, who was related by blood to both peoples, ought to have held the balance between them impartially, his error, if he had inclined to one side or the other, would at least have been intelligible. But Lord Leonard, to his misfortune, treated such Irishmen as were out of favour with the Geraldines with English insolence and tyranny.¹²² Under pretence of doing equal justice, he allowed the Geraldine dependents to avenge their own real or imagined injuries on the settlers of the Pale with their own hands. At the close of his administration he ventured on an act which only his own confession would have obliged us to credit. In a list of accusations to which he pleaded guilty is the following clause:—

Whereas it is ordained by authority of Parliament that, if any person shall draw, incite, or procure, by any manner of means, any Irishman to come in hostility into the King's dominion, to rob or spoil any of the King's subjects, or consent to the same, either by comforting or abetting any such Irishman before the act, or, after the same committed, shall aid, favour, and maintain, by any manner of mean, such malefactors, shall be deemed traitor of high treason, and suffer the penalties of the same; the Lord Leonard, nevertheless, comforted and abetted one Kedagh O'More, an Irishman, with a company of horsemen and footmen, to come twenty miles within the county of

¹²¹Forasmuch as we be credibly informed that sundry of our retinue there doth both in words and deeds misbehave themselves towards our good and loving subjects of that country, as in calling them traitors, and in violently taking their goods and commodities from them, our pleasure and commandment is that you shall cause a proclamation to be made, commanding by the same, upon pain of death, that no man be so hardy so to misuse himself in word or deed towards any of our said good subjects of the birth of that our land.'—Henry VIII. to Grey: *ibid.* p. 195.

¹²²The Lord Leonard never made recompense of any wrong that ever he did to any Irishman.'—*State Papers*, vol. iii. p. 259.

Kildare, to rob the barony of Oughtryn, and safely to return with the prede and spoil of the country, the like whereof hath not been seen. And a servant of his lordship's, called Edmund Asbold, was guide and conductor to the said malefactors, commanding the men of war of the country not to stir in the resistance of the same, for it was my Lord Deputy's commandment the same acts should be committed. And the said Asbold, with the principal malefactors, after the same act committed, and after they were for the same indicted of high treason, were as conversant and familiar with his Lordship as they were before, without attaching; and the inhabitants of the county, if the justices would have received the indictment, did present my lord as principal in the act committed. And touching the same, my lord confessed with advisement, in open council, sufficient matter to convict him of the same. And because the matter of itself is so evident against my lord, the King's council and justices ordered that his lordship should be chargeable to the poor people for their losses.¹²³

After this exploit, and after having, in addition, released from Dublin Castle a number of Irish prisoners convicted of high treason, Grey represented to the King that the country was profoundly quiet. He reduced the army, and bequeathing as a legacy to Sir William Brereton, who was left as lord justice in his absence, to trust no one of the council, or he would be undone, he sailed for England. No sooner was he gone than the quiet of which he had spoken was turned to uproar. On the 30th of April O'Connor was killing and burning on the West Marches. On the 7th of May the Wicklow freebooters were cattle-driving under the walls of Dublin. 'To be plain with your lordship,' Brereton wrote to Cromwell, 'the deputy hath left this land in marvellous evil sort and danger;¹²⁴ and Ormond confirming the same story, and details of Grey's late extravagances reaching the Government at the same time, the King could endure it no longer. Exasperated by disappointment, the waste of money, and the hopelessness of the whole miserable business, he determined at all events that he would know the truth. He sent Grey to the Tower, and he wrote to Ormond, Sir John Allen, and Brabazon to repair to his presence on the instant for an examination of their own and the deputy's conduct.

¹²³Articles of Accusation against Grey: *State Papers*, vol. iii. p. 259

¹²⁴*State Papers*, vol. ii. p. 200.

The tongues of Lord Leonard's enemies were instantly loosed; accusations, wise and foolish, poured in from every side. Archbishop Brown remembered that once in Lord Leonard's presence he had called Reginald Pole a Popish cardinal, and the deputy in return had called him 'a polshorn knave friar.' He hinted that the King's cannon had been left at Galway for Pole or Pole's friends to find them there.¹²⁵ Stories came out of secret dealings with Irish chiefs. The King's representative had taken bribes; he had assisted O'Neil to destroy a chief named McGuire, who had been a friend to the English; he had set at large convicted traitors; he had favoured the Geraldines, and corresponded with his nephew the pretended Earl of Kildare. Ormond and the chancellor, when they crossed the Channel, carried with them an indictment of ninety counts, each one of which, if proved, would bring destruction with it.¹²⁶

The charges were laid before Parliament, and in the first displeasure a bill of attainder was presented in the House of Lords.¹²⁷ It was withdrawn four days after; perhaps because the confusion and distress which had followed Grey's departure, and had lasted into the summer, had prevented a temperate inquiry. Sir Anthony St Leger was appointed deputy, and Henry, in sending him to his government, directed him to complete the investigation.

It was done—done, as St Leger's character forbids us to doubt, with judgment and impartiality; and it resulted in the establishment of a case against Grey, which admitted only the palliation of possible insanity. Originally unfit for a position of command, he was sent to govern a country which had tried the brain and wrecked the reputation of many a wiser man. His recommendation had been his connection with a powerful native family; and the choice of a relation of the Geraldines implied a desire on the part of the English administration to conciliate. But to pursue prudently a policy of conciliation towards a half-conquered insubordinate race is the most arduous task which a ruler can be called on to discharge, and the connection had only surrounded him with seductive influences. His official advisers were, for the most part, little wiser than himself; and his mind yielded to a burden to which it was fundamentally unequal. His complicated embarrassments unhinged a disposition which nature had imperfectly

¹²⁵ Archbishop Brown to Cromwell: *State Papers*, vol. iii. p. 208.

¹²⁶ *Ibid.* p. 249, &c.

¹²⁷ *Lords Journals*, 32 Henry VIII. July 17.

balanced. After each and all the articles of accusation had been sifted, five of the most important were considered to have been substantiated.

In a meeting of the English privy council, on the 15th of December (after Cromwell had fallen, it is to be remembered, and when the peers had recovered their weight), 'It was agreed, after long and mature consideration, that the Lord Leonard Grey, late the King's deputy in Ireland, being led by the affection which he bare to the Geraldines, by reason of the marriage between his sister and the late Earl of Kildare, had done and committed heinous offences against the King's Majesty, and especially in the five points following, that is to say:—

'1. The entertaining of Margaret O'Connor, O'More's sons, Prior Walsh and his brother, knowing the same to be the King's traitors, rebels, and enemies, and that before they had any pardon.

'2. The setting up of Ferganany O'Carroll, the King's enemy, and the destruction of McGuire, the King's friend, with the taking of his castle.

'3. The setting at liberty Talbot Fitz Piers, Fitzgerald, and the Dean of Deny, being the King's subjects, and committed by the council to ward upon heinous points of treason.

'4. The procuring and maintenance of O'More's sons to rob and spoil the King's subjects.

'5. The entertaining of Edmund Asbold, after that he knew that the said Edmund was indicted of treason, with his word unto him bidding him to shift for himself.'

'Unless the said Lord Leonard could make better answer for himself unto these things he was in great danger.'¹²⁸

Lord Leonard had attempted to defend himself by reviving a counter-charge of treason against Ormond.¹²⁹ He could not disprove his own offences; he failed to make good his case against another. He was sent to trial, and, feeling his position hopeless, he spared the jury the duty of pronouncing against him by pleading guilty, and throwing himself on a mercy which was not extended to him. His fate might be pitied, but could not be condemned in an age in which peers and commoners were unequal in the eye of justice,

¹²⁸*Proceedings and Ordinances of the Privy Council*, vol. vii. pp. 90, 91.

¹²⁹*Ibid.* p. 88.

and responsibility was increased in proportion to the rank of the offender.

With Lord Leonard Grey the chapter of Irish misfortunes for the time was closed. The rule of folly was over—the rule of prudence commenced, and for the remaining years of the reign of Henry VIII. Ireland settled down, apparently for ever, into an attitude of quiescent obedience. Something of the improvement was due to the judgment of the ablest statesman who as yet had undertaken the administration of the country; something, also, to the skill with which Henry threw a bait to the Celtic chieftains, which they swallowed with unreluctant greediness. Their devotion to the Pope was considerable in quantity, and in substance was moderately genuine. It was not proof, however, against the temptation of a share in the spoils of 'religion.' In a full Parliament held by St Leger in Dublin, at which O'Neil, Desmond, O'Brien, O'Donnell, Mac William, and the other most turbulent Irish leaders were present, the religious houses, which five years before had been saved by the clergy, were condemned to the same fortune which they had experienced in England. The lands were distributed among the Irish nobles on terms so easy as to amount to a present; and the participation in the sacrilege, and the actual accomplishment of the suppression, if it did not inspire the Celtic leaders with gratitude towards England, yet suspended the friendliness of their relations with the recusant priests at home and with the Romanists abroad. While digesting the heavy meal they were contented to be at rest—and in a general interchange of cordialities and courtesies the late confederates, who had sworn to drive the English from the country, conferred on Henry the title of King of Ireland. Henry in return distributed peerages on those who had most deserved them by persevering hostility; while the amity was completed by the appearance of Donough O'Brien, Morrough O'Brien, and Ulick Bourke, to partake of the splendid hospitalities of Greenwich, and to receive their investitures respectively as Baron of Ibrachain and Earls of Thomond and Clanrickard.¹³⁰

¹³⁰*State Papers*, vol. iii. p. 473. For the suppression of the religious houses and the distribution of the lands, see *Irish Statutes*, 32 Henry VIII. cap. 5; and *State Papers*, vol. iii. pp. 295–6, 334, 339, 392, 463–5. 474.

CHAPTER XIX

SOLWAY MOSS

CROMWELL had fallen: the shock which, at the news, once vibrated through Europe, the exulting hopes, the speculations, the terrors which that brief sentence stirred at every English fireside, we, who read of the catastrophe as but one event in a revolution, a fact long completed in the far-distant past, can never, except languidly, realize. Cromwell was the spirit of evil who had thrown a spell over the King, and entangled him in a war against Heaven. Cromwell was the upstart adventurer who had set his foot upon the necks of the Norman nobles. Cromwell was 'the hammer of the monks,' who had uncovered the nakedness of the abbeys, and had exposed the servants of God to ignominy and spoliation. And some few there were to whom he appeared as a champion raised up by Providence to accomplish a mighty work, and overthrown at last by the wiles of Satan. 'Now,' said Lord Surrey, 'is that foul churl dead, so ambitious of others' blood; now is he stricken with his own staff.'¹³¹ A servant of Cromwell in the Exchequer had married a nun. The Duke of Norfolk met the man a few days after the execution: 'I know ye well enough,' the Duke said: 'by God's body sacred it will never out of my heart as long as I live.' The servant quoted Scripture. 'I never read the Scripture,' the Duke answered, 'nor never will read it: it was merry in England afore the new learning came up; yea, I would all things were as hath been in times past.'¹³² 'I did ask of my friends,' said a Mr Lascelles, 'what news there were pertaining to God's holy Word. We have lost, I said, so noble a man, which did love and favour it so well. I supposed the ringleaders, as the Duke of Norfolk and my Lord of Winchester, not to lean that way; and I did advise that we should not be too rash and quick; for if we would let them alone, and suffer a little time, they would, I doubted not, overthrow themselves, standing manifestly against God and their prince.'¹³³

These are specimens of the language used by different men, according to their sympathies, in the summer and autumn of 1540.

¹³¹Deposition of Sir Edward Knyvet: *MS. State Paper Office Domestic*. Knyvet answering that 'it was sin to say ill of dead men,' Surrey replied, 'These new-created men would by their wills leave no nobleman in life.'

¹³²Papers endorsed Lascelles and Smithwick: *MS. State Paper Office, Domestic*.

¹³³*MS. ibid.*

Meanwhile, Anne of Cleves being pensioned off, the King married, without delay or circumstance, Catherine, daughter of Lord Edmund Howard. Three full years of unproductiveness had gone since Jane Seymour's death; and Henry's unpromising constitution was matter of calculation in Scotland.¹³⁴ If there were to be more children, the precious time might not be longer squandered. 'His Highness,' therefore, 'was earnestly and humbly solicited by his council and nobles of his realm to frame his heart to the love and favour of some noble personage, to be joined with him in lawful matrimony, by whom his Majesty might have some more store of fruit and succession to the comfort of the realm.' In compliance with the request, repeated as it had been with wearying frequency, 'upon a notable appearance of honour, cleanness, and maidenly behaviour, in Mistress Catherine Howard, his Highness was finally contented to honour that lady with his marriage, thinking in his old days, after sundry troubles of mind which has happened to him by marriage, to have obtained such a jewel for womanhood and very perfect love towards him as should not only have been to his quietness, but also have brought forth the desired fruits of marriage.'¹³⁵ The domestic arrangements were established at last, it was to be hoped, satisfactorily. Elsewhere the consequences of the change threatened to be considerable. The impression that the destruction of the Protestant alliance would place England on good terms with the Catholic powers was but partially true. The recovery of power by the conservative party implied of itself improved relations with the Empire. The English nobles were constant to the national traditions of enmity and friendship; the alliance of the French was a thing of yesterday; the princes of Spain and Burgundy had stood side by side with England for five generations. The interest rather perhaps than the sentiment of Charles V. taught him to respond to the feeling; he was gratified not a little by the sacrifice of Anne of Cleves; and in the concluding months of the year the renewal of the early engagement between himself and the Princess Mary was talked of openly both in Flanders and England.¹³⁶ The Duke of Cleves, on the other hand, on the verge of a quarrel with the Emperor for the Duchy of Gueldres,

¹³⁴The Laird of Grange did say, that King Henry, being corpulent and fat, there was small hopes of his having heirs,' &c.—*Memoirs of Sir James Melville*.

¹³⁵The Privy Council to Sir William Paget; *Acts of the Privy Council*, vol. vii. p. 352.

¹³⁶*State Papers*, vol. viii.

sought and obtained the support of France, cementing his alliance by a marriage with the daughter of the Queen of Navarre.

Indications were thus apparent of a change of partners preparatory to the opening of a new game: and little differences simultaneously arose between the Courts of London and Paris, which might easily have been composed had there been a desire to settle them, but which, as easily, with the wind in the wrong quarter, might be fanned into a quarrel.

By the treaty drawn at Moor Park in 1525, and a second time ratified in London in 1532,¹³⁷ the French and English Governments had undertaken respectively to give neither shelter nor countenance to refugees. In virtue of this obligation Henry had demanded the capture and extradition of Reginald Pole; and now other persons, especially a pretender calling himself the White Rose, though with as little Plantagenet blood in him as was in Perkin Warbeck, were residing openly in Paris, circulating the libels against England with which the Catholic presses were teeming. The French Government, not unnaturally, declined to be bound by conditions regarding political offenders, into which they had entered while the contracting parties were alike in communion with Rome. Treason in an Englishman had become respectable; and a Catholic power could not consent to surrender to death or enforced apostasy men whose crime was fidelity to the Church. A formal demand for 'the White Rose' was evaded or refused.¹³⁸ The English minister was pressing. Francis was loud and peremptory. The scene between Wyatt and the Emperor in the similar instance of Brancetor all but repeated itself.

A bad spirit simultaneously showed itself on the Marches at Calais and Guisnes. The defensive works at both these places had been largely increased in the three last years. Additions, since the discovery of Botolph's plot, had been made to the garrisons, while in the late summer as many as sixteen hundred men had been employed in cutting trenches and throwing up batteries. The French had stationed a force at Ardes to watch these proceedings, and extend their own defences in proportion; and the boundary line not being rigidly defined, and Calais being the sensitive point of difference between the two countries, there had been quarrels among the opposition gangs of labourers. Trenches which had been cut by

¹³⁷ RYMER, vol. vi. part 2, p. 171.

¹³⁸ Wallop to Henry VIII.: *State Papers*, vol. viii. p. 436.

one party were filled in by the other; Lord Maltravers, the English deputy, was fired on by an ambuscade; and although officially the Governments affected to regret the unruliness of their subjects, neither would yield anything of their supposed rights.¹³⁹ Lord William Howard was sent to Paris to ascertain, if possible, the real feeling towards England, and at the same time to learn how matters stood between Francis and the Emperor. The Earl of Hertford went to Calais to arrange the disputes with a French commissioner, and with directions to hint that if treaties were systematically broken, 'if the French would omit to accomplish that whereunto they were bound, and sought daily to claim that whereunto they had no title, they might drive the King of England to seek and claim his right in some other things, and might hear that which should percase redound to their disadvantage.'¹⁴⁰ The 'some other things' referred to an old debt which had arrived at dimensions not easy to deal with. A series of money transactions, dating back into the fifteenth century, and complicated further by the war of 1513, by the redemption money which Francis had engaged to pay for the restoration of Tournay, and other intricacies, had been adjusted and simplified in the treaty of Moor Park. It was there agreed that France should pay to England two million crowns, at the rate of a hundred thousand crowns a year; that if Henry survived the completion of the payment, the annual hundred thousand crowns should be continued to him as a pension for his life; that, in addition, a perpetual pension should be paid to himself and his successors of fifty thousand crowns, with a further proportion of the salt duties.¹⁴¹ Eight hundred thousand crowns had been since added to the principal, in two sums of three and five hundred thousand crowns each, which Henry had advanced to redeem the French princes when in prison in Spain; and another half million had been advanced for the expenses of the Italian campaign of De Lautrec, in 1528. Whether any, or if any, how much, of these additional debts, would be claimed, or were likely to be recovered, was an unsettled question. The light-hearted Francis held vague notions of pecuniary obligations. The original payments were already far in arrear; and for the last six years no money had

¹³⁹Maltravers to Henry VIII.: *State Papers*, vol. viii. p. 460; Wallop to Henry VIII.: *ibid.*

¹⁴⁰Henry VIII. to Hertford: *State Papers*, vol. viii. p. 523.

¹⁴¹RYMER, vol. vi. part 2, p. 21, &c.

been forthcoming, nor mention or promise of money. Henry being anxious, for many reasons, to keep on good terms with Francis, had not pressed his claims; but the twenty years were approaching their term. The composition had originally been more than favourable to France; and in fairness to his own heavily-burdened subjects the King would be forced to demand an explanation.

In so delicate a matter it was necessary to be cautious. The temper of the French Government was evidently uncertain. It appeared as if they were calculating on the known embarrassments of England; and a formal request for payment might be followed by repudiation, which it would be dishonourable to bear, and dangerous to resent. An opportunity must be taken when the improved relations with the Empire had assumed consistency, and Charles and Francis were on less amicable terms. The aspect of things had changed, but the change was recent. But a few months since the two Catholic princes had discussed an invasion of England, and Henry had attempted a combination to take Charles prisoner and deprive him of his Flemish provinces.

But the great powers were accustomed to varieties of attitude; and the insoluble Italian question remained still undigested. The English revolution had freed the Emperor from alarm of an Anglo-German confederacy; the retention of Milan was once more of greater importance than the friendship of Francis. He had held out hopes, it was true. He had used Milan as a bait, which Francis followed as often as it was thrown to him. Now, when he was pressed to convert his ambiguous promises into reality, he withdrew, much as he had done under similar circumstances five years before. In an interview with the Cardinal of Lorraine and with Montmorency, he said that he was so anxious to convert the truce into a peace, that he would do more than he had meant to do. He could not surrender a country which formed the connecting link between Spain, Italy, Germany, and the Low Countries; but he would make over in its place the province of Flanders. The offer might have tempted a prudent prince, and satisfied a reasonable one. On Francis the answer had its usual effect. 'He could take Flanders,' he said, 'at his pleasure.' He would have Milan or nothing.¹⁴²

The Emperor was of course prepared for the reply, and thus, it was at least likely, intended to drift towards England. Henry, on the other

¹⁴²LORD HERBERT, p. 225; *State Papers*, vol. viii. p. 641.

hand, knowing accurately how slight thanks he owed to either of his brother princes for his present tenure of his throne, was entitled and able to take advantage of their necessities, and to choose the alliance which suited best with English interests.

Nevertheless, both at home and abroad, his course was still intricate, his position critical. Abroad, he knew himself to be dealing with Governments which convenience might make his allies, but could never make his friends. At home, the virulence of the ultra-reactionaries, which the sacrifice of Cromwell had for the moment appeased, recommenced as soon as it was found that the King was constant to his general policy; that the Bible was still to have its course; that the clergy were not to be liberated from their chains. Conspicuous persons who had been intimate with the fallen minister, became the objects of secret accusations; and the opening of the new year was signalized by the arrest, on a charge of treason, of Sir John Wallop and Sir Thomas Wyatt. The accuser of Wyatt was Bonner, now Bishop of London; his supposed offences were slanderous expressions used against the King at Nice, and a correspondence at the same place with Pole. Wallop had been informed against by a friend of the Duke of Norfolk, Richard Pate, the present English minister in Flanders—a disguised Romanist, who soon after showed his true colours.

An instance of unrelenting severity on the part of the King will be presently related: if he was inflexible where guilt had been ascertained, he was cautious, and even considerate, where there was only suspicion. Wallop, who had been superseded as ambassador at Paris in favour of Lord William Howard, was designed for the honourable and dangerous office of commandant at Guisnes. He was still in France; and the King wrote to Howard telling him that certain charges had been laid before him against his predecessor, and the second appointment must therefore, for a time at least, be suspended. 'Nevertheless, considering his long services done unto us,' Henry continued, 'and the place and office which he hath lately occupied for us, we have resolved, that before he shall be committed to any ward or prison, or that any such publication of his accusations shall be made as shall redound to his infamy and slander, he shall be familiarly conveyed by Sir Richard Long to our house in Southwark, and there secretly examined, to the intent he may know what is objected against him, and make such answer as he can: and if he

can clear himself—whereof we would be very glad—then to be admitted to our presence, and so entertained as his accusation should not tend to his slander.¹⁴³ Wyatt was for some reason sent to the Tower; but he, too, like Sir John Wallop, was informed privately of the charges against him, and had an opportunity of sending in his explanations.¹⁴⁴ In both instances the defence was accepted readily and warmly. After a few weeks' inconvenience, the late ambassador was at his post in command of the garrison at Guisnes, and Wyatt was indemnified for his brief imprisonment by the grant of an estate from the Crown.¹⁴⁵ Justice was the ruling principle of Henry's conduct;

¹⁴³ Henry VIII. to Lord William Howard: *State Papers*, vol. viii. p. 530.

¹⁴⁴ The scruple which was so careful of the reputation of a probably innocent gentleman has in Wallop's case prevented even the nature of the accusations from surviving. Sir Thomas Wyatt's supposed crimes are known only from his own defence. He was charged with having communicated secretly with Pole; with having said, when the pacification of Nice was concluded, that 'he feared the King should be cast out of the cart's tail, and by God's blood, if he were so, he was well served, and he would he were;' and, again, with having spoken against the Act of Supremacy. The first point was the misinterpretation of Bonner's malice. He had 'practised' to gain intelligence from Pole of the intentions of the Pope. He supposed that he had but discharged his duty in doing so. He had spoken loosely of the prospects of the King, he admitted. It was a fashion of speech, and not a good one; but that he had expressed his expectations in the form of a hope he denied utterly. Of the Act of Supremacy he allowed that he had said it would be sore rod in evil hands; and he supposed he had been right in saying so.—Norr's *Wyatt*.

¹⁴⁵ The privy council, writing to Howard an account of this affair, said that Wallop at first denied having given any ground for suspicion; 'Whereupon the King's Majesty of his goodness caused his own letters written to Pate, that traitor, and others, to be laid before him, which when once he saw and read, he cried for mercy, acknowledging his offences, with refusal of all triai, and only yielding himself to his Majesty's mercy; whereupon his Majesty, conceiving that he did not deny his transgressions with any purpose to cloke and cover the same, but only by slipperness of memory, and taking his submission, being surely both sorrowful and repentant, his Highness having also most humble suits and intercessions made unto him, both for him and for Wyatt, by the Queen, adding hereunto respect for his old service, hath forgiven him; so as, to be plain with you, we think he is at this present in no less estimation with his Majesty than he was before.' 'Now to Wyatt,' they added: 'He confessed, upon his examination, all the things objected to him; delivering his submission in writing, but with a like protestation that the same proceeded from him withoutspot of malice. In contemplation of which submission, his Highness hath given him his pardon in as large and ample a sort as his Grace gave to Sir John Wallop.'—The Council to Lord William Howard: *State Papers*, vol. viii. p. 545. It is clear that neither Wallop nor Wyatt were tried. The 'oration' of the latter, therefore, printed by Mr Nott, and described by him as addressed to a jury after the indictment and the evidence, was composed only, but not delivered. The prudence of a later

but it was justice without mercy. Ever ready to welcome evidence of innocence, he forgave guilt only among the poor and the uneducated; and for State offences there was but one punishment. A disposition naturally severe had been stiffened by the trials of the last years into harsher rigidity; and familiarity with executions, as with deaths in action, diminishes alike the pain of witnessing and of inflicting them. Loyalty was honoured and rewarded; the traitor, though his crime was consecrated by the most devoted sense of duty; was dismissed without a pang of compunction to carry his appeal before another tribunal.

The King, it was generally known, intended to go on progress in the approaching summer through the scenes of the great insurrection, and receive in person the apologies of his subjects. The Duke of Norfolk was on the Marches as lieutenant-general; and had received instructions to require from the Scottish sovereign the surrender of the refugee clergy who, four years previously, had escaped for shelter across the Border. These two facts, in combination with general fretfulness, may have formed the motives which induced a party of Yorkshire gentlemen to make another effort in the cause which had once promised so brilliantly among them. In April five priests and a few knights and squires rose in arms under Sir John Neville. They accomplished nothing. The movement was instantly suppressed; we do not learn that so much as a life was lost; but the rash agitators were taken, and sent to London and tried; and, on the 17th of May, Neville and nine others paid for their folly in the usual way.¹⁴⁶ The name of the leader and the date of the commotion connects an event otherwise too obscure to be of interest, with the fate of a noble lady whose treatment weighs heavily on the reputation of the King.

The Countess of Salisbury had remained under sentence of death by attainder for more than a year in the Tower. Her companion, Lady Exeter, had received a pardon, but had gone into freedom alone. An amnesty had been proclaimed by Act of Parliament, but the mother of Reginald Pole had been exempted by name from the benefit of it. Nevertheless, it is unlikely that, after so long a delay, her punishment should have been suddenly resolved upon without provocation ei-

age has wisely discontinued the practice of secret examinations previous to trial, as admitting of being alarmingly abused. Cases, however, like the present sometimes occurred when it furnished the readiest method of disposing of calumny.

¹⁴⁶HALL, p. 841; Lord Herbert.

ther from the Countess or from her friends. It may have been that Sir John Neville was acting under instructions from her. It may have been that he had unwisely desired, of his own accord, to strike a blow for the Church and for the head of his family. The impulses, the desires, the secret communications which were circulating below the surface of society have left few traces by which to follow them. At any rate, as the 'manlike' Margaret Plantagenet would have disclaimed and disdained indulgence on the plea of her sex, so the treason of women in the sixteenth century was no more considered to be entitled to immunity than their participation in grosser crimes is held so entitled in the nineteenth. The Countess had written a letter to her son of professed disapproval of his conduct, under the direction of the Government. She had corresponded with him secretly in a far different tone; and she had darkened the suspicions against her by a denial of all knowledge of the conspiracies of Lord Montague and Sir Geoffrey Pole, where her complicity had been proved. The last provocation which sealed her fate was perhaps an act of her own—perhaps it was the precipitate zeal of her friends—perhaps, like her brother the Earl of Warwick, she had committed only the fresh crime of continuing to be dangerous. Be it as it may, on the day on which Sir John Neville suffered at York, and others among the conspirators at Tyburn, the grey head of the Countess of Salisbury fell upon the scaffold on the fatal green within the Tower.¹⁴⁷ To condemn is easy, instinctive, and possibly¹⁴⁸ right; to understand is also right, but is not easy. A settled age can imperfectly comprehend an age of revolution, or realize the indifference with which men risk their own blood and shed the blood of others when battling for a great cause. Another

¹⁴⁷ Lord Herbert, without mentioning his authority, says that, 'when commanded to lay her head on the block, she refused, saying, 'So should traitors do; I am none.' Turning her head every way, she told the executioner, if he would have it, he must get it as he could.' I am unable to see in this story the dignity admired by Lingard; and unless it rests on the evidence of eye-witnesses, I am not inclined to give it credit. Cardinal Pole says that her last words were, 'Blessed are those who suffer persecution for righteousness' sake.'—*Epist. Reg. Pole*, vol. iii. p. 76.

¹⁴⁸ I say 'possibly,' for if we do not know that Lady Salisbury had given fresh provocation, as little do we know that she had not; while this much indisputably had been proved against her, that while her son was engaged in a course of actions which the laws of all countries regard as the most criminal which a subject can commit, Lady Salisbury encouraged him in treason; and she encouraged, if she did not actively participate in, the conspiracy at home, which was designed to act in concert with an invasion.

execution followed, which was as generally compassionated as Lady Salisbury's was regarded with indifference. The contrast of popular feeling may represent how vast has been the change, in the last three hundred years, in the comparative estimate of crime. The offence of the aged Countess, even though it could be proved to have been deliberate constructive treason, would appear still too little to palliate, or even explain, her death. A murder, though unpremeditated, remains among the few acts to which modern sentiment refuses indulgence.

Lord Dacres of Hurstmonceaux, a young nobleman of high spirit and promise, not more than four-and-twenty years old, was tempted by his own folly, or that of his friends, to join a party to kill deer in the park of an unpopular neighbour. The excitement of a lawless adventure was probably the chief or only inducement for the expedition; but the party were seen by the foresters: a fray ensued in which one of the latter was mortally wounded, and died two days after. The bearings of the case were very simple. Deer-stealing, like cattle-stealing, was felony; and where the commission of one crime leads to another and a worse, the most lenient administration is usually severe. Had Lord Dacres been an ordinary offender, he would have been disposed of summarily. Both he and his friends happened to be general favourites. The privy council hesitated long before they resolved on a prosecution: and at last it is likely they were assisted to a resolution by the King. When the indictment was prepared, the peers by whom Lord Dacres was to be tried held a preliminary meeting to consult on the course which they would pursue. 'I found all the lords at the Star Chamber,' Sir William Paget wrote to Wriothesley, 'assembled for a conference touching the Lord Dacres's case. They had with them present the Chief Justice, with others of the King's learned council, and albeit I was excluded, yet they spake so loud, some of them, that I might hear them, notwithstanding two doors shut between us. Among the rest that could not agree to wilful murder, the Lord Cobham, as I took him by his voice, was very vehement and stiff.'¹⁴⁹ They adjourned at last to the Court of King's Bench. The Lord Chancellor was appointed High Steward, and the prisoner was brought up to the bar. He pleaded 'not guilty;' he said that he had intended no harm; he was very sorry for the death of the forester, but it had been caused in an accidental scuffle; and 'surely,' said Paget, who was present, 'it was a pitiful sight to see such a young man brought by his own folly

¹⁴⁹ Paget to Sir Thomas Wriothesley: *MS. State Paper Office*.

into so miserable a state.¹⁵⁰ But a verdict of acquittal, or any verdict short of murder, was impossible. The lords, therefore, as it seems they had determined among themselves, persuaded him to withdraw his plea, "and trust to the King's clemency. He consented: and they immediately repaired to the Court to intercede for his pardon. Eight persons in all were implicated Lord Dacres and seven companions. The young nobleman was the chief object of commiseration; but the King remained true to his principles of equal justice; the frequency of crimes of violence had required extraordinary measures of repression; and if a poor man was to be sent to the gallows for an act into which he might have been tempted by poverty, thoughtlessness could not be admitted as an adequate excuse because the offender was a peer. Four out of the eight were pardoned. For Lord Dacres there was to the last some uncertainty. He was brought out to the scaffold, when an order arrived to stay the execution; probably to give time for a last appeal to Henry. But if it was so, the King was inexorable. Five hours later the sheriff was again directed to do his duty; and the full penalty was paid.¹⁵¹

Neither crimes nor the punishment of crimes are grateful subjects. The nation, grown familiar with executions, ceased to be disturbed at spectacles which formed, after all, but a small portion of their daily excitements and interests. The historian, whose materials are composed, in so large part, of those exceptional occurrences which men single out for mention and record, sickens over these perpetual entries in the register of death. Yet, on the whole, Providence gives little good in this world, for which suffering, in large measure or small, is not exacted as payment, and the King and the country alike had reason to be on the whole well satisfied. A revolution, as beneficent as it was mighty, had been effected in a series of rapid and daring measures. The nation had reeled under the impulse, but the shock had spent its force. The Pope was a name of the past. The idle monks were working for their bread. The idle miracles had ceased to deceive. An English Bible was in every church, and the contents of it were fast passing into every English mind, bringing forward, inevitably as destiny, those further changes for which only time was needed. The rebellion which had raised its head had drooped into submis-

¹⁵⁰ Ibid.

¹⁵¹ For the account of this trial see the letter of Sir William Paget in the State Paper Office. *The Baga de Secretis*, pouch 12; HALL, p. 841; and HOLINSHED, vol. iii. p. 821.

sion. Conspiracies had bled to death, and the Emperor had ceased to threaten; and even James of Scotland, swayed as he was by alternate influences, had learnt something from Henry's success. Kirkaldy of Grange, the Lord Treasurer, a true friend to the English alliance, for the moment had gained the ears of the fickle prince; not, of course, without advice from London, he determined to use the occasion of the northern progress to bring James again to agree to the meeting with his uncle; and, leaving no time for the purpose to cool, so to order his arrangements that the resolution should be acted upon as soon as it was made, and should be kept concealed from the party of the Church till it was too late for them to interpose.

Henry set out, on the 1st of July, in high spirits, for the north, accompanied by the Queen and council. He went by Ampthill into Lincolnshire, and passed purposely through that part of the country where the commotion had been greatest. On the border of Yorkshire he was met by 'two hundred gentlemen of the shire in coats of velvet, and four thousand tall yeomen well horsed.'¹⁵² Every man of the whole company had, doubtless, worn the pilgrim's badges, and had followed St Cuthbert's banner. They now presented themselves in an eager demonstration of loyalty, and made their submission on their knees. The clergy, whose guilt had been greater, hastened, with the Archbishop at their head, to show equally their repentance, with professions and presents. The King went forward, surrounded by expressions of good-will; and to make his presence welcomed as a reality as much as admired as a pageant, he sent out proclamations that 'whosoever among his subjects found himself grieved for lack of justice, should have free access to declare his complaints, and have right at the hand of his Majesty.'¹⁵³ He visited Wressel Castle. He went to Hull to inspect the fortifications. At the end of August he was at Pomfret, and here evidence appeared of the Lord Treasurer's success at Edinburgh. 'One of the King of Scots' most secret councillors' arrived at the Court to arrange a meeting between the sovereigns before Henry's return to London.¹⁵⁴ The utmost caution was observed; every person concerned in making arrangements was sworn to secrecy;¹⁵⁵ and, 'although the matter was uncertain, the interview was

¹⁵²Hall.

¹⁵³*Acts of the Privy Council*, vol. vii. p. 245.

¹⁵⁴Henry VIII. to the Lord Chancellor: *State Papers*, vol. i. p. 680.

¹⁵⁵*Ibid.* 681.

thought not unlikely to take effect. Safe-conducts were prepared by the Lord Chancellor for the Scotch train, and were despatched in haste. The King proceeded to York; and at York, in the middle of September, James was expected to present himself. He was expected, and it may be supposed that he had really intended to come; but the proposal had been urged upon him without the privity of a statesman whose influence was a fascination. At the critical moment Cardinal Beton discovered the scheme, and in an instant all was changed.

The condition of Europe made the Scotch alliance more than ever necessary to France; and the Cardinal, having successfully interposed for the moment, set off to the French Court for instructions and help. A new phase of complications was about to open, and the opportunity of injury was not yet to be taken from him.

The intentions of France, and the connection of Scotland with them, will be related in their turn. For the present the story follows the King.

The principal object of the northern progress had failed. In October, Henry came back to Hampton Court to find a fresh domestic calamity preparing for him. Thirteen months had passed since his marriage with his present Queen. The connection had not been on the whole an unhappy one; and on the 1st of November, a few days after his return from Yorkshire, 'receiving his Maker, the King gave Him most hearty thanks for the good life he led and trusted to lead with her;' and, also, he desired the Bishop of Lincoln, his ghostly father, 'to make like prayers and to give like thanks with him.'¹⁵⁶ 'The whole realm, in respect of the virtues and good behaviour which she showed outwardly, did her all honour accordingly.'¹⁵⁷ Though other trials might pursue Henry till his death, he believed himself secure of the attachment and uprightness of Catherine Howard. The day after he had thus warmly expressed his confidence, a letter was brought to him from Cranmer, revealing a story of profligacy necessary to be told, yet too hideous to dwell upon. I shall touch upon it but lightly, inasmuch as the entire body of evidence survives in its voluminous offensiveness, and leaves no room for the most charitable scepticism to raise questions or suggest uncertainties.¹⁵⁸

¹⁵⁶*Acts of the Privy Council*, vol. vii. p. 352.

¹⁵⁷*Ibid.*

¹⁵⁸The evidence forms a volume among the *Domestic MSS.* in the State Paper Office.

During the King's absence a gentleman named Lascelles¹⁵⁹ came to the Archbishop and told him that his sister had been in the household of the Duchess of Norfolk, where the Queen had been brought up; that a short time previously he had advised her, on the plea of early acquaintance, to seek for a situation as maid of honour at the palace, and that she had replied that she would not take service under a mistress who, before her marriage, had disgraced herself. She was sorry to speak in such terms of the King's wife, but she mentioned the names of two gentlemen, one of them her cousin, Francis Derham, the other a person called Mannock, on the establishment of the Duchess, with whom her intimacy had been of the most unambiguous description.¹⁶⁰ The Archbishop, perplexed and frightened, consulted the chancellor and Lord Hertford, the only members of the council remaining in London. They agreed that Lascelles's story must be communicated to the King before any other step should be taken; and Cranmer, unable to summon nerve to speak on so frightful a subject, waited till the close of the progress, and wrote to Henry at Hampton Court.

The letter was received at first with utter incredulity. The King had seen nothing in his wife's character to lend credibility to so odious a charge. He laid the account which the Archbishop had sent, before such of his ministers as were in attendance; but he declared emphatically his conviction that the Queen was the object of a calumny. The story should be investigated, but with scrupulous secrecy, to protect her character from scandal. Lord Southampton was sent to London to see and examine the Archbishop's informant.

Finding Lascelles adhere to his story, the Earl cautioned him to be silent; and went down into Sussex, under pretence of joining a hunting party, in order to question the sister; while Mannock and Derham were in the mean time arrested, on the charge of having been concerned in an act of piracy in the Irish seas, and were privately examined by Sir Thomas Wriothesley. Wriothesley, of all the ministers next to Gardiner and the Duke of Norfolk, was most interested in finding the Queen to be innocent; he had attached himself decidedly to the Anglican interest, and had taken a prominent part in promoting the divorce of Anne of Cleves. But the case admitted of no self-

¹⁵⁹ Perhaps the same person who had regretted Cromwell's loss so deeply: see p. 446.

¹⁶⁰ *Acts of the Privy Council*, vol. vii. p. 353.

deception; the inquiry resulted on both sides in the confirmation of the worst which Lascelles had stated. The two gentlemen confessed; and Southampton returned with the miserable burden of his discoveries to the Court. The King was overwhelmed; some dreadful spirit pursued his married life, tainting it with infamy. The council were assembled, and he attempted to address them. But it was long before he could speak; and his words, when they came at last, were choked with tears.¹⁶¹ After a brief and miserable consultation, the Duke of Norfolk, Lord Sussex, the Lord Chancellor, and Cranmer were deputed to wait upon the Queen, and hear what she could say in her defence. The wretched lady at first attempted a denial; but from the questions which were put to her she discovered rapidly that too much was known; and after a fit of hysterics, and encouraged by promises of forgiveness, which Cranmer brought to her from the King on condition of a full confession, she acknowledged as much of her guilt as she saw that it was useless to disclaim. Foul as her behaviour had been before her marriage, Henry had as yet no reason to suppose that she had repeated her offences since she had been his Queen. Though she had disgraced herself as a woman, and had cruelly injured him as her husband, she had, as far as he knew, committed no crime against the State, and he allowed the Archbishop to quiet her alarms by a hope that her worst punishment would be the exposure of her shame.

But it usually happens in such cases that the first discovery is but the end of a clue which ravel out to unexpected issues. Seven or eight of the Queen's ladies were examined, and it was found that Francis Derham had been lately taken back into her service, and had been employed in a confidential office about her person; while a third Court gallant, Thomas Culpeper, who had accompanied the progress, had been admitted to interviews at midnight in the Queen's private apartments. Her establishment had been separate from the King's; at each house at which they had stayed, either she herself, or her chosen friend Lady Rochford, studied the positions of the staircases and postern doors; and the quarters assigned to her at Lincoln and Pomfret having offered especial conveniences,

¹⁶¹The Privy Council to Sir William Paget: *Acts of the Privy Council*, vol. vii. p. 352. My authorities for the general story are the *Privy Council Records*, with the Appendix to the seventh volume, the printed letters upon the subject in the first volume of the *State Papers*, the volume of Depositions in MS. in the State Paper Office, the *Journals of the House of Lords*, the Act of Attainder of Catherine Howard in the *Statute Book*, and the Indictments against her paramours in the *Baga de Secretis*.

Culpeper had been introduced to the Queen's room, Lady Rochford keeping guard to prevent a surprise, and had remained with her in more than dubious privacy from eleven o'clock at night till three in the morning.

No reasonable doubt could be entertained that the King had a second time suffered the worst injury which a wife could inflict upon him; that a second adultery, a second act of high treason, must be exposed and punished.

The hand involuntarily pauses as it writes the words. In nine years two queens of England had been divorced: two had been unfaithful. A single misadventure of such a kind might have been explained by accident or by moral infirmity. For such a combination of disasters some common cause must have existed, which may be or ought to be discoverable. The coarse hypothesis which has been generally offered of brutality and profligacy on the part of the King, if it could be maintained, would be but an imperfect interpretation; but, in fact, when we examine such details as remain to us of Henry's relations with women, we discover but few traces of the second of the supposed causes, and none whatever of the first. A single intrigue in his early years, with unsubstantiated rumours of another, only heard of when there was an interest in spreading them, forms the whole case against him in the way of moral irregularity. For the three years that he was unmarried after the death of his third wife, we hear of no mistresses and no intrigues. For six months he shared the bed of Anne of Cleves, and she remained a maiden; nor had he transferred his affections to any rival lady. The anxiety of his subjects, so far from being excited by his disposition to licentiousness, was rather lest his marriages should be uniformly unfruitful. The vigour of his youth was gone. His system was infirm and languid; and whenever his wedded condition was alluded to by himself, by the privy council, or by Parliament, it was spoken of rather as a matter politically of importance to the realm than of interest individually to the King himself. Again, his manner to his wives seems to have been no less kind than that of ordinary men. A few stern words to Anne Boleyn form the only approach to personal harshness recorded against him; and his behaviour, when he first heard of the misconduct of Catherine Howard, was manly, honourable, and generous.

Extraordinary circumstances, and the necessity of arriving at a just understanding of a remarkable man, must furnish my excuse for say-

ing a few words upon a subject which I would gladly have avoided, and for calling in question one of the largest historical misconceptions which I believe has ever been formed. It is not easy to draw out in detail the evidence on which we form, our opinion of character. We judge living men, not from single facts, but from a thousand trifles; and sound estimates of historical persons are pieced together from a general study of their actions, their writings, the description of friends and enemies, from those occasional allusions which we find scattered over contemporary correspondence, from materials which, in the instance of Henry VIII., consist of many thousand documents. Out of so large a mass tolerable evidence would be forthcoming of vicious tendencies, if vicious tendencies had existed. We rise from the laborious perusal with the conviction, rather, that the King's disposition was naturally cold. The indolence and gaiety of early years gave way, when the complications of his life commenced, to the sternness of a statesman engaged in incessant and arduous labours. He had no leisure, perhaps he had little inclination, to attend to the trifles out of which the cords of happy marriages are woven. A Queen was part of the State furniture, existing to be the mother of his children; and children he rather desired officially, than from any wish for them in themselves. Except in the single instance of Anne Boleyn, whom he evidently loved, he entered marriage for the sake of the male heirs which he so passionately desired; while, again, he combined with much refinement and cultivation an absence of reserve on certain subjects, which is startling even in the midst of the plain speech of the sixteenth century. It was not that he was loose or careless in act or word; but there was a business-like habit of proceeding about him which penetrated through all his words and actions, and may have made him as a husband one of the most intolerable that ever vexed and fretted the soul of woman.

A small share of the misdemeanour of Catherine Howard, however, can be laid to the charge of the King. Every day brought to light some fresh scandal. It soon appeared that the old Duchess of Norfolk, Lord William Howard, the Countess of Bridgewater, and many other members of the family, had been acquainted with her misconduct as a girl, and had nevertheless permitted the marriage to go forward, and had even furthered and encouraged it.

The misfortune was trebled in weight; and it was trebly necessary to act in the matter with entire openness, owing to so many ques-

tionable antecedents. No disgrace, however shameful, could be concealed. Circulars, detailed and explicit, were sent to the foreign ambassadors, and to the English ministers in Paris, Brussels, and Spain. The writs went out for a Parliament, to meet in January, and in the mean time, on the 12th of November, 'His Majesty's councillors of all sorts, spiritual and temporal,' were assembled, 'with the judges and learned men of the council,' when 'the lord chancellor declared unto them the abominable demeanour of the Queen, that the world might know that which had been hitherto done to have a just ground and foundation.'¹⁶²

The offending lady herself was removed to Sion House, where she was confined to three rooms, and, with Lady Rochford, waited for the judgment of Parliament upon her.¹⁶³ Derham and Culpeper were left to the ordinary course of justice. On the 1st of December they were tried in the Guildhall before a special commission. They pleaded guilty; and twelve days after they were hanged at Tyburn. In the world the King had many enemies, who of course made use of the opportunity of scandal; but Francis, although on doubtful terms with England, sent a warm and generous message. 'He was sorry,' he said, 'to hear of the displeasure and trouble which had been caused

¹⁶²Friends of the Queen had attempted to discover that she had been 'precontracted with Derham,' in which case she, like Anne Boleyn, would never have been lawfully married to the King, and might thus escape conviction for high treason. The King would not hear of the excuse, or allow it to be mentioned. Cranmer was directed to assemble the ladies and gentlemen of the royal household and tell them what had happened, 'foreseeing always,' the council wrote to him, 'that you make not mention of any precontract; but, omitting that, to set forth such matters as might engrieve and confound the misdemeanour, and, as truth doth indeed truly bear, declare and set forth the King's Majesty's goodness, most unworthy to be troubled with any such mischance.'—The Council to Cranmer: *State Papers*, vol. i. p. 693.

¹⁶³Chapuys, the Imperialist ambassador, who might have been expected to be favourable to the Queen, betrays no interest in her fate. Nor does he affect to believe in the innocence of a person who fully admitted her own guilt. 'The Queen,' he wrote, on the 29th of January, to Charles, 'is still at Syon, very cheerful and more plump and pretty than ever: she is as careful about her dress, she is as imperious and wilful, as at the time when she was with the King; notwithstanding that she expects to be put to death, that she confesses that she has well deserved it, and asks for no favour except that the execution shall be secret and not under the eyes of the world. Perhaps, if the King does not mean to marry again, he may show mercy to her; or if he find that he can divorce her on the plea of adultery, he may take another thus. The question, I am told, has been already debated among the learned theologians, although, so far, there is no appearance that the King thinks of any further marriage or of any other woman.'

by the lewd and naughty demeanour of the Queen; 'albeit, knowing his good brother to be a prince of prudence, virtue, and honour, he did require him to receive and shift off the said displeasures wisely, temperately, and like himself, not reputed his honour to rest in the lightness of a woman, but to thank God of all, comforting himself in God's goodness.'¹⁶⁴

In England the feeling seems to have been January. unmixed compassion for Henry; and the meeting of Parliament made an opportunity for the country to offer him some compensation, by acknowledging in an emphatic manner their sense of his services, and showing him the affection with which his subjects regarded him. The scene at the opening of the session was a very remarkable one, almost equally remarkable, whether we are to regard the emotion which was displayed as an exhibition of genuine feeling, or as affected sycophancy. When the Commons had answered to their names, and the Lords were in their places, the King passed up the middle of the great chamber, and took his seat upon the throne. The chancellor then rose and spoke for an hour; and the clerks of the House, having been unable to take down his words, an epitome was supplied for insertion in the Journals.

'King David,' Lord Audeley said, 'when called to reign over Israel, sought not of the Lord either honour or riches; but he prayed, as it is written in the Psalms, that God would grant him understanding, that he might keep his law. He asked for wisdom as the thing most necessary both for princes and people. In like manner, from the time when he came first to the throne of that country, his most sacred

¹⁶⁴*State Papers*, vol. i. p. 718. Sir William Paget's account of a conversation with the Queen of Navarre shows how necessary it was for Henry to have no concealment. 'After she had used a long discourse,' he said, 'of sundry matters, she entered on purpose of the Queen. And when I had made a declaration to her of the whole matter, so far forth as I knew of it, she said, with solemn addition in many words, how well she was affected towards your Majesty; that she was very sorry, as she knew the King her brother was, that your Majesty should be thus disquieted, and was nevertheless glad that she knew the truth of the matter at length, to the intent she might declare the same when time and place required; 'for,' said she, 'there hath been (and named the constable), and yet be (and named the cardinal, and the chancellor, who gaped to be a cardinal) in this Court that be the gladdest of men in the world to deprave the King's Majesty's your master's doings; and to tell you,' quoth she, 'franchement, the King my brother hath been too much abused with them, and so,' quoth she, 'I have told him not long ago.'—Paget to Henry VIII.: *ibid.* vol. viii. p. 636.

Majesty had sought of the Lord the same two things, understanding and wisdom.' As the King's name was mentioned, every peer rose from his seat and bowed.¹⁶⁵ The chancellor went on with a sketch of the reign to illustrate in how large measure these gifts had been bestowed upon him. He described the wars with which it had opened; the thirty years of quiet which had been enjoyed by England while Europe elsewhere was wasted with war; the victory over the Goliath at Rome, whom Henry, like David, had smitten down with a sling and a stone—with the sling of his councillors and the stone of the Word of God. He touched upon the northern insurrection, which had threatened to become so dangerous, but had been composed almost without bloodshed. He pointed to the reduction of Ireland from a state of anarchy, and to the defences of the country, which was now secured from invasion. Much had been done, he said, but much remained to be done; and on them and on their assistance the King relied. New opinions in matters of religion were continually rising: it would be their duty to determine how much that was new should be received and adopted; how much that was effete should be laid aside. Justice, again, was ill administered. There were good laws; but good laws, if ill observed, were worse than none; and the measure was not even between the rich and the poor. Men in authority abused their powers; farms continued to be engrossed; the price of provisions was raised by artificial monopolies; the weak were oppressed, and were driven from their holdings: these were points which required attention and speedy remedy. Yet, when all was said—when England as it stood was compared with England as it had been—no king had yet reigned over her to whom she owed so large a debt of gratitude as to his present Majesty.¹⁶⁶

The Lords and Commons, as the chancellor concluded, again rose and bowed to the ground, 'as if acknowledging the truth of his words, and giving thanks to Almighty God, who had allowed so great a prince so long to remain among them.' The King descended from

¹⁶⁵In progressu orationis, quoties mentio obvenerat regiæ Majestatis, id quod sæpe accidit, illico ad unum omnes humi tantum non prosternebant, quasi agnoscentes vera esse omnia quæ dicret orator in laudem principis simulque Deo optimo Maximo gratias agentes qui tali rege hoc regnum tam diu sustinuerit; communibus denique votis obsecrantes ut pro immensâ ejus misericordiâ erga illam Rempublicam in longævam ætatem talem principem producere dignaretur.—*Lords Journals*, vol. i. p. 164.

¹⁶⁶*Lords Journals*, 33 Henry VIII.

the throne, and left the house. Although no allusion had been made to the Queen, her behaviour was the first subject which came under discussion. In the first days of the session a bill of attainder was brought in against Catherine Howard and Lady Rochford, and read a first time on the 21st of January. On the 28th, when, in the common course of business, it would have been proceeded with, the chancellor stopped its progress, and said that, in consideration of the rank of the Queen, and that no pretences might be hereafter raised of precipitate or unfair dealing, precautions greater than usual must be observed. The facts had been proved; but it was possible that something might be urged in extenuation of the crime, or at least in mitigation of punishment. The laws were just: the King was anxious, if possible, to show mercy. It would be well if the Archbishop of Canterbury, the Duke of Norfolk, and Lord Southampton should visit her in private to hear if she could say anything to improve her case; or at all events to bring back a statement of some kind, no matter what, provided it was true. ¹⁶⁷

It is clear, from what subsequently passed, that the chancellor was acting under directions from the King; and that the object was, if possible, to prevent the completion of the attainder, and escape another execution. The peers at first acquiesced cordially; but as they had been responsible for the marriage, so especially they resented its consequences; the privy council Monday, held a meeting on Sunday: on Monday a resolution was passed in the Upper House to wait upon the King with a request, or rather with a demand,¹⁶⁸ that the prosecution should be left to themselves and the Commons. They would implore his Highness to consider, with his general good sense, the liability of all men to misfortune, to remember the importance of his life to the realm, and not permit his distress to prey upon his health. Finally, should the bill be passed after hearing the Queen's defence, they would desire him to spare himself the trouble of appearing in

¹⁶⁷*Lords Journals*, vol. i. p. 171. After the Act was passed, the King again made an effort in the Queen's favour. 'The King, after the vote of Parliament in her condemnation, wishing to proceed more humanely and more according to forms of law, sent some of his council with a deputation from the Houses to propose to her to come to the Parliament chamber to defend herself. She refused, however; she submitted herself to the King's mercy and good pleasure, and confessed that she had deserved to die.'—*Chappuys*, Feb. 25, 1542.

¹⁶⁸'Quædam alia minime contemnenda eorum animis occurrerunt regiæ itidem majestati exponenda, aut potius a suâ Majestate omnino flagitanda.'—*Lords Journals*, *ibid.*

person to listen to the recitation of it; and to convey his assent by letters patent under the great seal.¹⁶⁹

The Commons, meanwhile, had petitioned for permission to discuss freely the history of the adultery, and from time to time to have access to his Majesty's person, to submit their opinions to him.¹⁷⁰ The King had acquiesced; but he had requested, in turn, that he might not be molested by visits from the whole House; they must content themselves with communicating with him through a deputation. When the Peers carried their address to the palace, therefore, the Commons, who were acting in concert, sent with them a number of members to endorse the supplication. The two parties were admitted separately. The King thanked them for their anxiety, and consented to what they proposed; but before they returned, he called them together into his presence, and took the opportunity of suggesting that they were assembled neither for their own purposes nor for his, but for the interests of the commonwealth. They must remember that they were the representatives of the people: he desired that they would be more regular in their attendance, more diligent in discussing the measures which might be laid before them; and that in matters of difficulty the two Houses should hold more frequent conferences.¹⁷¹ He was anxious, perhaps, to forget his misfortune in the business of the State. The Houses determined that the issue of it should not long remain in uncertainty. They could now dispose of the Queen in their own way. The attainder bill was read a second and third time on the 7th and 8th of February. On the 11th the Commons were invited to the Upper House. The Duke of Suffolk, in the name of the committee who had

¹⁶⁹Ne nova tam flebilis historiæ et nefandi secleris commemoratio si coram fiat jam bene sopitum dolorem renovet in animo Principis.—*Lords Journals*, vol. i. p. 171.

¹⁷⁰*Ibid.* p. 167.

¹⁷¹Quos omnes simul præsentis sua Majestas gravissime admonuit, ut maxima sit cura de bonis condendis legibus, de justâ legum observatione, ut nemo arbitretur suam rem agi solam in parlamento aut sui commodi gratiâ se illuc vocari; sed reipublicæ negotium agi et unumquemque patronum præstare debere absentis multitudinis. Quapropter oportet magnates et communes unanimes esse, sæpius convenire et colloqui de præsentibus negotiis, de propositis statutis sen Billis ut vocant; alioqui futurum id quod autem hac usu venisse sæpenumero sua Majestas audivit et ægre tulit, ut alii aliorum Billas rejicerent tanquam inutiles omnino et incommodas reipublicæ ob hoc solum, quia rationes et fundamenta hujusmodi Billarum neque per se nôrunt, neque hi qui rejiciunt dignentur sermones commiscere cum alterâ parte, ut oranes omnium rationes et sensus perspiciant, quo fieri posset ut multæ bonæ billæ legis vigorem obtinerent, quæ nunc frustra proponuntur.—*Lords Journals*, vol. i. p. 172.

waited upon Catherine, declared that she had confessed the crime which she had committed against God, the King, and the English nation; that she implored God's forgiveness, and only entreated that her faults might not be imputed to her family. Lord Southampton added a few words, which are not preserved; the bill was declared to be passed, and the King's signature was produced and attached.¹⁷²

Four days later the following letter was written by a gentleman in London to his brother at Calais.

'According to my writing on Sunday last, I saw the Queen and Lady Rochford suffer within the Tower the day following; whose souls I doubt not be with God, for they made the most godly and Christian end that ever was heard tell of, I think, since the world's creation, uttering their lively faith in the blood of Christ only; and with goodly words and steadfast countenances they desired all Christian people to take regard unto their worthy and just punishment with death for their offences against God heinously from their youth upwards in breaking all his commandments, and against the King's royal Majesty very dangerously; wherefore, they being justly condemned, as they said, by the laws of the realm and Parliament to die, required the people to take example at them for amendment of their ungodly lives, and gladly to obey the King in all things, for whose preservation they did heartily pray, and willed all people so to do, commending their souls to God, and earnestly calling for mercy upon Him, whom I beseech to give us grace, with such faith, hope, and charity, at our departing out of this miserable world, to come to the fruition of his Godhead in joy everlasting.'¹⁷³

¹⁷²*Lords Journals*, p. 176.

¹⁷³Otwell Johnson to his brother John Johnson: ELLIS, first series, vol. ii. p. 128. Chapuys adds some particulars. 'The Queen, after some resistance, and with some difficulty, was taken down the river to the Tower, preceded by a barge containing the Lord Privy Seal, several members of the council, and a number of servants. The Queen followed in a small close barge, with three or four men and as many women. The Duke of Suffolk came behind as a rear-guard, in a large boat crowded with his retinue.' When they reached the Tower stairs, the lords disembarked first, and afterwards the Queen, in a dress of black velvet. The same forms of respect were shown to her as when she was on the throne. Two days after, being Sunday the 12th, in the evening, she was instructed to disburden her conscience; she was to die the following day. She desired that the block on which she was to be beheaded might be brought her, that she might learn how she was to place herself. This was done, and she made the experiment. At seven o'clock the next morning, all the King's council, except the Duke of Suffolk; who was indisposed, and the Duke of Norfolk, presented themselves at the Tower, with a number of lords and gentlemen, amongst the rest

Thus was the symmetry complete. The King, professing to be acting upon principle alone, had divorced a Catholic princess to make way for a friend of the Reformation. The sense of duty had been real, but it had been tainted with private inclination; and he had been rewarded with dishonour. The Protestants had supported him, because they saw a triumph for their party in a breach for any cause with the Papacy; and they were disgraced in the shameful catastrophe with which the marriage which they had encouraged had closed. The tide had turned. It was now a Protestant princess who had been divorced; and her place had been taken by a representative of a party who, if not Romanists, yet rivalled them in hatred of the Reformers. Again there had been something of justice in the King's motives. Again there had been something which was unsound. Again a great religious faction had endeavoured to serve their cause by paltering with equity; and again the same ignominy overtook both prince and party. Of the work which was done in both movements the good remained, the corrupt perished. The high purposes of Providence were not permitted to be disfigured with impunity by the intermixture of worldly intrigues; and a signal and tremendous retaliation, perhaps greater than the measure of the offence, followed on the rashness which dared to serve Heaven with impure instruments.

But the retribution was now over. Once more the King ventured into marriage. Catherine, widow of Lord Latimer, his last choice, was selected, not in the interest of politics or religion, but by his own personal judgment; and this time he found the peace which he desired. The number of his children, indeed, had been completed; neither son nor daughter was to increase further the family of the Tudors. The last of the race had been already long in the world. But he had chosen at least an honourable and prudent companion; and this forlorn chapter of Henry's life may be considered as closed. We turn gladly its last page, and pass to the outward business of life, where nature had better qualified him to play his part successfully.

being the Earl of Surrey, the Duke of Norfolk's son and the Queen's cousin. The Queen herself was shortly after beheaded, in the same place where Anne Boleyn suffered. A cloth was thrown over the body, which was taken away by some ladies, and Lady Rochford was brought out, who seemed to be in a kind of frenzy till she died. Neither one nor the other said much except to confess their misdeeds, and to pray for the King's welfare.'

In spite of his exhortation to the Houses, and the hints in the speech at the opening, the remainder of the session was not distinguished by any very serious measures. An Act against witchcraft is noticeable, as illustrating the intellectual condition of the time.

By the 8th of the 33rd of Henry VIII. it was enacted that 'whereas divers and sundry persons unlawfully have devised and practised invocations and conjurations of spirits, pretending by such means to understand and get knowledge for their own lucre, in what places treasures of gold or silver should or might be found or had in the earth or other secret places; and also have used and occupied witchcrafts, enchantments, and sorceries, to the destruction of their neighbours' persons and goods; and for the execution of the said false devices and practices have made or caused to be made divers images and pictures of men, women, children, angels or devils, beasts or fowls; and also have made crowns, sceptres, swords, rings, glasses, and other things, and giving faith and credit to such fantastical practices, have digged up and pulled down an infinite number of crosses within this realm, and taken upon them to declare and tell where things lost or stolen should be become; which things cannot be used and exercised, but to the great offence of God's law, hurt and damage of the King's subjects, and loss of the souls of such offenders, to the great dishonour of God, infamy and disquietness of the realm: for reformation thereof, if any person or persons use, practise, or exercise any invocation or conjuration of spirits, witchcrafts or sorceries, to the intent to get or find money or treasure, or to waste, consume, or destroy any person in his body, members, or goods, or to provoke any person to unlawful love; or by occasion or colour of such things, or any of them, *or for despite of Christ*, or for lucre or money, dig up or pull down any cross or crosses, or by such invocations take upon them to declare where goods stolen should become, every such offence shall be considered felony; and every such offender shall suffer death as a felon, without benefit of clergy.'¹⁷⁴

¹⁷⁴33 Henry VIII. cap. 8. Much of the monastic plate was buried or concealed in the ruins of the religious houses at the time of the dissolution, and as the conjurors and treasure-finders were often monks, we may believe that their arts were not always ineffectual. But the ensuing singular confession shows into what high quarters the superstitions detailed in the statute had spread. It is taken from a MS. in the *Rolls House, Miscellaneous*, second series, p. 64, and was addressed by a Benedictine monk to Wolsey: 'And where your most noble Grace here of late was informed of certain things by the Duke's Grace of Norfolk as touching your Grace and him, I

faithfully ascertain your noble Grace, as I shall answer to God and avoid your lordship's high displeasure, that the truth thereof is as hereafter followeth: that is to say, one Wright, servant to the said Duke, at a certain season shewed me that the Duke's Grace his master was sore vexed with a spirit by the enchantment of your Grace. To the which I made answer that his communication might be left, for it was too high a matter to meddle withal. Whereupon the said Wright went unto the Duke's Grace, and shewed him things to me unknown; upon the which information of Wright the Duke's Grace caused me to be sent for; and at such time as I was before his Grace I required his Grace to shew me what his pleasure was; and he said, I knew well myself; and I answered, 'Nay.' Then he demanded Wright, whether he had shewed me anything or nay; and he answered, he durst not, for because his Grace gave so strait commandment to the contrary. And so then was I directed to the said Wright unto the next day, that he should shew me the intention of the Duke's Grace; and so when we were departed from the Duke's Grace, the said Wright said unto me in this wise, 'Sir William, ye be well advised that I shewed you a while ago that I heard say my Lord's Grace here was sore vexed with the spirit by the enchantment of the Lord Legate's Grace; and so it is that I have enformed the Duke's Grace of the same, and also have borne him in hand that you, by reason of the cunning that you have, had and would do him much good therein. Wherefore my council and arede shall be this: the Duke's Grace favoureth you well, and now the time is come that you may exalt yourself, and greatly further your brother and me also. Wherefore you must needs feign something as you can do right well, that you have done his Grace good in the avoiding of the same spirit.' And then came my brother unto me, at the request of the said Wright, which in like wise instanced me to the same. And then I made answer to them that I never knew no such thing, nor could not tell what answer I should make: and then they besought me to feign and say something what I thought best. And so I, sore blinded with covetise, thinking to have promotion and favour of the said Duke, said and feigned unto him at such time as he sent for me again and gave me thanks, that I had forged an image of wax to his similitude, and the same sanctified; but whether it did him any good for his sickness or nay, I could not tell. Whereupon the said Duke desired that I should go about to know whether the Lord Cardinal's Grace had a spirit, and I shewed him that I could not skill thereof. And then he asked whether I ever heard that your Grace had any spirit or nay. And I said, I never knew no such thing, but I heard it spoken that Oberyon would not speak at such time as he was raised by the parson of Lesingham, Sir John Leister, and others, because he was enchanted to the Lord Cardinal's Grace. The which Duke then said that, if I would take pains therein, he would appoint me to a cunning man named Doctor Wilson. And so the said Doctor Wilson was sent for. And when the Duke's Grace and he were together, they came and examined me; and when I had knowledged to them all the premises, then the Duke's Grace commanded me that I should write all things; and so I did. And that done, he commended me to your noble Grace; without that ever I heard of any such thing concerning the Duke's Grace but only of the said Wright; and without that ever I made or can skill of any such causes; Wherefore, considering the great folly which hath rested in me, I humbly beseech your good Grace to be good and gracious lord unto me, and to take me to your mercy.'

Another statute throws additional light on the difficulty of dealing with the sanctuaries. When the number was restricted, Manchester, which, even then was celebrated for its woollen cloths and linen fabrics, was one of the favoured places which retained its privilege, and had, in consequence, been converted into a paradise of thieves. Goods were stolen, country houses were broken open, trade was destroyed. The Irish flax growers, who had been in the habit of supplying the raw material upon credit, would furnish it no longer owing to the losses which they had sustained, and the inhabitants, half ruined, implored the legislature to relieve them from their undesirable distinction. The request was granted, but the obstinacy of the superstition made the relief of Manchester possible only at the expense of Chester, to which the sanctuary men were transferred. Even with such an evidence before the world of the working of the system, it was not yet within the power of Parliament to abolish it for ever.¹⁷⁵

But the most important event which distinguished the concluding weeks of the session was a question of privilege.

George Ferrars, lately elected member for Plymouth, had become a security for a debt owing by a Mr Weldon of Salisbury to a man named White. Weldon failing to produce the money at the time appointed, White brought an action against Ferrars, and, obtaining a judgment, demanded his arrest. The immunities of members of Parliament were insisted on by themselves, but as yet were imperfectly acknowledged by the municipal authorities. The Plymouth burgess was taken by the officers of the city of London, and imprisoned in the Compter. Sir Thomas Moyle, the Speaker, laid the matter before the House of Commons; the House, indignant and unanimous, sent the sergeant-at-arms into the City to require the immediate release of the prisoner. But within the liberties of the city of London it was declared loudly that no extraneous officials had right or jurisdiction. The clerk of the Compter refused to receive the order. High words were exchanged; and words were followed quickly by blows. The officers at the prison attempted to expel the sergeant. The sergeant defended himself with the mace; and in the scuffle the 'crown' was struck away. Hearing of the disturbance, the sheriffs hastened to the scene, with the City constables; but their sympathies were naturally municipal. The guard of the house was driven off the field, and the sergeant-at-arms returned to Westminster to communicate his failure.

¹⁷⁵33 Henry VIII. cap. 15.

The Commons were in full session, waiting for the appearance of their officers. On learning what had passed, they repaired in a body to the House of Lords, to lay their complaint before the judges. It was a case of contempt, and 'a very great one.' The judges decided, without hesitation, that the arrest was illegal; and although the chancellor proposed to soften the difficulty by granting a writ for the person of Ferrars, the Commons would not hear of a compromise. They would have him out by their own authority—'by show of the mace;' and the law, it was admitted, would bear them out; they might inflict, at their discretion, whatever punishment they pleased on the municipals of the City. The sergeant-at-arms was sent again to the prison; and this time the sheriffs, who were alarmed at what they had done, gave way. Ferrars was set at liberty; and the sheriffs themselves were ordered to appear at eight o'clock the following morning at the bar of the House of Commons, bringing with them the clerk of the Compter and his servants, with the creditor at whose suit the arrest had been made.

The City was afraid to resist. The offending parties appeared at the hour prescribed, and the Speaker charged them with a misdemeanour, and required them to answer for their behaviour on the spot, without the assistance of counsel. The recorder, Sir Roger Cholmoiidley, interposed, but was ordered to be silent; and finally, the sheriffs and the creditor White were sent to the Tower, the clerk of the prison to a place expressively called 'Little Ease,' and five of the constables who had taken part in the attack upon the sergeant, to Newgate. For three days they were left to consider themselves, and were then, 'at the humble entreaty of the Mayor,' set at liberty.

Meantime, the question was raised in the House of the original debt. The Commons were contented with asserting their privileges, and did not desire to press them into injustice; and the person of Ferrars having been once taken in execution, and released by Parliament, he was not any more legally answerable, and the creditor was without remedy, either against him or against his principal, Weldon. This intricate point was discussed for nine or ten days; at the end of which it was decided that the claim should be revived by Act of Parliament against the original debtor. A further proposal, that Ferrars, after the dissolution, might again be held to his security, was negatived by a majority of fourteen.

So far the Commons had acted on their own authority; and the Long Parliament, in the zenith of its glory, could not have been more

absolute or peremptory. The King must have been aware of the transaction, for Ferrars was one of his household.¹⁷⁶ He had not interfered, however, and pretended to no jurisdiction in a question which was purely Parliamentary. Now that the field was won, a formal communication was made by the Lower House of their conduct, and the King expressed his emphatic approbation of every step which they had taken. The creditor, he said, had been properly punished for his presumption. It was not necessary, nevertheless, that he should lose his debt; and he commended the equity of the resolution which enabled him to recover it. On the general point of immunity from arrest, and of the position of the House of Commons under the constitution, he added these remarkable words:—

'I understand that you, not only for your own persons, but also for your necessary servants, even to your cooks and housekeepers, enjoy the said privilege; insomuch as my Lord Chancellor here present hath informed us that he, being Speaker of the Parliament, the cook of the Temple was arrested in London, and in execution upon a statute of the staple; and for so much as the said cook during all the Parliament served the Speaker in that office, he was taken out of execution by privilege of Parliament. And further, we be informed by our judges that we at no time stand so highly in our estate royal as in the time of the Parliament, wherein we as head and you as members are conjoined and knit together in one body politic, so as whatsoever offence or injury during that time is offered to the meanest member of the House, is to be judged as done against our person and the whole court of Parliament; which prerogative of the court is so great, as all acts and processes coming out of any inferior courts must for the time cease, and give place to the highest.'¹⁷⁷

The despotism of Henry was splendidly veiled when he could applaud so resolved an assertion of the liberties of the House of Commons, and could acknowledge that any portion of his own power was dependent on their presence and their aid.

From domestic incidents, intricate in themselves, and more intricate from the imperfect light in which we see them, the story now turns to a series of events brought complete before the eye in a steady stream of information, where the last years of this perplexed

¹⁷⁶*Acts of the Privy Council*, vol. vii. p. 332.

¹⁷⁷The authority throughout for this story is Holinshed, who professes to have taken pains to learn the exact details.

and stormy reign will appear in fairer colours. England at home, and viewed from the inner side, was full of passion, confusion, and uncertainty; the Church anchorage no longer tenable in the change of wind, and the new anchorage in the Bible as yet partially discovered and imperfectly sounded. But she reserved her weakness for her own eyes. The inhabitants of but a part of a small island provoked the envy of the world by their wealth, and the jealousy of the world by their freedom from the scourge of war, which, lacerating all other nations, left them alone unscathed. Torn as they were by dissensions, they appeared an easy and a tempting prey; but when the cloud gathered to overwhelm them, it displayed, on its rising, not a prostrate victim appealing for mercy, but a proud and powerful people asserting over sea and land their lordly preeminence, and, in the bitter words of Pole, 'shaking their drawn swords in the face of all opponents.'

It was not from traditionary policy, or the indulgence of petulant humour, that the Government of Paris was so eager to prevent a union between Henry and James of Scotland. Francis, disappointed once more of Milan, was determined upon war, and weary of the change of partners among the European powers, so often tried, so barren of results, had resolved at last upon introducing a fresh player upon the stage. The King of England would encourage his ambition only on condition of his parting from the Papacy. But fleets might issue from the Dardanelles which would sweep the Spanish galleys from the Mediterranean; and Barbarossa would be contented with the sport of the game and the pleasure of the spoil. Hundreds of thousands of the Moslem would pour themselves into Hungary, desiring nothing but to gratify their hatred of Christianity, and to plant the crescent on the towers of Vienna. To the *filz aîné de l'Eglise* it was nothing that Germany should be wasted by barbarians, if Northern Italy could be secured as a province of France. To the Father of Christendom, irritated by the languid zeal of the Emperor, a Turkish conquest appeared a slighter evil than the success of heresy. Three times Charles had disappointed his darling project upon England. He had allowed the Pilgrims of Grace to recant their oath or die on the scaffold; the Marquis of Exeter had perished in a vain dependence upon him; the Conference of Paris had passed away and borne no fruit; and now, under his eyes and with his sanction, the Diet of Ratisbon had closed with the virtual triumph of the Protestants. The edicts of

persecution were suspended. Hopes had been held out in spite of the entreaties of Cardinal Contarini, that if the general council, so often talked of, was delayed longer, the disputes in Germany might be settled by the Germans themselves.¹⁷⁸ Though he still laboured at intervals in the old work of reconciliation, each day he saw his hopes of success grow less; and if compelled to choose between the two, Francis, even encumbered with a dubious alliance, now promised better in the eyes of the passionate Paul than the Emperor.

Yet, again, if Francis took the field, with the Turk for his right arm, and countenanced in so audacious an innovation by the Papacy, the Emperor would be thrown upon England. England, in its present humour, would meet him half-way, and the pension and the frontier quarrels might then lead to a collision. It was necessary to be prepared for so dangerous a possibility, and therefore, at all hazards, the friends of France must continue to be strengthened at Edinburgh, and James must be prevented from falling under his uncle's influence. Beton had succeeded in preventing the York meeting. He crossed in September to the Continent, to consult with the French ministers, and afterwards with the Pope,¹⁷⁹ and the King of Scotland was left during his absence under the tutelage of Mary of Guise. Once more, in the Cardinal's absence, Kirkaldy made August. an effort to recover the ascendancy, and in the winter the interview was for a last time suggested.¹⁸⁰ 'But the clergy of Scotland,' says Knox, 'promised the King mountains of gold, as Satan their father did to Christ Jesus if He would worship him. Rather they would have gone to hell or he should have met King Henry, for then they thought, Farewell, our kingdom! Farewell, thought the Cardinal, his credit and glory in France.'¹⁸¹

The fortunes of Europe were still hanging in uncertainty, and Francis was feeling his way towards an outbreak, when the Marquis de Guasto, the Imperial commander-in- chief in Milan, caught two French emissaries on their road to Constantinople¹⁸² with despatches. There was still peace with France; but the nature of the mission was palpable, and, careless of their privileges as ambassadors, De Guasto put them to death as traitors against the

¹⁷⁸SLEIDAN, vol. ii. pp. 140, 141.

¹⁷⁹*State Papers*, vol. viii. p. 609.

¹⁸⁰*State Papers*, vol. v. pp. 195–202.

¹⁸¹Knox's *History of the Reformation in Scotland*, p. 26.

¹⁸²*State Papers*, vol. viii. pp. 595–606.

peace of Christendom. A third messenger soon after shared the same fate; and at the same time came the news of the defeat of the army of Ferdinand by the Turks in Hungary. The Emperor, determined to make a great effort to save Europe from the danger which threatened it, had sent his brother to recover Buda, while he himself was preparing an expedition into Africa. The plague had broken out among the German troops before the fortress could be taken. They attempted to retreat across the Danube into Pesth; but the operation was a critical one, and before it was half accomplished they were attacked by an overwhelming force. Those who were left beyond the river were cut in pieces on the spot; the remainder fled in panic, leaving their artillery, their military chests and stores. The Turks passed the Danube in pursuit, seized Pesth, and hung in the rear of the retreating army till the remnant were sheltered in Vienna. Twenty thousand men were reported to have been killed, and the whole of Hungary was lost.¹⁸³

The defeat was a victory for France. It was followed by another yet more considerable. Algiers, since the capture of Tunis, had become the stronghold of the Mediterranean pirates, and the head-quarters of the Sultan's corsair-admiral, Barbarossa. If Algiers could be destroyed it would compensate in some measure for the disasters in Hungary, and might at least prevent the dominancy of a Turko-gallic fleet in the Mediterranean in the ensuing summer. The season was late. It was not till October that Charles was able to sail; but he gathered confidence from his success six years before in a similar expedition; and if the attempt was imprudent, it was also necessary. The force which had been collected seemed adequate to overbear all anticipated opposition. A hundred and fifty armed vessels, with as many transports, carried an army of twenty thousand infantry and two thousand horse.

A landing was effected, not without difficulty, at some distance from the town. The troops were on shore, the stores were still in the transports, when, on the second night after their arrival, a hurricane

¹⁸³There remained of twenty-five thousand footmen of Ferdinand's but five thousand, all his artillery lost; quick there was taken six bundled, most part of them gentlemen, which being brought afore the Turk, he caused them to be headed, whereat all the noblemen of his host took great displeasure, saying that he should have ransomed them as the custom of the war is to do. The Turk then being angry with them, said these words, 'See how these dogs be now come witty.'—Howard to Henry VIII.: *State Papers*, vol. viii. p. 614; and see Heidcck to Henry VIII.: *ibid.* p. 625.

arose so desperately violent, that before morning the wrecks of half the fleet were strewed along the beach, and the Arabs were murdering the crews. The remainder had cut their cables and escaped destruction, but were driven into an anchorage three days' march from the unprovided army. Charles had no alternative but to follow them. In a hostile country, without food, and surrounded by swarms of light-armed Moorish cavalry, who made foraging parties impossible, and ran their lances through every weary loiterer who dropped behind the ranks, he secured the retreat of a fraction of his followers, and in December he was again in Spain, crippled by the expense of the fruitless effort, and weakened even more by the moral effects of his misfortune.

Francis, on the receipt of the happy intelligence, was more than ever satisfied that he might venture on the plunge, dare the world's opinion, and make allies of so fortunate auxiliaries. In spite of De Guasto, he had established safe communication with Constantinople. In the beginning of January Sir William Paget wrote from Paris that he was raising money and hastening his preparations for war;¹⁸⁴ and on the 24th of the same month there came intelligence of an event in the Adriatic significant of an immediate explosion. 'It may like your Majesty,' Paget again informed the King, 'to understand that in Friola, a province of Italy, not far from Venice, there is a haven town called Maran,¹⁸⁵ which standeth in the heart of the province, and is an entry into all places in Italy, and a way also into Almayn. The town is impregnable but by treason. In the haven may float three or four hundred galleys. Which town was some time the Venetians', and since by practice hath come to the Emperor's hands, who, after he had brought it to such a force and strength, gave it to his brother King Ferdinand. The French King hath a servant in Friola, a gentleman of the best house in that country, called Signer Germanico, who, with another captain called Turchetto, the 12th day of this present month, having intelligence with some of the same town, came into the haven with certain vessels charged with wood and coals above,

¹⁸⁴They look immediately here for war, and (as I am informed of a credible person) it shall be begun suddenly and in sundry places, in Flanders, in Navarre, and Italy, which, the French King saith, he counteth his own, and to have the Bishop of Rome at least neuter. He amasseth great sums of money. All armourers and furbishers work day and night. The appearance of war is great.'—Paget to Henry VIII.; *State Papers*, vol. viii. p. 648.

¹⁸⁵Marano, near Trieste.

and having underneath three hundred men bestowed. The next day after, at twelve o'clock at noon, by means of them in the town, they entered the castle, and killed the captain and eighteen soldiers which were within with him, and by-and-by the town yielded unto them; wherein they have abatred King Ferdinand's arms, and set up the French King's arms, displaying banners with white crosses, and have sent hither to the French King one called Spagnoletto, with letters signifying unto him that the town is at his commandment. This Spagnoletto arrived here upon Saturday at night; and upon Sunday, after dinner, the French King sent for the Emperor's ambassador, for the ambassador of Venice, and the Bishop of Rome's ambassador, and, calling them together, said he had received letters from Turchetto signifying this enterprise, and that they within the town were contented to surrender the town unto him; so he would certify them of his contentation therein before a certain day, and that otherwise they would surrender the town to the Grand Signor. And then the French King excused himself, protesting it was done without his knowledge, and that he was sorry therefor. Nevertheless, the case standing thus, he desired their advice, whether he should take it or no, or else suffer them to give it to the Grand Signor. The ambassadors of Venice and Rome said it were better that his Highness took it. The Emperor's ambassador answered that he should do well first to hang him that brought the letter, and then to do what he could to hang them that took the town like thieves, and to cause the same to be restored to their right owners. *Tout beau, M. l'Ambassadeur!* quotes the King. I may not kill ambassadors as your master doth; and as for hanging them that be in the town, I should reguerdon them well for the service they intended to do me.¹⁸⁶

Francis solved the difficulty by sending five hundred men into Marano for a garrison. His hostile intentions were thus revealed beyond a doubt, and to appearance every advantage was on his side. The Emperor, in his present condition, would be little able to send help into Lombardy, if attacked simultaneously in Spain and the Low Countries. The Venetians were on the side of the French. On the 11th of March an Italian renegade, the Capitan Pollino, arrived in Paris from Constantinople, with presents, and with a message from Solyman, that when summer came he would enter Germany with two hundred thousand men, and a fleet of four hundred sail

¹⁸⁶Paget to Henry VIII.: *State Papers*, vol. viii. p. 655.

should pass the Dardanelles.¹⁸⁷ The messenger, on his way, passed through Venice, and the Imperial ambassador required the council, in his master's name, to arrest him. But at the moment, the pleasure of Francis was of more importance to the Signory than the fear of the Emperor. Pollino walked insolently into the senate house. He called the ambassador a traitor in the face of the assembly, and passed on upon his way. Charles, so lately the dictator of Europe, would find himself attacked by a coalition which threatened to be irresistible, and unless Henry would assist him, he in his turn would be left without an ally.

And to Henry he looked, without doubt, most anxiously, as Henry looked to him. But the King of England was publicly excommunicated, banned, and cut off from the Church; and Charles was, or wished to be, a pious Catholic. He might relinquish active enmity, he might cast on Cromwell the blame of the past, but he hesitated at a positive alliance which, possibly, might compromise his orthodoxy, and necessarily would bring the Papal censures into contempt. He felt his way, as he had done before, to win back the erring sheep to the fold. He undertook to bring about a reconciliation without compromising Henry's consistency. He even promised that the Pope himself should sue for it.¹⁸⁸ This, however, being decisively and for ever impossible, the Emperor for the moment hung back;¹⁸⁹ and Henry, to whom the alliance of either of the rival powers was almost equally welcome, almost equally indifferent, whose only object was to take advantage of the shifting gales to navigate his own vessel securely, listened, so long as they were offered, to counter-overtures from France. The French Court was divided into two factions, one of them the Ultramontanists, the party of the Constable Montmorency, the Chancellor, and the Guises, hating England and the Reformation, inclined to the Pope, and opposed

¹⁸⁷ *Ibid.* p. 673.

¹⁸⁸ 'So at least it was believed in Paris. 'We know,' quoth the Admiral de Bryon, 'how the Emperor offereth your master to accord him with the Pope without breach of his honour, and that it shall be at the Pope's suit.'—Paget to Henry VIII.: BURNET'S *Collectanea*, p. 508.

¹⁸⁹ 'Your master he will not join,' the admiral said to Paget, 'unless he will return again to the Pope, for so his nuntio told the chancellor (Poyet), and the chancellor told the Queen of Navarre, who fell out with him upon occasion of that conference. She told him he was ill enough before, but now, since he had gotten the mark of the beast, for so she called it because he was lately made a priest, he was worse and worse.'—Paget to Henry VIII. *ibid.*

to the war with the Empire; the other the party of the Admiral de Bryon, the Queen of Navarre, and the Duchess d'Estampes, who were more than inclining to Protestantism, and would have had Francis follow the example of Henry, and declare the independence of the Gallican Church. Francis alternately gave his ear to one set of advisers or the other, as suited his convenience, reserving his own opinions and playing upon theirs. He used the Catholics to keep England separate from Scotland, to protect Romanist refugees, to shuffle over his debts, to 'engrieve' the petty differences at Calais; but the Catholics discouraged his designs on Milan, and therefore it was necessary to goad them forward with dread of worse evil than a breach with Charles; and their liberal opponents were permitted to suggest to Henry a marriage between the Lady Mary and the Duke of Orleans.

When a scheme bears no fruit we can but conjecture whether fruit was seriously expected from it: yet, the proposals for this marriage were laid out with a show of serious intentions; the conditions were discussed; the English privy council applied to the King to learn whether the separation of France from the See of Rome was to be insisted upon;¹⁹⁰ the Admiral of France held out more than hopes that, although not to be demanded as a preliminary, it would follow as a consequence.¹⁹¹ As before, when the Spanish treaty was in contemplation, there was a provision that Mary's illegitimacy should be corrected by Act of Parliament.¹⁹² The only point remaining to be settled, it seemed, was the dowry, and here no great difficulty was anticipated. But the shadowy nature of the prospect disclosed itself when the French ambassador communicated the expectation of his Government on the point of money. It was nothing more than a relmquishment of the entire arrears which were owing to England,

¹⁹⁰ "To know from his Highness whether his Highness's commissioners shall press the ambassador to bind the King his master to relinquish wholly the Bishop of Rome, or that he shall not meddle with the said Bishop in anything concerning the treaty of this marriage."—Privy Council Memoranda: *Rolls Souse MS.*

¹⁹¹ Paget saying to him that England never would return to the Pope—virtue and vice could not agree together—"Call you him vice?" the Admiral replied. 'He is the very devil; I trust once to see his confusion. Everything must have a beginning. I think ere it be long; the King my master will convert all the abbeys of his realm into the possession of his lay gentlemen, and so forth by little and little, if you will join us, to overthrow him altogether. Why may we not have a patriarch here in France?'—Paget to Henry VIII.: *BURNET's Collectanea.*

¹⁹² *State Papers*, vol. viii. p. 676, &c.

and a transfer of the two pensions as a marriage portion to the Duke of Orleans.

Seeing that the sum so quietly asked for amounted to a million crowns, the pension to a hundred and fifty thousand annually, and that the largest dowry for which there was a precedent as having been given on similar occasions was four hundred thousand crowns, the request was less than decent: nor did it receive a better complexion when, in defence of his exorbitancy, Francis undervalued his own security, and threw a doubt upon his liability to pay. When the English ambassador proposed, as a fairer sum, three hundred thousand crowns, the King of France, in profound astonishment, exclaimed that the Pope had offered him as much as that with his niece, 'in ready money.'¹⁹³ He began to raise questions on the debt itself, to imagine conditions in the treaty of Moor Park which he pretended that Henry had not fulfilled. While he did not deny his obligations, he would not acknowledge them. 'There were knots,' he said, in the claims upon him. The King of England ought to have sent him assistance when the Emperor invaded Provence. It would be better to prevent disputes by a clearance of the score.

Meanwhile the Catholic party at Paris were not idle. They, too, desired to clear the score, but to clear it by a quarrel; and, if war followed, they had no objection. French pirates were again robbing in the Channel. A sailor named De Valle had laid before the Government a project for the occupation of Canada. He was supplied with ships and stores, and had been allowed to empty the prisons to provide colonists for his intended settlement. When he found himself in command of a fleet manned by these promising crews, he hung about the English coasts, pillaging every vessel that came in his way.¹⁹⁴ Part of the gang haunted the Isle of Wight; others seized Lundy Island and waylaid the Bristol traders. The party at Lundy were accounted for by the Clovelly fishermen, who, after sufficient experience of the

¹⁹³'See you not,' said the King, 'this Pope, qui n'est qu'un petit prêtre in comparaison of the King my brother, so audacieux as to send me word he was as well able to marry his niece with the house of France as Clement was; and if that I would join with him, he would give me 300,000 crowns in ready money; and the King my brother offereth me but as much, and that in such sort as he shall lay out never a penny for it. Whereunto I said your Majesty accounted the sum to be as ready money as the Bishop did his, for your Majesty thought the payment of it good.'—Paget to Henry VIII.: *State Papers*, vol. ix. p. 29.

¹⁹⁴Paget to Henry VIII.: *State Papers*, vol. viii. p. 676.

character of the party, went off in their boats, burnt a pirate ship, and made some end or other of the crew.¹⁹⁵ But this just and necessary exercise of justice was seized upon as a fresh pretext for dispute. It was represented to Francis that his innocent subjects had been causelessly attacked and destroyed by the English.¹⁹⁶ The prospect of the marriage grew daily weaker; the probabilities of a rupture grew daily stronger; while the question of the debt had been complicated, as had been long feared, by the hint of repudiation. The pretext was idle. At the invasion of Provence Francis had professed himself satisfied, and even gratefully thankful, by a remission of the payment only during the continuance of the pressure upon him. His own letters were extant, emphatically committing him; but the more trivial the excuse, the greater the difficulty of enduring the fault.

The Admiral and the Queen of Navarre would not yet relinquish their hopes; and it seemed, indeed, as if the object was not really to induce Henry to surrender his debt, but to consent to an alteration in the map of Europe for the benefit of France. To the French proposal the King replied at once that it was 'too unreasonable.' If such a demand 'had been made when the Emperor and the French King were so great that all the world thought them one,' he would not have listened to it. The shuffling about the money he received so haughtily, that the French ambassador in London attempted an apology.¹⁹⁷ De Bryon entered with Paget more fully into details. The money question ought to be settled, he said; what would the King of England accept? or would he accept anything? Paget was not a man to commit himself, still less to commit his country; but he hinted that the Calais bound-

¹⁹⁵The Privy Council to Paget: *ibid.* vol. ix. p. 172.

¹⁹⁶The right had not been always on the English side. An exploring vessel equipped from London for discoveries in North America, was delayed in Newfoundland, and almost starved there. When at the extremity of famine, a French ship arrived 'well furnished with victual, and such,' says Hakluyt, 'was the policy of the English that they became masters of the same, and changing ships and victualling them, they set sail to come into England.' Hakluyt disguises behind an ambiguous phrase, an act of open piracy. In excuse it could only be urged that the English had been reduced to devour more than one of their own crew. They returned safely, and 'certain months after,' the story continues, 'those Frenchmen came into England and made complaint to King Henry. The King causing the matter to be examined, and finding the great distress of his subjects, and the causes of the dealing so with the French, was so moved with pity that he punished not his subjects, but of his own purse made full a royal recompense unto the French.'—HAKLUYT, vol. iii. pp. 169, 170.

¹⁹⁷The Privy Council to Paget: *State Papers*, vol. viii. p. 708.

ary was a difficulty. If Ardes could be surrendered to England; if the frontier could be extended so as to make the towns and garrisons independent of supplies from home; it would be something—he could not tell. Francis must be explicit. In that case he could perhaps give an answer. The Admiral could not offer an extension of territory at the expense of France; but the boundary might be extended in another direction. ‘To speak frankly,’ he said, ‘will you enter the war with us against the Emperor, and be enemy to enemy, the King your master to set upon land in Flanders ten thousand Englishmen, and we ten thousand Frenchmen; pay the wages of five thousand Almaines, and we as many; find two thousand horses and we three thousand; find a certain number of ships, and we as many? Of such lands as shall be conquered, the pension first to be redoubled, and the rest divided equally. What a thing will it be to your master to have Gravelines, Dunkirk, Burburg, and all those quarters joining Calais!’ ‘M. Admiral,’ Paget replied, ‘these matters be too great for my wits. I know no quarrel that my master hath against the Emperor.’ ‘God!’ cried the Admiral, ‘why say ye so? Doth he not owe your master money? Hath he not broken the league with him in six hundred points? Did he not provoke us and the Pope also to join in taking of your realm from you in prey for disobedience? A pestilence take him, false dissembler, saving my duty to the majesty of a King. If he had you at such advantage as you may now have him, you should well know it at his hand.’¹⁹⁸

A partition of the Netherlands had been discussed too often to sound either strange or startling. Two years before Henry had suggested it to Francis, and Francis had then betrayed the intention to the Emperor. But times were changed. Charles had given up his ambition of invading England; and the English Government was at leisure to calculate which of the two powers was most likely to observe its engagements. From the good feeling of neither had Henry much to expect. One prince had intended to dethrone him; the other now wished to cheat him out of his money. But the commerce between Flanders and England had survived the dissensions between their sovereigns, and the revenues of the Low Countries depended on the prosperity of their trade. As the summer drew on, Charles’s embarrassments were known to be increasing, and his scrupulousness must proportionately diminish. The Admiral’s proposals sounded well; but experience had proved that the Reforming faction at Paris were too

¹⁹⁸ Paget to Henry VIII.: BURNET’s *Collectanea*, p. 505, &c.

weak to control permanently the direction of French policy, while if Charles was laid under obligations to England, and on the other side appeared an unnatural and monstrous combination between Francis, Paul, and Solymán, it was possible that the difficulties of Europe might be settled at last by Henry's favourite project—a council under the auspices of himself and the Emperor, where England and Germany might be freely represented. On this side the balance seemed to incline; and the course which the different Courts would pursue was anticipated by the instinct of popular judgment, before overt acts had declared it to the world. In the middle of May rumours were flying in Paris of a war with England. In June the belief was general in Europe that the Emperor had privately married the Princess Mary.¹⁹⁹ The debt to England, the impossibility of paying it, and the consequent reasonableness of a quarrel, was in every Frenchman's mouth.²⁰⁰ The Orleans marriage was no more alluded to. The anti-English party were in the ascendant, and gave the tone to public feeling. Cardinal Beton was again at the Court, and in Beton's presence the Archbishop of Paris affected to complain to Paget of the eagerness of the people.

'It were alms to whip them,' he said. 'But the devil cannot stop them but they will be in the midst of the King's council, and say we shall have war with the Emperor, and the King of England will take the Emperor's part; but if he do, we shall send thither the Scots, the Danes, and the Swedes to eat up all the Englishmen in four days.'

'Englishmen,' replied Paget, quietly, 'be not easy morsels to swallow; and their operation is such that, if any man take upon him to eat them, they will cause him with the sight thereof straight to burst.' 'The Scots know it well enough,' he added, for the Cardinal's benefit;

¹⁹⁹M. l'Ambassadeur,' quoth the Admiral to me, 'to be frank with you, I hear strange news, and by such credible report as me thinketh it cannot but be true.' 'What is that?' quoth I. 'Marry,' quoth he, 'by private letters I am informed that the Emperor hath married your daughter.' 'And if so be,' quoth I, 'would you not have my master marry his daughter but to whom ye will, and as you will?' 'Oui-dà,' quoth he, 'and it is already done.' 'I believe it not,' quoth I. 'Par Saint Jehan, il est vrai, da pour tant,' quoth he, 'for I have letters thereof out of Flanders, out of Spain, from Lyons, and from Rome; and the King your master will make war with the Emperor, and will lend him money,' &c.—Paget to Henry VIII.: *State Papers*, vol. ix. p. 47.

²⁰⁰I have noted in all my conference with these men, not only the fashion of ill debtors, that do neither intreat for respite nor yet be glad to hear of their debt, but also in a manner an unkind charging of your Majesty. Of their debts every man speaketh, and all the world knoweth they be not able to pay.—Ibid.

'and as for the Danes and Swedes, they be wise fellows, and know that they that come into England cannot depart thence without license and passport of the King's Majesty.'²⁰¹ This was but the play of wit upon the surface; but it indicated the direction of the current, and the substantial fact became every day more visible, that the French would neither pay the arrears of their debts nor continue the pension. They were confident of Scotland. The will of James was the will of David Beton, and if Henry 'made any business with France, the Scottish King would straight molest him.'²⁰² 'As touching the pension,' Paget wrote again in August to the King,²⁰³ 'they love not to hear of it, and that I note, not only now and heretofore, both by words and countenance in all my conferences, as well with the admiral as with the French King, and from the Cardinal Tournon's mouth, by the report of his secretary, that the French King thought none other but that your Majesty would join with the Emperor against him, but also by the report of the ambassador of Ferrara, who said to me, discoursing with me of the world, that he would that the marriage between the Duke of Orleans and your Majesty's daughter had gone forward; and when I answered that so would I, but that the demand was too unreasonable, he answered, it had been as good to have quit the debt that way as never to have it paid. Why should it never be paid? quoth I. Marry, quoth he, for the French King saith that you have broken league with him, and therefore he may with honour break league with you. I marvel he would say so, quoth I, for we have broken no league with him. I assure you, quoth he, whensoever you shall ask your pension earnestly, look to make a breach with them.'

By this time hostilities with the Empire had commenced. Francis, to gain the advantage of the surprise, had, as usual, struck the first blow, without observing trifling formalities and declaring war. M. de Vendosme entered the Low Countries in July. Monterey and Tournham fell to him immediately, and he would have taken Dunkirk but for fear of the interference of the English. De Rieulx, the Imperialist commander, was able only to act on the defensive; and the Flemish troops, who, as Sir John Wallop said, 'were nothing worth,' offered but a feeble opposition. The Piedmont army was reinforced to move upon Lombardy; French galleys were reported as having gone

²⁰¹ *State Papers*, vol. ix. p. 75.

²⁰² *Ibid.* p. 106; communicated in cypher.

²⁰³ In cypher also; *ibid.* p. 115.

up to Constantinople to quicken the movements of Barbarossa,²⁰⁴ and Francis prepared in person, with the flower of his troops, to cut his way into Spain. The Emperor 'was in great agony and trouble of mind, being vexed in so many parts.' Secret communications had been for some months in progress, with a view to a treaty with England. But, besides the broad fact of the excommunication, a difficulty had occurred when the conditions came under discussion that the two sovereigns should declare themselves friends to friends and enemies to enemies. There were temporal enemies and there were spiritual enemies; and that the Pope, who was essentially both, might not escape inclusion, Henry had stipulated for the employment of the word 'spiritualis.'²⁰⁵ Notwithstanding the good-will on both sides, and the necessity on one, Charles was embarrassed with the dilemma, and shrank from it: but in the mean time the old treaties were still nominally in force, by which, in the event of invasion, England and the empire were mutually bound to assist each other. As Francis had invaded the Netherlands without notice, England might reasonably dispense with forms, as the French King had done, and send a few thousand men to the assistance of De Rieux; or, if more feasible, might effect a diversion by seizing Mottreul.²⁰⁶ Both proposals were seriously considered. On the whole, however, it was thought better to proceed more regularly. Resentment was fast bringing Charles into a humour which would not halt at minor difficulties, especially as the Pope was declaring more and more obviously in favour of France; and a remarkable despatch of Bonner, the minister in residence at the Imperial Court,²⁰⁷ written on the 9th of September, describes the state of feeling into which the Emperor had worked himself; while the hope which the perusal of Bonner's letter excited in Henry, may

²⁰⁴ Moslem fanaticism appeared for once to have been of some use to Europe. 'The Turk, it is affirmed, hath refused to imprest such money as he promised to the French King, alleging that his priests, whom he counselled upon the matter, hath concluded to be against their religion to loan money to Christian men. And to Polino, the ambassador, hath been declared that it were no use to send out any navy this present year, whereby the Frenchmen are deluded of the great expectation which they had.'—Harvel to Henry VIII.: *State Papers*, vol. ix. p. 154.

²⁰⁵ Ibid. pp. 41, 66, 214, and 355.

²⁰⁶ Ibid. pp. 90–96.

²⁰⁷ Bonner's diplomatic ability was so great as to overweigh objections from his coarseness. He was also an accomplished Italian, and probably also a Spanish, scholar.

be traced also in the side notes and pen marks which he left upon the paper.

'The Emperor,' wrote the Bishop, 'suffereth much and says little touching the Bishop of Rome, knowing how necessary he is for him, if he may have him, and also how expedient it is for him to keep him from joining with the French King. *But of truth*²⁰⁸ *I think, an the Emperor once do break with the Bishop of Rome, which, if this war with France hold on, will shortly appear, he will be to him acerrimus hostis.*²⁰⁹ *Here of late came a post from Rome, passing by France, bringing letters to the Nuntio, wherein teas contained that the Bishop of Rome, to pacify this war beticeen the Emperor and the French King, had determind to send two cardinals, the one, Contarini, to the Emperor, the other, Sadoletto, to the French King. The said post is returned again by sea, and with letters from the Emperor to the Bishop of Rome, that he shall not trouble of himself with sending of any cardinal to him,*²¹⁰ *for he is determind, seeing the French King hath begun, to make an end, and to proceed against him as extremely as he can.*'²¹¹ In a letter four days later to the Bishop of Westminster, Bonner related an interview with Granvelle, in which the difficulties in completing the alliance had been under debate. As Henry had required a rupture with the Pope, so it seemed that the Pope, on his side, had protested against a confederacy with a heretic. But the minister assured him that their patience was exhausted, and their hesitation was at an end. The Emperor felt towards England nothing but goodwill, and although it was 'not convenient' openly to break with the Pope, they 'had no great cause to love him or to trust him, and the English Government, ere it was long, would see what they would do against him.' They held his Holiness entirely responsible for the rupture, which he might have prevented had he desired; and Granvelle went so far as to say, that the Cortes were so much irritated as lately to have told the Papal Nuntio, 'that if the Pope would not better do his office, they would conjoin and combine themselves with his adversaries in Almayne; yea, *cum Lutheranis*, and have a council.'²¹² Granvelle was the most unscrupulous of liars, and the Emperor had, perhaps, no objection to the employment of salutary falsehood. From

²⁰⁸The words in italics are those which are underlined by the King.

²⁰⁹Opposite these words stands a marginal note in Henry's hand *Bene*.

²¹⁰Henry writes again, *N. Bene*.

²¹¹Bonner to Henry VIII.: *State Papers*, vol. ix. p. 157.

²¹²Bonner to Thirlby: *State Papers*, vol. ix. pp. 163-169.

himself, however, Bonner was less successful in extracting any such positive expression. 'I provoked him,' said the ambassador, 'to have uttered somewhat of his stomach against the Bishop of Rome, telling him that the French King never would have gone about this war if the Bishop of Rome had seriously forbidden him; and the said Bishop deserved small thanks of his Majesty for casting bones before princes, that he himself might reign.' Charles listened, but said nothing. 'He is very close,' the baffled Bishop added, 'and rather contented to do things than to utter them.'²¹³

So far, however, there was no doubt that he had resolved to displease the Pope by an alliance with Henry; and by this time, on all sides, his prospects were brightening. De Vendosme, in fear of Sir John Wallop, had made no further progress in Belgium. The Emperor, with infinite exertion, had reinforced his Italian army, and De Guasto not only had lost no ground, but had invaded Piedmont, and had come off with the honours of the campaign. The great enterprise conducted by Francis in person had failed scarcely less completely than the Spanish invasion of Provence in 1536. The intention was to enter Spain at the eastern extremity of the Pyrenees; but the Duke of Alva had thrown himself into Perpignan, which commanded the pass. The position could not be turned, and the nature of the country, and the form of Alva's lines, made a blockade impossible. Francis sat down before the place in July. He attempted to storm; but the veterans opposed to him, though inferior in numbers, were among the finest troops in Europe, and had the advantage of the ground. He tried a bombardment; but the Spanish artillery was heavier and better served than his own, and his siege guns were dismounted. The garrison was relieved, or reinforced at pleasure, from the rear; the communication could not be broken; and while his own camp was suffering from want of provisions, he had the mortification, day after day, of seeing the cattle grazing in the meadows below the walls, under the protection of Alva's batteries.

Two months were wasted over a project which was hopeless from the beginning; and at last, on the 24th of September, Francis retired, with the discredit of defeat.

On all sides but one the events of the summer had been unfavourable to the French. In Hungary the Turks had again triumphed; and Solyman's success might once more be counted as a doubtful

²¹³Bonner to Thirlby: *State Papers*, vol. ix. pp. 163-169.

victory for his allies. Ferdinand, with the aid of the German diet, had collected a hundred thousand men to retrieve the disasters of the past year. They had advanced from Vienna, full of hope and crusading enthusiasm. Pesth and Buda were to be retaken; they would drive the Crescent from the Danube, perhaps out of Europe. The expedition was accompanied by a party of English gentlemen—Sir Thomas Seymour among the number—either with commissions from the King, or led thither by their own desire for adventure. Never was the uncertainty of war more signally exemplified. Ferdinand had the advantage of a good cause. He had numbers, courage, confidence on his side. The European, in fair battle, man to man, was more than a match for the Asiatic; yet the campaign was a complete and ruinous failure. He attacked Pesth; but the German troops were beaten back in the assault, and suffered, though but slightly, in a series of insignificant skirmishes. They were disheartened, not by defeat, but by the absence of success, and by a consciousness of Ferdinand's bad generalship. They became disorganized, they broke in pieces, scattered, and retreated in a panic.²¹⁴

The success of his confederate enabled Francis to endure more composedly his own disappointment. He had done little that summer, he said, for want of funds, and want of preparation; when the next year came, with the help of the Turkish fleet, he would carry the world before him. Every day his relations with England were becoming more inimical; but he was in his reckless mood, defiant and indifferent. 'He would give his daughter to be strumpet to a bordel,' he said, 'to be sure of the encounter with the Emperor;'²¹⁵ as to Henry, it was enough that he was secure of Beton, and a Scottish army had but to cross the border to arouse a fresh Pilgrimage of Grace.

The Scots, it seemed, were of the same opinion. Already, at the close of the summer, before the harvest had been gathered in, the depredations began on a scale which was the prelude of war. Nor, indeed, if James obtained access to the secrets of the English council, was the attack wholly unprovoked. Being satisfied, at last, that as long as the Scottish King avoided the interview, he could not liberate him from Beton's control, Henry, since a free visit could not be arranged,

²¹⁴Seymour to Henry VIII.: *State Papers*, vol. ix. p. 201; and see *ibid.* pp. 212–223.

²¹⁵Pageot assured the King that Francis 'used those words, and worse.'—*Ibid.* p. 182.

had thought of employing some gentle constraint. James was in the habit of going at night on secret expeditions of a character questionable or unquestionable, with few attendants. Sir Thomas Wharton, the Warden of the West Marches, suggested that, if he watched his opportunity, he might contrive to stoop down upon the adventurous prince unexpectedly, snatch him over the Border, and escort him thus to his uncle's presence. Henry listened not unfavourably; but he would hardly sanction such an enterprise on his own authority, and referred it to the council, who saw difficulties, and even were something scandalized. The warden might fail. James might be hurt; perhaps might be killed in the scuffle. They would not hear of it, and almost reproached the King for inviting them to consider a proposition so out of all order.²¹⁶ Henry would not act against their opinion. Wharton's zeal was not encouraged; and James, it is likely, never heard that the suggestion had been made. But whether he knew it, or was merely obeying his destiny, he allowed himself to become the instrument of the crooked policy of Francis; and, to his misfortune, he was encouraged at the outset by a gleam of success. Lord Maxwell, the Scottish warden, having been in vain called upon to keep the Borderers quiet, Sir Robert Bowes crossed the Marches in pursuit of a party of them, and, falling into an ambuscade at Halydon Rigg, was taken prisoner with a number of other gentlemen. War was now unavoidable.

James, elated at his victory, sent a messenger with a report of it to the French Court. In crossing the Channel the petty skirmish grew into a great action, at which a thousand English had been killed,²¹⁷ and Francis himself spoke without reserve of the King of England's approaching destruction. 'Your Majesty,' so Paget reported him as saying, 'had begun with the Scots, and the Scots had given you your hands full. He did understand that you would make war upon him; he feared you nothing at all. You were able to do him no hurt; for you had against you the Pope; the Emperor was not your assured

²¹⁶As concerning the King of Scots, surely, sire, we take it to be a matter of marvellously great importance, and of such sort and nature, considering it toucheth the taking of the person of a King in his own realm, and by the subjects of his uncle, not being at enmity with him, that unless your Majesty had commanded us expressly to consider it, we would have been afraid to have thought on such a matter touching a King's person, standing the terms as they stand between you.—Privy Council to the King: *State Papers*, vol. v. p. 204.

²¹⁷Paget to Henry VIII.: *Ibid*, vol. ix. p. 174.

friend; you had made the Scottish King your enemy; your own people loved you not; and you had against you God and all the world. This should be your Majesty's ruin. He had done much for you, and you little for him; and when Pope, and Emperor, and all the world would have had him to overrun you and your realm, he withheld himself, and stayed them all.'²¹⁸ Paget said his heart 'throbbed with anger,' at this most audacious speech. Francis owed his release from a Spanish prison to Henry's interference; he owed the recovery of his children to Henry's money; and he had repaid him with promises, broken as easily as they were made; with intrigues in Scotland, ceaseless and mischievous; with the breach of a series of engagements which had run parallel to the quarrel with the Papacy; and now, at last, with the repudiation of his debts. If England was not invaded in 1539, her escape was not due to the King of France, but to the cannon which guarded the English shores, and the nerve with which English conspiracies had been crushed. Henry had ample cause of quarrel with every Catholic sovereign in Europe, had he cared to insist upon it. Francis believed that he would have God and the world against him, and that his ruin was near. Francis was an unskilful astrologer; and the English, as Paget said, were morsels less easy to swallow.

The Scots desired war, and war they should have. Halydon Rigg had been taken by the Scottish clergy as an earnest of instant triumph and an evidence of Divine favour. 'All is ours,' was the cry among them. 'The English are but heretics. If we be a thousand, and they ten thousand, they dare not fight. France shall enter on one part, and we on the other; and so shall England be conquered within a year.'²¹⁹ In reply to these loud menaces the Duke of Norfolk moved forward from York, where his troops had collected; and Henry at the same time issued a manifesto of the causes by which he was compelled to take a course that 'he so much abhorred.'

²¹⁸La Planche, one of the French council, told Paget that James in his letter had complained that Henry went about without good cause to oppress him. 'To this,' said Paget, 'I answered, 'If the Scottish King had complained, I think he played the curst cat that scratted and cried, for I knew your Majesty to be of such virtue and knowledge that you would not make war upon him, being your nephew, without occasion.' 'Of one thing you may be sure,' quoth he, 'that a king of France will never suffer a king of Scotland to be oppressed:' which words were out or he was aware; and to amend the matter, he added, 'no more than a King of England will suffer an Emperor or a French King to be overcome one of another, but to keep them in an equality.'—Paget to Henry VIII.: *State Papers*, vol. ix. p. 179.

²¹⁹Knox's *History of the Reformation in Scotland*.

'Being now enforced to the war,' he said, 'which we have always hitherto so much fled, by one who, above all others, for our manifold benefits towards him, hath most just cause to love us, honour us, and rejoice in our quietness, we have thought good to notify unto the world his doings and behaviour in the provocation of this war, and likewise the means and ways by us used to eschew and avoid it; and by utterance and divulging of that matter to disburden some part of our inward displeasure and grief. The King of Scots, our nephew and neighbour, whom we in his youth and tender age preserved and maintained from the great danger of others, and by our authority conduced him safely to the real possession of his estate, he now compelleth and forceth us, for the preservation of our honour and right, to use our power against him. The like unkindness hath been heretofore showed in other semblable cases against God's law, man's law, and all humanity; but the oftener it chanceth, the more it is to be abhorred.

'It hath been very rarely and seldom seen before that a king of Scots had had in marriage a daughter of England. We cannot, we will not reprehend the King our father's act therein; but lament and be sorry it took no better effect. The King our father minded love, amity, and perpetual friendship between the posterity of both, which how soon it failed, the death of the King of Scots, as a just punishment of God for his invasion into this our realm, is and shall be a perpetual testimony. And yet in that time could not the unkindness of the father extinguish in us the natural love of our nephew his son, being then in the miserable age of tender youth; but we then, forgetting the displeasure that should have worthily provoked us to invade that realm, nourished and brought up our nephew to achieve his father's Government, wherein he now so unkindly behaveth him towards us. Our chief grief and displeasure is that, under a colour of fair speech and flattering words, we be indeed so injured, contemned, and despised, as we ought not with sufferance to pass over. Words, writings, letters, messages, embassies, excuses, allegations could not be more pleasantly, more gently, nor more reverently devised and sent than hath been made on the King of Scots' behalf to us; and ever we trusted the tree would bring forth good fruit, that was of the one part of so good a stock, and continually in appearance put forth so fair buds, and therefore would hardly believe or give ear to others that ever alleged the deeds of the contrary, being nevertheless the same deeds

so manifest as we must needs have regarded them had we not been loath to think evil of our nephew. And thereupon, having a message sent unto us the year past from our said nephew, and a promise made for the repairing of the King of Scots unto us to York, and after great preparation on our part made therefore, the same meeting was not only disappointed, but also an invasion was made into our realm, declaring an evident contempt of us.

'We were yet glad to impute the default of the meeting to the advice of his council, and the invasion to the lewdness of his subjects; and albeit the King of Scots having, contrary to the article of amity, received and entertained such rebels as were of the chief and principal in stirring the insurrection of the north against us, with refusal beforetime, upon request made, to restore the same; yet, nevertheless, we were content to forbear to press them over extremely in the matter of the rebels, and gave a benign audience to such ambassadors as repaired hither, as if no such cause of displeasure had occurred.

'In the mean time of these fair words the deeds of the Borders were as extreme as might be, and our subjects spoiled; and in a raid made by Sir Robert Bowes, for a revenge thereof, the same Sir Robert Bowes, with many others taken prisoners, are yet detained in Scotland, without putting them to fine and ransom, as hath ever been accustomed. And being at the same time a surceance made on both sides, for the settlement of these matters of the Border, by commissioners appointed therefor,²²⁰ the Scots ceased not to make sundry invasions into our realm, in such wise as we were compelled to forget fair words, and only to consider the King of Scots' deeds, which appeared to us of that sort as they ought not for our duty in defence of our subjects, and could not in respect of our honour, be passed over unreformed; and therefore we put in a readiness our army as a due mean whereby we might attain such peace as for the safeguard of our subjects we be bound to procure.

'We have patiently suffered many delusions; but should we suffer our people to be so often spoiled without remedy? This is done by the Scots, whatsoever their words be. Should we suffer our rebels to be detained, contrary to the leagues? This is also done by them, whatsoever their words be. Should we suffer our land to be usurped,²²¹ contrary to our most plain evidence? This is done by them, whatso-

²²⁰I omit a technical detail of the precise point of dispute.

²²¹Alluding to a strip of the debatable land.

ever their words be. Yet, in the intreating of this matter, if we had not evidently perceived the lack of such affection as proximity of blood should require, we would much rather have remitted these injuries of our nephew than we did heretofore the invasion of his father. But, considering we be so surely ascertained of the lack thereof, and that our blood is there frozen with the cold air of Scotland, there was never prince more violently compelled to war than we be, by the unkind dealing, unjust behaviour, unprincely demeanour of him that in nature is our nephew, and in his acts and deeds declareth himself not to be moved therewith.

'The present war hath not proceeded of any demand of our right of superiority, which the kings of Scots have always knowledged by homage and fealty to our progenitors; but it hath been provoked and occasioned upon present matter of displeasure, present injury, present wrong. If we had minded the possession of Scotland, and by the motion of war to attain the same, there was never king of this realm had more opportunity in the minority of our nephew. Law and reason serveth that passing over of time is not alleageable in prescription for the loss of any right. For which cause, nevertheless, we do not enter this war, ne minded to demand any such matter, now being rather desirous to rejoyce and take comfort in the friendship of our neighbour than to move matters unto him of displeasure. But such be the works of God, superior over all, to suffer occasions to be ministered whereby due superiority may be known, demanded, and required, to the intent that, according thereunto, all things governed in due order here, we may to His pleasure pass over this life to His honour and glory; which He grant us to do in such rest, peace, and tranquillity as shall be meet and convenient for us.'²²²

A protracted invasion, so late in the season, was, for many reasons, undesirable. No force large enough to penetrate into the country with safety could maintain itself more than a few days. The Borderers had been the chief offenders; and the campaign was to be a Border foray on a vast scale. On the 21st of October Norfolk entered Scotland with twenty thousand men, and remained in the Lothians for nine days. The harvest had been newly gathered in: it was reduced to ashes. Farms, Tillages, towns, abbeys, went down in blazing ruins; and having fringed the Tweed with a black broad mourning rim of havoc, fifteen miles across and having thus inflicted a lesson

²²²Declaration of the Cause of the War with Scotland: HALL, p. 846.

which, for the present season at least would not be forgotten, he then withdrew. Fifteen thousand Scots hung upon his skirts, but would not venture an engagement; and he returned in insolent leisure to Berwick. Here, owing to a want of foresight in the commissariat department, he found the supplies inadequate to the maintenance of his followers, and with some misgiving lest the enemy might attempt a retaliation which, with reduced numbers, he might find a difficulty in preventing, he left in garrison for the winter a fifth only of his army, and, sending the rest to their homes, he rejoined the council at York.

In a despatch to Sir T. Wriothesley, on the 9th of November, he confessed his surprise at the Scottish inaction, and attributed it justly to disagreement among themselves, and want of ability in their leaders.²²³ A further conjecture, that 'the King would gladly agree with England, but his council would not suffer him,'²²⁴ was less well founded. James was present in person with the Scottish force; and hot spirited, and perhaps the more passionate from a latent knowledge of the un-wisdom of his course, he had longed for the excitement of a battle. He would have attacked Norfolk while within his frontier; he would have pursued his retreat; he desired afterwards to carry fire and sword into Northumberland. But the Scottish lords, either retaining a wholesome memory of Flodden, or from some other cause, refused to follow. James exploded in anger. He called them traitors, cowards, unworthy of their ancestors;²²⁵ but to no purpose. Some were kinsmen of the Douglasses, and still resented their exile; some hated the clergy, and carried on their hatred to the war which the clergy had promoted. Deaf to entreaties and indifferent to taunts, they watched the English across the Tweed, and dispersed to their homes.

The King, deserted by his subjects, returned sullenly to Edinburgh. Such members of the council as shared his disappointment, and would humour his mood, were called together, and Beton played upon his irritation to strike a blow which he had long meditated, and had once already attempted in vain. The absorption of the Church lands by the English laity had not been without an effect upon their

²²³To be plain with you, it is something strange to me to conject what it should mean that the Scots do nothing attempt against us, for though there is much scarcity of victual among them, yet being so furnished of multitude of men near to the Border as they are, I think, if they would, they might ere now have done some displeasures. Surely they lack good captains.'—Norfolk to Wriothesley: *State Papers*, vol. v. p. 221.

²²⁴*Ibid.*

²²⁵BUCHANAN, vol. ii. p. 169.

northern neighbours. In the first panic, when the idea was new, and the word sacrilege was sounded in their ears, the Scottish noblemen had united in the clamours of the clergy, and had expected some great judgment to mark the anger of Heaven. But years had passed on without bringing the threatened punishments. England was standing prouder and stronger than ever; and even such good Catholics as the Irish chiefs had commenced a similar process of deglutition, much to their comfort. The double example brought with it a double force. Many worthy people began to think it might be wisely imitated; and the suspected of the Church were among the late recusants in the army. Beton drew up a list of more than a hundred earls, knights, and gentlemen, whom he represented to be heretics, and to meditate a design of selling their country to England. To cut them off would be a service to Heaven; and their estates, which would be confiscated, would replenish the deficiencies in the treasury.²²⁶ The first time this pretty suggestion had been made to James he had rejected it with fitting detestation; now he told Beton that 'he saw his words were true,' and that 'his nobles desired neither his honour nor his continuance.'²²⁷ If the Cardinal and the clergy would find him the means of making his raid into England without them, and revenge their backwardness by a separate victory, he would devote himself heart and soul to the Church's cause, and Beton should be his adviser for ever.

The secret was scrupulously guarded. Letters were circulated privately among such of the nobles as were of undoubted orthodoxy among the retainers and connections of the bishops and abbots, and among those whose personal loyalty would outweigh either prudence or any other interest. The order was to meet the King at Lochmaben on the night of the 24th of November. No details were given of the intended enterprise. A miscellaneous host was summoned to assemble, without concert, without organization, without an object ascertained, or any leader mentioned but James.

Ten thousand men gathered in the darkness under this wild invitation. The Western Border was feebly defended. The body of the English were at Berwick. The Scots found that they were expected on the instant, before warning could be given, to cross into the Marches of Cumberland, to waste the country in revenge for the

²²⁶Knox, Calderwood, and Buchanan.

²²⁷Knox.

inroad of Norfolk, and, if possible, surprise Carlisle. The Cardinal and the Earl of Arran would meanwhile distract the attention of the troops at Berwick by a demonstration at Newark.

At midnight, more like a mob than an army, they marched out of Lochmaben. James alone could have given coherence to their movements, for in his name only they were met. James, for the first and last time in his life, displayed either prudence or personal timidity, and allowed them to advance without him. Each nobleman and gentleman held together his personal followers; but no one knew in the darkness who was present, who was absent. A shadow of imagined command lay with Lord Maxwell as Warden of the Marches; but the King of Scots, jealous ever of the best-affected of his lords, intended to keep the credit of the success, yet without sharing in the enterprise. He had therefore perilously allowed the expedition to go forward with no nominal head; and as soon as the border was crossed, Oliver Sinclair, one of those worthless minions with which the Scottish Court, to its misfortune, was so often burdened, was instructed to declare himself the general-in-chief in the King's name.

The arrangements had been laid skilfully, so far as effecting a surprise. The November night covered the advance, and no hint of the approach of the Scots preceded them. They were across the Esk before daybreak, and the Cumberland farmers, waking from their sleep, saw the line of their corn-stacks smoking from Longtown to the Roman wall. The garrison of Carlisle, ignorant of the force of the invaders, dared not, for the first hours of the morning, leave the walls of the city and there was no other available force in readiness. The Scots spread unresisted over the country, wasting at their pleasure.

But the English Borderers were not the men to stand by quietly as soon as they had recovered from their first alarm. There were no men-at-arms at hand; but the farmers and their farm-servants had but to snatch their arms and spring into their saddles, and they became at once 'the Northern Horse,' famed as the finest light cavalry in the known world.²²⁸ As the day grew on they gathered in tens and twenties. By the afternoon, Sir Thomas Wharton, Lord Dacres, and Lord Musgrave had collected three or four hundred, who hovered about the enemy, cutting off the stragglers, and driving the scattered parties in upon the main body. Being without organization, and with no

²²⁸See *State Papers*, vol. is. p. 127; and the accounts of their value in the Irish campaigns: *ibid.* vols. ii. and iii.

one to give orders, the Scots flocked together as they could, and their numbers added to their confusion. The cry rose for direction, and in the midst of the tumult, at the most critical moment, Oliver Sinclair was lifted on spears and proclaimed through the crowd as commander. Who was Sinclair? men asked. Every knight and gentleman, every common clan follower, felt himself and his kindred insulted. The evening was closing in; the attacks of the English became hotter; the tumult and noise increased, 'every man calling his own slogan;' and a troop of Cumberland horse showing themselves in the dusk on an unexpected side, a shout was raised that the Duke of Norfolk was upon them with the army of the Tweed. A moment's thought would have shown them that Norfolk could not be within thirty miles of Carlisle; but his name caused a panic, and reflection was impossible. Few or none in the whole multitude knew the ground, and ten thousand men were blundering like sheep, in the darkness, back upon the Border.

But here a fresh difficulty rose. The tide was flowing up the Solway. They had lost the route by which they had advanced in the morning, and had strayed towards the sea. Some flung away their arms and struggled over the water; some were drowned; some ran into the ruins of the houses which they had burnt, and surrendered themselves to women when there were no men to take them. The main body wandered at last into Solway Moss, a morass between Gretna and the Esk, where Wharton, who knew where he was, had them at his mercy, and substantially the whole army were either killed or made prisoners. Intending to remain for several days in England, they had brought tents and stores. They had twenty- four cannon, with carts and ammunition. All were left behind or taken. Lord Maxwell refused to turn his back, and fell early in the evening into the hands of the English. 'Stout Oliver was taken without stroke, flying full manfully.'²²⁹ In the morning Wharton sent a list of captures to the King, with the names of the Earls of Cassalis and Glencairn, Lords Maxwell, Fleming, Somerville, Oliphant, and Grey, Sir Oliver Sinclair, and two hundred gentlemen. Never, in all the wars between England and Scotland, had there been a defeat more complete, more sudden and disgraceful. More lives were lost at Flodden; but at Flodden two armies had met fairly matched, and the Scotch had fallen with their faces to their enemies. At Solway Moss ten thousand men had fled before

²²⁹KNOX

a few hundred farmers, whom they had surprised in their homes. 'Worldly men say that all this came by misorder and fortune,' said Knox; 'but whoever has the least spunk of the knowledge of God, may as evidently see the work of his hand in this discomfiture as ever was seen in any of the battles left to us in register by the Holy Ghost.' The folly of venturing such an expedition without order or leader may account for the failure; but who shall account for the folly? The unlucky King was given over to believe a lie. 'The Cardinal had promised heaven for the destruction of England;' and the Cardinal had mistaken wholly the intentions of Heaven upon the matter. In the dead of the night stragglers dropped into Lochmaben, with their tale of calamity. The King had not slept. He had sat still, watching for news; and when the tidings came they were his deathblow. With a long, bitter cry, he exclaimed, 'Oh! fled Oliver! Is Oliver taken? Oh! fled Oliver!' And, muttering the same miserable words, he returned to Edinburgh, half paralyzed with shame and sorrow. There other ominous news were waiting for him. An English herald had been at the Court for a fortnight, with a message from Henry, to which he expected a reply. The invasion was the answer which James intended, and on the fatal night of the march the herald was dismissed. On the road to Dunbar, two of the northern refugees who had been out in the rebellion overtook and murdered him. A crime for which the King was but indirectly responsible need not have added much to the weight of the lost battle; but one of the murderers had been intimate with Beton. To kill a herald was, by the law of arms, sacrilege, and fresh disgrace had been brought upon a cause of which his better judgment saw too clearly the injustice. The Cardinal came back from the Border to concert measures to repair the disaster of the Solway; but his presence was unendurable. James, as well as Knox, saw in the overwhelming calamity which had prostrated him the immediate judgment of the Upper Powers, and in a dreamy, half-conscious melancholy, he left Holyrood, and wandered into Fife to the discarded minister whose advice he had so fatally neglected, the old Lord Treasurer. Kirkaldy himself was absent from home. His wife received the King with loyal affection; but he had no definite purpose in going thither, and he would not remain. The hand of death was upon him, and he knew it, and he waited its last grasp with passive indifference. 'My portion in this world is short,' he said to her; 'I shall not be with you fifteen days.' His servants asked him where he would

spend his Christmas. 'I cannot tell,' he said; 'but this I can tell on yule day ye will be masterless, and the realm without a king.'

Two boys whom Mary of Guise had borne to him had died in the year preceding. The Queen was at Linlithgow, expecting every day her third confinement. But James was weary of earth and earthly interests. He showed no desire to see her. He went languidly to Falkland; and there, on the 8th of December, came tidings that there was again an heir to the crown; that a princess, known afterwards as Mary Stuart, had been brought into the world. But he could not rally out of his apathy. He only said, 'The deil go with it. It will end as it begun. It came from a lass, and it will end with a lass.' And so, falling back into his old song, 'Fie! fled Oliver! Is Oliver taken? All is lost!' in a few more days, he moaned away his life. In the pocket of his dress was found Beton's scroll, with the list of names marked for destruction.

To such end had the blessing of Paul III., and the cap, and the sword, and the midnight mass, brought at last a gallant gentleman.

CHAPTER XX

THE FRENCH WAR

THE King of England, determining, in spite of the Papal excommunication, to assert his place in the European system as a Christian sovereign; to assist in the defence of Europe against the Ottomans; to tempt Charles to follow the English example—to break with the Papacy, and unite with himself in calling a council, where the religious differences could be settled with a reasonable liberality—determining, also, whether the greater object could be achieved or not, to introduce order into the length and breadth of his own land; if possible, to conciliate Scotland; if Scotland would not be conciliated, no longer to permit the back gate of his kingdom to lie open to the intrigues of the enemies of England, and to compel the people to fear the power which they rejected as an ally:—

The King of France, careless of religion, careless of honour, careless of Europe, caring only to humiliate the Emperor, to annex Milan, to escape payment of his debts; on the one hand inviting the Turks into Germany and the Mediterranean; on the other, feeding in Scotland the animosities of the nation against the English, and the special hatred of the clergy against Henry and the Reformation:—

Charles V., embarrassed between his orthodoxy as a Catholic and his duties as a prince, resolute, apparently, to check the ambition and punish the treachery of Francis, to compose the spiritual anarchy which distracted the Empire, and to drive back the advancing wave of Mahometanism which threatened to close the Protestant controversies in Europe, as Kaled and Omar nine centuries before had closed the quarrels of the sects in Antioch and Alexandria; yet knowing well that for such undertakings steel and powder would do more for victory than the lightnings of the Vatican; and, in spite of himself and of the anger of the Pope, compelled into an alliance with the heretic of England; hoping, if it might be so, to win him back to conformity; satisfied, if persuasion should fail, that with a clear conscience he might leave him to his fate, when his support should no longer be necessary; finally, doing for the day what the exigencies of the day demanded, and leaving the morrow to resolve its own difficulties:—

Paul III., concentrating under the influence of Reginald Pole the whole energies of his nature into a blind and malignant hatred of Henry VIII.; alarmed at the progress of Solyman, yet counting him a

spirit of light, compared with a rival 'head of the Church;' disapproving the Koran, yet fearing less injury to the soul from the rhapsodies of Mahomet than from Tyndal's Bible and the 'Institution of a Christian Man;' furious at his past failures, at the blighted conspiracies, the recent defection of Ireland, the still later defeat at Solway Moss, and dreading now that Scotland, his last hope, would fail him also; furious at the Emperor for inclining to the heresiarch whom he had promised to destroy; and therefore pardoning in Francis his alliance with the Porte, for the strength which that alliance might lend him to defy Henry and maintain David Beton and the queen-mother:—

These were the respective objects and attitudes of the great powers of Europe at the termination of the year 1542; these were the tendencies out of which the future, so far as the policy of statesmen and sovereigns could affect it, was to form itself. The direction of events in England and Scotland, France and Germany, ceased to be guided by local and superficial influences, and moved with the broad undercurrent which penetrated from one to the other; the resolutions of the Estates at Edinburgh were dictated from the Vatican or from Paris; the relations between England and France were turned out of their course by the necessity which was compelling into one the two nations which divided between them the small island of Britain.

The news of the Scottish invasion, and of the murder of the herald, reached London simultaneously; the death of James, which so soon followed, was undreamt of till it actually occurred; and Henry, encouraged by the extraordinary success on the Solway, made up his mind to hesitate no longer, to carry the country by storm before the nation had recovered from their panic, and to assert his feudal sovereignty over the northern kingdom. The lords and gentlemen who had been taken prisoners in the battle were brought up express to the Court. After two days' confinement in the Tower they were paraded in public through the streets to Whitehall, where they listened to a detail from the mouth of the chancellor of their own and the King's offences. They were then set at liberty, on their parole, and were dispersed as guests among the houses of the English nobles. A formal demand was despatched to Edinburgh for the surrender of the murderers; and Sir William Paget was instructed to lay before the French sovereign a copy of the declaration of the causes of the war, and to require him to abstain from interference. Francis insisted in reply that he was bound by treaty to support his allies. He said that

James had acted wisely in refusing the interview, that the right in the dispute was with him, and not with Henry; and that he would not allow Scotland to be crushed.²³⁰ But the opposition or the open hostility of France was anticipated, and if undesired could be endured. With the opening of the spring Henry had resolved to cross the Border at the head of his army, when it became known that James was beyond the reach of earthly punishment, and the sovereign with whom he was at war was an infant girl. The council of Scotland communicated the news in a letter of prostrate humiliation. While relating the loss which had fallen upon them, they added that they had arrested the men who had killed the herald, and would deliver them up immediately to justice. They trusted that his Highness's blood reigning within their realm, he would not fail to desire the tranquillity of it; 'they had thought it above all things most needful to seek the ways whereby all diversity betwixt the two realms might be brought to amity and quiet;' and they entreated that at once a six months' armistice might be proclaimed on the Borders, till terms of peace could be agreed on.²³¹ Evidently either the spirit of the whole nation was broken, or Beton and Beton's party were no longer in the ascendant.

In fact, for the moment, the Cardinal had ruined his cause. The invasion of England, which had terminated so disastrously, had been his exclusive work. Foreseeing that the recoil of feeling, inevitable under any circumstances, would be stimulated by the fate of the King, he had ventured a desperate effort to retain his supremacy. He had hastened to the bedside of the dying monarch, and had guided his hand, at the moment of departure, in the signature of a paper by which the regency was conferred upon himself and upon those of the nobles on whose devotion to the Papacy he could calculate.²³² He

²³⁰Paget said that Francis 'sat with a sour countenance' while he delivered his message. He then broke into a passion, cut Paget's story short, and said 'Tush, tush. M. l'Ambassadeur, I will be plain with you; it was the point you went about to break him from me, and because you could not compass that by fair means, you went about with force.'—*State Papers*, vol. ix. p. 246, &c.

²³¹The Council of Scotland to Henry VIII.: *State Papers*, vol. v. p. 231.

²³²The popular belief was that the document was signed after death. 'As many affirm,' says Knox, 'a dead man's hand was made to subscribe a blank that they might write above it what pleased them best:' and see BUCHANAN and CALDERWOOD. The Earl of Arran told Sir Ralph Sadler that 'the Cardinal did counterfeit the late King's testament, and when the King was even almost dead, he took his hand in his and caused him to subscribe a blank paper.'—*Sadler Papers*, vol. ii. p. 136, &c.

was proclaimed at the market-cross at Edinburgh, but the impudent forgery was exposed and denounced; and the discovery of the list of names which revealed the conspiracy against the lords who had opposed the war with England raised at once a storm of rage. The Earl of Arran, whose name was first upon the catalogue, was next of kin to the princess, and by Scottish usage was her legitimate guardian. Arran, with the assistance of Sir James Kirkaldy, called a convention of the nobles, and, by a majority too great even to allow a shadow of resistance, was declared Regent. The Cardinal was arrested and imprisoned; and the power passed from the Church to the laity.²³³

The circumstances of the two countries now resembled those which had succeeded the battle of Flodden. A great invasion had a second time been followed by a great defeat, by the death of a king, and by the succession of an infant. A second time there was an opportunity for a union of the Crowns by marriage. A second time there was an interval of penitence, when suffering brought with it wiser counsels. The recurring crisis was attended only with this difference, that before Scotland was left with a prince who was then to be mated with an English princess. The position was now reversed. A girl inherited the throne of the Stuarts: a boy, a few years older, was the heir of the rival crown.²³⁴ But, under either form, 'the situation,' to use the language of Knox, 'was a wonderful providence

²³³The upper classes in Scotland were so fickle, that their prevailing disposition is not easily discoverable. It is clear, however, that when by accidental causes the influence of the Church was neutralized, the balance at times inclined towards England and good sense. Paget in January wrote to Henry that he had met a Scotchman in Paris, and had spoken to him about the war. 'The foul evil,' quoth the Scot, 'take them that began it; I am sure it was neither of both Kings,' and laid the fault on the bishops, somewhat railing on them. 'By God's body,' quoth he, 'things had gone otherwise by this time if the temporal lords might have had their will.'—Paget to Henry VIII.: *State Papers*, vol. ix. p. 263.

²³⁴The difference was, perhaps, more important than it seemed. Sir Ralph Sadler, in a conversation with Sir Adam Otterburn, spoke of the opportunity and occasion offered by God's providence for the two realms to be knit and conjoined in one. 'I pray you,' said Otterburn, 'give me leave to ask you a question: If,' said he, 'your lad were a lass, and our lass were a lad, would you then,' said he, 'be so earnest in this matter; and could you be content that our lad should marry your lass and so be King of England?' I answered that 'Considering the great good that might ensue of it, I should not show myself zealous to my country if I should not consent to it.' 'Well,' said he, 'if you had the lass and we the lad, we could be well content with it; but,' saith he, 'I cannot believe that your nation could agree to have a Scot to be King of England. And likewise I assure you,' said he, 'that our nation being a stout nation, will never agree to have an Englishman to be King of Scotland.'—*Sadler Papers*, vol.

of God;' and while the wounds of Solway Moss were still green, and the memory of suffering was fresh, the fear of the Scottish council seemed rather that Henry, in his present humour, would refuse to grant again conditions so honourably moderate.

Therefore it was that, on the King's death, they made haste to secure their ground by a ready submission; while at the same time, by electing a regent on their own authority who was known to be hostile to Beton, they at once secured the outward independence of their Government, and took away from Henry a pretence for an armed interference. The two murderers were sent under a guard to Alnwick, where they were placed in the hands of Lord Lisle.²³⁵ When examined on the motives of their crime, one of them—the Lincoln insurgent, Leech—maintained an obstinate silence; his companion, Priestman, who was also a refugee, was more cowardly or less scrupulous. This man stated that they had been in great poverty, and they had supposed that some 'notable exploit' done against their countrymen might bring them into favour at the Court. With this view they had suggested to the King that the herald and his party were probably spies; and, should it so please him, they would intercept and punish them. The King, Priestman said, gave them no answer in words, but from signs and gestures they gathered that 'he forced not, though the men had a shrewd turn.' His secretary was explicit in his encouragement. They need be in no fear, he told them, of being given up to the English: 'If they had killed the King of England himself they would not be delivered;' and the Cardinal would give them 'wages' as soon as they had earned his favour. They still hesitated: to assure themselves certainly they applied for directions to Beton himself; and of the instructions which had been given in this quarter, Priestman could not speak with certainty. His companion had been admitted to a private interview; and, knowing nothing of the details of the conversation between Leech and the Cardinal, he could himself say only that the enterprise was regarded with general favour. Neither Beton nor any other person, in his own hearing, had expressly advised the murder; but 'he might perceive,' he said, 'as well by their fashion that they would have such a thing done as though they had commanded

iii. pp. 325–6. Unhappily for the value of the excuse, the Scots had already rejected the offer in the form which they professed to prefer.

²³⁵Sir John Dudley, created Lord Lisle on the death of Arthur Plantagenet, son of Edward IV.

them precisely to do it.²³⁶ With the evidence made imperfect by the silence of the other prisoner, the Cardinal may have the benefit of the cautious verdict of his countrymen. His complicity was 'not proven;' but, though the herald was in himself an insignificant person, it is not unlikely that the subtle churchman, afraid of the King's vacillation, desired to embitter the quarrel with England, beyond hope of reconciliation, by a desperate and unpardonable outrage.

At any rate, whether guilty or innocent, Beton was driven from power, and was secured in Blackness Castle from committing further crimes. There was a prospect of peace—peace, at last, on the broad basis of acknowledged interest; and Henry, catching gladly at the opportunity, invited the Scotch prisoners, with the Earl of Angus and his brother, to a conference in London. He expressed his anxious desire to heal the old wounds, once and for ever, by a treaty of perpetual peace and the betrothal of Edward and Mary. His objects and his offers were the same precisely which he had desired and proposed twenty years before; but, taught by the experience of past failures, he would not again, if security were possible, expose a combination of occasions, which might never recur, to be ruined by Scotch fickleness. This time he would ensure his success by substantial conditions. He suggested that, on the signature of the two treaties, the infant Queen should be brought into England to be educated; that the Castles of Edinburgh, Stirling, and Dumbarton should be occupied by English garrisons; that, in the place of a regency, Scotland should be governed by a native council, in the nomination of which he should be himself admitted to a voice; and to Cardinal Beton he paid the same respect which he had paid previously to his uncle the Archbishop—the prisons on the south side of the Border he believed to be safer than those on the north.

If in the administration of human affairs that course is the best which will accomplish, with the smallest amount of inconvenience or suffering, results which in themselves are sooner or later inevitable, we cannot but applaud a scheme which, had circumstances permitted its accomplishment, would have spared Scotland a century of needless calamity, and perhaps might have spread in peace the forms of the Church of England over the united kingdoms. The noblemen whom the King was addressing acquiesced, or professed to acquiesce, with unreserved heartiness. Their imprisonment was declared

²³⁶*State Papers*, vol. v. pp. 236–7.

at an end. They were permitted to return to their country, undertaking on their part to further the English policy with all their power. They gave a promise, should they be unable to accomplish Henry's expectations, again to surrender themselves, or to pay the moderate ransom at which the price of their liberty was fixed; but, in reality, the condition of their deliverance was the peace between England and Scotland. Success seemed all but certain. It was possible that, notwithstanding the favourable disposition of the council, force might still be required to take possession of the fortresses, and to escort the Cardinal into England; and Lord Lisle received orders to support the Earl of Angus with four thousand men.²³⁷ But an easy and bloodless victory was confidently anticipated. On the 30th of December the two hundred lords and gentlemen who, a few weeks before, had been carried in triumph through London, were dismissed with costly presents from the Court. On the 31st the Lord Mayor entertained them at a banquet in the Guildhall; and on New-year's day after, pausing at Enfield to pay their court to the young prince,²³⁸ they set out for the north, carrying back with them, as it seemed, not only a desire for an alliance with the nation which they had entered as armed invaders, but the intention of introducing into Scotland the English Bible and the principles of the English Reformation.

In Paris the tidings of these strange events were received at first with incredulity, and afterwards with fear. The release of the prisoners was known: the conditions, though not declared, were more than suspected. A Scot endeavoured to extract the secret out of Paget; and although the ambassador was too skilful a diplomatist to be entrapped by questions,²³⁹ yet the situation and its obvious suggestions left little doubt of Henry's intentions;²⁴⁰ and the Catholic faction in

²³⁷ Henry VIII. to Lord Lisle: *State Papers*, vol. v. p. 242.

²³⁸ Holinshed.

²³⁹ Paget's graphic descriptions must not be mutilated. 'I hear say,' quoth the Scot, 'they [the prisoners] be gone home. Wot you for what cause?' 'I wot not,' quoth I, 'but that it be to make their ransom.' 'I believe not,' quoth he, 'the King your master would let them go home for that purpose.' 'Yea, by my troth,' quoth I, 'for the King my master is a prince of so good faith that he thinketh every other man of honesty to be the same.' 'By God's body,' quoth he, 'they be fools if they come again.' 'Say not so,' quoth I, 'for shame of your country; you never learnt that disloyalty in Scotland.'—Paget to Henry VIII.: *State Papers*, vol. ix. p. 263.

²⁴⁰ 'I hear credibly that they be much afeared here that your Majesty will marry my Lord Prince to the daughter of Scotland. They say your Majesty doth therein what you can, but they trust to break your purpose.'—Same to same: *ibid.* p. 273, &c.

the French council determined at all hazards to thwart him. The disaster of November had overthrown Beton; but the links which bound France and Scotland were woven out of the hatred of centuries for a common enemy, and could not be destroyed by a momentary accident. They affected to see in the intended marriage the sacrifice of a nation's independence, the insidious approach of a rival power watching its opportunity; and they knew that they were striking a note to which many a Scottish heart would vibrate. They flung themselves into the cause with an affection of generous sympathy. Volunteers in the beginning of January were offering themselves to defend the throne of the daughter of Mary of Guise, or to carry her away from the snares of artful enemies and treacherous subjects, into the safe asylum of France. 'From highest to lowest,' the English ambassador wrote from Paris to Henry, 'every man in this Court maketh the matter of the Scots almost their own.'²⁴¹ They had assisted James with ammunition and money to commence the war. Barges were now loading at Rouen with cannon, shot, and powder, pikes and muskets;²⁴² the cargoes to be transferred to ships, which were to land them at Leith at the earliest opportunity. For the moment the river was impassable from a severe frost; but on the instant of a thaw, the Duke of Guise would cross from Normandy, and either liberate the Cardinal and restore the Church party to power, or frustrate Henry's hopes by carrying back with him his daughter and her child.

The English agents spared no money in the purchase of information; the preparations at Rouen and the intentions of Guise were soon known in London, and ships of war were equipped at Newcastle and Hull, to watch and intercept the passage. The ice which delayed the French blocked also the outlets of the English harbours;²⁴³ but, before the expedition could sail, Guise learnt that he was too late, and to accomplish his enterprise he must risk a battle.

To have failed in catching the first moment of agitation, it might well be hoped was to have failed wholly. If the Scotch council were true to their promises, little more was to be feared from French

²⁴¹'They do boast the Scots,' he adds, 'with brags and lies, that it is wonder to hear.'—*State Papers*, vol. ix. p. 257.

²⁴²Paget to Henry VIII.: *ibid* p. 287; letter written in cypher.

²⁴³'The harbour here is so frozen, that, notwithstanding all the policy and good means possible used, as well in breaking of the ice by men's labour as otherwise, the said ships be not yet gotten out.'—Suffolk to the Council from Newcastle: *State Papers*, vol. v. p. 244.

interference. On one point, indeed, the intentions of Henry were frustrated at the outset. The Douglasses, on their arrival with their companions, found Arran too firmly seated in the regency to be displaced; and the Government by a council was impossible. The disappointment, however, so far, was of no particular moment. The Regent had been honoured by Beton's especial dislike. His infirm character would render him a pliant instrument of the English policy; and he was described as 'a soft God's man, that loved well to look on the Scripture.'²⁴⁴ His first acts were full of promise. He issued licenses of preaching to 'two stout gospellers,' Thomas Williams and John Rough, whom the Cardinal had intended for the stake. 'The slaves of Satan,' says Knox, 'roupit as they had been ravens; yea, rather they yelled and roared that Williams and Rough would carry the governour unto the devil.'²⁴⁵ But Arran for once was resolute. The champion of the Church was in safe custody, and a native Government, could its constancy be relied upon, would do Henry's work more effectually, and would create less jealousy in doing it, uncontrolled by foreign interference.

But clouds, though at first light, were not long in rising. In the middle of February Sir George Douglas came down to Lord Lisle at Berwick, and one by one requested a relaxation of the remaining conditions. English garrisons could not be introduced without great difficulty into the castles; the conveyance of the Cardinal into England would create a general irritation; and still more questionably, when Lisle spoke of the coming of the Duke of Guise, Douglas said that the council did not intend to prevent his landing, but would content themselves with limiting the number of his train. The known ability of Sir George Douglas could not permit the English commander to regard him as a dupe. Such a man could not be ignorant that, if Guise was once at Edinburgh, with the command of money which he would bring with him, he would make a party instantly among the needy and covetous nobles, and Blackness would not hold its prisoner for four-and-twenty hours.²⁴⁶ If the Regent was seriously meditating such an act of infatuation, it should not be without an effort to save him from himself, and Lisle warned the Earl of Arran of the

²⁴⁴Lisle and the Bishop of Durham to Henry VIII.: *State Papers*, vol. v. p. 235, &c.

²⁴⁵Knox's *History of the Reformation in Scotland*.

²⁴⁶Lisle to the Duke of Suffolk; *State Papers*, vol. v. p. 249.

nature of the power with which he was dealing, and of the danger of trifling with it.²⁴⁷

But the fault of Arran as yet had not passed beyond weakness. He was timid as a statesman. He shrunk from the odium and the possible danger of throwing himself absolutely on the support of England; and without that support he was too feeble to pursue openly an avowed English policy. He believed that he could compensate for his want of strength by dexterity of management; and he was dealing with an enemy who, in the use of such a weapon, could play with him as with a child.

Cardinal David Beton, Archbishop of St Andrew's, approached nearly to the ideal of the Romanist statesman of the age. Devoted to the Pope and to the Papacy, he served his master with the unvarying consistency, with the mingled passion and calmness which, beyond all other known institutions, the Roman Church has the power of imparting to its votaries. The sensual pleasures of which his profession as an ecclesiastic deprived him of the open enjoyment, he was permitted to obtain by private licentiousness; his indulgences were compensated by a fidelity with which they never interfered; and the surrender of innocuous vices was not demanded of a man to whom no crime was difficult which would further the interests of his cause. His scent of heresy was as the sleuth hound's, and, as the sleuth hound's, was only satisfied with blood. He was cruel when the Church demanded cruelty, treacherous and false when treachery and falsehood would serve the interests to which, he had sold himself; his courage was as matchless as his subtlety; his accomplishments as exquisite as his intellect.

It was little wonder that for such a man Henry thought the Tower of London a safer prison than Blackness, and himself a surer gaoler than the Earl of Arran. No sooner was Beton under arrest than he drew up letters of interdict for the whole of Scotland. They were passed through the hands of his keepers, and copies were distributed among the clergy. There was no lash or gallows, as in England, to correct the over-zeal of the ecclesiastics. The letters were obeyed without scruple and without exception. Although the 'gospellers' might preach, no mass might be sung in any church in Scotland, no corpse be buried,

²⁴⁷Your lordship must consider that you meddle now with the most noble prince and father of wisdom of all the world. His Majesty will not be trifled with in no case.'—Lisle to the Earl of Arran: *ibid.* p. 250.

child be baptized, or impatient lover united in matrimony, till the heavy edict should be withdrawn.²⁴⁸ The body of the Cardinal was imprisoned. His spirit escaped through the walls and moved omnipotent through the land. When the people complained, it was answered that the servant of the Church was suffering for the truth and for his country, which a treacherous faction would betray to England and to heresy. The temporal lords of Scotland were ill able to cope with such an antagonist. It was not till a power, preternatural as his own, till the spirit of the Reformation stood out to battle with him, that the haughty Beton at last would vail his crest. The Government durst not send him into England, and dared as little to punish him themselves. They temporized, they hesitated, and at length, taking refuge in inertia, they would not release their prisoner, but they left the country to suffer and grow impatient.

On the 12th of March, while the interdict was still in force, the Estates assembled at Edinburgh to consider the state of the realm and the English treaties. At the outset the prospect still promised fairly. The nomination of Arran to the regency was confirmed; and on the first day of the session 'the Lords of the Articles, after they had heard my Lord Governor's mind, having consideration of the adversity of times bye gone, and of the dangerous appearances of skaith of the time instant and sicklike to come, concluded that an ample commission should be made and sent with ambassadors to the King of England, for taking, treating, and concluding of peace perpetual; that another commission should be made to the same ambassadors, to conclude a marriage betwixt the Queen of Scotland and Edward Prince of Wales,²⁴⁹ apparent heritor of England.'²⁵⁰

So far all was well. A general acquiescence was admitted in the King of England's views. But similar negotiations twenty years before had advanced to the admission of the principle. It appeared rapidly that the same 'struggle would repeat itself in the discussion of the details. Henry, made wise by experience, had required the custody and the control of the education of the Queen. The Parliament determined that, 'for many inconveniences like to ensue,' they must refuse this important condition. Four Scottish noblemen should reside in

²⁴⁸*State Papers*, vol. v. p. 250; *Sadler Papers*, vol. i. p. 108.

²⁴⁹The Prince, it is to be observed, was described as 'Prince of Wales,' although his formal creation was deferred, and was never actually accomplished.

²⁵⁰*Acts of the Scottish Parliament*, March 13th, 1543.

England as hostages for the Queen's appearance there when she had arrived at marriageable age; but for the present she must remain with her mother, surrounded, of course, by French courtiers and Romanist ecclesiastics, whose influence Henry, if he pleased, might neutralize by attaching a limited number of English gentlemen and ladies to the royal household. Looking forward to the ultimate completion of the marriage, they decided next that, when that event had taken place, the realm should nevertheless retain its ancient liberties, and its name of Scotland; the national Parliament should continue undisturbed; the regency should be assured for life to the Earl of Arran; and if there should be issue from the marriage, and the crowns of the two kingdoms be united in a single person, the administration should descend by the ordinary laws of inheritance in the Arran family; the country should be ruled for ever under 'a governour born of the realm,' and guided by the native laws.²⁵¹

These preposterous resolutions were gravely determined on. It is impossible to believe that there was a serious expectation that they would be accepted in England as the basis of a treaty. The commissioners selected to carry them to London, Sir James Leirmouth, Sir William Hamilton, and Balnavis of Halhill, unknown men of inferior rank, were not likely to recommend in the delivery an unpalatable message; and it may be assumed that the object was to escape from the difficulty by exacting impossible conditions, and throwing upon Henry the burden of the refusal.

While, however, the jealousy of England was so conspicuous, the Parliament, nevertheless, displayed a more promising spirit on matters of religion. As yet there was no leaning visible towards the Cardinal; and three days after the discussion of the treaties Lord Maxwell proposed that the people should be permitted the use of the English Bible. In Beton's absence the Archbishop of Glasgow entered a protest on behalf of the episcopate, and entreated a delay until a provincial council of the clergy should have declared their assent;²⁵² but his opposition was waived. Maxwell's proposal had been received with evident favour; and the Lords of the Articles having pronounced that no existing law forbade the reading of a translation of the Scriptures, a proclamation made public the liberty

²⁵¹*Acts of the Scottish Parliament*, March, 1543; *Sadler Papers*, vol. i. p. 59; *State Papers*, vol. v. p. 271, &c.

²⁵²*Acts of the Scottish Parliament*, May 15th.

which, beyond all other things, the Church with keenest instinct dreaded. One special point for which the King of England had laboured was gained. Could he but wait his time, his other wishes, he was assured, would in due time accomplish themselves.²⁵³

Where there was hope that the end might be accomplished by patience, an endurance which had already lasted through thirty years of disappointment could still continue. The success of Maxwell's measure compensated for the remaining failures. But amidst the uncertainties and inconsistencies of the Scotch nature which had been so tediously experienced, Henry required at least a just information of their proceedings and intentions. The proposals of the Parliament had not yet reached him, for Leirmouth and his companions had been slow in departing on their errand. A vague impression of a difficulty was all which had transpired; and Sadler, whose past experience and acquaintance at the Scottish Court best qualified him for the post, was sent to reside at Edinburgh, to observe and to report. While affairs remained unsettled, a strong English force was maintained upon the Borders; large sums of money were secretly distributed among the northern lords; the Earl of Angus and his brother, whom Henry had maintained for fifteen years in their exile, were now his almoners to others, while they continued his pensioners themselves. He required to be assured that his revenues were not squandered in unavailing efforts, and by unfaithful stewards.

On the 20th of March, Sadler reported his arrival and reception at Edinburgh, where Sir George Douglas had partially introduced him behind the scenes. There had been sad work, Douglas told him. At one time the Catholic Earls, Huntly, Argyle, Murray, and Bothwell, had threatened to make a party with the clergy, and hold an opposition Parliament at Perth. He had not slept three hours any night since his return from England. But the worst was over, and he trusted that at last all would go well. 'They had grinned at each other, but there

²⁵³ 'Then might have been seen,' says Knox, 'the Bible lying about upon every gentleman's table. The New Testament also was borne about in many men's hands. We grant that some, alas, profaned that blessed word. Some, perhaps, that had never read ten sentences of it had it most common in their hands. They would chop their familiars in the cheek with it and say, this has lain under my bed-foot these ten years. Others would glory, how often have I been in danger for this book, how secretly have I stolen away from my wife at midnight to read upon it. And this was done to make court thereby, for all men esteemed the governour to be the most fervent Protestant that was in Europe.' 'Nevertheless,' he adds, 'the knowledge spread.'—Knox's *History of the Reformation*.

was none that would bite;' and if the King would be contented with slow progress, he believed that it would be sure. This much, however, was certain, that if at present the delivery of the Queen, or the custody of the fortresses, was insisted on, Beton would be set at liberty, the French would be called in to assist, and all that had been accomplished would be undone. 'There was not so little a boy but he would hurl stones at it, the wives would handle their distaffs, and the commons universally would die in it.'²⁵⁴ Douglas might be right, but he had used different language a few weeks previously in London. Moreover, it was whispered that he had held a secret interview with the Cardinal, in which the supposed enemies had suspiciously embraced each other. Sadler knew that he was breathing an atmosphere of falsehood. His business was to give his ear to every one, and to believe so far as he saw occasion. When Douglas left him he found himself instantly surrounded by noble lords and gentlemen of all factions and parties, coming each of them with their several stories to instruct or mislead; each assuring him that all were dishonest but themselves, and each anxious to finger the English gold. Lord Bothwell, whom Douglas declared to be Henry's most inveterate enemy, brought his offers of service and devotion, and kindly intimated that the Solway prisoners were playing false. On the 23rd of March, three days after his arrival, the ambassador had an interview with Mary of Guise; and the queen-mother, the centre and chief instrument, as was supposed, of French intrigues, informed him that her best wish was to see her child in England. For the marriage, 'she could not otherwise think but it was the work and ordinance of God for the conjunction and union of the realms';²⁵⁵ but she warned him to hope for nothing from the Regent. The Earl of Arran, she said, intended her daughter not for Prince Edward, but for his own son. He was playing with England for his present convenience; but he would keep the Queen in his hands till her minority was over, and by that time would be dead, and excuses could be found without difficulty to break the contract. The

²⁵⁴Sir Ralph Sadler to Henry VIII.: *Sadler Papers*, vol. i. p. 70. One of the many critics who have undertaken to expose my erroneous estimate of the character of Henry VIII. has quoted these words (changing the 'it' into 'him,' and the 'in' into 'against'), as an evidence of the detestation with which the King was regarded by his *subjects*. I presume that he had seen the passage in a quotation, and was too well satisfied with the burden of it to inquire from what despatch or document it was taken. But the fallacy of extracts could scarcely be carried further.

²⁵⁵Henry Sadler to Henry VIII.: *Sadler Papers*, vol. i. p. 84, &c.

truest friend to the two countries, she gravely assured Sadler, was Cardinal Beton. If Beton were once at liberty, the King of England's wishes would be all fulfilled. The English Court were living in a delusion. They depended on the Regent and the Douglasses, whose only thought was how to defeat their desires; and she herself, she declared, was in fear for the life of her child as long as she remained in Scotland. The Regent had his eye upon the crown. He was already preparing the public to hear of the infant's death by spreading rumours that she was sickly.

The accomplished hypocrisy did not convince; yet it was not wholly without effect. Sir George Douglas had cautioned the ambassador against the queen-mother; the queen-mother warned him against Sir George Douglas. He perceived that there was 'some juggling,' but the grace and charm of Mary of Guise forbade him for the moment to believe with certainty that the falsehood was with her. She saw the impression which she had made, and, with winning confidence, she led him into her nursery, and lifted the baby out of the cradle, that he might admire its health and loveliness. Alas, for the child! born in sorrow, and nurtured in treachery! It grew to be Mary Stuart; and Sir Ralph Sadler lived to sit on the commission which investigated the murder of Darnley.

For the present, perplexities thickened about him. The Regent himself, in successive conversations, had professed the most vehement wishes to satisfy Henry. The week after the ambassador arrived, Arran assured him that he cared nothing for the interdict, and that so long as he lived 'the Cardinal should never have his liberty, nor come out of prison, unless it were to his further mischief.' Within a few days the Cardinal was secure within the walls of his own castle of St Andrew's (which his retainers had held in his name against the Government while he was in Blackness), under the nominal custody of Lord Seton, who was his surest friend. It was true that his detention in Scotland was no longer possible without a civil war. Easter was approaching, and the people would not endure that the season should pass unobserved. The Catholic Earls had threatened to liberate him by force, and a transparent compromise had covered without concealing the Regent's weakness. The truth might have been regretted, but it would have been intelligible. But the childish pretence which Arran attempted to maintain, that he was still a prisoner, and that the transfer had been a stroke of policy to recover possession of an important

stronghold, only provoked suspicion. The King was liable to mistakes in the characters of women. He saw in Sadler's reports that those at least who had pretended to be his friends were falling short of their declarations. The Douglasses had left his presence full of fair words, pretences, and promises: their engagements had melted into worse than inconsistency. Sir George had communicated secretly with Beton. It was through him that Beton was said to have been liberated; and, believing them treacherous, when, in fact, they were only embarrassed with difficulties too complicated to be avowed, Henry fell deeper than even his minister under the snares of the queen-mother. He was 'in marvellous perplexity' what to say of their late doings—of 'the strange fashion of removing the Cardinal, denied at first, doubted of after, then granted by Sir George Douglas.' He would no longer 'be deceived by fair words, and the deeds so repugnant to them,' while in the subtle daughter of the Duke of Guise he imagined that he saw 'a frank and plain manner of proceeding, such as motherly love to the surety of her child should in manner persuade her unto.'²⁵⁶ In his exasperation he even extended his confidence to her judgment as well as to herself. Those on whom he had depended had failed him. He believed, after all, that he might expect more from the party who had been his open enemies, and listened with despairing credulity to her praises of Cardinal Beton. The latter, to whom the queen-mother had given a hint, supported her assertions by a letter from St Andrew's to Sadler, in which after sending his hearty commendations, he said that having recovered his liberty, he was anxious to offer his services to the King's Majesty, and would be glad to see the English minister at the castle.²⁵⁷ Henry supposed that the offers perhaps might be meant in honesty. He directed that the invitation should be accepted; he permitted the suggestion of a hope that, if the Cardinal would at length honestly lend his help towards the settlement of the kingdom, he would gratefully accept his friendship; and should a change of sides entail the loss of his preferments in France, he undertook to see him substantially indemnified.²⁵⁸

²⁵⁶*Sadler Papers*, vol. i. pp. 100, 101.

²⁵⁷*Ibid.* p. 104.

²⁵⁸Privy Council to Sadler: *State Papers*, vol. v. p. 280, &c. It is necessary to relate these dreary intricacies of deception, that Henry's ultimate resentment and the storm which at length he let loose on Scotland may be seen to have been not unprovoked.

Sir Ralph Sadler, on the spot, saw clearer than Henry in London: and, though shaken, he could not wholly share his change of confidences. It was possible that the Queen and Cardinal were desiring only to create suspicion between the Court of England and the Regent and his advisers. It was possible that the latter were still partially honest, and had broken their promises as much from inability to keep them as from unwillingness. He continued, therefore, for the present, to listen to both sides—to wait, as he expressed it, for ‘better experience of the fidelity and truth of French and Scottish than he had had as yet, before he would presume to give a certain judgment.’ He informed Arran of his interview with Mary. Arran assured him that, whatever she pretended, ‘he would find her, in the end, a right Frenchwoman.’ Her only object was to preserve Scotland to France, and to prevent the alliance with England which she professed to desire. ‘This,’ he said, ‘is her device, while, as she is both subtle and wily, so she hath a vengeable engine²⁵⁹ and wit to work her purpose. She laboureth, by all means she can, to have the Cardinal at liberty;²⁶⁰ by whom, being as good a Frenchman as she is a Frenchwoman, she might the rather compass her intent.’²⁶¹ From Arran the perplexed minister went again to the Queen, who assured him positively that, since his last visit, the Regent had avowed to her openly his intention of keeping her daughter for his son. He had told her that ‘he would rather die than deliver the child into the hands of the King of England; but he would give good words and make fair weather till better opportunity.’ Whatever he promised, neither he nor the lords would accomplish any one real step towards a union of the kingdoms. For herself, she again said, that she feared for her life, and she wished herself in England.

Her eagerness had carried her a little too far. If she wished to be in England, Sadler suggested that there would be no great difficulty in an escape. She would be received with the child with open arms, and would earn his master’s gratitude for ever. She turned the subject to the praises of Beton. If Beton had been free, she said, there would have been no difficulty. The treaties would already have been arranged; and even but lately he had sent her word that, could he

²⁵⁹ Ingenium,—‘disposition.

²⁶⁰ ‘At liberty,’ that is, to leave St Andrew’s and come to Edinburgh, to take a share in the Government. If he could dupe Henry into a momentary reliance upon him, he would recover his power without difficulty.

²⁶¹ Sadler to the Privy Council: *Sadler Papers*, vol. i. p. 108.

leave St Andrew's, he would go to London, and with his own lips convince the King of his sincerity.²⁶² The remains of Sadler's scepticism yielded before so confident audacity. 'The Queen, as I take her,' he wrote, when he left her presence, 'earnestly desireth the marriage of her daughter to my Lord Prince's Grace.'²⁶³

On the other hand, if parties had changed sides on the English alliance, they kept their places on the sister question of religion. The Cardinal continued constant to the Church. The Regent was still liberal towards the Protestants. The contradiction was obvious. The uncertainty returned, and was increased by other causes. The minister had been instructed to urge on Arran's Government three especial requests. The first, for a license for the general use of the Bible, had been at once fulfilled. The second, for the abolition of the Papal supremacy and the suppression of the monasteries, was under consideration, and appeared to be desired. The Earl declared, without reserve, that 'he thought all monasteries were founded to pray for souls in purgatory; and, if there were no purgatory, *as he was clearly of opinion that there was not*, their foundation was vain and frustrate.'²⁶⁴ The third point in the commission, which had been hitherto reserved, tested the truth of the queen-mother's story that Arran entertained a private design in the marriage question. It was a proposal, in the event of his fidelity, for an alliance between the son whom Mary of Guise pretended that he designed for the young Queen, and the Lady Elizabeth. The suggestion was now brought forward as an experiment of the Earl's honesty, and, to Sadler's surprise, was received with cordial gratitude. The Regent did not deny that he had thought of the other connection, before the King's wishes were made known to him; but he had relinquished all expectation of it, and was delighted at the honour of the King's offer.

These things made in the Earl's favour; but the atmosphere was impregnated with lies. Lord Fleming declared that Arran had said to him 'that sooner than the Queen should marry into England, he would carry her away into the Isles;'²⁶⁵ Arran evidently dreaded the Cardinal; the Cardinal, as Sir George Douglas as well as the Queen

²⁶²*Sadler Papers*, vol. i. p. 115.

²⁶³*Ibid.* p. 116.

²⁶⁴Sadler to the King: *Sadler Papers*, vol. i. p. 128. It is remarkable that the ambassador, though writing to Henry, reports these words with evident sympathy on his own part, and with as evident an expectation that they would be read with approval.

²⁶⁵*Sadler Papers*, vol. i. p. 127.

now protested, was in his heart devoted to England; and even at times Sadler himself found the Regent 'utterly determined to abide the extremity of war rather than condescend to the accomplishment of the King's desires.'²⁶⁶

If the Scottish question had waited for its solution till the intentions of the nobles could be discovered from their language, the perplexity threatened to be of long continuance. But, in the mean time, Henry had submitted a definite demand to the Scottish Parliament, and they had returned him a definite answer. The despatch of it had been delayed; but the questionable embassy to whom it had been entrusted had at length reached London. Their message was delivered, and bore immediate and substantial fruit. The King was sick of lying and tired of evasion. The imagination that, on the union of the two nations, an independent Regent would be permitted to rule in Scotland by hereditary right was too absurd to be entertained. The ambassadors were desired to return instantly, with an intimation that, if the negotiations were to be renewed, it must be through persons whose insignificance should not in itself be an affront. The Scots were alarmed, for Henry was reported to be serious. Lord Glencairn and Sir George Douglas hurried to London, and in three weeks returned with the King's own counter-propositions—so reasonable, he said himself, that, if they were not accepted, 'he would follow his purpose by force;'—so moderate, says Knox, 'that all that loved quietness were contented therewith.'²⁶⁷ He relinquished his demand for the immediate delivery of the young Queen. She might remain in her own country till she was ten years old; in the mean time, as pledges for the fulfilment of the contract, three Scottish earls and three bishops or barons must reside in the English Court. Their places might be changed half-yearly, but the number should be kept complete. For the Government, the Earl of Arran might remain in office during the minority, provided his conduct continued satisfactory, and provided the whole or a portion of the council might be nominated by the English Crown. Lastly, the treaty of peace should be immediately drawn, and the Scots should relinquish the French alliance, and bind themselves to make no separate leagues with any foreign county except with Henry's consent.

²⁶⁶Ibid. p. 147.

²⁶⁷*State Papers*, vol. v. p. 280, &c. KNOX's *History of the Reformation*

The arrival of this message brought matters to a crisis. The endurance of England, it appeared, had its limits; and the Scots saw, or seemed to see, that they must choose between acceptance and open war. Arran, whose feeble understanding swayed under every transient impulse, was at first persuaded into defiance; supported by all the lords except Angus, Cassilis, Maxwell, and Glencairn, he determined to reject the terms and face the consequences. The Cardinal tossed aside his now unneeded mask. The fiction of his imprisonment was no longer maintained. He called a convention of the clergy at St Andrew's, where the 'kirkmen,' with all their voices, shouted for war. Supplies were voted to assist the needy noblemen in raising their retainers, and to bribe them to relinquish their designs upon the abbey lands. 'They had liefer,' said Sir George Douglas, 'all the world should sink than they should lose their pomp and glory.' For the moment even those who sincerely desired the success of the English marriage believed it was hopeless. Arran, constant to nothing, was drawn towards the Church party by fear; for a shadow of illegitimacy hung over him which, if desirable, could be converted into a substance. Matthew Stewart, the young Earl of Lennox, next of kin to the Crown in default of the Hamiltons, was introduced from France to displace him if he proved intractable, or to awe him into obedience. The Pope had sent fresh powers to his faithful Cardinal. A legate was already on his way from Rome, with 'fulminations of cursing,' and instructions to take the government, if necessary, from a heretic, and confer it upon a dutiful child of the Church. In vain Henry, appealing to the Regent's better nature, advised him 'to play the governour indeed'—to seize Beton and Lennox, with all their adherents, throw them into a dungeon or send them to England.²⁶⁸ The imbecile Arran could play no part but that of the wind-vane marking the changes in the aircurrents. Amidst the rage of the clergy, the jealous pride of

²⁶⁸ His Majesty hath thought good to advise him to have such a regard to the matter as he may pull the feathers off his enemies in time, and by that mean provide both for the indemnity of himself and his friends, and also for the advancement of such things as shall tend to the universal benefit of that realm, which forasmuch as it cannot be brought to pass unless that, as well the legate be impeached of his enterprise as also the Cardinal and the Earl of Lennox be better looked upon than they have been hitherto, his Majesty's advice and counsel is that the governour do now shew himself a man of courage, and play the very governour indeed; and procede with great diligence, secrecy, and sufficient furniture of men to the apprehension of them with all their adherents, even now specially, if it can possibly be done, as they sit at their Convocation.—Privy Council to Sadler: *State Papers*, vol. v. p. 286.

independence, the intrigues of France, and the menaces of the Papacy, 'the English lords'—as the few noblemen of clear sense and genuine patriotism were scornfully called had little chance of prevailing. They continued, nevertheless, resolutely to fight their battle; and two considerable supports they had with them—the dread of the English army which hung on the Borders like an undissolving cloud, and the small band of Protestants few in number, but with a resolute purpose, and with a strength which was steadily growing.

With this assistance they could still make head against the stream. An assembly was called at Edinburgh, in the first week in May, to consider Henry's message. One day the English party carried their point. A concession was determined on. The day after, the vote was recalled through the exertions of Beton and Mary of Guise; the lords resolved to send the Queen into France;²⁶⁹ and the Count de Montgomery was announced as coming over to take charge of her. But if they concluded thus, there would be an immediate invasion; and at last, deciding nothing, they thought they might gain time by keeping up appearances; Glencairn and Douglas were again sent to London, to ask for a modification of the conditions; the war between France and England was on the point of breaking out; if England was occupied with so powerful an antagonist, they would feel more safe in their resistance.

The ambassadors went and returned. They had found Henry perseveringly moderate—insisting only on essentials, and ready to admit any terms which left the central resolutions unaffected. They left Edinburgh in the beginning of May; at the beginning of June their report was presented to their Parliament; and the French Court being at the moment unable to send a force to assist them in repelling an invasion, and there being no longer any excuse for delay, the Cardinal, with the extreme French party, held aloof from the discussion, foreseeing that, under existing circumstances, they would not carry their point.

²⁶⁹*Sadler Papers*, vol. i. pp. 190, 191. The Laird of Drumlanrig, who was present, and had promised to inform the Warden of the Marches of the temper of the meeting, said that 'There was so much falsehood and inconstancy among the lords, that such agreement as they determined and made one day they would break the same the next day; so that by reason of their falsehood so often determining and changing their purpose, he would not take upon him to write any news to the Warden.'—*State Papers*, vol. v. p. 286.

There was 'much bickering;' but the alternative of peace or war lay before them in all its harshness. The Catholic fanatics had absented themselves, and the preliminaries of a treaty upon Henry's terms, but with some unimportant reservations, were at last agreed on. The attitude of the opposition gave strength to the peace party; and, as a check on Beton, the Earl of Angus, Lord Maxwell, and others of the Solway prisoners, pledged themselves by a bond to prevent the renewal of the war, to secure the person of the Queen, and, if she were carried off to the Continent by her mother, to be true to Henry, and to acknowledge no government which had not received his sanction. Arran having wavered back to the English side, they promised to support him so long as he remained with them. If the Cardinal, either by assistance from abroad or by intrigues at home, recovered his control in the administration, they would pay him no obedience, and either see the treaty fulfilled or assist in annexing the whole country south of the Forth to the English dominions.²⁷⁰

The sky seemed at last to have cleared. The Regent, though not venturing on Henry's stronger remedy, 'conferred' with Sadler on the prosecution of the Cardinal and Lennox. The favourable resolution of the Parliament was communicated to England; and in conformity with it the two treaties—a treaty of peace, and a treaty for the marriage of the Prince of Wales and the Queen—were immediately drawn.

The former bound the two countries to an alliance during the lives of the reigning sovereigns, and for one year after the death of either. For that time England was not to make war on Scotland, nor Scotland make war on England, upon any pretext; and should either of the two countries be invaded by a foreign power, whatever it might be, temporal or spiritual, even though it called itself the supreme head of Christendom, no assistance was to be given by the subjects of the other, private or public, direct or indirect. The treaty should be observed faithfully and honourably, and was not to be evaded on pretence of ecclesiastical censures or sentences.²⁷¹ The debateable land on the Border was not to continue a sanctuary for felons and traitors;

²⁷⁰If there happen any division or trouble to arise in Scotland by practice of the Cardinal, kirkmen, France, or otherwise, we shall stick and adhere only to the King's Majesty's service [until such time] as his Highness may attain these things now pacted and covenanted, or at the least the dominion on this side of the Firth.'—*State Papers*, vol. v, p. 319. The form was sent from England.

²⁷¹A reference to the Pope's Bull of Deposition.

they should be arrested, by the consent and assistance of both Governments, which thenceforward should co-operate honourably and firmly in defence of order and quiet.²⁷²

No conditions could have been more desirable or just; but the hope of the observance of them lay in the accomplishment of the treaty of marriage. The terms which had been conceded on this point have been already stated. The Queen was to remain with her mother till she was ten years of age; and six noblemen were to be required as her securities. If children followed from the connection, and the Crowns were united, the laws and the name of Scotland were rationally and sufficiently guaranteed. If the Queen, should be left a widow without issue, she would return free and unencumbered to her separate kingdom.

To these obligations Henry set his hand at Greenwich on the 1st of July. Sir George Douglas and the Earl of Glencairn signed for Scotland, and forthwith returned to Edinburgh to obtain the formal ratification of the Scotch Parliament. It remained to be seen if Beton would still sit by passively, or at the last moment make another effort. His policy in the past month had been to ignore the assembly at Edinburgh as a faction, and to refuse to recognize any decision as legal to which the clergy had not given their sanction. But force only could give weight to his opposition. He had again written for assistance to Francis; and the importance of the crisis had produced the desired effect. On the 30th of June, while the treaties were on the point of completion in England, Sadler reported the presence of sixteen French ships of war on the coast of Aberdeen. They had brought with them money, arms, and artillery. Several thousand men were said to be on board, and to be waiting for directions from the Cardinal on the point at which they were to land. They were to remain as the nucleus of a Catholic army, or to carry off the Queen, as Mary of Guise and her advisers should direct.²⁷³ Six days after, when the ambassadors were known to have returned from Greenwich, the Romanist lords, the abbots, and bishops were assembled in council at St Andrew's. The Regent was denounced as a heretic and a traitor. It was agreed that the noblemen and gentlemen who were within reach of the Bor-

²⁷²RYMER, vol. vi. part 3, p. 93. The treaty was not to extend to the lordship of Lorn in Scotland, nor to the Isle of Lundy. Lorn was notoriously the haunt of outlaws and marauders, and Lundy, after De Valle's followers were destroyed, seems to have been occupied by a fresh gang of French and Scotch pirates.

²⁷³*Sadler Papers*, vol. i. pp. 225, 226, &c.

der should immediately carry forays into Northumberland, and exasperating the English into retaliation, compel a war in the teeth of the Government,²⁷⁴ while Lennox, Huntly, Argyle, Murray, and the Cardinal himself should disperse to raise their powers, and again meet at Stirling on the 20th of July.²⁷⁵ So hot had grown the war fever of the fiery churchman, that he was said to have threatened to challenge an English knight, Sir Ralph Evers, to single combat; and, although there was a doubt whether report was telling the truth, yet a message, professedly in Beton's name, was brought to Berwick; while Evers, in reply, signified his entire pleasure at the prospect which was opened to him, and offered, sooner than balk the Cardinal's wishes, to go to Edinburgh to meet him.²⁷⁶

The wild humours gathered rapid strength. The appeal from the Parliament to the nation, based as it was upon the antipathy of centuries, was fatally successful; and Holy Church and freedom became a popular war-cry. 'Such malicious and spiteful people,' Sir Ralph Sadler wrote bitterly, 'live not in the world as is the common people of this realm, specially towards Englishmen.' He was himself shot at in the garden of his house at Edinburgh; and he was advised, if he did not wish to be murdered, to take refuge in Tantallon Castle. 'What will follow,' he said, 'God knoweth; for undoubtedly there is great appearance of mischief.' From England only came hope or comfort. Misfortune in the shape of six English cruisers, had overtaken the French fleet. Two of the enemy's ships were taken, three were driven back to France, eleven only crawled into the Forth, having suffered so severely as to make their retreat desirable as soon as the sea was open. With the details of the action Henry sent a thousand pounds to Arran, and a promise of help in men and money at any moment that he desired it. He urged him to energy. He advised that without delay the Cardinal and his party should be proclaimed traitors; and if any of them fell into his hands, that, profiting by experience, 'he would so bestow them' where they could give no more anxiety; espe-

²⁷⁴The Cardinal hath not only stirred almost the whole realm against the governor, but also hath procured the Earl Bothwell, the Lord Hume, the Lord of Buccleugh, the Laird of Seaford, and the Kers, which be wholly addict unto him, to stir all the mischief and trouble they can on the Borders, and make raids and incursions into England only of intent to break the peace and to breed contention between the realms.'—Sadler to Lord Parr: *State Papers*, vol. v. p. 321.

²⁷⁵*Sadler Papers*, vol. i. p. 233, &c.

²⁷⁶*State Papers*, vol. v. p. 323.

cially he urged the necessity of securing the Queen's person, and removing her from the indefensible palace of Linlithgow to some safer residence.²⁷⁷

But Arran had the vice, so rare in a Scotchman, of weakness. The necessity for action paralyzed in him the power to act. He issued proclamations. He talked of raising twenty thousand men. He would bring the Queen into Blackness. He would meet the Cardinal in the field. But meanwhile, he did no one of these things. He sat still, and waited upon events, and laboured to inflict his own inaction on the English. He even implored Henry, if the Borders were wasted, to bear with it, and abstain from punishing the invaders. 'Tell him,' wrote Henry to his ambassador, 'that we shall so chastise those Borderers as with our advice he may plant others in their places; and for this purpose we have written to our cousin of Suffolk and our Lord Warden of the Marches.' But the temper of steel could not be transfused into lead. The Regent waited on, and the event came. Henry's ships might sweep the seas, the Buccleughs and the Kers might be cowed by the English troops at Berwick, but in Scotland the power of action was with Beton. The gathering at Stirling was accomplished. While the Regent talked Linlithgow was surrounded, the Queen was secured by his rivals, and transported to their stronghold. As soon as he had lost the ability to interfere, Arran was contemptuously invited to allow her to remain in a national fortress, and under national guardianship. He consented with an affectation of pleasure. The Parliament might indorse alliances and issue proclamations, the strength of the country was with the faction in revolt. The Catholic nobles, confident of victory, now signified their insolent readiness to allow a treaty which they might observe at their convenience or violate at their will; and while the Wardens of the English Marches were proclaiming peace, they were planning forays on the scale of invasions, to rekindle the war.²⁷⁸

On the news of this last misfortune Henry's patience was exhausted. He sent his thanks to the Regent for the services which he had intended to perform. Five thousand men, he said, were in readiness on the Borders. They would enter Scotland, and unite with himself and with the Douglasses, whom he called on to fulfil their pledges. If those should be insufficient 'to daunt the Cardinal,'

²⁷⁷*Sadler Papers*, vol. i. p. 238, &c.

²⁷⁸*State Papers*, vol. v. pp. 328, 329.

he 'would prepare a greater furniture to suppress his malice.' He assured the governor that, in case the Queen was taken to France, 'and otherwise disposed of in marriage,' he would advance the English Border to Edinburgh forthwith, and by force of title and superiority make the Earl of Arran King of Scotland beyond the Forth. 'Twice,' he warned those who had called themselves his friends, 'they had been deluded by the Cardinal—once in his own deliverance, and, again, in the seizure of the Queen; let them beware a third time.' It was wise and honourable to avoid bloodshed, as long as peace was possible; but he would have them understand that if Beton was to rule in Scotland, the nation to the last man should smart for it; and, as a final resource, he recommended a secret and resolute effort to seize Stirling and the insolent churchman in person.²⁷⁹

Henry understood at last the disposition of the people. His chief mistake was in overrating the power of the Douglasses and his other supporters, and in believing that at the last extremity they would take part with him against their country. Sadler, replying to this letter, assured him that five thousand men would be worse than useless. If he intended to conquer Scotland, he must trust for the work to English hands. If his so-called friends kept their promises, they had not a tenant, they had not a follower who, on the first news that an English army had passed the Border, would not hasten to the Cardinal. But in fact, he trusted neither them nor the Regent. They were playing, so he now thought, in his impatience, on Henry's credulity, and were serious only in their anxiety for his money. He advised Henry to stay his liberality, and in the treachery which he saw around him he could console himself with the English reflection, 'that though plainness and truth were oftentimes abused with subtlety and falsehood, yet in the end alway truth triumphed, when falsehood should take reproach.'²⁸⁰

To the present conclusion the tide had been setting from the moment of the return of the prisoners. Then, and throughout the history of Henry's transactions with Scotland, the professions were all of one kind, the actions of another. The Cardinal and the queen-mother had been among the loudest in their protests of anxiety for the English alliance. The lords who perhaps sincerely desired it were as inconstant

²⁷⁹ Henry VIII. to Sir Ralph Sadler: *Sadler Papers*, vol. i. p. 246.

²⁸⁰ *Sadler Papers*, vol. i p. 262.

in their conduct as Beton and Mary of Guise were false in their declarations.

So entirely had the leading statesmen accustomed themselves to treat words as convenient counters, that, in the face of the attitude of defiance which the nation had assumed, it is no matter of surprise to us to find the Scotch Parliament, within a few days of Sadler's last despairing letter, ratifying in form the treaties of Greenwich. The reluctance ceased from the moment that the Queen was secure in Stirling. A convention of the nation sat in August, at which, though the Cardinal did not appear, the majority of the nobles were present; and so slight a thing it seemed to bind themselves to verbal promises, that in the name and presence of the three Estates of the realm, tho Earl of Arran swore before the English ambassador to observe the terms of peace and the conditions of the marriage contract.

The imbecility of the Regent discourages an attempt to interpret his conduct. He professed to believe that Beton would acquiesce; and the day which followed the signature he went in person to St Andrew's, as he pretended, to obtain his consent. But Angus, Glencairn, and Cassilis affected no such delusion. They understood and acknowledged the empty hollow of the ratification; they regretted too sadly that they had dissuaded Henry from entering Scotland in force after Solway. They scattered to their homes, to collect their strength, and to stand on their own defence, while Arran, on reaching St Andrew's, found that the Cardinal would neither see nor communicate with him: and he vented his ineffectual spleen in proclaiming his own and Scotland's master a traitor.

On the 25th of August the Regent had expressed his belief that Beton 'would prove an honest man to his Majesty of England' and to his country: on the 28th he denounced him as a public enemy. On the 3rd of September there was one more change, and the bubble finally burst. The Cardinal was more courteous than he had seemed. In return for the Regent's visit, Sir John Campbell of Lundy presented himself at Holyrood, and, after a secret interview, Arran in a few hours was once more on the road to his spiritual father's palace, not any more to persuade him to accept the treaty, not to arrest him for treason, but to ask pardon at his feet, of God and Holy Church, for his own delinquencies. His attitude was now satisfactory: he was welcomed as a returned prodigal. After confessing his offences in having given encouragement to heresy, he was absolved and taken back into

the Church. The Cardinal had won the battle, and Scotland was again united.

The reconciliation, which was intended to secure the independence of the country, was immediately marked by a public assertion of it. A proclamation was sent out that the infant Queen would forthwith be crowned at Stirling. A council of state was chosen, under the presidency of the queen-mother, in which, as an evidence of the return of unanimity, a seat was offered to the Earl of Angus; and the English ambassador, in danger of his life, dared not appear outside his doors. 'I assure you,' he wrote at this crisis to a friend, 'there was never so noble a prince's servant as I am so evil entreated as I am, among these unreasonable people; nor I think never man had to do with so rude, so inconstant, and beastly a nation as this is. They neither esteem the honour of their country nor their own honesty, nor yet—which they ought principally to do—their duty to God, and love and charity to their Christian brethren.'²⁸¹ The Cardinal returned in triumph to the capital. Instead of the hostages which were promised in the treaty, Henry was insolently told that he might accept, if he pleased, the Solway prisoners, who were on their parole to return. His hopes, a few months before so sanguine, were gone like a dream. His forbearance had been scorned; his credulity had been trifled with. The intrigues of the Papacy, working on a misguided patriotism, had baffled a policy as farsighted as it was generous. Scotland was once more an enemy, and as an enemy it must expect to be dealt with.

The King's first anxiety was for Sir Ralph Sadler, who, he feared, might share the fate of Somerset Herald. To prevent this, or any similar catastrophe, he addressed a few words of warning to the citizens of Edinburgh. 'Being advertised,' he said, 'that our ambassador resident in that town has of late been menaced to be violently and extremely handled, contrary to all law of reason, nature, and humanity, and forasmuch as the injury done to an ambassador hath ever been accounted, among all Christian men, of so high a nature as it was never left unpunished and revenged, we have thought good to admonish you to beware and eschew that outrage whereby ye might worthily provoke our extreme displeasure, and to forbear that attemptate, not only for the detestation of it in all men's ears, but also for fear of the revenge of our sword to extend to that town and commonalty, to the

²⁸¹ Sadler to Lord Parr: *State Papers*, vol. v. p. 535.

extermination of you to the third and fourth generation.²⁸² The menace was brief; but it was to the purpose, and would secure Sadler's safety.

For the rest, the King would waste no more time in recrimination or argument. 'When words and writings confirmed solemnly by oath would not serve,' he said, 'such unfaithful people must be constrained to know their duties.' He sent orders to Berwick for ten thousand men at once to enter Scotland, and, if possible, to march on the capital. It was the middle of September, and in favourable weather there would have been still a month for active operations. But the autumn had been rainy; the roads were impracticable for the movements of so large a force; and on the representation of Sir Thomas Wharton, Sir Ralph Evers, and others, the invasion was postponed to the spring.²⁸³ The Cardinal had the winter before him to prepare, and as falsehood cost him nothing, he thought it worth his while to practise even further with English simplicity. After making various efforts to obtain a private audience, he at last secured the English ambassador alone, and expressed his deep regret that he should have offended the King. His conduct had been misunderstood; his motives had been misrepresented. There was no prince in the world, he said, whose favour he desired so much as the King's Majesty's; and no one in Scotland would do more than than he would do, saving his allegiance, to further the wishes of the English Government. If his own persuasions could effect anything, the whole nobility and clergy of the realm should concur in the execution of the treaties.²⁸⁴

But he might have spared himself a renewal of dissimulation. England was now at war with France, and the Scotch had already begun to take an active part in the hostilities. Cruisers with mixed crews from the two countries were infesting the Channel. Forays, as usual, had commenced along the Borders. The King replied peremptorily that he had heard the last of fair words. If the Scots again desired to treat with him, Beton and Arran, as a first condition, must he delivered into his hands, or at least deposed from power, and the Government must be made over to a council composed as he would himself

²⁸² King Henry VIII. to the Citizens of Edinburgh: *State Papers*, vol. v. p. 334.

²⁸³ *State Papers*, vol. v. p. 340.

²⁸⁴ Sadler to the Duke of Suffolk: *Sadler Papers*, vol. i. pp. 306-7.

direct.²⁸⁵ Events therefore went their natural course. The promised legate, Marco Grimayni, arrived from Rome with the Pope's blessings and encouragements; and rumour added that Reginald Pole was to follow him with money and four thousand men.²⁸⁶ In connection with the legate arrived a French ambassador, with ammunition and money.²⁸⁷ The prisoners of Solway receiving easy absolution, it may be presumed, for their perjury, broke their oaths, and refused to return to England. The Council of Constance, they were assured by the Cardinal, had decreed that no good Catholic was bound by a promise to a heretic,²⁸⁸ and, out of three noble exceptions who refused the discreditable subterfuge, one only was enabled to save the fame of Scotland by observing his parole. Lord Maxwell and Lord Somerville, who would have surrendered had they been able, were arrested and imprisoned; the Earl of Cassilis presented himself singly in London, and the King, 'to the intent that all might know that he had an esteem for virtue,' refused to allow him to suffer for his constancy, and sent him back with honour and reward.²⁸⁹ The reputation of the house of Angus, which had suffered through the instability of Sir George Douglas, was redeemed in a degree by his son, the Master of Morton,²⁹⁰ who refused to submit to the Cardinal, and held the donjon-keep of Dalkeith Castle against him till he was starved into surrender. But the resistance was almost single. The people had forgotten their sufferings, and were again French. England, it was said, would betray them into subjection. France required only friendship, and would respect their national freedom.²⁹¹ Sadler's presence was no longer tolerated. He withdrew to Tantallon, and thence across the Border;

²⁸⁵Sadler to Suffolk and Parr: *Sadler Papers*, vol. i. p. 312.

²⁸⁶Harvel to Henry VIII.: *State Papers*, vol. ix. p. 546.

²⁸⁷*Sadler Papers*, vol. i. pp. 313, 314.

²⁸⁸Buchanan.

²⁸⁹Buchanan.

²⁹⁰Known in later years as the Regent Morton.

²⁹¹Assuring your lordships that, as far as I can see, the whole body of the realm is inclined to France; for they do consider and say that France requireth nothing of them but friendship, and would they should continue and maintain the honour and liberty of their realm, which of themselves they naturally do covet and desire; whereas, on the other side, England, they say, seeketh nothing else but to bring them to subjection, and to have superiority and dominion over them: which universally they do so detest and abhor as in my poor opinion they will never be brought into it but by force. And though such noblemen as pretend to be the King's Majesty's friends here could be contented, as they say, that his Majesty had the superiority of this realm, yet I assure your lordships, to say as I think, there is not one of them that

and Beton, confident in the turn of popular feeling, in the promise from France of six thousand troops, and of unlimited funds for the ensuing year,²⁹² once more summoned a Parliament. It met the first week in December, with its full number and an entire unanimity. The first Act was to grant an indemnity for the irregular seizure of the Queen's person and the armed gathering at Stirling.²⁹³ A few days later the treaties with England were declared annulled; the French alliance was renewed on terms of the closest amity; and the tide of reaction sweeping steadily back, Arran was compelled to repeat in public the recantation which he had made to the Cardinal. The permission for the use of the Bible was withdrawn; and on the 15th of December 'the Lord Grovernour caused to be shewn and proponed in full Parliament how there was great rumour that heretics more and more rose and spread within the realm, sowing damnable opinions, contrary to the faith and laws of Holy Church; exhorting therefore all prelates and ordinaries, ilk ane within his own diocese, to inquire upon all such manner of persons, and proceed against them according to the laws of Holy Church.'²⁹⁴

So closed the year—the King of England being compelled for the present to stand still and see the web unravelled which he had wrought so laboriously. He could do nothing; and could only signify, in a general manner, his sense of the conduct of the Scottish people. The day after Arran's declaration against the Protestants an English herald appeared in Edinburgh, and delivered to the Parliament, perhaps in person, a message in the following words:—

'The most excellent, most high, and mighty prince, my most redoubted sovereign Henry the Eighth, by the Grace of God King of England, France and Ireland, and in earth the Supreme Head of the Churches of England and Ireland, hath given me charge and commandment to declare unto you as followeth:

'First, how his Majesty, being in war with you upon provocation of your late sovereign deceased, and having by his death, and victory given by the hand of God upon such as attempted the invasion of his Majesty's realm, a great opportunity to prosecute the same wars, to the confusion and extermination of such as would have presumed to

hath two servants or friends that is of the same mind, or would take their parts in that behalf.'—Sadler to the Privy Council: *Sadler Papers*, vol. i. p. 326.

²⁹²*Sadler Papers*, vol. i. p. 338.

²⁹³*Acts of the Scotch Parliament*, December 3, 1543.

²⁹⁴*Ibid.* December 15.

withstand his force, hath been content—in respect of his pronepte, and upon such a suit as hath been made unto his Highness with a visage and countenance hitherto of humility, due reverence, and submission—to do all things that should tend to the conservation of your lady and mistress; to lay aside armour and puissance, and to enter communication and treaty with you, with conclusion to place his pronepte in marriage with the noble prince his Majesty's eldest son and heir apparent, Prince Edward; and in the mean time and after to live in peace, rest, and quiet with you. To which covenant ye have agreed and consented. This ye have all promised. To this ye have all by the governour sworn. This ye have ratified. Only there resteth that, like true men to God and their word, like those that should have respect to honour and loyalty, like those that should more regard the wealth of their mistress than your own affections, ye should duly observe and keep that ye have bargained and promised. Ye should remember with whom ye have covenanted, and to whose commodity and benefit the covenant tendeth. Ye have covenanted with a prince of honour, that will not suffer your disloyalty unpunished and unrevenged; whose power and puissance, by God's grace, is and shall be sufficient against you to make you know and feel your own faults and offences. Ye have covenanted for the wealth of your mistress and the poor commons, to whose great detriment your follies and perverse fancies, if ye observe not your pacts, shall chiefly redound. For as, by the peace and marriage covenanted and agreed, the realm shall be preserved to the behoof of your mistress, and the commons live in quiet, to their great wealth and benefit, so, contrarywise, by your unfaithfulness ye shall destroy that your mistress should enjoy, and be cause and occasion whereby the goods of the poor commons shall be wasted and spoiled at home, and their intercourse letted in outward parts. If ye set more by a little gain, or promise of gain, out of France than by your own honour, if ye care more for the maintenance of the Cardinal's appetites and affections than for the observation of your faith and loyalty, yet fear the hand of God over you—fear the power of a prince able to daunt you—fear, you that take upon you to be rulers, the understanding of your own people, who, perceiving your abuses to their confusion, shall not endure them—fear the number of such as be honest among you, that shall not endure to continue in that public shame with you. For your conspiracy in so vil a quarrel cannot continue long, and the Devil cannot be author of unity, but

discord. Wherefore the King's Majesty, with prudent considerations, admonisheth you to avoid the dangers of your own misdemeanour, and, with princely courage, signifieth unto you in what sort he mindeth to prosecute the same, and willeth me thus to close up my message unto you.

'If ye do like noblemen, and observe your covenants, laying in such hostages as ye have promised, ye shall be mercifully received and benignly handled.

'If ye do follow and persevere in your conjurations already commenced to the contrary, the quarrel of truth and honour shall be with force and puissance so maintained against you as shall, with God's help, be shortly to your confusion.

'If, in the prosecution of such as be the authors and causers of the mischief, the innocent shall suffer, the King's Majesty will be sorry

'If such as mislike the conspiracy shall use any ways or means to declare their own dissevering from the rest, the King's Majesty shall be glad to know them and spare them, and help their deliverance from inconvenients.

'To this message I ask answer within four days; after which time, if ye say nothing, your silence must be construed for the worst answer ye could devise.'²⁹⁵

The reply was war, whether given in words or tacitly conveyed in acts. Once more Scotland dared the fortune of arms, and nestled behind the shield of France.

While this long episode was in progress, the European quarrel had developed itself, and England had been drawn into the stream. I have already explained the difficulty which for a time brought the treaty with the Empire to a stand. In the form which Henry desired, and which, as we have seen, he had also prescribed to the Scots, the two powers were to declare themselves enemies to each other's enemies, whether spiritual or temporal. The Emperor objected that the claim might compel him to commit parricide in declaring war against the Pope. Henry protested against an exception which would allow Charles to stand neutral or join with his enemies, should Paul find instruments to invade England. Circumstances were rapidly bringing the Emperor to endure the difficulty from which he could free himself by a refusal to act at the moment of extremity; but, in the mean time, counteracting policies, both in the French and

²⁹⁵Message of the English Herald to the Scots: *State Papers*, vol. v. p. 350.

English Courts, combined to delay the conclusion. In Paris the Queen of Navarre, the Admiral de Bryon, and the Cardinal du Bellay, desired peace with England and war with the Empire. The Constable Montmorency, the Duke of Guise, M. d'Annebault, and the Cardinal Tournon were at once Romanists and Imperialists, who would gladly see a union among the Catholic powers, and a religious war against heresy. In England analogous parties were contending for supremacy. Gardiner and Bonner looked to an alliance with Charles as their own security against the Protestants. The Duke of Norfolk and his family, for reasons not easy to penetrate, were in the interest of France. Gardiner was the personal enemy of Marillac, the French ambassador. The Duke of Norfolk and his brother, Lord William Howard, were in the habit of paying mysterious midnight visits to the ambassador's house on Tower Hill, and never ceased to labour for the Orleans marriage.²⁹⁶ The Howards were out of favour at the Court in consequence of the discoveries which accompanied the exposure of the late Queen's misconduct, and it is certain that they were dissatisfied with the private policy of the kingdom; while Marillac was notorious as an adherent of the Papacy, and belonged to a third French party, opposed to the Empire, but opposed equally to the Queen of Navarre. The situation is too intricate to be explained with the existing materials; and it is of the less importance, since—although it was not, perhaps, without its effect at the time—another singular incident neutralized at the same moment the Norfolk influence.

The speculations on the succession to the crown had " for some time past been succeeded by speculations on the regency. The Prince

²⁹⁶ John Torre saith that at such times as Marillac was ambassador here for France, this examine upon occasion that he had long dwelt in France did often resort to the said Marillac; and because this examine used always, in his communications as well with the said Marillac as with his secretary, to declare himself much addressed to the French party, they would often open their minds to him. And the said Marillac's secretary told him that, though there were wars against France, yet should the French King have friends in England, for he hath friends for his money in every country; as also the secretary told him that a woman, whom the said Marillac did keep, had almost marred all, for she being in his house continually did see such as came secretly to his house by night or early in the morning; and being examined whether he had heard any of their names, he saith that Marillac's secretary told him that my Lord of Norfolk and my Lord William Howard did use to come thither by night divers times.—Deposition of John Torre: *MS. State Paper Office, Domestic*, vol. xix.

was likely to live, but the King grew yearly more infirm. His death was certainly at no great distance; and who was to govern England during the minority? Lord Hertford was most likely to be named. He was the prince's uncle—able and ambitious. But Hertford, though of respectable family, was one of 'the new-raised men'—in patrician eyes, an upstart insolent, little better than a Cromwell; and for Hertford to be playing the part of a sovereign was a thought which, to the nobles of the old blood, was intolerable. The young Lord Surrey especially found the prospect unpleasant to him; and, although the full extent of his imaginations remained for three years longer concealed, an accident in the present winter made it known that he was encouraging perilous expectations.

In the middle of January a party of gentlemen, of whom Surrey was one, amused the long hours of a winter night by a riot in London. They paraded the streets with 'stone bows'—they broke the windows of houses and churches, and shot 'pellets' among 'the queans upon the Bankside.' After these and other proceedings of imperfect propriety, they disappeared among the unlighted alleys of the City. They escaped detection for the night. In the morning they were traced to the house of a certain Master Arundel, in Laurence-lane.²⁹⁷ Their names were taken, and the rank of the offenders led to an inquiry by the privy council. The immediate matter was no more than a pardonable frolic; but the examination of the witnesses, especially of Mrs Arundel's servants, showed that Surrey allowed himself to be regarded by his friends as more than the hero of a midnight disturbance.²⁹⁸ Sur-

²⁹⁷The lane which ran down from the south side of Laurence Poultny-church-yard, now known as Laurence Pountney lane.—See Stowe's *Survey of London*, p. 84

²⁹⁸A meat dealer from the City, examined, deposed that on the 19th of January a maiden servant of one Arundel, of St Laurence-lane, came to him and complained of the meat which had been furnished to her master. She desired 'that at all times she might be serv'ed of the best, for she said that peers of the realm should eat thereof, and besides that a prince.' 'Deponent asked what prince that should be? She answered, the Earl of Surrey. Unto whom deponent said that he was no prince, but a nobleman of honour, and of more honour like to be. Then she said yes; and if aught other than good should become of the King, he is like to be King. Unto whom deponent said, it is not so. said she, it is said so.'" Mistress Arundel, examined, said that the Earl of Surrey and other young noblemen frequented her house, eating meat in Lent, and committing other misdemeanors.' 'Further, she saith, how at Candlemas they went out with stone bows at nine o'clock at night, and did not come back till past midnight, and the next day there was a great clamour of the breaking of many glass windows both of houses and churches, and shooting at men that night in the street; and the voice was that those hurts were done by my lord and his company.

rey in past years had been a favourite with Henry. An arrest and an admonition were considered an adequate punishment for an act of folly; and he was acquitted of responsibility for the language of others. But conduct which, under any interpretation, was discreditable, added to the cloud over the family; and Norfolk could effect but little in the direction of English policy.

Events dragged on, therefore, in uncertainty. Francis varied as his moods swayed him. In his interviews with the English ambassador he was alternately overflowing with passion and expressing the utmost anxiety for Henry's friendship.²⁹⁹ At one time he admitted his debts by desiring to compromise them; at another he would declare that Henry had broken the conditions, and had no claims upon him. In his first disappointment at the disaster on the Solway he instructed Marillac to attempt to rearrange his relations with the English Government.³⁰⁰ Henry replied that he was ready to meet him in any reasonable agreement; but the money question could not be postponed. He sent in a formal schedule of his claims, with copies of the obligations by which Francis had bound himself, and refused to allow any settlement short of an honest payment. He dilated naturally on the behaviour of the French in Scotland. French pirates were hanging about his coasts in fleets; and at that very moment when the French Government were professing a desire for conciliation, they were permitting Scotch cruisers to seize English merchant-ships as they lay at anchor in their harbours under the guns of their forts. If Francis desired a reconciliation, he must alter his conduct as well as his words. If he intended to act as a friend, he had better recall Marillac, and send over some more temperate minister.³⁰¹

Weary of listening to language with which conduct was in perpetual contradiction, Henry had learnt the necessity of replying to acts by acts. While Francis was debating his answer to this message,

Whereupon she gave commandment unto all her house that they should say nothing of my lord's going out in form specified. Item, she said, that that night or the night before they used the same stone bows, rowing on the Thames; and Thomas Clear told her how they shot at the queans on the Bankside. Mistress Arundel also, looking one day at Lord Surrey's arms, said the arms were very like the King's arms, and said further, she thought he would be King, if aught but good happened to the King and prince."—*MS. State Paper Office, Domestic*, vol. xiv.

²⁹⁹*State Papers*, vol. ix. p. 246, &c.

³⁰⁰Paget to Henry VIII.: *State Papers*, vol. ix. p. 271; passage in cypher.

³⁰¹The Privy Council to Paget: *ibid.* p. 277.

listening in the morning to d'Annebault, in the evening to Margaret of Navarre, he took the pirate difficulty again into his own hands. French ships, calling themselves traders, had pillaged English fishing-smacks, and were caught red-handed, with the stolen nets and lines on board. Remonstrances had brought no redress, and the Portsmouth fleet again dashed out and seized a number of the offenders, condemned the vessels, and threw the crews into prison. Circumstances thus came to the assistance of the irresolution of the French King. The war-party were allowed to retaliate; and orders were sent out to arrest all English merchantmen in every part of France. Sir William Paget demanded the meaning of so violent a measure. Cardinal Tournon, in the name of the council, replied by taking the cause of the pirates. The fishermen who had been robbed were interested parties. Their oaths and the recognition of their property were no evidence. The English had commenced the injury; if they desired reparation, they must set the example also. Paget became violent.³⁰² Tournon encouraged by contemptuous indifference the spirit which he wished to rouse. Henry supported his minister. He required an instant release of the ships. He approved entirely of Paget's language and attitude. His subjects should not be injured; and if the French Government desired war, they had better declare themselves enemies.³⁰³

By this time the fire was kindled. 'There was not a child in France but had war with England in his mouth.'³⁰⁴ The council met at Fontainebleau, and Paget presented his master's message. Tournon affected this time some kind of moderation, and suggested an appointment of commissions to examine the grounds of quarrel. But d'Annebault took the words out of his mouth. 'Methinks,' he said, smiling in scorn, 'you declare a rupture of war against us. If the King my master would have believed some of us, we should have begun with you long ere this, for you have given many good

³⁰² Indeed, sire, to tell you the truth, I swore an oath or two, and with his wilful answers I was somewhat chafed, saying, 'Why think you to have my master in bondage, and will make him do as you list; and in case such order be taken with your ships as pleaseth you, then our ships shall be released, and if the order shall not like you, then our ships shall tarry still?' For the passion of God, look better to this thing, both for the quietness of the realm and the safeguard of your honour.'—Paget to Henry VIII.: *State Papers*, vol. ix. p. 298.

³⁰³ Ibid. p. 305.

³⁰⁴ Paget to Henry VIII.: *State Papers*, vol. ix. p. 303.

occasions; but no man can put it out of his head that the King your master loveth him in his heart naturally. If you be disposed to begin with us, you shall find us ready, and not unprovided, to receive Emperor, Turk, Soldan, and all the devils in hell if they come.³⁰⁵ It was ungracious to include so good a friend as Solymán in the possible list of enemies. But the French council would perhaps have been less peremptory, had they known that four days previously an alliance which they had believed impossible had been really accomplished. The difficulty of the terms had been overcome; the necessities of both England and the Empire had driven them to a compromise; and Henry had consented not to press Charles with an obnoxious word, if Charles on his part would accept the meaning of it when concealed under a general phrase. On the 11th of February a treaty had been concluded *contra Franciscum cum Turchâ confœderatum*—against Francis, the confederate of the Turk: painful subjects and painful reminiscences were declared to be buried; and the Emperor and the King of England, with their subjects of all degrees, were for ever after to be friends. The conditions which were agreed upon were so important in their consequences, that they require to be detailed in their fulness.

The contracting powers engaged that they would commit no act of hostility against each other, nor by aid or counsel encourage acts of hostility in others.

They would neither shelter nor assist each other's refugees, nor permit their subjects to shelter them: a refugee whose presence in either country was complained of should depart within fifteen days, under pain of death.

If England or Ireland, the Isle of Wight, the Isle of Man, the Channel Isles, the Marches of Guisnes and Calais, on the one hand, if Spain or the Low Countries, on the other, were invaded by any foreign enemy whatsoever, the two Governments bound themselves respectively to treat as an enemy both the invading power and any other power which might assist the enterprise by contribution of funds or otherwise.

If the invasion was made with a force exceeding ten thousand men, either Government, at the request of the party invaded, should send help within forty days, at its own expense; the aid to be furnished in men or money, as might be required, at the rate of seven hundred

³⁰⁵ Paget to Henry VIII.: *State Papers*, vol. ix. p. 306.

crowns a day: provided always that this liability should not be extended beyond four months in any one year.³⁰⁶ Should the subjects of either sovereign break the treaty by protecting refugees, by acts of piracy, or otherwise, the treaty itself should nevertheless remain in force. The special fault should be the subject of special inquiry; and the offenders should be punished without embroiling their Governments.

Letters of marque should not be granted in such cases for reprisals. The ancient commercial treaties should continue to be observed. If disputes arose under them they should be amicably settled.

*In case of war with France or any other power, neither England nor the Empire should treat separately either for peace or truce, except under certain narrow conditions especially defined.*³⁰⁷

Further (and here we trace the effect of the preliminary differences), it was agreed that the two powers would act towards one another honourably, uprightly, and faithfully; that they would do nothing either of them to the prejudice of the present treaty, especially (with a reassertion of the last condition) that no peace should be made with France unless with their joint consent, and unless both declared themselves satisfied: that the present treaty should be of such force as to override all others whatsoever into which they had entered or might enter at a future time: that neither prince should allow or entertain any confederate who should be the enemy of the other, or against whom that other had any outstanding claims unsettled.³⁰⁸

They were to swear, each on the word of a prince, and by oath upon the Gospels, to observe all the articles of their engagements *bonâ fide* and inviolably. If they broke faith they consented to be held infamous both by God and man. The treaty was to be taken in its plain and

³⁰⁶This article applied only to England, the Calais Pale, and the Low Countries. Spain and Ireland being more remote, the obligations of assistance were left undefined.

³⁰⁷*Sed mutuis et communicatis consiliis de pace et Treugis sive Induciis, nec nisi mutuo et communi consensu in aliquâ parte conditiones pacis Treugs sive Induciarum convenire possint. Proviso semper quod imminente necessitate obsidionis aut gravioris periculi liceat alterutri dictorum principum cum hoste communi de Treugis et Induciis temporalibus seorsim et separatim altero principe non consulto pacisci et convenire, ita tamen ut ultra duos menses hujusmodi Induciæ non contineant aut durent.*

³⁰⁸Cutting off Charles from the Pope on one side, and Henry from the German princes on the other.

obvious signification, 'without those subtleties or oblique interpretations which would, or which might, subvert the just understanding between the contracting princes.'

Henry had thus bound Charles down with as much solemnity and distinctness as words could bind him, to be true to his faith as a man and as a king, and not to avail himself of the evasions which the Pope, in the name of religion, might urge upon him. He was now satisfied and confident; and the treaty concluded with a resolution to present joint demands to Francis, in the following terms:—

'Forasmuch as the Turk, the inveterate enemy of the Christian name and faith, has invaded Christendom, trusting to the support of the King of France; and forasmuch as with the like encouragement the said Turk is now notoriously devising fresh enterprises, to the destruction of all good men, the high contracting powers do require the King of France to desist from his intelligence with the said Turk, to treat him as an enemy, and to recall his ambassadors now residing at that Court. The King of France shall make satisfaction for the injuries inflicted on Christian countries by invasions undertaken at his solicitation. He shall restore the town of Maran to the King of the Romans. He shall make good to the Emperor and to the German Diet all such sums of money as they have spent in the war with the Turk; and he shall cease to make war upon the Emperor, and shall leave him at leisure to watch over the defence of Christendom. He shall pay to the King of England those debts which he fraudulently withholds from him; and, as security for the future payment of the pensions to the King of England, he shall surrender and place in his hands the towns of Boulogne, Mottreul, Terouenne, and Ardres, with the country intervening and adjoining.'

If in fear of the punishment about to fall upon him, the King of France would treat for peace, and would consent to honourable conditions, those conditions should be accepted. But (in anticipation that Francis would offer concessions to one sovereign in order to divide him from the other) the contracting powers bound themselves further never to make peace till they mutually obtained that justice which they held to be their due, nor until they had considered in common the terms which he might propose.³⁰⁹ Should he return no

³⁰⁹The words must be carefully recollected: 'Nec aliter in ulla fœdera pacta conventiones Treugas Inducias cum eodem Gallorum Rege conveniet concordabit aut paciscetur eorum alter quam de communi et mutuo consensu eorundem, et donec

satisfactory answer within ten days of the presentation of the above demands, they would together declare war, and not desist therefrom until the Duchy of Burgundy should be restored to the Emperor, and England had recovered her ancient rights in Normandy and Guienne, and in the sovereignty of France. Finally, within a month of the declaration, the Imperial and English navies should unite to defend the narrow seas; and at some period within two years of the ratification of the treaty their armies, each not less than twenty-five thousand eight hundred strong, would together invade France.³¹⁰

Rumour had whispered on the Continent the possibility of such a treaty; but the events of the ten past years—the unpardoned, and, as was supposed, the unpardonable affront which Henry had offered to the Spanish nation; the attitude which Charles had so repeatedly been upon the point of assuming as the champion of the orthodox faith; the schemes of invasion so often discussed; the intrigues in Ireland, and with the English Catholics, added to the Emperor's own repeated declarations that he would ally himself to England only when England had returned to the Church—these things, in spite of warning symptoms, had forbidden the world to believe that such a combination could take effect until it was actually accomplished; and the consternation which the reality created when actually present, was proportioned to the previous incredulity. The friends and the enemies of the Papacy saw the consequences developing themselves before their imagination in the ruin of the powers which they loved or detested. Paul, in anticipation of the catastrophe, had bewailed 'the secret and impious councils'—'the new and deadly discords' which menaced the Church.³¹¹ The small scruple which had been raised over a word did not suffice to excuse an act which, construed most favourably, was a defiance of the Papal censures; and Charles, it was evidently believed at the moment, intended to follow the King of England to the full extent of disobedience. Those, on the other side, who dreaded the Turkish galleys for themselves, or Turkish seraglios for their wives and daughters, more than the possible

ne quousque utrique eorum de iis quæ speciatim exprimuntur fuerit ab eodem Gallorum Rege satisfactum.'

³¹⁰RYMER, vol. vi. part 3, p. 86.

³¹¹'Novas et exitiales discordias oriri, et quod omnium maxime abominandum occulta et impia consilia machinari vidit, quæ et concilium quemadmodum hactenus retardare, et totam Christianam rempublicam non sine gravissimâ omnium culpâ subvertere possint.'—Intimatio Concilii: *State Papers*, vol. ix. p. 225.

decrepitude of the See of Rome—those who wished well to rational freedom in Christendom—who would have Popish and Protestant fanatics alike crushed into moderation—rejoiced in an alliance which would punish the traitor who had opened the door of Europe to Solyman, and was a first step towards a popular council, where the new opinions could be reasonably considered. 'The Roman Bishop and clergy,' wrote the English resident at Venice to Henry, 'were consumed with sorrow and care, fearing their ruin;'³¹² but 'all good men,' he said, 'were beyond measure delighted.' The King of France 'had made himself odious with all men by his practices with the Turk;' and through all Northern Italy 'was an incredible desire and expectation to see his Majesty in arms against France, wherein men reckoned to consist the only hope, comfort, and safeguard of Christendom.'³¹³

Until the treaty had been ratified by the Emperor in person (which was done with all ceremony and solemnity in Spain, on the 31st of March), it was not publicly announced; but Paget was recalled from France; a secret of so much importance was virtually none; and Francis, who, like the rest of the world, had, in spite of his pretended suspicions, been really incredulous, was alarmed when the fact broke upon him, and regretted that he had been committed by his minister to extreme measures. Marillac was superseded in haste; as an evidence of pacific intentions, a mild and moderate successor, M. Dorthe, was sent over in his place; and when Paget appeared at Court to present his letters of revocation, they were received with the utmost unwillingness, and the King condescended to explanations and apologies. If any better motive could be imagined to have influenced Francis than fear of the coalition against him, and a desire

³¹²Ibid. p. 367.

³¹³*State Papers*, vol. ix. p. 361. The Catholic clergy were sensible of their danger even in a remote parish of an English county. 'Master Lovell, Priest of Sturminster parish in Dorsetshire, came by chance into an alehouse, where he sat in communication with two honest men of the wars between the Emperor and the King of France, and the Pope taking the King of France's part. Whereat he said he should have God's blessing and his that took the King of France's part and the Pope's, and wished himself to be under the Pope's feet to be sure of his Holy Father's blessing, and said if he had his blessing he cared not whose curse he had. For he said that he was sure that, if our Holy Father the Pope and the King of France, after their deaths, came not to heaven, that God is not in heaven; and that if our King's Grace and the Emperor, after their departing, went not to hell, the devil is not in hell.'—Miscellaneous Depositions: *Rolls House MS.* A 2, 30, fol. 29.

to separate the allies, his language in this interview would not be without interest. He was very sorry, he said, that Sir William Paget was going away. He 'perceived' that his own ambassador 'had not done his part, but had wrought passionately.' 'Howbeit,' he said, 'I trust and believe verily that my good brother—my best brother—my best beloved brother—will not let our public matters fall through for any private folly. Indeed, I cannot find in my heart to believe that my good brother will be my enemy.' The French alliance, he went on to urge, would be far more advantageous to England than the Imperial. If Henry joined the Emperor, he must spend money and be at war; if he remained by the side of France, it would cost him nothing, nor would there be any need for him to break with Charles. 'And what,' he added, 'if the Emperor and I join together, in what case is he then, if I will use extremity? If my brother will go with me, tell him I shall stick upon no money matters: he shall rule me as he list. For the ships, they be but trifles between him and me, and no great cause to part our friendship. He shall himself set therein what order he list; and so I pray you heartily to tell him.'³¹⁴

Three weeks before, such language would have prevented the rupture. It was now too late. Henry was bound by new engagements, which he was not at liberty to violate. Paget returned to England; and the formal requisitions which, would precede the war were prepared for delivery.

Meanwhile, the spring was coming on; and with the spring the Turks were expected before Vienna. Enormous preparations had notoriously been made at Constantinople. Unfortunately, but a slight preparation to meet them had been attempted in Germany. Ferdinand's disasters in the two preceding summers had roused no spirit of national gallantry. The Princes of the Empire were quarrelling among themselves, or were sitting still in obstinate despondency. It is remarkable that, at this great moment of peril, the 'religious' parties, properly so called, of both persuasions, were insensible to their immediate duty. Papists and Lutherans, alike passionately bent on doctrinal objects, left the defence of Europe to the allied powers, whom they both denounced as lukewarm and unchristian. The Elector and the Landgrave of Hesse were busy expelling Henry of Brunswick from his principality. The Duke of Cleves, now in alliance with Francis, was forcibly annexing the Duchy of Gueldres,

³¹⁴Paget to Henry VIII.: *State Papers*, vol. ix. p. 322.

a fief of the Empire, and was at war with the Netherlands. The diet met at Nuremberg on the 23rd of February; but few of the princes were present in person, and their representatives only assembled to quarrel. The Regent of Flanders desired them to mediate in the dispute with Cleves. Granvelle entreated for money and men for the Turkish war. But the name of the Turks was a weariness; and the war with France was a private quarrel of the Emperor. The Catholic princes were anxious rather to arrange a persecution of the Lutherans. The Lutherans, intolerant as their opponents of opinions which they considered heterodox, desired freedom of religion to the extent of their own liberality, and a reformation of the Chamber of the Empire—the supreme legal court of appeal, by which, as at present constituted, Protestant communities were made amenable to Catholic canons. When these matters had been attended to, and not till then, they would consider Granvelle's demands. In the mean time the Elector of Saxe sent assistance to his brother-in-law the Duke of Cleves;³¹⁵ and the Hungarians, worn out with suffering, were reported ready to acquiesce in destiny and submit to the Porte. The hopes of all moderate persons lay in the speedy arrival of Charles out of Spain; and the early summer, at the latest, was to find him in Germany. ³¹⁶ On his route he would pass through Italy, where it was expected that he was to hold an interview with the Pope, to urge on the Holy Father his forgotten duties; to warn him against encouraging Francis, or in deeper blindness mixing in the quarrel; to protest against any sudden convocation of a council, and to make palatable the English alliance, by holding out the delusive hope that Henry would return to his allegiance. ³¹⁷

A remonstrance was necessary if the Empire and the Papacy were to escape being forced into a rupture. Sleeping and waking, Paul had but the one idea before him, how best to destroy England; and Scot-

³¹⁵Mont to Henry VIII.: *State Papers*, vol. ix. pp. 331, 332.

³¹⁶*Nec spes est res Germanicas gravi scidio et partium studio scissas et convulsas componi posse nisi per ipsum Cæsarem Cæsaris æquitas et clementia omnium animos in bonam spem adducit et erigit. Nobiliores per Germaniam canonici non benefactis et piis studiis animos populi demereri student sed obstinatione et pervicaci superstitionum et abusuum propugnatione res laceras dissipare et magis exasperare student.*—Same to same: *ibid.* p. 321.

³¹⁷*State Papers*, vol. ix. p. 434.

land and France, the two present enemies of his great adversary, he was instinctively desirous to support.³¹⁸

The interview between the Pope and the Emperor took effect in June, apparently with beneficial results. Rumour, which had decided beforehand on the object of it, confirmed its anticipation with imaginary accounts of its details. But the secret on both sides was carefully kept, and if a record remains of the actual conversation, it lies among the unrevealed mysteries in the Vatican. Only this was certain, that Reginald Pole, who, with four thousand French and Germans, was about to proceed to Scotland to the assistance of Beton, was compelled to relinquish his intention; and the Emperor, after this outward evidence of loyalty to his engagements, began, at the close of the month, his eventful march into Germany.

Henry, on his side, had also given evidence of constancy. The appeal of Francis to Paget having failed, the English and Flemish heralds demanded access, in conformity with the treaty, to present their requisitions to the French Government. The permission was refused, and a separate note was in consequence submitted by the privy council to M. Dorthé. The condition of Europe, the advance of the Turks, and the peril which the ambition of the King of France had occasioned to the whole Christian faith, had determined the King of England, they said, in connection with the Emperor, to insist on the relinquishment of his shameful and ungodly alliance. Individually they had to complain of unpaid debts; of breach of treaty in the maintenance of English traitors; of intrigues in Scotland, both under the late King and since his death, to keep alive an unmeaning and mischievous hostility; of the seizure of the English merchant-ships in their harbours; and the arrest of English subjects resident in France.³¹⁹ For their particular injuries they required reparation, with security for the future payment of the pensions, and for a cessation of their vexatious interference with their neighbours; while a reasonable satisfaction must be made for the attack upon the Empire, with such guarantees as would secure the peace of Europe for the future. If

³¹⁸ *Ibid.* p. 385.

³¹⁹ 'These things, so repugnant to the obligation of treaties, with the desire and affection of our sovereign lord as a faithful and Christian prince towards the commonwealth of the faith, now enfeebled and reduced by the invasions of the Turks, through the mean and instigation of the King your master, have induced him to unite and make common cause with his antient ally the Emperor to enforce the just demands of both princes.'—*State Papers*, vol. ix. p. 389.

these demands were complied with, the King of England was ready and willing to remain on good terms; but an answer must be returned within three weeks, or war was virtually declared, and would be continued by sea and land, till France was compelled into submission.

If Henry had been faithless enough to break his engagements with Charles for his separate advantage, he had now an excellent opportunity. M. Dorthe was instructed by his Government to comply almost unreservedly with the peculiar demands of England, if England would allow the French Government to remain obstinate towards the Empire. The arrears of debt should be paid, and even the interest on them. The pensions should be continued and secured, or redeemed for an abundant equivalent. Scotland should be no longer encouraged in resistance.³²⁰ Even the enlargement of the Calais frontier was not absolutely refused; and an interview between the Kings was suggested, when they might settle their differences in person.³²¹ The overtures were tempting. To have accepted them would have been infamous, but it would have been convenient; and their rejection, which, at the moment, was a matter of course, appeared like a virtue in another year, and in contrast with the conduct, under similar circumstances, of another sovereign. M. Dorthe, at all events, was unsuccessful. His brief residence was immediately terminated, and the settlement of Europe was left to the sword, and to intrigue where intrigue might be more availing.

The winter had been spent in resolute preparations through all parts of France to repair the last summer's failures. A blow was to be struck in Flanders before the arrival of the Emperor, and at the beginning of June fifty thousand men crossed the frontiers. They obtained a few rapid successes. Among other places, they seized and fortified the important position of Landrecy; and the Court of Brussels being anxious to see Henry committed to active hostilities, intimated their expectation of assistance in compliance with the treaty, and desired that it might be furnished, not in money, but in men. The King con-

³²⁰Quant a la guerre des Escossois le fera cesser.'—Dorthe to the Privy Council: *State Papers*, vol. ix. p. 392.

³²¹Et quant a la ville d'Ardre, pour che que le roy mon maistre ne pense que le Roy d'Angleterre, son bon frere luy en vouloit aulcune chose demander, attendu la grande et parfaicte amyte qu'ils ont tousjours eu ensemble, et aussy que c'est son vray heritage; il me semble sy plaist audict Signeur Roy d'Angleterre, que celle soit remis sus la veuee et communication dentre leurs deulx, qu'ils en porront mieulx accorder par ensemble que par mila autres.'—*Ibid.*

sented with the warmth with which the English so often throw themselves into a first campaign. His only condition was, that the troops which he would send should not be cooped in garrisons, but should be employed in the field;³²² and Sir John Wallop, as a further compensation for his late prosecution, was appointed to the command. He was directed to place himself in correspondence with the Imperial generals, and to act as they should think best, although it was intimated as the opinion of M. de Rieulx that his best employment would be the seizure, so long contemplated, of Mottreul.³²³

The contingent under Wallop's command was inconsiderable in number—from five to six thousand men,—but it was composed of the flower of England. The gentlemen of the royal household had generally volunteered. Lord Surrey, emerging from under the clouds, was sent over to burnish up his tarnished brightness; and he carried with him a special introduction from Henry to the Emperor, should Charles reach the scene of action before the end of the summer. It was the pride of the English commander that, amidst the miscellaneous concourse of Flemings, Germans, Spaniards, and Italians, who formed the Imperial force, his own small army should be the model of discipline and order.³²⁴ The defence of Flanders requiring the whole available force, the attack on Mottreul was postponed, and the scene of the war lay chiefly along the Flemish frontier, from Landrecy towards Calais. The campaign, on the part of the English, commenced with a passage at arms, which revived the gone days of chivalry. There had been a skirmish under the walls of Terouenne, where a company of mounted archers had especially distinguished themselves. The French had retired within the lines of the town, and the governor being an acquaintance of the English general, the latter sent in a challenge, the circumstances and results of which he thus described in a despatch to the Government:—

'At night, after our camp was lodged, I sent a letter to the captain, and the effect of my letter was that, seeing he would send out no

³²²*State Papers*, vol. i. p. 747.

³²³*Ibid.* p. 752.

³²⁴Thanks be to God, your army here hath ever since their setting forward ordered themselves with such obedience, modesty, and temperance, without any fray or quarrel either within themselves or to any stranger, that it is not only to our great comfort to see the same, but also to the great marvel of strangers, being rather like the civility of a city or town than an army of men of war.'—Wallop to Henry VIII.: *State Papers*, vol. ix. p. 462.

greater number to skirmish with us, if he had any gentlemen under his charge that would break any staves for their ladies' sakes, I would the next morning appoint six gentlemen to meet with them. Whereunto, early in the morning, he sent me a letter that he had appointed six gentlemen to meet me by the way at nine o'clock, with certain conditions, which I kept and observed accordingly. And those I sent to run against them, by their own requests, were Mr Howard, Peter Carew,³²⁵ Markham, Chelley of Calais, with two of mine own men, Calverley and Hall: and by report of those that did behold them, they did run well, and made very fair courses. Mr Howard at his first course brake his staff in the midst of the Frenchman's cuirass galliandy. Markham strake another upon the headpiece like to have overthrown him. Peter Carew also brake his staff very well, and had another broken on him. Calverley, my man, was praised to make the fairest course of them all; yet, by the evil running of a Frenchman's horse, that fled out, strake him under the armpit through the body, and pierced his harness in the back, so that he is sore hurt, and in great danger, not able to be brought back to our camp, but carried to Terouenne, where he is well intreated. This morning, having heard from them, I have some hopes of his life.'³²⁶

History closes over the scene. We know not whether the gallant Calverley lived or died; and the pageantry of war soon gave place to its harder realities. But, on the whole, the campaign lingered. Though superior in number the French declined an action, and contented themselves with fortifying the towns which they had taken at the outset. The garrisons of Guisnes and Calais were successful in several slight enterprises on the Marches.³²⁷ The eleven French ships which had been driven into Leith, and had been reduced to nine, either by the loss or departure of two of their number, were again waylaid, and four more of them were captured.³²⁸ But de Rieux waited for the arrival of Charles before attempting to act on the offensive; and on the side of the Low Countries, the summer was passing away undistinguished by any event of importance. In Piedmont de Guasto had won a victory, but he had been unable to follow it up into substantial success. In the Mediterranean, Barbarossa was omnipotent, and

³²⁵The story is told less circumstantially in HOOKER's *Life of Sir Peter Carew*.—*Archæologia*, vol. xxviii.

³²⁶Sir John Wallop to the Privy Council: *State Papers*, vol. ix. p. 457.

³²⁷*State Papers*, vol. ix. p. 488.

³²⁸*Ibid.* p. 489.

was wasting the coasts at his pleasure. He passed along the shores of Italy, pillaging and destroying. At Ostia alone, of all places which he visited, he brought disgrace upon the Pope by abstaining from violence, and, with suspicious clemency, paid for the supplies which he required.³²⁹ From thence he passed on to Toulon, where, as an honoured ally, he was received with a splendid hospitality. The French fleet, when he again sailed, put to sea in his company, and, for the first time in history, the Crescent and the Fleur-de-lis were seen floating side by side in a joint enterprise against a Christian state. Villa Franca fell to the strange allies, and afterwards the town and harbour of Nice. The castle held out till de Guasto could arrive for its relief. But this was the only check which the Turkish admiral had met with. No power could be raised which could hope to cope successfully with him at sea; and, after sweeping the waters in the insolence of a force which he knew to be irresistible, he returned to Toulon, which had been made over to him as a winter station by the King of France.³³⁰

Strange and offensive, however, as these proceedings appeared, they were still of secondary moment. The eyes of Europe were mainly turned on the central figure of the Emperor. He had made his preparations at his leisure. By midsummer a hundred and twenty cannon had been cast for him at the foundries of Augsburg. Ammunition waggons were prepared and loaded, and shot and *shell*³³¹ were reported as rising in piles of unimagined magnitude. Thirty thousand Spaniards and Italians were known, in the beginning of July, to have left Milan for Germany; but where the storm was to break, all men were asking and none could answer. The intended movements were a well-kept secret. So strangely were parties confused that nothing could be guessed from probability. Charles and Henry were on one

³²⁹This thing,' Harvel wrote from Venice to the King, 'turneth the Bishop to incredible hate and infamy that such favour should be shewn him by Turks, as though he were their confederate.'—*Ibid.* p. 446. Even the Court of Brussels affected to be scandalized. Dr Wotton, the resident there, told them, 'It stood well with all reason that the Turk and Bishop of Rome, heing both of one mind and purpose, and both going about one thing, that is, to destroy the Christian faith, should live like brethren and help each other.'—*Ibid.* p. 451.

³³⁰Barbarossa seems to have treated the French much as they deserved. 'The Turks that be at Toulon,' says a State paper, 'spoilth all the churches thereabouts, beateth down the walls, and maketh them again, after their sort, temples and oratories after the usage of their laws; and therein doth their sacrifices.'—Layton to Henry VIII.: *State Papers*, vol. ix. p. 584.

³³¹Shells were used freely in this campaign. See Vol. II. p. 193, note.

side. Francis, on the other, had sought allies where he could find them; and was in marvellous combination with the Pope and Solyman, with the Duke of Cleves, and through the Duke, with the Elector of Saxe. The Catholic princes of the Empire could not support Charles without indirectly injuring the Papacy. The Lutherans, in attaching themselves to France, were supporting Paul against England; although, at the moment, the Lanzknechts of Cleves, under Martin von Rosheim, were campaigning, like the Covenanters of the following century, with the sword in one hand and the Bible in the other.³³² In such a labyrinth who could foretell the course which the Emperor might choose? The moderate Germans, who had expected him with such anxiety, felt their hearts fail them when they learnt the form in which he was at last coming. For the first time the free soil of their country would be trodden by the Spanish infantry, with whose prowess and whose cruelty two hemispheres were ringing.³³³ Henry, too, was not without uneasiness. An ally who was sharing the dangers of a campaign was entitled to confidence; and Charles's secrets were locked impenetrably in his own cabinet. There had been a meeting with the Pope, and a veil was flung over it. The treaty had stipulated for ships from Spain or the Low Countries, to assist in protecting the Channel; the English had sent their contingent into Flanders; but the Imperial cruisers delayed their appearance, and the Portsmouth fleet was defending the harbours of Holland.³³⁴ An English renegade, again, a friend of Pole—who, at the request of Bonner, had been imprisoned at the Castle of Milan,—had escaped unaccountably, and, as it seemed, with official connivance. The Emperor, the King consid-

³³²I heard a merry tale credibly reported, that Martin von Rosheim, remembering that the Hollanders and people about Amersfort have been of late years much inclined to the profession of the Gospel, and having no priests about him meet for that purpose, causeth some of his Lanzknechts, that can best tell their tales, to preach at Amersfort the liberty of the Gospel, trusting thereby to allure the Hollanders rather to follow him. It must needs be a good sight to see a Lanzknecht, his cap full of feathers, his doublet and hosen cut and jagged, his sword by his side, an arquebuss on his neck, to preach and set forth the Word solemnly, as though it were not Christ's Gospel, but Mahomet's Alcoran.'—Wotton to Henry VIII.: *State Papers*, vol. ix. p. 465.

³³³Ego uiversam Germaniam sollicitam et conturbatam animadverto. Vident enim et non sine suâ jacturâ sentiunt rapacissimam et crudelissimam gentem in Germaniam inductam quod jam multis sæniis nemo ausus fuit.'—Mont to Henry VIII.: *ibid.* p. 470.

³³⁴*Ibid.* p. 483.

ered, was more careful of his own interests than of those of his ally.
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But Charles's intentions were not long in revealing themselves. On the 25th of July he arrived at Spires. His army followed him in detachments, and was collected in full force by the middle of August. Germany, and not France, it was now clear, would be his first object; and those who had outstanding disputes with him had hastily to look to themselves. The Elector and the Landgrave of Hesse sent to him to express a hope that he did not mean to interfere with their religion. They volunteered explanations of their conduct to the Duke of Brunswick, and would submit their case to the Diet. They had reason to be anxious, for their turn would come when Charles was strong enough to deal with them; for the present, his displeasure was satisfied with the punishment of a meaner offender. The Duke of Cleves had replied to the remonstrances of the Emperor on the occupation of Gueldres by invading Holland and Brabant. He had broken his oath as a prince of the Empire by an alliance with a hostile sovereign; and Francis had promised to be at his side before Charles's arm could reach to touch him. The Duke of Cleves, the first of the German powers, was to learn a lesson of obedience. The Archbishop of Mayence, while Charles was still at Spires, came forward, uncommissioned, to intercede; but his interference was set aside with a calm peremptoriness. On the 20th of August the Emperor, accompanied by Bishop Bonner, embarked upon the Rhine, taking with him thirty thousand veteran soldiers and a train of artillery; for which alone, with the ammunition, he had collected three thousand transport horses. On the 22nd he was at the gates of Duren; and a herald was sent forward with a proclamation in writing, that whereas William, Duke of Cleves, had broken the peace of Germany, had rebelled against the laws of the Empire, and had united himself through France with the enemies of the Christian faith; whereas he had invaded the territories of his liege lord and destroyed his subjects; and whereas the inhabitants of Duren had hitherto assisted the said Duke of Cleves in that his ungracious and unnatural rebellion,—the Emperor willed and commanded them immediately to yield themselves to his mercy. If they obeyed, he would receive them into his favour. If they resisted, they would resist at their peril.

³³⁵Ibid. pp. 404, 420.

The town was strong, and powerfully garrisoned. A storm was thought impossible; and the stores of provisions within the walls would last till the winter, when a besieging army would be driven from the field. The herald was told scornfully that he might take his proclamation to those from whom it came: the soldiers of Duren knew no reading; he pretended to come from the Emperor; the Emperor had fed the fishes of the Mediterranean when he was seeking to return from Algiers,³³⁶ and from him they had nothing to fear.

Before forty-eight hours had expired they found reason to know that neither was Duren impregnable nor the Emperor a delusion. The second morning after their reply the Spaniards were led up to the walls, and, after a struggle of three hours, the garrison broke and fled. Seven hundred were killed. The rest, attempting to escape on the other side of the town, fell into the hands of the Prince of Orange. Charles, coolly merciless, refused to spare a man who had borne arms against him. The commander was hanged before the gates: the other prisoners were variously executed. By the sunset of the 24th of August the town of Duren was left to the possession of old men and children, and the dishonoured widows of its late defenders.

No second example was required of the consequences of resistance to the arms of the Emperor. Strong cities, powerfully garrisoned, lay in his course as he descended the Rhine; but a panic opened their gates for him. The keys of Gurlik were brought to him by women: every able-bodied man had fled. Bergen, Ruremonde, Herclens, Nieustadt, Stittart, surrendered at a summons. At Venlo only was there found courage to attempt a second defence; and at Yenlo the terrified townsmen prepared to compel the soldiers to submit.³³⁷ All that side of Germany lay at once at Charles's feet. The old Duchess of Cleves, the Puritan mother of Anne, died of sorrow, 'raging,' so wrote Dr Wotton, 'and in a manner out of her wits for spite and anger.' Bonner's train were attacked and almost murdered in the streets of Cologne by some of her partisans; and the unfortunate Duke drew his sword upon his own minister in his council-chamber. Helpless before his gigantic antagonist, he had to choose between submission and destruction equally instant. On

³³⁶*State Papers*, vol. ix. p. 489. It is a singular fact that the people of Germany very generally believed that the Emperor had been lost on his way back from Africa. Sleidan says, that even the Duke of Cleves shared the prevailing error.

³³⁷*State Papers*, vol. ix. p. 498.

the 7th of September, with the Duke of Brunswick and ten other gentlemen, he rode in deep mourning into the Imperial camp, and fell at Charles's feet, in time barely to save Venlo from the fate of Duren. He confessed his offences, he implored mercy, he renounced Gueldres, and even offered to do homage for Cleves, which had been hitherto independent.³³⁸ Never in so brief a time had success been more rapid or overwhelming.³³⁹ And the Emperor could say with truth that the defeat of the Duke of Cleves was the heaviest blow which he could have inflicted upon France. But, if it was a blow against France, it was a side-blow at the Reformation. The news was coldly received in England; nor was Henry better pleased when he learnt that, as an immediate sequel of the victory, Charles had sent a menacing message to the Elector to restore the monks and nuns whom he had ejected from their houses in the Duchy of Brunswick. Bad news, too, came from Hungary. The English treasury had supplied money to Ferdinand for a third campaign, which had again been a failure. Gran had fallen to the Turks, with heavy loss; and the women and children were sent away from Vienna to Ratisbon.³⁴⁰ The common cause was neglected; and Charles's triumphs, so far, caused as much uneasiness as pleasure.

The King, however, was better satisfied by hearing from Italy of high language which had been used in his favour by the Spanish ambassador to the Pope,³⁴¹ and by the Emperor to Cardinal Farnese;³⁴²

³³⁸ *State Papers*, vol. ix. pp. 501–6.

³³⁹ 'The matter seemeth at a point,' said Wotton, in a second letter, 'the which to me seemeth one of the strangest things that chanced these many years. I would never have believed that for one town cowardly lost by assault, such a great and strong country should have been wholly lost without in manner stroke striking. The Emperor may write to his friends as Cæsar wrote to his friends, *veni, vidi, vici*. Surely it appeareth that God hath blinded and intendeth to punish the French King that hath none otherwise assisted the Duke of Cleves; for he might by him have wrought more displeasure to the Emperor by a small power, than by himself he shall be able to do with four times as much.'—Wotton to Henry VIII.: *ibid.* pp. 505–6.

³⁴⁰ Mont to Henry VIII.: *State Papers*, vol. ix. p. 518.

³⁴¹ 'The Bishop of Rome had for certain granted four thousand men against your Majesty; but by persuasion of the Imperial orator he is removed from that deliberation, not without great difficulty, labouring the said orator five hours with the Bishop upon the matter.'—Harvel to Henry VIII.: *ibid.* p. 520.

³⁴² 'Granville saith that the Bishop of Rome dare not stir nor attempt anything, and specially for because of the word that the Emperor said unto the Cardinal Farnese, that if the Bishop of Rome did anything against your Highness, he would take it as done against his own person.'—Wotton to Henry VIII.: *ibid.* p. 639.

and the Emperor himself gave a further and unmistakeable evidence of zeal in hastening, as soon as the matter of Cleves was disposed of, to the allied camp in Flanders, notwithstanding that he was suffering from a severe attack of an enemy as capricious and implacable as the King of France—the gout. The strong will of Charles V. ruled alike his constitution and his passions. Whether sick or well, if possible, he meant to fight a battle with the French before the season closed; and on the 19th of October he was at the lines of Landrecy, behind which de Vendosme lay intrenched.

His first step—perhaps because he felt a special compliment to his ally to be desirable was to review the English army, when he charmed every one with his courtesy and unaffected manliness. ‘I brought him,’ said Sir John Wallop, ‘to the upper part of the camp, and so along. He, beholding well our army, standing fourscore in a rank, and after having beheld the fortifications thereof, did like them marvellously well—and so did all the other strangers that came with him—saying he had not seen anything of that sort—meaning a trench that I devised more than a pike length and a half from the carts. To whom I said, the first device of such trenches was made to annoy him. How, quoth he, and when? I answered, it was when the French King’s camp lay joining to Vienne, when his Majesty came into Provence, I being there at that time. And as he rode a little lower, beholding the same, he saw upon the top of the said trench all your Majesty’s captains and petty captains, appointed right well, like men of war, in very warlike apparel. He asked me who were those; and I showed him that they were the captains and the lieutenants of the footmen, and the most part your Majesty’s household servants: ‘Par ma foy, disoit il, voila une belle bande de gentilhommes.’ He began to tell me how sick he had been; and the day before he came hither he assayed his harness, which was a great deal too wide for him, notwithstanding he had made him a great doublet bombasted with cotton. He said further, if the French King come, as he saith he will, I will live and die with you Englishmen.’³⁴³

The town of Landrecy was the present object of both armies. The French had taken it, and intended to leave a garrison there for the winter. They meant to remain in the field till the season should make the siege impossible. The Emperor insisted as resolutely that he would stay till the place was recovered, or the enemy were forced to

³⁴³Wallop to Henry VIII.: *State Papers*, vol. ix. p. 522.

a battle. His huge artillery was incessantly at work. Mortar-batteries were erected, on a plan of Henry's, on adjoining heights; and the shells were heard bursting in the town and the French camp. Still no impression was made. De Vendosme refused to be dislodged; and Charles determined on a flank march and an attack upon the rear. He surveyed the country in person, with an escort of English light cavalry;³⁴⁴ and a series of manœuvres followed—on the one side to avoid, on the other to compel an engagement. The weather was unfavourable, the roads heavy. The four months were expired during which, by treaty, the English were bound to remain; and they had their eyes still on Mottreul and Boulogne, which were ungarrisoned and might be carried easily by a *coup de main*. But Charles entreated that they would not leave him; and at last, in the first week of November, there was a prospect of something decisive. The French had retreated upon Cambray. On Saturday, the 3rd, there had been a severe skirmish; and the Monday morning following had been fixed for a storm of the camp. But de Vendosme had gained his point. The weather and the lateness of the season secured Landrecy till the spring; on Sunday night he withdrew silently from his position, and by daybreak his whole force were across the frontier. It was too late to interrupt or overtake them. The cavalry harassed their rear, but with indifferent success; and a party of English gentlemen—Sir George Carew, Sir Thomas Palmer, and Mr Edward Bellingham—pressing on too hotly in the pursuit, were entangled in a wood, and were made prisoners. The campaign was over for that year, and the allies were dispersed.

The winter set in, and brought with it, in the suspension of hostilities, an interlude of intrigue. The Pope laboured ineffectually to bring the Emperor to agree to a peace.³⁴⁵ Francis permitted the factions which divided his council to make attempts to separate the al-

³⁴⁴He wrote himself to Henry to express his admiration of these troops. On one occasion they rode forward to clear the country in advance, 'and when he saw them hurl up the hill so lightly,' he cried out with delight. Their uniforms were white embroidered with the red cross of St George, and their ensigns were on the same pattern. In the churchwardens' account books, at Dartington in Devonshire, I find, in a list of vestments preserved at the church, in the first year of Edward VI., 'The white banner with the red cross which was made for the war.' Dartington had belonged to the Marquis of Exeter. It was forfeited on his attainder, and was still in the hands of the Crown; so that among the light horse which excited Charles's applause we probably identify a party of Crown vassals from this parish.

³⁴⁵*State Papers*, vol. ix. p. 547.

lies. But for the present they were staunch to one another and true to the treaty. Charles publicly thanked Wallop for his services. More than twenty vacancies in the order of the Golden Fleece were placed by him at Henry's disposal; and the disbanded Spaniards had so far forgotten the injuries of Queen Catherine, that they volunteered into the English service.³⁴⁶

Some embarrassment was created by the Scotch question, for the treaty bound Charles to be an enemy to the enemies of England, and as the attitude which Scotland had assumed towards Henry was the special work of the Pope and the Pope's friends, to side with Henry in his attempts at conquest would have increased the anomaly of his position.³⁴⁷ But he contrived to evade or postpone the difficulty. Unpleasant subjects were buried under mutual civilities; and the year closed with an arrangement for the movements of the ensuing summer.

The two sovereigns agreed to invade France simultaneously, either in person or by their lieutenants. An English and Imperial army should enter on the 20th of June—the latter by the Upper Rhine, the former from Calais by the Somme—and endeavour, if possible, to effect a meeting at Paris. If they succeeded, their future operations would be decided on in the French capital; but it was admitted that the movements of armies could not be arranged beforehand with certainty; the commanders in both cases were to consider themselves free to act by the dictates of military prudence, unfettered by absolute conditions.³⁴⁸ The invading force on each side was increased from that which was fixed originally in the treaty of alliance to forty thousand men; and the Regent of Flanders would undertake the commissariat and transport services for the English, even to finding vessels to bring them across the Channel.

³⁴⁶Wallop even wrote that, 'If it was his Majesty's pleasure to keep any arquebusses through the winter, they should be much better to serve him than any other nation, their desire was so much towards his Highness.'—*State Papers*, vol. ix. p. 545.

³⁴⁷Henry, in a message to Charles upon the subject, did not seem to hold the Scotch noblemen in very high esteem; he described James as having left his young child behind him, 'unprovided among the hands of a sort of wolves.'—*Ibid.* p. 534.

³⁴⁸*Selon que la raison de la guerre moyen des victuailles et ce que fera l'ennemi et aultres empeschements le comporteront.*—Treaty between Charles V. and Henry VIII.: *State Papers*, vol. ix. p. 572. The reader must undertake to burden his memory with these words.

With this resolution, with the disposal of overwhelming strength, and, on the part of the King of England at least, with no objects which were not openly avowed, the allies looked forward with confidence to certain and rapid victory.

CHAPTER XXI

THE PEACE OF CREPY

THE Anglo-Catholics had established their supremacy in the destruction of their great enemy, and in the rupture with the Protestants of the Continent; but they had feared to compromise their success by an indiscretion like that which before had spoiled their triumph. They had been forced to content themselves with a power of persecution, which, after the martyrdoms of Barnes and his companions, they had scarcely dared to employ; and Gardiner, the leading spirit of the party, perceived acutely that his victory was but half won, that at any moment it might be snatched from him, unless he could lay a check on the free circulation of the Scriptures. In the face of the King's resolution a direct movement for such a purpose, he knew, would be hopeless. But the Bishop of Winchester was as dexterous as he was resolute; and a side route might conduct him to his object when the open road was closed.

From 1536, when the vicar-general's injunctions directed every parish priest to supply his church with a copy of the whole Bible, editions, based all of them on the translation of Tyndal, followed each other in rapid succession. The bishops, who had undertaken to supply a version satisfactory to Catholic orthodoxy, had still left their work untouched. The King would not be trifled with. The Bible, in some shape, his subjects should possess; and if unsupplied by the officials of the Church, he would accept the services of volunteers whose heart was in their labours. Coverdale's edition was followed, in 1537, by Matthews's, 'printed with the King's most gracious license';³⁴⁹ and the same version, after being revised by the Archbishop of Canterbury, was reprinted in 1538, 1539, 1540, and 1541, under the name of 'The Great Bible,' or 'Cranmer's Bible.' The offence in Tyndal's translation was less in the rendering of the words than in the side-notes, prefaces, and commentaries: by the omission of these the Archbishop had been able to preserve the text almost without change.

Simultaneously, however, other editions were put in circulation, with the private connivance of Cromwell, where the same prudence

³⁴⁹ Matthews's name is supposed to have been fictitious. There is no real difference between his version and that of Coverdale.

had not been observed. In 1539 appeared 'Taverner's Bible,' with a summary at the commencement 'of things contained in Holy Scripture,' in which Protestantism of an audacious kind was openly professed. The priesthood was denied; masses and purgatory were ignored; the sacraments were described as nothing but outward signs; and the eucharist as a memorial supper, without sacrificial character, figurative or real. The publication was imprudent. Complaint was certain, and would be recognized as just. On the death of his patron, Taverner paid for his rashness by an imprisonment in the Tower; and, although he was soon released, and grew to favour at the Court, yet Henry so far listened to the remonstrances of the Church authorities as to forbid the sale of unauthorized editions; and in 1542 the Convocation was informed that the text of the Great Bible itself was to undergo an examination. The errors of translation were said to be in the New Testament rather than the Old. The Gospels and Epistles were divided into fifteen parts, and were distributed among the Bench.

The learned prelates, or two-thirds of them, desired to find blemishes; they had no intention of correcting them. Gardiner presented a list of nearly a hundred words, for which the English language was too heretical to have provided an equivalent, and which therefore must be left in Latin; and Cranmer, aware that the real wish was to suppress the translation altogether, appealed to the King, and relieved them of an occupation which they would discharge so indifferently. The quarrel ended in a compromise. The original editions of Tyndal, which were accompanied with his annotations, were prohibited under penalties. The Bible, as edited by Cranmer, was left untampered with; but a temporary limitation was imposed, perhaps wisely, upon its indiscriminate use.

The Parliament—for the Parliament was the only body which could reasonably compose an ecclesiastical dispute—declared³⁵⁰ that, although the King had permitted the Bible in English to be read by his subjects, 'that they might increase in virtue for the wealth of their souls,' 'and although his Majesty's godly purpose and intent had taken good effect in a great multitude of his subjects, especially the highest and most honest sort,' yet that the young and the ignorant had been led rather to dishonour the book than to derive from it wholesome instruction. It was wrangled over in alehouses and taprooms. It was disfigured 'in rhymes, printed

³⁵⁰ 34 and 35 Henry VIII. cap. 1.

ballads, plays, songs, and other fantasies.' Scandalous brawls and controversies disgraced the churches where it was placed for the people to read. Noisy, vain, arrogant persons took upon themselves to be expounders and interpreters; and 'the word of God,' instead of producing piety and sober demeanour, was an occasion of faction, and endangered the peace of the kingdom. 'Until,' therefore, 'and unless the King's Majesty, perceiving such reformation in their lives and behaviour, should of his clemency think good otherwise to enlarge and give liberty for the reading of the same,' the Lords and Commons considered that the use of the Bible should be confined to those who could read it beneficially. Unordained persons were prohibited from preaching or holding discussions upon it in public; and farm-servants, journeymen, apprentices, women, and children were to be contented to learn from their masters or the heads of their families.³⁵¹

Though falling far short of Gardiner's desires, this measure was an evidence of his influence. The completion of the alliance with Charles V. was a still more emphatic victory. So long desired, so long apparently hopeless, this connection promised the triumph in Europe of the same policy which he was labouring to establish in England. It promised a council which, supported by two powerful sovereigns, would reimpose upon the world the Catholic creed, modified in the single article of the Papal supremacy. And now he believed that he might show his colours more bravely. Cromwell was gone; but while Cranmer remained, he had a rival who was still able to thwart him, whose influence with the Crown, so long as it continued, impaired the completeness of the reaction, and checked persecution. He would strike a blow then boldly at the Archbishop; and when this obstacle was disposed of, his course would be easy.

He wove his intrigues. He arranged his snare. His prey was within his grasp, when Henry calmly interposed, and rent the scheme to atoms.³⁵² 'Thus far, and no further,' was the stern answer which

³⁵¹The following curious memorial survives of the reception of the Act among the people. A shepherd bought a book of Polydore Virgil's, and wrote upon a spare leaf, 'When I kepe Mr Letymers shepe, I bout this boke when the Testament was oberragated, that shepeheryds might not rede it I prey God amende that blyndenes.' 'Writ by Robert Wyllyams, kepping shepe uyon Seynburie Hill, 1546.'—LEWIS's *History of the Bible*, p. 150.

³⁵²The story of Cranmer's danger and escape is familiar to us through SHAKESPEARE'S *Henry the Eighth*, and is related at length in STRYPE'S *Biography*. The general outline

checked the zeal of conservatism; and the blow which the Bishop had aimed was fatal in its recoil. It was not every one who had the skill or the dishonesty to eliminate out of Catholicism the one only element which it was inconvenient or dangerous to retain. His secretary, Germain Gardiner, developed orthodoxy into Romanism. He was caught under the Supremacy Act; and the death which the Bishop designed for Cranmer fell upon his own kinsman.

A failure so instructive might have warned Gardiner of the dangerous ground on which he was treading. But the treaty had heated his fancy. He had missed his stroke at the Archbishop, but meaner victims were still attainable. The Bill of the Six Articles was the law of the land. It had received a second emphatic sanction from Parliament; and the King could not intend that it should be defied with impunity. The town of Windsor, and even the royal household, were reported to be impregnated with heresy. Dr London, the Warden of New College, was now a prebendary of St George's, and was ready with his services to assist in the purification. With the assistance of the prebendary and of a Windsor attorney named Ockham, evidence was collected or invented to sustain a charge against four of the townsmen, Robert Testwood, Anthony Peerson, Henry Filmer, and John Marbeck—while Sir Philip Hoby, Sir Thomas Garden, and other gentlemen belonging to the privy chamber, were accused of supporting and encouraging them.

Peerson's crime was that, two years before, he had said that 'like as Christ was hanged between two thieves, even so, when the priest is at mass and lifteth Him up over his head, then He hangeth between two thieves, except the priest preach the word of God truly.'

Filmer was charged with having called the sacrament of the altar a similitude. 'If it was God,' he had said, 'then in his lifetime he had eaten twenty Gods.'

Testwood had told a priest, when lifting up the Host, to take care he did not let Him fall.

Marbeck, the most obnoxious of the four, had made a Concordance of the Bible.

The accusations were probably true, although the evidence was obtained with the help of spies and traitors. It sufficed for its purpose; the prisoners were convicted, and were sentenced, in the ordinary

is no doubt correct. Unfortunately I have been unable to discover a contemporary authority which will allow me to place confidence in the details, or to repeat them.

form, to be burned. On the morning on which they were to suffer, a pardon, through private interference, was obtained for Marbeck who, in fact, had broken no law, just or unjust, and whose death would have been a murder, even technically. The other three satisfied the orthodoxy of the Bishop of Winchester by perishing on the meadow in front of Windsor Castle.

But if the minds of men had been slow to change, their hearts had changed in spite of themselves. The time was gone when either king or nation could look complacently on these hideous spectacles. The traditions of centuries could not be overthrown in a day. The letter of the heresy law might be reasserted with emphasis by a people eager to escape from a name which they had been taught to dread; but the influences of a purer creed had stolen insensibly over their feelings. Dr London, in his eagerness to make a case against the gentlemen of the household, had blundered into perjury. They laid the circumstances of the prosecutions before Henry, and two of the judges who had sat on the trial were sent for and examined. The insidious conspiracy was unfolded; and the judges 'told the King plainly' that, although with the evidence which was produced an acquittal was impossible, 'they had never sat on any matter under his Grace's authority which went so much against their conscience, as the deaths of these men.' Fifteen years before, heretics had been venomous reptiles, to be trampled out with exultation and hatred. Kow, even those who had been forced by the law to pass sentence on them could express their remorse to the King, and the King, as they spoke, turned away, saying, 'Alas, poor innocents!'³⁵³

But Henry did not content himself with pity. Gardiner, the chief delinquent, could not be touched; but his wretched instruments were tried for false swearing, and were convicted. Dr London, stripped of his dignities, was compelled to ride through the streets of Windsor, Newbury, and Reading, with his face to the horse's tail, and a paper on his head setting forth that he was a detected perjurer. In each town he was placed in a pillory, where every voice might revile and every hand might hurl filth at him; and then he was thrust away into the Fleet Prison, where he miserably died.

These events happened towards the fall of 1543, amidst the heat and eagerness of the preparations for war. The punishment of a

³⁵³HALL'S *Chronicle*; FOXE, vol. v.

worthless ecclesiastic was not the only result which followed from the persecution.

Parliament was called for the 14th of January; and although it was meeting for a session unusually busy, it could find time to limit the opportunities of cruelty which it had lately bestowed. The Six Articles Bill had been provoked by excesses and extravagances. It was still necessary to leave the bishops some weapon to repress disorder; but it should be a weapon with a blunter edge.

A recent statute, said the preamble of the new measure, had established that offenders convicted of specified heresies should suffer pains of death: 'But in as much as, by force of the same statute, secret and untrue accusations and presentments might be maliciously conspired against the King's subjects, and kept secret unrevealed, that such as were accused should not have knowledge thereof until a time might be espied to have them by malice convicted, to the great peril and danger of the King's Majesty's subjects, if the same statute should not be tempered or qualified; and to the intent that all presentments and indictments of such offences as were contained in the said statute should be taken in open and manifest courts, by the oaths of twelve indifferent persons, according to good equity and conscience; and also that the inquiries and trials of and upon such indictments might justly and charitably proceed without corruption or malice;' it should be now enacted, that no person should be arraigned for any offence under the Act of the Six Articles except on presentment by twelve men, made either before a special commission, or before justices of the peace sitting in sessions, or before the judges of the assize; again, that such presentment must be made within twelve months of the alleged commission of the offence; and, further, that no person might be arrested before his indictment, except under a warrant from a privy councillor or from two justices of the peace, one of whom must be a layman. If the offence consisted of spoken words, the depositions must be taken within forty days of the time of utterance; and the accused persons should be allowed to challenge the jury.³⁵⁴

The tone of the Act, as well as the substance of it, indicates the direction in which the tide was once more setting. We no longer hear of 'the foul and detestable crime of heresy.' The penalties were not changed,, but the object was not any more to ensure the infliction of them, but to throw obstacles in the way of persecution.

³⁵⁴35 Henry VIII. cap. 5.

The Emperor meanwhile, notwithstanding his success in Gueldres, was unable to maintain the attitude of menace towards the Lutheran princes which he had for a moment assumed. He was in no condition, while his quarrel with France lay on his hands, to come to a rupture with the Smalcaldic League. He required rather a support of men and money from the Diet, where the Protestants had a majority; and either he was scandalously playing with their credulity, or was provoked into real indecision on the great question of religion by the support which the Pope, notwithstanding his ambassador's remonstrances, persisted in lending to Francis. In Italy, Germany, and England it was alike at this time expected that, if he declined to encourage an Anglo-German council, he would allow the States of the Empire to settle their differences in a national synod. Henry sent him as a present the 'Institution of a Christian Man,'³⁵⁵ which Granvelle undertook to make the favourite study of his leisure; and in England, in consequence, there was everything to recommend and nothing to make distasteful the alliance. Commercial interests, hereditary traditions, the conscious need of forgiveness for the divorce of his aunt, would unite with the common support of a moderate religion to reconnect the country with. Charles V.; while France was 'the antient enemy,' the usurper, as men still had not forgotten, of the fair provinces on the Continent which had once been the inheritance of the English sovereigns.

In this spirit the public relations of the country were accepted by Parliament with the expenses which those relations would entail. When the war broke out the exchequer was empty. The first payment of the subsidy which had been granted in the year preceding had not as yet fallen due, and the King, in anticipation of the approaching return, had applied for a loan which had been raised in graduated proportions from the ordinary tax-payers. He had in fact required

³⁵⁵ Further, ye shall receive herewith four books of the *Institution of a Christian Man*, set forth first in English by the King's Majesty, with the advice of his learned men for the establishment of Christian religion amongst his Highness's subjects, and now lately translated into Latin. And for as much as it is thought that at this assembly [the Diet at Spires] matters of religion shall be diversely debated of sundry men, his Highness hath thought convenient to send the said books unto you to the intent it might appear to the Emperor how conformable to Christ's doctrine the learning is which his Majesty hath ordained to be taught.—The Privy Council to Wotton: *State Papers*, vol. ix. p. 615. 'M. de Granvelle received the book thankfully,' and said it should be his daily study after supper; for all the rest of the day he never had any rest or leisure.'—Wotton to Henry VIII.: *ibid.* p. 624.

and received a portion of the parliamentary grant a few months before its time. The people, who were aware that a war involved a war taxation, submitted without complaining to a proceeding which was manifestly necessary. On the meeting of Parliament the accounts of the expenditure were produced for inspection; and the legislature being prepared, as a matter of course, to find supplies, and knowing that the subsidy in itself would now be insufficient, by a retrospective sanction converted the loan into an additional tax, and left their original grant still to be collected in its integrity. The King of France, they said, in justification of their resolution, owed a large debt to England which he refused to pay. He had betrayed Europe to the Turks; he had provoked the Scotch to break their engagements. 'His Majesty, therefore, was forced, and could of his honour no less do but determine himself, by the help of Almighty God, to levy war and prosecute his enemies with the sword, trusting so to bring them to reasonable conditions: and his loving subjects, considering it was their office and duty to support his Majesty in all just quarrels with their bodies, lands, and substance, and minding to bear with his Highness in this his most gracious and godly enterprise, calling to remembrance that certain sums of money had been advanced to his Highness by way of loan—which sums of money, as was notoriously known, his Highness had fully and wholly converted and employed³⁵⁶ for the commonwealth and defence of the realm—declared that all such loans should be finally remitted and released.'

The funds being thus provided, at least for immediate necessities, it remained, since the King was going in person into France, to make arrangements for his possible death in the course of the campaign. In 1536, when he seemed to be without a legitimate child, he had been empowered to fix the succession by his will.³⁵⁷ There was now a prince, and although from the present Queen there was no visible prospect of issue, yet it was necessary to provide for the possibility of

³⁵⁶35 Henry VIII. cap. 12. I confess myself unable to see the impropriety of this proceeding, or to understand the censures which historians have so freely lavished upon it: unless, indeed, they have believed that all wars in any generation but their own are necessarily unjust, and all taxation tyranny; or have believed that the Parliament was generous to the King at the expense of a limited number of credulous and injured capitalists. On a question of taxation, the proof of contemporary complaint is the only justification of historical disapprobation.

³⁵⁷28 Henry VIII. cap. 7.

further issue being born. A will, as the law stood, would have been a sufficient instrument; but Henry, sensible, as he said, 'of the trust and confidence that his loving subjects had placed in him,' desired to exercise the power which they had bestowed 'with the knowledge and consent of Parliament.' It was enacted, therefore, briefly, that from Henry the crown should pass to Prince Edward. If the prince died without issue, and there were no other legitimate children, it should descend to the Lady Mary, under conditions which the King in his will would determine. If Mary died without issue, it should go to Elizabeth under the same restrictions. The three children might all fail; but beyond this point it was thought imprudent to make a public disposition. The Queen of Scots was next of blood in the collateral line; and the possibility of the succession of a Queen of Scots could be neither admitted for the present, nor wisely denied for the future.³⁵⁸ This point, therefore, was left to the future judgment of Henry.

His decision would probably depend on the result of the opening war. Weary years of persevering forbearance had concluded in a final effort of liberality. The King had offered peace in return for invasion, and the union of the Crowns on equal terms as a reward for incurable hostility. The Scotch Estates had first petitioned for his mercy, then accepted his proposals; had sworn to observe them, and then immediately had flung them back in scorn. The noblemen who had volunteered to serve him, had broken faith through mingled weakness and fickleness. The Douglasses, who had so long been his pensioners, were now beyond doubt playing a double game. They had signed a bond to give the crown to Henry if the treaty was broken. They had now signed a second with the Cardinal against their 'auld enemies of England;' and although the Earl of Angus still sent private assurances that in secret he was true to the King, the word of a man who was a traitor to one side or the other could no longer be depended on.³⁵⁹ Arran was passive in the hands of Beton; and Beton, the undisputed master of Scotland, was making rapid use of his opportunities of evil. A specimen of his administration in the January of this year, 1544, will illustrate the purpose for which he was seeking power, and the spirit from the dominion of which the King of England was labouring to rescue the unhappy country.

³⁵⁸ 35 Henry VIII. cap. 1.

³⁵⁹ *State Papers*, vol. v. pp. 355–359

Lord Ruthven, the hereditary Provost of Perth, was one of the few nobles who had looked favourably on the Reformers, and within the limits of his jurisdiction the leaven had dangerously spread. In the late autumn, on Allhallows eve, a noticeable scene had taken place in the church of the town. A friar, in the course of a sermon, told the people that the morrow was the day in which they were to offer for their fathers' souls in purgatory. One of his audience, a man named Robert Lamb, stood up, holding a Bible in his hand, and exclaimed, 'I charge you in the name of Christ Jesus, whose verity is here written, that ye teach nothing to his people except his only truth. If ye otherwise do, here is the book of his truth to bear witness against you in the day of the Lord.' The congregation was divided, but the speaker had but few friends, the friar had many. 'The baily of the town called for fire and faggot.' The baillie's sister 'threw her keys in Lamb's face,' and 'called him a false thief.' It was with some difficulty that he was dragged alive out of the crowd. Men called him unwise to be meddling in matters with which he had no concern. He replied that he must do the work of the Lord, and he would be happy if he suffered for his faith.

Men who can find their happiness in suffering need not be left long to wish for it. The story was reported to Beton, and after the separation of the Estates, which had met in December, the Cardinal, accompanied by the Regent, proceeded to Perth to inquire and punish. On arriving, he found that Lamb was not the only criminal of whom the Church dignitaries complained. A nest of heretics was rooted out; wicked men who, in defiance of proclamations, had eaten meat on fast days and had been disrespectful to the saints, and a wicked woman who in childbirth had declined to call upon the Virgin for assistance.

A court was held in the Grey Friars' place. On the same Allhallows eve it was proved that the heretic who had interrupted the friar had held a feast at his house. Indictments were found against the party, where the offending woman, the wife of one of the others, had been also present. They were brought in guilty of having eaten when they ought to have remained hungry; of having reasoned on Scripture when Scripture was beyond their understanding; of having interrupted a holy man in the exercise of his duty; and they were sentenced, four of them, to death. Lest their friends should interfere at the execution, the Cardinal's guard was under arms to make sure

work. The three male prisoners were brought out to the scaffold; the woman—her name was Helen Stirk—was taken to see her husband suffer before she followed him. She had the baby in her arms whom God had given her, though she had left the Virgin uninvoked; and as she, too, was to die, she desired to die with the rest. But this was not permitted. They embraced under the gallows. 'Husband,' she said, 'we have lived together many joyful days; but this day in which we must die ought to be most joyful to us both, because we must have joy for ever. Therefore I will not bid you good night. Suddenly we shall meet again in the kingdom of heaven.' The executioners seized their prey, and she, too, was then led away to be drowned the punishment of warlocks and witches. The road led past the Grey Friars', where Beton was still in session. 'Ah!' she said, 'they sit in that place quietly who are the cause of our death this day; but He who seeth this execution upon us shall shortly see their nest shaken.' When they reached the water's edge she gave the child to a nurse; she was hurled in—and the justice of the Church was satisfied.³⁶⁰

'Thus ceased not Satan,' says Knox, 'by all means to maintain his kingdom of darkness, and to suppress the light of Christ's evangel. But potent is He against whom they fought; for when the wicked were in greatest security, God began to show his anger.' The Cardinal returned to St Andrew's. His own dungeons, too, were stocked with offenders of the same stamp and kind. The body of one of them, a friar, whom Knox calls 'godly learned,' was found one morning, when the day broke, stiff and stark, upon the rocks below the Sea Tower; and dark tales were whispered of murder in the vaults of the castle.³⁶¹

This was Scotland as the Pope desired to have it, and the Cardinal had preserved it. Law and order and government so far were on their side. It was to be seen whether the higher laws of truth and justice were still able to execute themselves. Henry VIII., in a letter to the Emperor, described the Scotch nobility as little better than wild beasts, sometimes hunting in a pack, sometimes tearing each other to pieces; but governed, so far as he could see, whether separate or united, only by a greedy ferocity. The Reformers alone were his true and cordial friends—men who with a nobler faith had assumed a no-

³⁶⁰CALDERWOOD's *History of the Church of Scotland*, vol. i.; KNOX's *History of the Reformation*.

³⁶¹KNOX: *History of the Reformation*.

bler nature; whose eye was single; whose words were safer than the 'bonds' of the lords. But, false and faithless as he had found the latter, he was forced to maintain among them some kind of party; and their mutual hatreds never left him long without adherents whose interest for a time brought them over to his side. In January the whole nation seemed to be united under the Cardinal. In a few weeks 'the English earls' were again proffering their services and again inviting an invasion.

The change had been effected on this occasion through the Earl of Lennox—a new ally, converted to the English interests by a mortified ambition and an eagerness for revenge.

When the Earl of Arran was in his better mind, and the Parliament was tolerating the Protestants, Beton had introduced Lennox from France as a rival for the regency, supposing that he would be an easy instrument, whom he might use while his name was a convenience, and might cast aside when needed no longer. Lennox had served his purpose well. The gathering at Stirling had been made efficient through the influence of his family, and to him chiefly the Cardinal was indebted for the capture of the Queen. But, on Arran's submission, he had lost his importance. The existing Government, so long as it was compliant and obedient, answered the ends of the Church by its feebleness; and, in the arrogance of his success, the Cardinal took little pains to conciliate a nobleman whom he regarded as his creature, or reconcile him to the change in his policy. Lennox was affronted at the slight, and exasperated at the disappointment. Perhaps, too, the higher qualities which he exhibited in later life influenced his judgment. He passed over from the French to the English faction, and at once proceeded to give proof of his intended usefulness in his new career. He had the custody of the castle of Dumbarton, where a supply of powder and thirty thousand crowns had been landed for the use of the Government. He refused to surrender either the castle or its contents. The Earl of Angus recovered courage at this accession of strength; Lennox joined him in a letter to Henry, in which the past was apologized for, and the English army was invited to hasten across the Border; and, as a cement to the new friendship, the Earl of Lennox professed himself a suitor for the hand of Lady Margaret Douglas, the daughter of Angus and the niece of the King.³⁶²

³⁶²*State Papers*, vol. v. p. 361, &c.

There was no occasion to press Henry to speed. With or without assistance from a native faction, he had resolved this time to teach the Scots that, although engaged with France, he was really able to punish them; and he was making his preparations on a scale which they could not easily resist. Two hundred ships were collected at Newcastle, which would land at Leith ten thousand men. Four thousand horses were to advance from Berwick under Lord Evers, and join them before the walls of Edinburgh.

The Cardinal being openly supported by the Pope, Henry would not relinquish the desire of committing the Emperor in the quarrel. The treaty had made no distinction in enemies; and he requested an auxiliary force of a thousand Spaniards; not so much, he avowed, for the increase of strength which they would bring to him, as 'to have an occasion given to the world to think and see that there was a mutual and reciprocal affection in each one of them to take the other's cause as his own.'³⁶³

The move was made skilfully; but Charles, too, was a delicate player in the game of state-craft. His Spanish troops, he replied, were distributed in garrisons from which he regretted the impossibility of sparing them. For declaring the Scots to be enemies, which Henry had also desired, he would do it gladly, if his good brother would explain whether he was at war with them as a nation, or only with a particular faction. Henry, as he well knew, would be embarrassed to answer. He could therefore safely express his anxious interest in the success of the invasion. The excuses could only be admitted. Cardinal Granvelle affected to reveal to the English resident any secret intelligence connected with Beton's movements which fell in his way; and, as professions were made in abundance, and the sympathy stopped short only where active measures would be necessary, Henry could not press his request. His own strength was sufficient for his purpose; and, after all, it was suggested the Emperor might embarrass as much as assist. If the two princes were at war with the same enemy, neither might make peace without consulting the other upon the conditions; and, supposing the English army to obtain any marked advantage, some jealousy might be felt—some alarm lest, if Scotland were annexed or prostrated, England might

³⁶³The Privy Council to Wotton: *ibid.* vol. ix. p. 577.

become dangerously strong, and they might thus be prevented from reaping the full benefit of their victory.³⁶⁴

Without the Emperor's assistance a force sufficient to punish Scotland would soon be thrown upon the unfortunate country. Francis was so much alarmed for the possible consequences, that he recommended (or proposed to recommend) the Regent to pretend to make concessions again, to ward off the danger.³⁶⁵ In the beginning of March a French force, ten thousand strong, was embarked in Normandy, to go to his assistance. But the wind was foul, the men for some cause were mutinous, and the transports were obliged to return;³⁶⁶ and, as the Scots themselves made light of the danger, a second effort was not made to send them. The Cardinal, strangely, felt no alarm. He was unable to believe that Henry could do serious injury beyond wasting the Borders as usual, and it seems that both he and the King allowed their hopes to deceive them. Beton was to find that the English had a long arm. Henry—who, if he did not aim at a conquest, expected to establish a substantial protectorate—would discover the obstinate nationality of the Scottish people to be as hard to deal with as it had been found by his predecessors.

His plan, as at first conceived, was to seize and fortify Leith, and, if possible, the Castle of Edinburgh. Dumbarton would be placed in his hands by Lennox, and the Earl of Angus would admit a garrison into Tantallon, if his present humour held. In possession of four, or even three, strong fortresses in the heart of the kingdom—so situated that, with the command of the sea, he could throw supplies into them at his pleasure—he expected that, without difficulty, he could

³⁶⁴ 'If the Emperor declare the Scots common enemies, then, although the King's Highness might bring the Scots to that point that he might have an honourable peace and to his advantage with them, yet the Emperor for envy, or for because he would not have the King's Highness too strong or too sure on that side, would find out any coloured cavillation why to dissent from any article of the said peace, then should it take none effect.'—Wotton to Henry VIII.: *State Papers*, vol. ix. p. 602.

³⁶⁵ 'Granvelle told me,' Wotton wrote to the King in cypher on the 20th February, 'for a great secret, that the French King with his council have concluded that the Scots shall make a fair face to your Majesty, and bear you in hand and promise that they will deliver the Queen Dowager and her daughter into your hands; howbeit, when it shall come to the point, they shall do clear contrary: and that the Duke of Guise should then say he was contented that the Scots should say so; but rather than she should be so delivered, he would cut her throat with his own hands.'—*Ibid.* p. 603.

³⁶⁶ Layton to Henry VIII.: *ibid.* p. 606.

re-establish the English party in a decisive superiority, and secure the persons of the obnoxious lords and churchmen.

With these avowed objects, a convention was drawn between the English Government and the Earls of Lennox and Glencairn.³⁶⁷ On their side the two noblemen engaged—

1. That to their power they would cause the Word of God to be truly taught and preached, as the true and only foundation from whence proceedeth all truth and honour, and whereby they might judge who proceeded with them godly and justly, and who abused them for their own glory and purpose.

2. That they would remain constant to England; and abjure all friendship, alliance, or connection with the French King.

3. That, to the best of their ability, they would endeavour to prevent the Queen from being taken to France; and, if they could obtain possession of her person, they would send her without delay to London, there to be educated until she came of age for her marriage with the Prince of Wales.

4. That, on the approach of the English army, they would unite with it with all the force which they could raise, and accept and obey the King as director and protector of the realm.

If the earls observed these conditions, Henry undertook that their lands should not be injured in the invasion, that Glencairn should have a pension of a thousand crowns, and Lennox should have the regency, under conditions of general obedience to advice from England. If the Queen died, the claim of Lennox to the succession should be recognized in preference to that of Arran; and for the marriage which he desired with the Lady Margaret, as soon as he should have performed some notable service, the King said that, if the lady had no objection, he would make none himself; but experience had taught him to beware of marriages arranged by third parties for political con-

³⁶⁷ Angus and Cassilis were originally included, 'but upon knowledge of the manifest appearance of the untrue and disloyal behaviour of the Earl of Angus, and also the disloyal revolt and untruth, contrary to all men's expectations, of the Earl of Cassilis giving himself to the part of the Earl of Arran and the Cardinal,' the King refused to place further confidence in them.—*State Papers*, vol. v. p. 385. Cassilis afterwards cleared himself. The Cardinal had arrested him under suspicion of correspondence with the English.

venience. 'We have promised our niece,' he said, 'never to cause her to marry any man but whom she shall find in her own heart to love.'³⁶⁸

The submission of the Earl of Angus to the Cardinal had prevented the King from admitting him to a share in this agreement. His returning protestations had failed to recover his favour; and though, in conjunction with Lennox, he had volunteered an offer to assist the English army, Henry would have the restoration of his confidence purchased by some active service. But, if the King would not receive him as a party to a compact, he did not absolutely reject his advances. The Earl of Angus, he said, now desired an invasion: if he had been less vacillating and uncertain, the relations of the two countries would not have been in a state to require so harsh a remedy. 'Therefore, my lord,' he wrote to him, 'if you esteem your honour, and that reputation of your manhood which we have of long time conceived of you, bestir yourself at this present, and play the man. Lay apart all fond affections, and suffer not yourself, being a nobleman and noted a man of courage, to be overcome with delicateness—now at this time specially, when you should show yourself industrious, for the preservation of your credit both towards us and all the rest of the world that knoweth you. You have tasted much of our liberality before you have deserved any; and if you shall serve us now frankly, and as our goodness in times past doth require, think not but you shall serve a prince that hath yet in store much liberality to you.'³⁶⁹

The Earl of Hertford had been selected to command the expedition, supported by Lord Shrewsbury and Lord Lisle. His orders on entering Scotland were to proclaim the King of England guardian of the Queen and protector of the realm; and especially Henry directed that, in every town and village, he should nail a placard on the church-doors, signifying that the Scots had to thank the Cardinal for the sufferings inflicted by the war, and but for him they would have been in peace and quietness.³⁷⁰ By the 18th of April the army was ready to embark. The gentlemen, in their zeal for the public service, had given up their horses for the transport-service; and the whole force were in high spirits, 'reporting themselves as intending, without respect or

³⁶⁸*State Papers*, vol. v. p. 365. 'If,' he added, 'our said niece and he, seeing one another, shall agree and well like for that purpose, we shall agree to such order touching the said marriage as shall be to the Earl's contentation.'—*Ibid*, p. 389.

³⁶⁹Henry VIII. to the Earl of Angus: HAINES' *State Papers*, vol. i. p. 19.

³⁷⁰Paget to Hertford: *ibid*. p. 12.

care of delicate feeding or much rest, to spare no pain of their bodies to serve the King's Highness.³⁷¹

As the certainty of the gathering peril became known in Scotland, overtures, honest and dishonest, came thick to the English general. A messenger appeared with promises of service from Lord Maxwell. Another followed with a warning that Maxwell was treacherous. One week Lennox was reported to be wavering, and Angus to have again relapsed to Beton. The next week brought news that Angus and his brother were prisoners in Blackness. Among the various offers and informations, one proposal was made which requires particular mention, affecting as it does the character of a remarkable party and of many remarkable men.

In the novelty of a first acquaintance with the Old Testament, the Scotch Protestants beheld in the history of the chosen people a counterpart of their own position. They, too, were a 'remnant' whom idolatrous tyrants would compel to burn incense to Baal. They, too, were betrayed by apostate governors who had turned away from the truth and had joined with the enemies of the Lord. And seeing how, under 'the covenant,' the oppressors were disposed of—how the letter of the law was set aside by the spirit—how the Ehuds, the Jaels, the Jehus, the Jehoiadas—how those who smote tyrants in the field with the sword, or in the closet with the dagger, were accounted faithful servants,—they imagined that conduct which in the Bible was emphatically applauded was a safe precedent for imitation.³⁷² As

³⁷¹*State Papers*, vol. v. p. 384.

³⁷²The ordinary rules of conduct will not, and cannot, act as a restraint upon minds possessed with religious passion, whatever be their religious opinions. The higher obligation supersedes and dispenses with the lower. The plots to murder Elizabeth and William of Orange received the sanction of the Popes; a medal, struck at Rome, commemorated the massacre of St Bartholomew; and the Powder-plot conspirators were conscious only that they were attempting a sacred duty. It is startling, however, to find Sir Thomas More applying the principle of assassination to ordinary war: and if not justifying the actual perpetrators of murder, yet defending their employment by others. His words are curious, and, as coming from a man whose conscience was punctiliously sensitive, they may explain many obscure passages in the history of the sixteenth century. 'As soon,' he says, 'as they (the Utopians) declare war, they take care to have a great many schedules sealed with their common seal affixed in the most conspicuous places of their enemies' country. In these they promise great rewards to such as shall kill the prince, and less in proportion to such as shall kill any other persons who are those on whom, next to the prince himself, they cast the chief blame of the war. The rewards which they offer are immeasurably great, and they observe the promises which they make of this kind most religiously. They very

Jezebel's priests appeared to Elijah, so seemed Cardinal David Beton to the Protestant leaders.

In the middle of April a Scot 'named Wishart' came down to the Borders to Hertford,³⁷³ with an offer from old Sir James Kirkaldy, Norman Leslie the eldest son of the Earl of Rothes, and other gentlemen, to raise a force in Fife, if the King of England would supply the funds for it, to co-operate with his Majesty's invading army, to burn Arbroath and other places belonging to the extreme party in the Church, to arrest and imprison the principal opponents of the English alliance, and 'either apprehend or slay' the Cardinal himself. They would use their best efforts to succeed. If they failed, they begged to know whether England would give them shelter.³⁷⁴ The proposal, under any aspect, was important. Hertford, declining to give an answer on his own responsibility, referred the messenger to the King; and Henry, whose position obliged him to look at facts as they were, rather than through conventional forms, saw no reason to discourage the despatch of a public enemy. He regarded Beton as a traitor to the two countries—as guilty, individually and personally, of the impending war; and as he had repeatedly urged Ar-

much approve of the way of corrupting their enemies, though it appears to others to be base and cruel. But they look at it as a wise course to make an end of what would be otherwise a long war without so much as hazarding a battle; they think it, likewise, an act of mercy and love to mankind to prevent the great slaughter of those that must be killed in the progress of the war by the death of a few that are most guilty.'—MORE's *Utopia*; BURNET's Translation.

³⁷³The question has been debated with some eagerness whether this person was the Wishart whose death became afterwards so famous; both the friends and the enemies of the reforming preacher seeming to agree that, if the two were identical, his character would suffer some injury. Wishart was a common name in Scotland, and the evidence, therefore, can amount but to a vague probability. I see no reason to believe, however, that the Martyr of St Andrew's was so different from his Protestant countrymen as to have been unlikely to have been the messenger to Hertford, or to have sympathized cordially in the message. The progress of civilization, measured by the comparative morality of various periods, presents many perplexities; nor may we lightly compare ourselves to our own absolute advantage with the generation to which we owe the Reformation. It is a fact, however, in which we may acquiesce with no undue self-complacency, that the expedient of assassination, which the general sense of the present time disapproves under almost every condition of circumstances, was admitted and approved in the sixteenth century by the best men of all persuasions. Even when in India we still offer rewards for the capture of dangerous rebels, dead or alive, we are obliged to disguise from ourselves, under a more plausible form of words, the resource to which we are driven

³⁷⁴*State Papers*, vol. v. p. 377.

ran to seize him while Arran was loyal, he chose to regard his own friends, after Arran's defection, as the representatives of lawful authority. 'After our hearty commendations unto your good lordship,' the council replied to the English commander, 'these shall be to signify to you that this bearer Wishart hath been with the King's Majesty, and, for his credence, declared even the same matters in substance whereof your lordship hath written hither; and hath received for answer touching the feat against the Cardinal, that, in case the lords and gentlemen which he named shall enterprise the same earnestly, and do the best they can, to the uttermost of their power, to bring the same to pass indeed, and thereupon not being able to continue longer in Scotland, shall be enforced to fly unto this realm for refuge, his Highness will be contented to accept them and relieve them as shall appertain. For their desire to have the entertainment of a certain number of men at his Highness's charges, promising thereupon to covenant with his Majesty in writing, under their seals, to burn and destroy the abbots', bishops', and other kirkmen's lands, his Majesty hath answered that, forasmuch as his Highness's army shall be, by the grace of God, entered into Scotland, and ready to return again before his Highness can send down to them, and they send again, and have answer for a conclusion in this matter, his Highness thinks the time too short to commune any further in it after this sort. But if they mind effectually to burn and destroy as they have offered, at his Majesty's army being in Scotland, and for their true and upright dealings with his Majesty therein will lay in hostages, his Highness will take order that you shall deliver unto them one thousand pounds sterling, for their furniture in that behalf.'³⁷⁵

The answer arrived too late to be of use. The conspirators, unwilling to move without security, remained passive, and the enterprise for the moment fell through. But plots against the lives of obnoxious persons ever thrive in the soil of the Scottish nature. The seed grew on in concealment; the fruit of it ripened in its time.³⁷⁶

³⁷⁵Privy Council to the Earl of Hertford: HAINES' *State Papers*, vol. i. p. 22.

³⁷⁶I may mention in this place that in the year following the proposal to make away with Beton was renewed in a direct form by the Earl of Cassilis, undisguised by the alternative of apprehending him. On that occasion the King replied that it was not a matter in which he could move openly, but he desired Sir Ralph Sadler to tell the Earl that, if he were in his place, he would surely do what he could in the execution of such a project, 'believing verily to do thereby not only acceptable service to the King's Majesty, but also a special benefit to the realm of Scotland.' Sadler, on his

Looking now through the eyes of Knox, let us imagine ourselves at Edinburgh on the morning of Saturday the 3rd of May, 1544. The Regent and Beton were at Holyrood, in enjoyment of the confidence of the townspeople, and the heroes of Scottish independence. In spite of rumour and expectation, they were incredulous of danger. The preparations of the English might have been known, but they were supposed to be intended for France. The strength of their enemies on the sea was a new phenomenon of which they had no experience, and, without experience, could have no belief. The Channel had been free to their cruisers: they had ravaged the English coasts, and robbed English traders, from Berwick to the Land's End. An invasion in their own waters was the last peril which seemed to have been anticipated. Soon after daybreak strange ships were reported inside the Bass Rock. As the sun rose the numbers appeared more considerable, the white sails passing in from seaward and coming up the Forth in a stream, of which the end was still invisible. The good citizens went out upon the Castle Hill and Arthur's Seat, and 'to crags and places eminent,' to gaze on the unintelligible spectacle the silent vessels, countless as a flight of seabirds, appearing from behind the horizon, and covering the blue level of the water. What were they? What did they mean? Midday came; they drew nearer in the light air; and keen eyes saw on the leading ships the flutter of St George's Cross. But 'still sat the Cardinal at his dinner, showing as though there had been no danger appearing.' The English were come, was the cry. The English were come to destroy them. 'The Cardinal skrippit and said, it is but the Iceland fleet; they are come to make us a show and to put us in fears.' It would soon be known what they were. The first line as they came off Leith rounded up into the wind, dropped their anchors, and lay motionless. One by one, as the rest followed in, they took their places in the floating forest. While the sun was still in the sky the anxious watchers counted two hundred sail.

part, discharged his commission with the most undoubting readiness. He wrote to Cassilis. 'The Cardinal,' he said, 'is so much blinded with his affection to France, that, to please the same, he seeth not, but utterly contemneth, all things tending to the weal and benefit of his own country. He hath been the only cause and worker. of all your mischief, and will, if he continue, be undoubtedly the ruin and confusion of the same. Wherefore I am of your opinion, and think it to be acceptable service to God to take him out of the way, which in such sort doth not only as much as in him is to obscure the glory of God, but also to confound the common weal of his own country.'—*State Papers*, vol. v. pp. 449, 450, 471.

No message came on shore. There was neither signal nor offer to communicate; only in the twilight boats were seen stealing out from under the shadow of the hulls, taking soundings, as it seemed, under Grantoun Crags, and round the eastern edges of the harbour.

The brief May night closed in. By the dawning of Sunday the whole sea was alive. The galleys and lighter transports were moving in towards the land. Soldiers were swarming on the decks of the ships or passing down over the sides into the barges. It was the English army come indeed in its might and terror. The port was open, and the undefended town could attempt no resistance. The inhabitants fled up into Edinburgh, entering at one gate as, at another, Arran and the Cardinal were dashing out at the best speed of their swiftest horses. Before noon ten thousand men had disembarked in the leisure of overwhelming strength. The owners of the desolate houses had saved nothing. The merchants' stock was in their warehouses, and everything which was found was tranquilly appropriated. The joints of meat which had been provided for the Sunday dinners were cooked and consumed by the English men-at-arms. In the afternoon Blackness Castle was broken open, and the State prisoners, Sir George Douglas and Lord Angus among them, were dismissed to liberty.

Edinburgh, deserted by the Court and thronged with fugitives, was filled with confusion. The Provost rallied the city guard, and called on the citizens to arm. There was no lack of courage. Six thousand men came forward as volunteers, and even marched out towards Leith to attack the enemy; but they had no competent leaders; for unorganized citizens to seek an army twice their strength was madness; their only hope was to make a tolerable defence and secure terms for their property. The English were quiet till the following morning. On Monday the 5th they came up from the sea in three divisions. The provost and the corporation met them with a flag of truce, and offered to deliver the keys to Lord Hertford, on condition that all persons who desired might depart with their effects, and that he would engage for the safety of the town. 'The Scots,' Hertford said, briefly, 'had broken their promises, confirmed by oath and seal, and certified by their Parliament,' and he was sent thither by the King's Highness 'to take vengeance of their detestable falsehood, to declare and show the force of his Highness's sword to all such as would resist him.' They must yield at discretion, and he would promise them their lives. If they refused, the consequences would be on their own heads.

He gave them a day to consider their answer; and in the afternoon, to assist their decision, ominous clouds of smoke were seen darkening the sky towards Haddiigton and Lammermuir. Lord Evers, with his four thousand horse, came in from Berwick, having marked his advance by a broad track of desolation, where abbey and grange, castle and hamlet, were buried in a common ruin.

The odds were now terrible; but the Scots were not to be frightened in cold blood while there was a hope of resistance. They shut their gates, and told Hertford he might do his worst. Unfortunately for their courage, it had little opportunity to show itself. A heavy train of artillery had been landed from the fleet, to which there was no gun in Edinburgh better than Mons Meg to make an effective reply. The gates were blown in; the people who attempted to defend the streets were mown down by the fire; and the English troops followed the cannon, setting the houses in a blaze as they advanced. The intention of leaving garrisons had been for the present relinquished. Lord Hertford's orders were merely to teach a lesson of English power in the language which would be most easily understood. The miserable citizens broke, scattered, and fled into the open country, and for two days the metropolis of Scotland was sacked and wasted without resistance, while Evers and his northern troopers burnt the farms and villages for seven miles round. Holyrood was pillaged; Craigmillar and Seaton were destroyed, and every castle or fortified house in the neighbourhood except Dalkeith, which was spared, as belonging to the Douglasses, and the Castle at Edinburgh, which could not be taken without loss and delay. There was no injury to life except where there was armed opposition; but the havoc of property was as complete as the skill and hate of the rough riders of the Border could make it; and the invaders, as it appeared to Knox, were thus 'executing the judgments of God' on breach of treaty and broken promises.³⁷⁷

By the end of the week they had done their work in Edinburgh, and returned upon Leith. Here the wooden pier was torn up, and the timber was made use of as fuel to assist the destruction of the houses. The ships which were found in the harbour were seized and freighted with the spoil;³⁷⁸ and the army then dividing, part re-embarked in the

³⁷⁷Knox's *History of the Reformation*. So, too, Calderwood says, 'This was part of the punishment which God had executed upon the realm for the infidelity of the governour and violation of his solemn oath.'

³⁷⁸Holinshed says, eighty thousand cannon balls were found there among other things.—Vol. iii. p. 837.

transports, and returned to Newcastle; part accompanied the cavalry to Berwick, destroying as they went. The retreat, like the advance, was unopposed; and by the fifteenth of the month the invaders were again collected in England, the insignificant number of forty persons being the entire loss which they had sustained.

The necessity must be regretted which compelled measures of so extreme severity. Those who condemn the severity itself must remember that it followed only after all other means had been tried in vain to bring the Scots to reasonable terms. They would keep no peace, and no treaties could bind them, while it was as impossible to leave them to themselves, to become the willing instruments of designs upon England, in the hands of the Pope or the King of France.

The main army was transported from Newcastle to Calais; a division remained on the Border, under the command of Evers and Lord Wharton, and through the summer and autumn performed a series of 'exploits,' resembling on a scarcely reduced scale the proceedings at Edinburgh. The returns of the "Wardens of the Marches for the months intervening between July and November, 1544, report, of 'towns, towers, homesteads, barnekyns, parish churches, fortified houses, burnt and destroyed, a hundred and ninety-two; of Scots slain, four hundred and three; of prisoners taken, eight hundred and sixteen.' The spoil amounted to something over ten thousand horned cattle, twelve thousand sheep, thirteen hundred horses, and eight hundred and fifty bolls of corn.³⁷⁹ In an age in which military service has become a separate profession, we endeavour, as far as possible, to confine the sufferings of war to those who have made war their occupation: on the Scotch Borders, in the sixteenth century, the distinction had no existence. Every male subject was a soldier, and his farm-stock was the commissariat which maintained him in a position to be dangerous.

But the invasion of Scotland was subsidiary to the larger movements which were in preparation on the Continent. If the marriage was to be completed at last between Prince Edward and Mary Stuart, the consent of the French King had first to be extorted on the soil of France.

The alliance with the Emperor seemed every day to grow closer; each despatch which was exchanged between London and Brussels

³⁷⁹HAINES' *State Papers*, vol. i.

was in terms of increased cordiality. Francis had continued indefatigably his endeavours to effect a separation. Through prisoners taken in the late campaign, through diplomatists connected with England or the Empire, he offered terms severally to the two powers. To Henry he wrote with his own hand, as to an old and dear friend, from whom he could not endure to be divided; while to the Pope he was believed at least to have petitioned for absolution for his offences, in having sustained so long an intercourse with an excommunicated heretic;³⁸⁰ he entreated him certainly to intercede with the Emperor, empowering Cardinal Farnese to admit on his behalf that the fault of the war had rested with himself, and declaring that, if Charles would make a separate peace, he might name his own conditions.

Farnese eagerly undertook the commission. He had an interview first with the Queen Regent at Brussels; and afterwards, accompanied with the Duke of Guise, he had an audience with the Emperor. He delivered his message, speaking both in the name of Francis and of the Supreme Pontiff. But Charles, if he was sincere in his account of his own language, replied peremptorily that he would make no peace except in the spirit of the treaty which he was sworn to observe. As to the Pope, he could not sufficiently marvel at him. It was no part of his duty to intercede for one who had brought the Turks into the midst of Christendom, and there kept them to the undoing of Christian princes.³⁸¹

The attack on the Emperor being a failure, M. de Biez, the governor of Mottreul, was instructed again to offer to the English Government a full and free concession, and to beg, on his master's behalf, that an ambassador might be received in London who would bring plenary

³⁸⁰The French King, as I understand, hath demanded the Bishop to be absolved of his trespass committed in joining leagues and practices with your Majesty in times past against the rites and laws of the Roman Church, which all men note to be of ridiculous lightness and impudency, considering him to be an open Turk with his adherents.—Harvel to Henry VIII.: *State Papers*, vol ix. p. 582.

³⁸¹This at least was the reply which he professed beforehand that he intended to make. *State Papers*, vol. ix. p. 547. I do not discover the terms which he actually used, but Granvelle told Dr Wotton that 'when the Cardinal Farnese returned to Rome, the Bishop of Rome would not cause the answer delivered unto the said Cardinal to be read in the consistory, but only showed them that the Emperor had shut the gates of peace. But the Emperor's ambassador, having also received the said answer, delivered so many copies of it abroad, and also spake so much of it to the Bishop of Rome, that at last for shame he caused it to be read.'—Wotton to Henry VIII.: *ibid.* p. 638, &c.

powers with him. The Emperor had listened in private to the proposals of Farnese, and, had replied in private, if he replied satisfactorily. Henry, on the first hint of the message, sent for the Spanish minister to hear his refusal; and hinting slightly that he had set an example of openness which ought to be followed, he 'desired the Emperor to perceive how his Majesty made the Emperor's case and his own all one, and refused any offer that could be made to himself, unless the Emperor's cause were joined with the same.'³⁸² The confidence must have been insecurely rooted which required so many mutual protests; and if a passing cloud of uneasiness seems to have rested for a moment on Henry's mind, we may find cause to think hereafter that his suspicions were not without foundation. On the surface, nevertheless, there was only cordiality; and the preparations for the double campaign were hastened forward. The King was to cross the Channel at midsummer with from forty to fifty thousand English troops. In addition he proposed to raise a few thousand German mercenaries, under the command of a soldier of fortune, the famous or infamous Baron von Landenberg:³⁸³ while Francis, though he attempted to face out his position boldly, yet, as the time of danger drew near, was reported to be in the greatest anxiety; Chancellor Granvelle learnt that when alone he walked uneasily about his room, talking to himself, anticipating a second Pavia, or dethronement, or death.³⁸⁴

³⁸²Albeit his Majesty doubted not but that as the Emperor giving ear to such offers as the Duke of Lorraine being sent by an indirect mean from the French King, and likewise to such other overtures as Cardinal Farnese made to him on the French King's behalf by another indirect mean, did first hear what the offers were, and afterwards advertised his Majesty of his proceedings in the same, so the Emperor would be contented if his Majesty did the semblable; yet his Majesty, minding to avoid all occasion of suspicion, as soon as he had heard of the said overtures, sent straight for his ambassador here, and before he had or will give ear to any offers, communicated unto him the very first entry of the matter.'—Privy Council to Wotton: *State Papers*, vol. ix. p. 655.

³⁸³There was a fear lest the French should avail themselves of the same source to recruit their forces; the Spanish garrisons on the frontiers were directed to prevent the Germans from passing. It seems that they did their work effectively. 'M. de Granvelle saith,' wrote Wotton, 'that the soldiers which the Emperor hath laid upon the borders betwixt these parts of Germany and France, play even the very butchers; for as many as they meet that are going towards France they hew them straight in pieces.'—Wotton to Henry VIII.: *State Papers*, vol. ix. p. 638, &c.

³⁸⁴Saying often times 'Foy de gentilhomme seray je prins prisonnier encore une fois! Perderay je mon Royaulme? Seray je tué? Moureray je?' with other like words as a man vehemently troubled in his mind.'—Ibid.

Charles, on his side, so far as the world could see, was giving the clearest proofs of his determination. To carry on the war effectually he must secure the support of the Diet and the Protestant princes, who were not without secret leanings towards France, and being agitated by the presence of the Spaniards, had resolved to make use of his necessities, and to bind him down under severe conditions. The year opened ominously with an eclipse of the sun.³⁸⁵ The Diet met at Speyer at the end of January; the attendance was dense; the Elector and the Landgrave, uneasy at the treatment of Gueldres, and expecting treachery, rode into the town at the head of two hundred troopers armed to the teeth; and the session being opened as usual, with the mass of the Holy Ghost in the cathedral,³⁸⁶ the Protestant leaders significantly absented themselves, taking their places only when the religious services were completed. But Charles did not notice their attitude; he received them with outward cordiality; and, in declaring the business for which they were convoked, he observed the same cautious moderation. He complained of nothing. He accused no one. The peace of Europe and the Mahometan invasion made the substance of his address; but the Lutheran princes heard also that they were really to be allowed to discuss the vexed question of religion, and the reform of the Chamber of the Empire. The right of the Diet to meddle with religion had been as earnestly claimed by them as it had been passionately denied by the Pope. The Imperial Chamber, as the supreme court of appeal, and as governed by the traditional laws inherited from the period of an undisputed Roman supremacy, had been the chief instrument of persecution in the hands of the Catholic clergy, and the chief difficulty in the legal establishment of the Reformation.

But smooth language from the Emperor and appearances of concession were no sufficient guarantee of his intentions. He possessed in perfection the statesman's accomplishment of moving in one direction while looking in the other, and it was necessary to test his sincerity. The Duke of Brunswick had appeared in his train, and had taken his seat in the Diet. The Landgrave rose, and in his own name and the Elector's protested that Henry of Brunswick, having broken the laws of the Empire, had been deposed from his principality, and

³⁸⁵SLEIDAN. The eclipse was on the 24th of January, and Sleidan notices gravely that in the same year the moon also was three times eclipsed.

³⁸⁶*State Papers*, vol. ix. p. 603.

had therefore neither right nor place there. The Duke retorted; the Landgrave replied more resolutely, and, inasmuch as the Emperor in the preceding autumn had commanded the Duke's restoration, to forsake him now would be equivalent to a declared apostasy. The representatives of the Catholic States heard with dismay that their champion and martyr would not be defended. The difficulty was waived. The Emperor declared that the cause was too complicated to admit of settlement in the pressure of more urgent interests. He begged that it might be indefinitely postponed; and, to turn the current and conciliate the anti-Papal party still further, he suggested that, as a first step towards the settlement of Europe, a letter should be addressed to the Pope, by the Catholic States, requiring him to state openly the part which he intended to take in the war with France.³⁸⁷ To invite any such step was to invite them to a rupture with Rome, or so at least they understood it. Exasperated at the double blow, the Catholics replied with a direct refusal. They would do nothing, they would consent to nothing, till the rights of the Church were recognized in their integrity; till the dissolved monasteries were restored; till the Augsburg Confession ceased to be tolerated; till the ordinances of Eatisbon were repealed, and the ancient liberty of persecution reestablished.

Fury begat fury. The Protestants could rave as well as they. The Catholics would not stir for the Emperor unless they had their own way. The Protestants declared as loudly that they would vote neither men nor money for the war till the Reform of the Church had been disposed of, till they had received a definite promise for ever of religious liberty. It was a very pretty quarrel.

The combatants being once engaged, would be separated only by mutual exhaustion. The Emperor allowed the discussion to rage on far into the spring; when the exhausted tongues sank into languor, in an interval of silence he brought forward his own resolutions. It was essential for him to secure a majority in the Diet, and he was prepared to pay for it in promissory notes which might or might not be honoured at his future convenience. He decided that, until the

³⁸⁷Imperator apud eos Principes et Status qui Catholici nominantur hic institit ut ad episcopum Romanum scribere velint, rogantes quid in hoc bello inter Cæsarema et Gallum facere velit; quod Status facere recusârunt.—Mont to Henry VIII.; *State Papers*, vol. ix. p. 61; and see SLEIDAN.

next meeting of the Diet and the final settlement of religion,³⁸⁸ the Catholics should not be allowed either to persecute or make proselytes among the Protestants, nor the Protestants among the Catholics. The religious houses suppressed already should remain suppressed; those which were standing should remain standing. The clergy of neither profession should be molested in person or property. The Confession of Augsburg should remain a permitted declaration of faith. The laws of the Empire, when conflicting with it, should be placed in abeyance; and all decrees affecting property, hitherto given in the Chamber against the acts of the Protestant princes, should be declared null and void.³⁸⁹ The Duke of Brunswick and the Catholic princes and prelates entered their protest against a judgment which appeared to them so monstrous; but their remonstrance was not accepted: they withdrew in real or pretended indignation, and the Diet, freed from its disturbing element, was now compliant. A letter was written to the Pope. The French King was declared the enemy of the Empire, as the most ill-starred, the most wicked, dishonourable, and execrable prince who had ever reigned in Christendom.³⁹⁰ A force of eight-and-twenty thousand men was voted for a six-months' campaign, to compel him to relinquish his impious confederacy, and all German subjects were forbidden to take service in his army under pain of death.³⁹¹

So closed this remarkable session. The Catholics had found themselves slighted and set aside. The heretics, whom they and the Pope would have sent to the stake, were in cordial co-operation with the Emperor for the defence of Christendom and the punishment of a Catholic sovereign; and Granvelle appeared so happy in the strange result, that Dr Wotton expected that he would have embraced him in his arms.³⁹²

³⁸⁸'Ad futura usque comitia et ad plenariam controversiarum religionis determinationem.' The words are cautious; but might be readily construed into a promise that 'the plenary determination' should be effected by the Diet itself.

³⁸⁹'Jura communia scripta, quatenus Augustanam confessionem oppugnant suspensa esse decernimus. Eas quoque causas, quæ in profanis negotiis contra Augustanæ confessionis status apud Cameram post recusationem interpositam decisæ sunt revocamus.'—Edicts of the Diet of Spire: *State Papers*, vol. ix. p. 704, &c.

³⁹⁰'Le plus mal heureux, le plus meschant, le plus deshonoré, le plus detestable prince qui jamais fust en la Chrestiente.'

³⁹¹*State Papers*, vol. ix. p. 705.

³⁹²'I found M. de Granvelle marvellous jocund and pleasantly disposed. His face, his countenance, his gesture, the laying his hand now and then upon my hand,

The time was now approaching which had been agreed upon for the opening of the French campaign. The inroad into Scotland had been completed, and Sir William Paget went over to make final arrangements for the movements of the two armies. On his way to Spain he passed through Brussels, where the Regent expressed her eager goodwill towards the King of England.³⁹³ His commission was to suggest an alteration in the original scheme of the campaign. Both Charles and Henry had been unwell in the spring; the gout had hung about the Emperor, and had made fatigue dangerous to him; while he had been himself so anxious for the health of his 'good brother,' that he had sent a special messenger to urge the importance of his life to Europe, and to warn him against exposing himself to the hardships which would be inevitable if he took the field with his army.

On considering the circumstances, Henry had concluded that the plan of the two armies marching separately on Paris had been ill-considered. The advance of a large force through an enemy's country was always a critical operation. The Emperor had already experienced the difficulty alone; and, in a combined movement, if either army was checked or delayed, the other would be in serious danger. Supposing both invasions to be successful, they might sack Paris, indeed, or hold it to ransom, but to occupy it would be impossible; and a mere act of violent destruction, followed by a retreat, would be at once useless and dishonourable.³⁹⁴ He thought it would be more rational, more prudent, and more efficacious if he himself were to remain at Calais while the Emperor moved down to some town upon his frontiers. Thirty thousand men might advance on each side under other commanders as far as safety allowed; and if Francis was to be brought to concessions by the waste of his provinces, the occupation 'was more convenable a great deal for a lieutenant than for an emperor or a king.' They themselves, meanwhile, could make the

the sudden casting out of his arms towards me, so as I thought twice or thrice he would have embraced me, did evidently testify no small inward gladness of heart.'—Wotton to Henry VIII.: *State Papers*, vol. ix. p. 625.

³⁹³She said she could wish no longer to live than she had goodwill to do whatever should lie in her power for the continuation and increase of the amity between your Majesty and the Emperor.'—Paget to Henry VIII.: *State Papers*, vol. ix. p. 680. At Brussels, Paget found Richard Layton, the well-known visitor of the monasteries. He had been rewarded for his services by a diplomatic appointment. He was now dying. The last moments of all noticeable men are curious. 'He hath a great heart to serve you,' Paget wrote to the King, 'and is wonderful loath to die.'

³⁹⁴Yet he had not thought the destruction at Edinburgh dishonourable.

ground good, securing the strong positions as they were successively taken, and keeping their communications open with the force in advance.

The proposal was 'wisely conceived,' as the Emperor, when it was submitted to him, allowed. He could not acquiesce, however, in the belief that by going to Paris they could gain nothing except pillage or a ransom. He expected to draw the people from obedience to the King, to prevent him from raising his revenue, and, by carrying on the war in the heart of France, to make the invasion defray its own expenses. He thought it would be dangerous to divide the armies. Each power ought to advance in its full strength; and, in fact, he was pledged to the States of the Empire. They had granted money on the understanding that he would invade France in person. 'The King my brother's army,' he added, with a compliment to his ally, 'be the greatest part all of one nation, people of such obedience as will be ruled by the meanest man of his realm if he will make him his lieutenant; nothing short of his own presence could hold together the gathering of Spaniards, Italians, Walloons, Hollanders, and Lanzknechts, who would be ranged under the Imperial banners.'³⁹⁵

The Emperor's arguments might be good; but they did not prove his conclusions. It might be necessary for him to retain his army under his own control, yet he need not carry it with him to Paris. Charles, however, from some cause, was unwilling to listen. Wisely or unwisely, he was bent on the original design; and, unable to convince Paget, he sent back with him a confidential minister, M. de Courières, to England, if possible to satisfy the King.

Henry was bound by his engagement, and if the Emperor insisted on the observance of it, he must waive his own suggestions, as far as he could safely do so. It was more than ever obvious to him, however, that to march precipitately upon the French capital, leaving fortified towns in his rear to intercept his supplies, was a step which military prudence forbade. A large garrison had been thrown into Boulogne during the winter; an intrenched camp had been formed at Mottreul; and similar precautions had been taken along the frontiers of Burgundy. De Courières could not persuade him of the desirableness of leaving bodies of the enemy to close the communications in the rear of the armies. He would rather entreat the Emperor (and this was his last message) 'to weigh deeply his going to Paris, and to

³⁹⁵Paget to Henry VIII.: *State Papers*, vol. ix. p. 682, &c.

foresee what a great dishonour it should be for him to pass thither, and, constrained either by the power of the enemy or want of victual, to return without achieving his enterprise, considering what a great uncertainty it should be to trust upon victuals to be brought in by the subjects of the enemy, like as himself proved on his journey into Provence.' His Majesty's advice, therefore, was 'that his brother should follow his said journey as the *raison de la guerre*³⁹⁶—the respect of victual and other considerations might stand together, like as his Majesty for his part was minded to do the semblable; for otherwise, conceiving to enterprise a feat, and then finding sudden impeachments by the way, there might ensue such an inconvenience as might not be easily afterwards redubbed.'³⁹⁷

'His Majesty was minded to do the semblable.' He gave the Emperor fair warning. The *raison de la guerre* required the reduction of Boulogne and Mottreul before the main army could safely ascend the Somme; and as the principal part of the English troops were by this time collected at Calais, the Duke of Norfolk and Lord Russell went over at once to commence operations. The Count de Buren came in with a Flemish contingent, and being accompanied by De Rieulx, a council of war was held, to obtain the acquiescence of the Imperial general. The French force at both places was so large, that the sieges might be tedious, and might delay the advance; but the difficulty was itself a reason why the attempt must be made. De Rieulx could not deny, while he would not confess, the necessity. He raised objections to the waste of time, hut he suggested no feasible alternative; the Duke of Norfolk said at last, that he 'seemed more desirous that the King should spend his money in defence of the Emperor than for his own benefit.' The King considered that this was probably the truth, and cut short the discussion by sending orders that the two towns should be attacked without delay.³⁹⁸

If an uncertainty had remained whether in this resolution the English were infringing the agreement, it was terminated by Charles himself, who, on the return of De Courières with the King's message, told Dr Wotton that 'he was satisfied his good brother would employ his army as should be most expedient for their common interests, and most to the annoyance of the enemy.' He was himself, indeed, follow-

³⁹⁶'Selon la raison de guerre,' was the condition of the agreement. *Vide supra*.

³⁹⁷*State Papers*, vol. ix. p. 711.

³⁹⁸*State Papers*, vol. ix. p. 725, &c.

ing Henry's example. A division of his troops was already besieging Ligny: and afterwards, he said, he should take St Dizier, and probably Yitry, before advancing, 'to the intent that his victuals might the more surely follow him.'³⁹⁹ The friendly disagreement thus seemed to have passed away, and events were again in good train. Another difficulty arose next from the conduct of Von Landenberg. The Emperor, as well as the Landgrave,, had recommended him to Henry; and he had promised to join the camp at Calais with his Lanzknechts. The terms had been agreed upon, and half the promised wages had been paid in advance. Landenberg, having no interest in the war beyond pay or spoil, and having the advantage of partial possession, thought then that he might improve his position. When required to move, he replied quietly that he must have better conditions, or he would carry his men into France. Dr Wotton, through whom the audacious message was sent, referred it to Granvelle. The minister professed himself extremely sorry: Landenberg, however, he thought, was a desperate man, entirely likely to do what he threatened to do. The readiest plan would be to promise what he desired, and at the end of the campaign he might be hanged. This, he said, was the Emperor's method of dealing with such men. He had tried it repeatedly with excellent success.

The remedy was as little to Wotton's taste as the disease. The King, he thought, 'would be loath to entertain a man with fair words' whom he intended for the gallows. He applied to the Emperor in person.

Charles's opinion coincided with the chancellor's. The English scruples, he thought, were needlessly unreasonable. Landenberg, at all hazards, must be prevented from joining the enemy; and, considering the terms on which they stood with one another, he trusted 'his good brother would not stick at a small thing with him.' If Henry was dainty in such matters, he would himself undertake the retribution. He had old provocations of his own besides the present, which could be settled simultaneously.⁴⁰⁰ Wotton could but repeat his conviction that the King would never consent. It was rather for the Emperor, he thought, to use present compulsion, than for the English Government to stoop to treachery. And he had rightly anticipated Henry's feeling. Landenberg was left to enjoy the profit of his villany. The loss of money was submitted to; and it

³⁹⁹ Ibid. p. 724.

⁴⁰⁰ Wotton to Henry VIII.: *State Papers*, vol. ix. pp. 720, 721.

would have been well if no other consequences had followed. But the free lances, though they did not desert to France, established themselves at Liège, professing to be in the English service; and by living at free quarters at the expense of the inhabitants, created an angry difference between the Courts of London and Brussels.⁴⁰¹

Minor disputes, however, were now absorbed in the larger interests of the war. By the end of June the English army had formed the siege of Boulogne. On the 14th of July Henry crossed the Channel and took the command in person,⁴⁰² while the Duke of Norfolk and Lord Russell passed forward and sat down before Mottreul. Ligny, on the other side, surrendered to the Emperor on the 29th of June. On the 3rd of the month following he approached St Dizier, on the Marne. St Dizier, though unimportant as a town, was strong as a military position; the fortifications had been recently increased, and the defence was entrusted to the able La Lande, who had baffled the allies in the preceding autumn at Landrecy. The invading army could not advance till it was taken: the French had neglected no precautions which would make the siege protracted. The summer was wet. Incessant rains softened the roads and filled the rivers. In spite of his preparations, the Emperor's transport service was ill-provided, and he was delayed a week under the walls before his batteries were in a condition to open fire. The bombardment commenced at last on the 12th of July. It was continued incessantly for three days; and on the morning of the 15th the attacking columns of Spaniards and Germans advanced to the attack. The former swarmed up the breach with desperate courage; but they were ill-supported: the Germans flinched and fled; the Prince of Orange was killed; the assault failed, and, after having lost six hundred of his best troops, Charles relinquished the hope of taking St Dizier by storm.⁴⁰³ Although, in a campaign which must end with the summer, time was of so much importance, he was forced to turn the siege into a blockade; and the allies being similarly detained, were each equally unable to complain of the other's delay.

Weeks passed on. August came; and Boulogne and St Dizier were still untaken. Meantime the French Government had not been idle. Separate agents hung about the two camps. The Bailiff of Dijon came down to St Dizier with an offer to accept Charles's terms for the set-

⁴⁰¹*State Papers*, vol. x. p. iii.

⁴⁰²Diary of the Expedition to Boulogne: RYMER, vol. vi. part 3.

⁴⁰³Wotton to Henry VIII. from the Camp *State Papers*, vol. ix. p. 733.

tlement of Milan, with assurances that the King of England was seeking his own interests at Boulogne, and that the Emperor was free to act for himself. M. de Framozelles (he must have been despatched from Paris within a day or two of the other) carried a second autograph letter from Francis to Henry, entreating him to intercede with his ally, to whom he said he would rather die than make advances, except through his good friend and brother. If an entire pacification was possible, he would make concessions on both sides; but he indicated not obscurely that England might make its own advantages at the expense of Charles. How Charles received the message to himself will be presently seen. Henry replied that the suggestion of treachery was a reproach to his honour.⁴⁰⁴ He promised to use his endeavours to bring the Emperor to reasonable terms; but the condition of his interference must be plain and frank dealing. Independent proposals to himself would not, and could not, be listened to. 'Through the fault of yourself or of your ministers,' he said, 'we have been constrained to take arms against you; nor can we with any honour renew our friendship with you, unless our good brother the Emperor be first advertised thereof, and such provision as appertaineth be made likewise for him. At your request, we shall learn with diligence how he shall be disposed, and within fifteen or twenty days we trust to receive his answer; at which time, if you will send again to us, we shall reply more at large, trusting that if you be so well disposed to the weal of Christendom as you profess yourself, our endeavours shall take effect to some good purpose.'

The proposals brought by De Framozelles were immediately forwarded to the Imperial camp, with a copy of the letter of Francis, and of the King's answer. The courier reached St Dizier the third week in August. The Emperor opened the packet in Dr Wotton's presence. After reading the French King's private overtures he complained bitterly of his treachery, and, turning to the words in which they had been answered, he exclaimed, 'This is another master's doing, and written as a noble and wise prince should write. I thank my good brother that he hath such respect unto me as the amity between us doth require. I shall not fail to use myself accordingly again.' Wotton

⁴⁰⁴En quoy vous touchez notre honneur grandement, le quel ayant comme cognoisses tous jours jusque à présent garde inviolablement, ne consentiray jamais que en ma vieillesse il soit aucunement tache.—Henry VIII. to Francis I.: *State Papers*, vol. x. p. 19.

reiterated the assurance that Henry would do nothing without his consent. 'He knew it,' Charles said; he had perfect confidence that his brother would be guided in all his actions by good faith and integrity.⁴⁰⁵

The French offers were then referred to Granvelle. Although more favourable to the Empire than to England—so favourable, indeed, that, if fulfilled faithfully, the minister admitted that they would be satisfactory,⁴⁰⁶ Henry was ready to waive his more particular expectations, and desired that they should be accepted. Granvelle, however, more zealous for England than England itself, raised difficulties in England's behalf. Francis had said he would give security for the payment of his debts; but every one knew the value of French securities. He had undertaken that the Scots should be in as much amity with England as himself. This merely implied that, as long as the French King should think it profitable to name the King's Majesty his friend, so long 'would the Scots sit still.' Experience of the French King's duplicity made confidence in his word impossible; 'the only remedy whereof was that, if agreement were made with him, the amity, nevertheless, and league between his Highness and the Emperor, should remain still so in virtue and strength, that in case the French King went about to break any part of his promise, they might be both ready to renew the war against him.'⁴⁰⁷

The desirableness of such 'a remedy' as this had not been doubted. The assurance of the continuance of the feeling was, perhaps, satisfactory. A formal reply to the offers was meanwhile drawn with necessary speed, and forwarded to Boulogne by the hands of De Courières. Granvelle had dwelt to Wotton chiefly on the inadequacy of the terms granted to Henry. The King discovered with surprise and some disappointment, that the Emperor's own demands were so exorbitant as to make peace impossible. The answer 'was couched in such extremities, and so far out of the limits of the treaty,' 'that he found occasion to think that either the Emperor minded in no wise to fall to any reasonable composition, or, at the least, that if any were made,' he was not himself 'to have the handling of the same.'⁴⁰⁸ 'The treaty,' he rejoined, in evident perplexity, 'bindeth us at the most no further

⁴⁰⁵Wotton to Henry VIII.: *State Papers*, vol. x. p. 34.

⁴⁰⁶*Ibid.*

⁴⁰⁷*State Papers*, vol. x. p. 34.

⁴⁰⁸*State Papers*, vol. x. p. 50, &c.

than that the Emperor may have the Duchy of Burgundy, and certain towns here in Picardy; and the articles which the ambassadors have delivered to us, as those whereupon the Emperor will rest, contain demands that himself, the Empire, the King of the Romans, the States of Italy, the commonalty of Senes, may have restitution of their damages by reason of this last war; that restitution be made unto him of the Duchy of Burgundy and the Visconty of Aussone, with all the mean profits perceived by the French King since his first possession of them; and that all other places which the French King has taken since the beginning of the war be restored, with the interests.' The Emperor he could hardly believe was serious in urging demands so preposterous. If England was expected to stipulate on behalf of its ally for conditions so far beyond the treaty, he could only reply himself by the letter of the treaty, and require on his part the payment of his debts, the expenses of the war, and the restoration of the ancient possessions of the English Crown.⁴⁰⁹

With evidence before him of ambiguous dealing on the part of his confederate, he might have been pardoned, if he had at last considered his own interests. Cardinal du Bellay had come down to Hardelot Castle to receive the answer promised through De Framozelles, and had again brought powers to arrange a separate peace with England, if Henry would consent. But, though unable to comprehend the Emperor's answer, this method of escaping from his uncertainty did not occur to him.

Meantime St Dizier, after having retained Charles seven precious weeks, at last capitulated. Half the time which had been calculated for the march on Paris had been lost before a single town; and if the original intention held, not a moment could be spared. The Emperor nevertheless showed no signs of haste. He remained stationary for another ten days, while his light columns were reducing other unimportant places in the neighbourhood, and the Duke of Lorraine was passing mysteriously to and fro between the camp and Paris. On the 25th of August he advanced leisurely to Vitry, which had been taken by surprise, while the Dauphin was manœuvring in his front with a force which was every day increasing, without risking a battle. At Vitry, M. d'Annebault, who had succeeded De Bryon as high admiral, and was notorious as a partisan of the Empire, presented himself with a safe-conduct, and was admitted to an interview. When pri-

⁴⁰⁹ Ibid.

vate communications were made to Henry, he invited, as we have seen, the presence of the Emperor's ambassador. Of the conferences of Charles and Granvelle with the Duke of Lorraine, the Bailiff of Dijon, or the admiral, so much only was known to Dr Wotton as the Emperor and his ministers were pleased from time to time to reveal. But their language, on their own representations, was tolerably satisfactory. D'Annebault had openly recommended an act of treachery. The French King, he had said, was ready to relinquish the Turks, and to make war upon them if the Emperor desired. In all points on which Charles was interested he would meet his wishes freely. 'For the King of England, let them first agree among themselves, and then they could do well enough with him if he would be reasonable. If he would not, he could be left out.' Granvelle protested that they had refused to listen. The admiral had tried to persuade them that Henry was caring only for himself, and that they were not bound to consider him; but the interview had closed without result.⁴¹⁰

Chalons now lay in the path of the army. The Dauphin's force was partly in the town, partly a few miles from it. By attacking Chalons, Charles would probably be able to force the French to accept a battle. With his army in its present condition the result could have been scarcely uncertain, and a decided victory would have cleared the road to Paris. That so late in the season he should have passed by, leaving the Dauphin unattacked, Chalons untaken, his communications broken, and his supplies cut off, was an extent of rashness which even the Provence misfortunes led no one to expect. To the surprise of every one who was not admitted to secrets of State, the Emperor immediately on D'Annebault's departure announced that this was his intention. The military insanity of the movement was evident even to the eyes of a civilian. Wotton's mind misgave him, and, although Granvelle assured him still that all was well, his uneasiness was visible in his report to the King.

A letter announcing⁴¹¹ the advance was written on the 31st of August. On the 6th of September Chalons was thirty miles in Charles's rear. The Dauphin's army had closed up behind. The convoys which had followed him were interrupted; and, by an extraordinary accident, the military chest was empty. There was no pay for the soldiers, and without money the soldiers could not obtain

⁴¹⁰Wotton to Henry VIII.: *State Papers*, vol. x. p. 45, &c.

⁴¹¹*State Papers*, vol. x. p. 47.

even food. D'Annebault hung in the neighbourhood in unbroken correspondence, and 'would have offered the Emperor something reasonable,' so Wotton was next informed, but 'would not consent to satisfy the King of England.' Next came M. de Neuilly, with a proposal to pay the arrears of the English pension, 'and to show reasonable cause why it was not to be paid in time to come';⁴¹² and at last, when Charles had embarrassed his army so deeply that its extrication would have been difficult, if not impossible, the French overtures assumed a definite form. Separate terms were offered, which, though falling, of course, far short of those which Charles had called on Henry to demand for him, yet answered fully the original object with which he had himself engaged in the war. Ten thousand men would immediately serve against the Turks. 'If, for increase of amity between the Courts, the Emperor would give the Princess of Spain to the Duke of Orleans, with the Low Countries, or the second daughter of Ferdinand with the Duchy of Milan (he might choose his alternative), the French King would restore to the Emperor and the Duke of Savoy the territory and towns that he held of theirs on either side of the Alps. To England he would pay the arrears of the pensions. The Emperor should decide whether he was bound to pay anything in future.' The pressure of the double alliance, the presence of the English forces, and Henry's refusal to listen to De Framozelles and Du Bellay, had alone placed these concessions within Charles's reach. No sooner were they formally made, than he sent Granvelle's son, the Bishop of Arras, with a safe-conduct across France, to say that his army was in extreme danger, that he doubted if he could save himself, and he required either that he should be allowed to make peace on the conditions which the French Government had offered, or that the siege of Boulogne and Mottreul should be immediately raised, and the whole English strength advance towards Paris.

Seeing that he had himself waited leisurely till it suited his convenience to move, that the presence of the English had locked up a large part of the available strength of France, and had therefore prevented the Dauphin from being able to relieve St Dizier, the alternative, or at least the second portion of it, could be pressed with indifferent decency. Such as the demand was, however, it was entrusted to Arras, and by him on the 11th of September was carried to Boulogne.

⁴¹²Ibid. p. 61.

On his arrival he found the siege at the point of a successful completion. The garrison had resisted with a courage which had called out Henry's admiration. 'They fought hand to hand,' the King wrote on the 8th of the same month to the Queen, 'much manfuller than either Burgundians or Flemings would have done; such as we have of these will do no good where any danger is, nor yet abide there with their will.'⁴¹³ But the parallels had been steadily advanced, the walls had been breached and mined in all directions, and the fall of the town had for some days been a mere question of time. While D'Annebault had been intriguing with Charles and Granvelle, Du Bellay had remained at Abbeville, still keeping open an opportunity for Henry as long as the first had remained unclosed. The two ministers were struggling in the direction of their sympathies—one to secure England, the other the Empire—and Francis was only anxious to divide the allies. Du Bellay's standing offers were to pay the arrears, to continue the pension, to pay the expenses of the war, to surrender Ardes, and, more important than all the rest, 'to cause the Scots to be ordered in reason, or to abandon them.'⁴¹⁴ Henry had replied consistently that, although by treaty he might make larger demands, 'yet he had more regard to the common weal and quiet of Christendom than to his own benefit; 'he was satisfied for himself, but the Emperor must be satisfied also; and until he had received assurance to that effect, the war must continue, and the siege be pressed.

On the day that Arras entered the camp a mine exploded under the last important outwork held by the French. They were driven back, and three days after the town surrendered. So far, the army was set free. Mottreul, however, still held out, nor was there present prospect of its capture. It was defended by an army rather than a garrison. The lines were too extensive for the Duke of Norfolk successfully to invest it. The Netherlands transport department, so far from having been adequate to supply the army on a march into France, had broken down under the easy duty of attending upon a stationary camp but a few miles from the frontier. The English had been forced to find their own supplies from the adjoining country; and the radius within which they could be obtained was continually extending. The army suffered from sickness, and unless the enemy were in a worse condition than himself, Norfolk could not promise success before the

⁴¹³Henry VIII. to the Queen: RYMER, vol. vi. part 3, p. 117.

⁴¹⁴*State Papers*, vol. x. p. 63, &c.

winter. To cross the Somme was therefore as impossible as ever, and Arras was instructed to tell the Emperor that, if his situation made peace necessary to him, he had Henry's consent, provided the treaty was reserved, and the conditions of it, in all parts, remained intact. The English terms were those which had been offered by Cardinal du Bellay. If it would facilitate the Emperor's arrangement, however, he would remit the condition of the payment of expenses.⁴¹⁵

Charles had foreseen with so much clearness the impossibility of the English advance, that he had not so much as waited for the King's reply. He commenced his retreat before the return of his messenger, and if Henry had gone forward he would have found himself at Paris alone. The Imperialists reached Chateau Thierry. At that point they turned north towards Soissons. On the nth of September, the day on which Arras reached Boulogne, a French commission formally attached itself to the army. A proclamation was issued that the soldiers should do no more injury, and peace was generally talked of. On the 14th D'Annebault came in in person. On the 17th Granvelle told Wotton that the French offered reasonable conditions; his son's delay in returning, he said, caused great embarrassment, for the army—being unpaid, and at the same time forbidden to forage—was in mutiny. Peace evidently was on the point of being concluded, with or without the English consent. On the evening of the 18th Arras returned with the news of the fall of Boulogne and the King's message. If Charles was acting in good faith, he had blundered into a situation where he could plead a seeming necessity for accepting a peace which gratified his most sanguine wishes. The Bishop of Arras, to shield still further the Imperial honour, and careless what the world might think of his integrity as a messenger, assured Charles that Henry was on the point of agreement with the Cardinal du Bellay, and that he left him unfettered by conditions, except with a general reservation of the treaty, to make his own terms.⁴¹⁶ The true message was altered slightly, but vitally. The King had specified the terms which he would accept; and it was as much Charles's duty to insist on them, as a condition of the peace now proposed to him, as Henry on his part had fulfilled his own duty of seeing to the interest of his ally. But the skil-

⁴¹⁵The terms of the answer were the subject of a long and angry correspondence, which the minutely curious will find spread over the tenth volume of the *State Papers*.

⁴¹⁶Wotton to Henry VIII.: *State Papers*, vol. x. p. 81.

ful farce was complete in all its parts. The French refused to hear of a conditional agreement; and on the following morning, September the 19th, the Peace of Crepy, on the terms which M. de Neuilly had brought to Yitry, was concluded and signed.

Dr Wotton was invited to the presence-chamber only when all was over. The Emperor informed him that he had agreed with the French, 'reserving the league and amity with his good brother';⁴¹⁷ and that the French Government had agreed to submit their differences with England to his arbitration. The room was crowded with officers and diplomatists, talking loudly and passing in and out. 'The Emperor spoke softly, and not very intelligibly;' and when the minister pressed for a more explicit explanation, he broke off the conversation, and referred him to Granvelle. The Chancellor was in the highest spirits. But a few days had passed since the treaty with England was all-important, and the English interests of so great consequence that the war must be continued only for the sake of them. Now he said merely that the English army had not advanced, and that they could not wait. The Emperor would take care of 'his Majesty;' and in fact his Majesty had told his son that he could take care of himself. Wotton cut short his excuses, and interpreted their meaning: the Emperor had gained all that he had desired, and was at peace; the King of England was left at war, and the French would at once withdraw the terms which had been offered through Cardinal du Bellay.⁴¹⁸

A less skilful diplomatist than Wotton might have seen his way to so plain a conclusion. The open confirmation of his words arrived sooner than perhaps either he or Granvelle had anticipated, for the Dauphin's army was already on its way to recover Boulogne and drive the English into the sea. Although the news of the capture had been brought by Arras himself, the French commissioners pretended that their offer to submit to Charles's arbitration had been made before they were aware that the town, had fallen; and Charles, in unembarrassed acquiescence, permitted them to withdraw their promise.⁴¹⁹

⁴¹⁷Ibid.

⁴¹⁸Wotton to Henry VIII.: *State Papers*, vol. x. p. 77, &c.

⁴¹⁹Charles said himself in October to Wotton that 'The French King had submitted himself to his arbitrement only in the first controversies, and not in the matter of Boulogne, which was a new controversy.'—*State Papers*, vol. x. p. 109, &c.

On the secret motives of the Emperor's conduct it is dangerous to speculate. That he had broken a treaty to which he had sworn with peculiar solemnity certainly cannot be questioned; and the English Government with full justice declined to believe that a statesman of Charles's experience could suppose himself exempted from the obligations of a formal alliance by the loose delivery of a verbal message. His march to Chateau Thierry may have been only an act of extraordinary folly; but the folly of a military commander rarely results in an advantageous peace; and the composure with which he witnessed the embarrassment into which he precipitated his ally, throws suspicion backwards over the steps which led him up to the violation of his engagements. The excuse of the siege of Boulogne was negatived by his own delay at St Dizier; his insincerity in the message which he sent through Arras was proved by his retreat before the return of a reply. Unscrupulous as Charles repeatedly showed himself, it is hard to suspect him of conscious dishonour. The responsibility of public actions is ever rested on princes; and we accuse a sovereign of treachery, of caprice, of ambition, of cruelty, when often the truth is merely that especial circumstances have given preponderance to the councils of different ministers, that the ministers represent parties in the State which it is dangerous or impossible to resist. And therefore it is that conjectures hazarded as certainties, that rash assertions of motives, are unpermitted even to contemporaries; and historians, who can recover at best little more than the husk and shell of events, are open to something more than censure when they give the value of ascertained realities to their own imaginations.

Yet, after observing the most severe caution, it is impossible, in the present instance, to conceive an explanation of Charles's conduct which would acquit him in the eyes of his ally. It is impossible to avoid contrasting his conduct with Henry's, when they were both exposed to the same temptations.

Martin du Bellay, the brother of the Cardinal, who was well acquainted with Court secrets, mentions—not in censure, but as a fact of which he had perfect knowledge—that the negotiations for the peace were really and truly commenced before the Emperor left St Dizier,⁴²⁰ at the time when both he and Granvelle were so warm in their protestations to Wotton, and when the exaggerated answer was

⁴²⁰Il commença à gouter quelques pourparlez qui avoyent este mis en avant durant le siege de St Dizier d'une paix entre le Roy et luy; chose que le diet Empereur

returned to the proposals which were sent through Henry. Although Boulogne was especially defined as among the securities which England might demand for the payment of the pension, the Emperor, Du Bellay affirms, looked with alarm on the increase of strength which the possession of it would confer upon a power with which he had so lately been on the edge of an internecine war. The occupation of Boulogne in addition to Calais would ensure the command of the narrow seas.⁴²¹ Another supposition, that Charles desired to entangle England and France in an exhausting war, that he might be at liberty to follow his own designs upon Germany, reflects scarcely less discredit upon him. At the close of the Diet of Spire he expressed himself in terms of the most confidential affection to the Landgrave; and if he was then meditating treachery, Philip II. was a bungler in deception compared with his father.

It is certainly possible that, at St Dizier, the desertion of England was deliberately contemplated, that the advance into France was the result of a secret understanding with D'Annebault, and that the object of the apparent rashness was to place the army deliberately in a position where Charles might plead necessity for the desertion of his ally. The danger of such a movement was not so great as it might seem, for the good faith of Henry might be relied upon with certainty; and as long as France was at war with England, the Emperor might calculate on separate terms whenever he pleased to accept them.

Another explanation may be suggested, however, which, if less simple, reflects upon his character with less fatal weight. Charles V. was a singular mixture of the statesman, the soldier, and the devotee. The spirits of the three professions alternately took possession of him; and his periods of superstition, as he grew older, recurred more frequently, and were more tenacious in their hold. In the letters of ambassadors from his Court during the last years, the Emperor was repeatedly said to be 'in retreat.' For a day or for a week he would relinquish public business, and retire into a monastery for meditation; and although as a politician he was impelled into toleration of the Protestants, and urged into alliances which the Church could neither encourage nor excuse, yet heresy, as such, was every day becom-

estime pouvoir honnêtement entendre sans en communiquer au Roy d'Angleterre.—*Mémoires*, p. 335.

⁴²¹ Il doutoit que par après se sentant fort deçà la mer, il luy fust plus difficile quand ils auroient à trailer ensemble.—DU BELLAY'S *Mémoires*, p. 334.

ing more hateful to him; and he had flattered himself, perhaps really, that, in connecting himself with England, he might recover the King to the faith. The Diet of Spire must have taught him both the strength and the obstinacy of the Lutheran States. His experience of Henry, in the closer intimacy which had followed the treaty, could not have been more reassuring; it is easy to understand, therefore, that his position must have been more than painful; and that his inward thoughts, and the language which he was obliged to affect, may have been unavoidably at considerable variance. If this be a true account of the state of his mind, we may imagine how he was likely to have been affected by a letter which, on the 25th of August, immediately before those movements which there is so much difficulty in explaining, he received from the Pope. ⁴²²

'We have heard,' wrote Paul,⁴²³ 'of the decrees of the late Diet at Spire, and neither the duty of our office nor the affection which we bear to your person will permit us to remain any longer silent. We remember the fate of Eli, whom God punished for neglecting to warn his children: we must avoid for ourselves incurring a similar peril. Your Majesty is imperilling your own soul; you are bringing destruction upon the Christian faith. We exhort you to return to the ways of your ancestors, and submit yourself to the judgment of Holy Church. Your late edicts, the words which you are reported to have used on the assembly of a national German council, prove that you no longer pay respect to him who alone may summon councils, who alone may pronounce sentence in questions of faith. You have allowed private persons—men who are openly noted of heresy—to utter their opinions in public. You have permitted the title of the Church to her estates to be treated as uncertain; and, slighting the advices of those who have remained obedient, you have restored to honour and dignity excommunicated apostates whom once, with your own lips, you condemned. We cannot believe that these hateful measures had their

⁴²² On the 9th of August Harvel warned Henry that a great effort might be expected to separate the Emperor from him. 'Your Majesty,' he said, 'may be fully persuaded that all the Bishop's imagination is how he may finally aggrieve your Majesty, moved with incredible hate and envy to see the same in France with so great and flourishing powers, fearing thereby the destruction of the French State, which he reputeth common unto him; wherefore I admonish your Majesty to be always circumspect against the Bishop's practices and machinations.'—Harvel to Henry VIII.: *State Papers*, vol. x. p. 30.

⁴²³ I am obliged to slightly abridge the Pope's language, but the substance is, I believe, adequately rendered.

origin with your Majesty. You have been led astray by bad councillors, enemies of the Church. We tremble for you—we tremble for you when we think of that wicked one with whom you have committed yourself to an alliance. Remember the words of the apostle on the danger of evil communications. You can make excuses—we doubt it not. Never yet was there conduct so flagitious that palliation could not be found to disguise it. But examine the Scriptures. See there the vengeance which alighted upon those who usurped the functions of the high priest. In a private household every member has his allotted place. In the House of God every Christian has his allotted function. The servant may not rise against his master; and in the Church the master is the priest. What is the lesson of the story of Uzzah? Uzzah might have thought his act was innocent when no Levite was present;⁴²⁴ but God would not have it so. Do not you, like Uzzah, take on yourself the omce of the priest at the bidding of self-made reformers. Korah, Dathan, and Abiram, the reformers of the old Church, were swallowed up alive in the earth. Uzziah was a good prince, but he offered incense on the altar, and was smitten with leprosy.⁴²⁵

‘To the clergy alone Almighty God has given power to bind and to loose. It is a vain excuse that your edicts are but for a time—that you wait for a council. You have meddled with things which are not yours to touch. Wicked men may be among priests, but God alone may punish them; and ever in history it has been seen that those princes only have prospered who have paid honour to the Church, and have respected the rights of the holy priesthood—princes such as Constantine was, as Theodosius was, as Charlemagne was.

‘For the rest, we will not speak now of Nero, of Domitian, or of the persecutors—but princes in later times have set themselves in opposition to the Popes, and what has been their fate? Anastasius, Maurice, Henry IV., Frederick II., have borne witness, all of them, in their miserable ends, to the truth and power of the Almighty. Bad sovereigns, it may be, have sometimes seemed to prosper, in the opinion of the Fathers, lest, if all men were to suffer their just deserts in this world, it might be thought that there was no retribution elsewhere. But the heaviest judgment is the permission to sin and to appear to prosper.

⁴²⁴And when they came to Nachon’s threshing floor, Uzzah put forth his hand to the ark of God, and took hold of it; for the oxen shook it. And the anger of the Lord was kindled against Uzzah, and God smote him there for his error; and there he died by the ark of God.’—2 *Samuel*, cap. vi. vv. 6, 7.

⁴²⁵2 *Chronicles*, cap. xxvi. vv. 16–21.

May your Majesty beware in time: you as yet are not given over to evil, but tremble at the future which may await you. Take example from Constantine, who, when desired to arbitrate among the bishops, refused to judge those who had power to judge all men. You desire a reformation in the Church. It is well. But your place is to assist, not to originate. We, too, desire reformation. We have laboured for a council—God knows how earnestly. We have failed; but we shall persevere. A council alone will heal the wounds of Christendom; and for a council there must be peace, which we implore your Majesty to grant. You have been our dearest child: as a tender parent, we counsel you for your own good. Assume to yourself no functions which do not belong to you. Forbid the Diet of the Empire to touch questions which only the successor of St Peter may resolve. Respect the sacredness of the property of the Church. Lay down your arms, and refer your quarrel with France to the arbitration of the council. Revoke your concessions, or—cost us what it may—we must ourselves come forward, armed with the authority which God has given us, and act towards you as we shall regret that you have compelled us to act. We for ourselves shall at least have escaped the crime of Eli; and for yourself consider whether you will assist the efforts of the Father of Christendom to re-establish order and tranquillity, or lend yourself to those whose labour is to rend in pieces the Church of God.⁴²⁶

To the arguments of this letter no one who desired to retain the name of a Catholic prince could reply; and arriving at a moment when the admonitions which it contained coincided with the suggestions of interest, it may well have persuaded the Emperor that he might lawfully pursue a line of action which worldly honour might condemn, but religion would emphatically approve. The Pope and the Catholic ministers by whom Charles was surrounded would have replied, if interrogated on the point of conscience, that, as it was a sin to enter an alliance with England, so it was a duty to break from it even at the expense of perjury. The Catholic world must have united in the same conclusion, in proportion to the earnestness and consistency with which they adhered to their faith; and though Charles may have left St Dizier with no settled resolution, he may have arrived at conviction before he reached Chasteau Thierry.

At any rate, this is indisputable, that, from the peace of Crêpy onward, the Emperor's conduct towards the Reformation on the Con-

⁴²⁶Paul III. to the Emperor Charles V.: SLEIDAN.

tinient became consistently hostile; and although under fresh provocation from France he again coquetted with England, and even renewed the treaty which he had broken, he allowed the differences with Henry which followed his present desertion to be pressed to the very edge of a war.

While Charles was enjoying his success, and withdrawing at his leisure into Flanders, the English, whose dull consciences were unskilled in nice distinctions, at first took refuge in incredulity. Even the Count de Buren exclaimed that, if his master 'had compounded his causes without the King's Majesty, *par sang de Dieu* he would never after wear harness in his service';⁴²⁷ and Henry, who knew the terms of the message which he had sent, would not credit his ally with treachery while it was possible to doubt. But the necessary proof was not long in arriving. The Emperor being at peace with France, his subjects might no longer bear arms against it; and Count de Buren was ordered to withdraw with the Netherlands division from before Mottreul.⁴²⁸ The Dauphin was reported to be coming down with forced marches to the coast; and four thousand fresh troops, which were coming from England at the beginning of September, and had been countermanded at the capture of Boulogne, were now sent for in haste. The Duke of Norfolk, being weakened by the defection of the Netherlanders, and being liable to be cut off by the advance of the French, raised the siege of Mottreul, and fell back.

The change in the state of affairs, as well as the condition of his health, required the King's presence in England. He crossed to Dover on the 30th of September, and a meeting was held instantly of the privy council, in which it was agreed to send a remonstrance to Charles, and call upon him, since he admitted that the treaty was still in force, to unite in insisting that France should abide by the terms which she had offered to England.⁴²⁹

Henry's absence from the scene almost occasioned the loss of the one advantage which the English had gained. Norfolk had been ordered to occupy the heights behind the town, where the English army had spent the summer, and to remain there while the Dauphin was in the field. Either through timidity or mistake, he only left three

⁴²⁷ *State Papers*, vol. x. p. 84, note.

⁴²⁸ So Du Bellay says, and de Buren in fact withdrew. The Emperor, however, denied that any such order had been given by him.—*State Papers*, vol. x. p. 98.

⁴²⁹ *State Papers*, vol. x. p. 94.

thousand men and a party of pioneers under Sir Edward Poynings behind the half-repaired fortifications which had been destroyed in the siege, and retired within the Calais Pale. Irritated beyond measure at a disobedience which imperilled the only compensating feature in his position, Henry wrote the most angry letter which survives of his composition. 'He marvelled how Norfolk had durst so to do without knowledge of his pleasure'—'excuse there was none.' He must return without a moment's delay to the position which he had been commanded to hold.⁴³⁰ Unluckily, the King might order, but the mischief was done, and obedience was no longer possible. Between Calais and Boulogne the Dauphin now lay with fifty thousand men, horse and foot. Norfolk had but eight thousand remaining; and Boulogne must be left to the courage of the little band to whom it had been entrusted. The letter in which the Duke stated his inability to repair his error was written on the yth of October. At midnight on the 9th a party of French made their way through the ruins of the walls of the lower town, wearing white shirts over their armour, to imitate the smock frocks of the English labourers. When the alarm was given they raised the English cry of 'Bows! bows!' and in the confusion, and protected by their disguise, they killed the sentinels and threw open the gates. Poynings, with the efficient portion of the garrison, was in the fortress on the higher ground. To meet the French were only the camp-followers, servants, and workmen, half-armed, encumbered with the disorder which had followed the siege, amidst stores freshly landed from England, spoils waiting to be removed, carts, waggons, the baggage of the army which had gone home, filling the streets and the quays. The enemy thronged in, at first meeting no opposition; they killed every one that they could find, and supposing that the garrison had not dared to encounter them, and had fled, they dispersed in search of pillage. Meantime the English had collected under the fortress; the alarm was given; arms were thrown out to them by the troops, and they swung back down the hill into the press. The French in turn were now surprised. They were scattered in small parties, and cut in pieces in all directions. M. de Fougerolles, who had led the attack, was killed, and they were unable to make an effective rally before Poynings, with the regular troops, was upon them. There was then a general rush for the walls and gates. Eight hundred fell before they could extricate themselves in the darkness,

⁴³⁰*State Papers*, vol. x. p. 96.

and the rest made their way to the Dauphin's camp, complaining that they had been betrayed. The Dauphin was furious at their carelessness. De Monluc, one of the French generals, accused the Dauphin of cowardice. The night passed in recrimination. In the morning they determined to repair their failure by a general assault.

But though the fortifications were still unrepaired, the English had not been idle in their three weeks of possession. The heavy guns which they had used in the siege had been mounted on the ramparts. Fresh cannon had been landed, which had been sent from Dover; and when the French army, which had come down in haste, with only their arms and horses, and were wholly without Artillery, saw in the daylight the reception which was waiting them, they hung back irresolute. The Dauphin, smarting under the taunts of De Monluc, would have gone forward at all hazards; but his hot blood was cooled by more prudent counsels. Leaving Boulogne, they made a dash at Guisnes, where they failed also; and they withdrew to return more efficiently provided, when the insolent Islanders were to be annihilated.⁴³¹

The first burst of the onset had thus passed over. The English still held their acquisition, and for the present were likely to hold it. Norfolk was forgiven, though it would have gone hardly with him had the attack been successful; and reinforcements, provisions, and all other necessary materials were sent across in haste, to assist Poyning's to prepare for the siege which would inevitably be attempted in the winter.

The Emperor had trusted that Boulogne would have been recaptured; having been thus freed from his principal alarm, he might then have interposed to secure for England some peace not wholly ignominious. It had now become necessary for him to keep up appearances in another way, or he must relinquish the pretence of adhering to the treaty. It was arranged, therefore, that a conference should take place at Calais, in which Lord Hertford, Sir William Paget, and Gardiner, on behalf of the English, the Cardinal du Bellay and the President of Rouen for France, and De Courieres and the Bishop of Arras for the Empire, should attempt to bring about an arrangement. Henry still persuaded himself that Charles had not been consciously treacherous, that he had really made peace from necessity, and that, if he was playing false, it must be with France rather than himself.

⁴³¹ DU BELLAY's *Memoirs*: and see HALL and LORD HERBERT.

Rumours, indeed, reached him that Francis had been offered the assistance of a Spanish force. He heard from good authority that, in a conversation with Cardinal Tournon and D'Annebault, the Emperor had described 'the English conditions as importable.'⁴³² But his own sense of honour was credulous of the honour of others; he attributed the words to Tournon, and ' marvelled rather that the Emperor did not answer' that the conditions were short of those which Francis had himself proposed, and which the King might have accepted had he consulted his separate interests.⁴³³ Charles, on the other hand, was profuse in his expressions of goodwill to Wotton; he professed himself most anxious for peace—most desirous to forward it: at the same time, though he did not avow, yet he did not conceal, his desire that Boulogne should be restored; the French insisted on it, he said; if it was refused, no terms could be accepted; they were bringing up their whole naval force; they would command the Channel; they would invest the town by land and sea; he had told them that the English would hold their ground; but he gave no hint that he would himself move to assist them in doing so.⁴³⁴

On the 18th of October the Calais conference opened, while the Dauphin's army, still twenty-six thousand strong, hovered at Motreul, and threatened to return to the attack if the negotiations came to nothing. The Duke of Norfolk, in a preliminary interview with Arras, informed him of the resolutions in which England would persist, and of their expectations under the treaty. 'We took it,' he warned the Bishop, 'that, if leagues were of force and strength, like as the French King sued apart to the Emperor, fearing both princes' powers, so must he now sue to the King's Majesty, fearing both princes' powers; and if the Emperor would not maintain them, they would have cause to complain to the world of faith and leagues as justly as ever men did.'⁴³⁵ The representatives of the three powers then assembled, and Cardinal du Bellay required a statement of the English demands. They were simple, being a repetition of the terms which he had brought himself five weeks previously from Paris, with the addition of a retention of their conquest as a security for their debt. But

⁴³²The Emperor communing with the Cardinal of Tournon and the admiral of the conditions your Majesty sent to the French King, saith the conditions your Majesty required were importable.'—*State Papers*, vol. x. p. 99.

⁴³³*Ibid.* p. 102.

⁴³⁴Wotton to Henry VIII.: *ibid.* p. 109, &c.

⁴³⁵*State Papers*, vol. x. p. 125.

five weeks had made other differences besides the capture of a French town. 'Then was then,' the French commissioners frankly answered, 'and now is now.' If they pleased, they might dispute the pensions; and, for 'damages of war,' it was they, whose country had been invaded, whose towns had been assaulted, whose villages had been wasted, that had most right to ask for 'damages.' But in the interests of Europe they would consent to waive the letter of their last claims. They would admit their debts, and they would pay them; but that should be their last and only concession. No inch of French ground should be surrendered. In Scotland they would act as they pleased, and would not listen to dictation. Let the English evacuate Boulogne on the instant, and they should have their money. If they refused, the Dauphin would take it by force, and they should have nothing.

The Peace of Crêpy was bearing fruit. Paget said calmly that Boulogne belonged to England for the present by right of conquest; they meant to keep it, and by the Emperor's help they would keep it. He appealed to the Bishop of Arras. But Arras 'had no commission,' and would say nothing. Arras was sent to bring about a peace with France, not to discuss the obligations of other powers. The French felt their ground firm; they again clamoured for restitution, and 'they bragged of their force of thirty thousand men.'

What were the English to do? If the question had been merely whether the possession of a second fortress in France, in addition to Calais, was worth the continuance of the war—although as a naval station, and as a material guarantee for the settlement of other differences, the occupation was of no slight value to them—it might have been doubted whether the advantages were worth the price which they might cost. But the point of the matter was rather whether England, engaged in a mortal duel with the Papacy, could afford to make a confession of weakness to the world, and submit to be the dupe of a trick which the nation was too feeble to resent. It was emphatically certain that they could not. If the Emperor would not stand by them, it seemed rather that they must show that they could stand themselves without his assistance. If he would break his faith, he might do so; 'but, when all friendship should fail,' the English commissioners replied, 'there was not a man within the realm of England but would spend all that ever he had, and adventure his person withal, towards the defence and keeping of Boulogne.'⁴³⁶

⁴³⁶Hertford, Paget, and Gardiner to Henry VIII.: *State Papers*, vol. x. p. 130.

The resolution was definitive. There would be no yielding, and the French rose to depart. It was decided, on second thoughts, that, before the conference closed finally, there should be a reference on both sides to Paris and London; but peace appeared impossible. During the interval which followed, Du Bellay, being under the impression that the English were still deceiving themselves with expectations from Charles V., sought a private interview with Paget, and lifted a corner of the veil which covered the mystery of Crêpy. The Pope, he said, had laboured with all his efforts to prevent even the present conference,⁴³⁷ and had offered to spend the jewels in his crown in the maintenance of the quarrel. The Emperor was treacherous to the core. He had already secretly agreed with Paul for a general council to open at Trent in the spring; and the first act of that council would be to summon the King of England to appear by his representatives, and if he refused, to declare him contumacious. And here Du Bellay, as Paget informed the King, 'went about at length to blaspheme the Emperor, telling many discourses how he had deceived all the world, and how he would eftsoons deceive your Majesty, and that he would lose his life if the Emperor ever entered again into the war for your pleasure.'⁴³⁸ But the truth, if this was the truth, could make no difference. After a few days' delay, answers came from the two Governments. The French commissioners were instructed to break up the conference. Henry, through the Duke of Norfolk, sent over his own resolutions in language not conciliatory. 'The Duke,' he wrote, 'shall answer to the Cardinal du Bellay's saying that his master would have Boulogne rendered unto him again, or else if he won it by force he would pay neither pensions nor arrears—thus: 'Thinketh he that the King's Majesty is so inferior to his master that his Highness dare not contrary to his will? that his Majesty is so afeared with his threats that his Highness would obey thereto? He may stand so in his own conceit; but by all the journeys which his Majesty or his lieutenants have made hitherto into France, it hath never showed so, nor his Majesty trusted never shall. It shall be a dear Boulogne to him an he recover it for all his brags.'⁴³⁹

The Emperor's intentions should now be ascertained with distinctness. Of all the English ministers Gardiner was most interested in

⁴³⁷Ibid. p. 131.

⁴³⁸*State Papers*, vol. x. p. 140.

⁴³⁹Henry VIII. to the Duke of Norfolk: *State Papers*, vol. x. p. 143.

those intentions. The alliance had been the triumph of his policy; if it fell through, his influence at home, already waning, would be lost utterly. Gardiner, therefore, was permitted to go from Calais to Brussels, and to learn Charles's meaning from his own lips. The apology for the peace had been the supposed consent of Henry through the Bishop of Arras; but even by the Bishop's story the maintenance of the treaty had been a condition of that consent; and the French, by their recent attack on Guisnes, had created one of the contingencies for which the treaty definitely provided. The Emperor, therefore, it was thought, would be forced to declare himself; and Henry wrote to him with his own hand, assuring him that, as to Boulogne, even if he would himself surrender it, his subjects would not consent;⁴⁴⁰ and entreating him, for the sake of their friendship, not to trifle with him, but to speak the truth, whatever the truth was to be.⁴⁴¹

The result of the first interview with Charles and his minister was reported on the 27th of October. The Bishop of Winchester, as a partial check upon his tendencies, had been accompanied by Hertford.

They found the Emperor himself apparently frank. They read over the terms of the alliance, which, as they said, were 'so open and so express, as he that could but read and understand language could not mistake them;' and the Emperor, though he admitted that, having made peace with France, he would be glad to remain quiet, yet allowed that 'his first faith was to his good brother, and that he would not break.' The difficulty was about Boulogne. He could not ask Henry to surrender it; and yet he trusted 'that a way might be found.' Granvelle would go into details with them; and whatever the treaty should require of him, he would observe without fail. Both words and manner were reassuring. They hastened to the minister, who showed them the reverse of the page. They spoke again of the treaty; Granvelle met them with eager promptness, and snapped the strongest clauses, as the Jewish hero broke the new cords with which his mistress had bound him. The league, he said, was conditional; and by remaining at Boulogne Henry had broken the terms. It was

⁴⁴⁰The Privy Council, writing to Paget, endorsed this opinion. 'We think,' they said, 'for so much as we can perceive here, there is not one Englishman but will spend all that he hath with his blood an Boulogne shall again be French.' *State Papers*, vol. x. p. 137.

⁴⁴¹*Vous priant affectueusement, de vous montrer en cest endroit comme l'amitie que longue temps a este entre nous le requiert et nous balier per iceulx brieffe et resolute response.*—Henry VIII. to Charles V.: *ibid.* p. 133.

to last only till both parties were content; and his son of Arras was positive that Henry had declared himself content. The attack on Guisnes was but a part of the attempt on Boulogne; and the Emperor was not to go to war to make conquests for England. He was asked if he thought it likely 'that the King of England should have been content that the Emperor should have the commodity of war, and let his Highness shift.' 'My son of Arras' was again the referee, from whom he admitted no appeal. The English envoys were not without experience in diplomatic legerdemain; but so daring a practitioner was new to them. M. de Granvelle then considered, they said, that it was becoming and proper 'that, after so great treasure spent, with the travail of his Highness's person, the Emperor, his confederate, enjoying a triumphant peace concluded with hostages, his Highness should be forced to fall to entreaty, and say, 'I pray you let me have somewhat.' If his object was to find a loophole, 'whereby to declare the Emperor discharged,' they desired him to say so in plain words. They would not undertake to commend his honesty; but the truth under any form would be welcome to them.

'Hereat,' they reported, 'M. de Granvelle seemed somewhat moved, and said it was not the fashion of that Court to speak so.'⁴⁴² But they could extract nothing from him; at every point where they fastened a hold he escaped into generalities, doubts, uncertainties, and 'my son of Arras;' he would see what was to be done; or the Emperor would see; they should have their answer in a few days.

A week passed and they were again sent for. The treaty, they were informed briefly, had been carefully considered, and was found to carry with it no such obligations as the English pretended. The Emperor would observe to the letter his duties to the King of England; but, having made peace with France, with his good brother's consent, it could in no sense be a duty to return to a state of war; and therefore he must not, and would not. Gardiner's hopes had received their death-stroke; he must prepare for the now inevitable consequences.

By this time the approach of the Council of Trent was known to be a certainty. Special letters of invitation had been addressed by Paul to the Emperor and the King of France. Charles had promised to be present in person: he had undertaken, if possible, to bring Francis with him; and had assured himself and the Pope of the consent of

⁴⁴²*State Papers*, vol. x. p. 156.

'all Christian princes except the King of England.'⁴⁴³ Whether force or treachery would be employed towards the Germans had not as yet been made manifest; but they, too, as well as England, had caught the alarm. Their instincts taught them that the Peace of Crêpy was no gratuitous treachery; that the unscrupulousness which had broken the English treaty would as little regard the promises of Speyer; and the keener-sighted among them were feeling acutely that the friends of the Reformation might not be divided by minor differences, that they must forget the divorce of Anne of Cleves, and again, if possible, attach themselves to Henry. In the course of October the Landgrave spoke confidentially to Christopher Mont. Mont wrote to Paget at Calais; and Paget was sufficiently aware of Henry's disposition to be not only able to reply favourably as to a general amity, but to add that, if the attempt which had failed in 1538 to come to an agreement in matters of religion, were now renewed, it would perhaps have a different result.⁴⁴⁴ Gardiner saw it all. The future rose before him ominous of evil. The spirit of Cromwell was reviving; and heresy would be once more in the ascendant. To avert so frightful a calamity, he made a last and a remarkable effort. The Bishop of Arras was the person most responsible for the present complications. If the Bishop could be prevailed upon to tell the truth, his father and the Emperor would lose their excuse, and would be forced back, in spite of themselves, to Henry's side. With a hope which he perhaps was fond enough to believe might be fulfilled, he wrote therefore the ensuing letter:—

'RIGHT REVEREND LORD—

'Unwilling as I am to enter in private upon public subjects, yet our last conference has so afflicted me, that, to relieve the sorrow of my heart, I address myself to you, a bishop to a bishop, and I trust that your goodness will forgive me. At all times I have been zealous above most men for the honour and good name of the Emperor, an honour hitherto spotless in its purity, yet now, I know not through what misfortune, tarnished by those who ought to have been its especial defenders. The Emperor's honour, I say, is compromised so

⁴⁴³*State Papers*, vol. x. p. 168.

⁴⁴⁴'I doubt not but if they had sent, or shall send to his Majesty, minding to grow to any good and indifferent conformity in certain matters of religion, which was the cause why there was no full agreement at the last time they sent ambassadors, such answers should have been and yet shall be made to them, as wherewith they shall have good and just cause to be contented.'—Paget to Mont: *State Papers*, vol. x. p. 188

long as we, to whom you are bound with so many ties, are left single-handed in this war; and do you think that so fair an opportunity will be passed over by those who, in their eagerness to calumniate him, have stooped to falsehood? The Emperor himself, I am well assured, would never have broken his faith and perilled his soul to gain the whole world. He is prudent. He may shrink from labour and expense which he may decline without dishonour; and so far none will blame him. But he is under an error, and the error is one for which men say that you are responsible. You will be charged with having broken an alliance between two honourable princes by your unworthy manœuvres. Bear with me. I do but tell you in private what others will proclaim in the streets. You came to us to learn our demands; and when you told us of the embarrassment of the Emperor, the King's Majesty was contented, for his friend's convenience, to relinquish many claims which in fairness he might have urged. Our conditions were detailed to you, and you were told that the Emperor might arrange his own; but we stipulated for adherence to the treaty. His Highness, you were directed to say, was not unwilling for a peace, but with conditions which you cannot deny. I require you, therefore, to say whether, in the face of a treaty which declares the satisfaction of the King's Majesty a preliminary of any peace which either of the contracting powers may enter, which prescribes special terms of satisfaction—although his Highness was contented, for the sake of amity, to relax those terms—you can pretend that it is with his Majesty's consent that he finds himself thus left alone. You profess to have reported his very expressions; but your father has taken so many of those expressions as make for his convenience, and, incredible and absurd as they are if divided from the remainder of the message, he claims in them a justification of his own and his master's conduct. I marvel he is not ashamed so to trifle with your master's credit as to make you responsible for a story which all men know to be a lie, which we, for our own sake, are bound to expose and protest against. Sorry am I, for the credit of our order, that you should have borne a part in this farce at a time when, if there be a knavish action performed anywhere, a bishop is ever suspected of having played a chief hand in it.⁴⁴⁵

⁴⁴⁵Dolet has *fabulæ partes egisse te, vel communi episcoporum causâ hoc tempore præsertim in quo si quid astute aut callide fiat in co primas ad episcopos deferunt.*—Exemplum Litterarum ad Arabatensem Episcopum: *State Papers*, vol. x. p. 193.

Gardiner could lay on the lash; but also Arras could endure without flinching. The council met again and again to listen to the protests of the ambassadors, but Arras gave no sign, and Granvelle received the thrusts which were aimed at him with impenetrable indifference. 'They thought,' and 'they believed,' and 'they would consider.' 'Consider!' Gardiner at last passionately exclaimed, 'if you would consider well, the Emperor has more hurt from you than the King of England. The King is spending only his treasure, which is reparable. The Emperor is spending his honour and credit, which is not reparable.' 'We bade them good night,' he wrote in a letter to England, 'as academics that would neither say yea nor nay, with purpose when we come to the Emperor to tell him a very plain tale.'⁴⁴⁶

The Bishop and Hertford had been directed to take their last answer only from Charles. An interview which they resolved to make decisive was conceded, and three days later they were received in his private apartments. He had been suffering from a return of gout, and when they entered he 'was sitting in a low chair with his legs wrapped in a cloth.' Men who play for high stakes in life know the value of simplicity in common things; and Charles, like Augustus Cæsar, in his private intercourse, exchanged the monarch for the well-bred gentleman. The Viceroy of Sicily and M. du Praet came in with the English, The Emperor was full of courtesy; he 'devised familiarly on his disease;' and Du Praet being a fellow-sufferer, 'the Emperor smiled upon him and bade him take a stool and sit down, for no one should see him.' He then 'fashioned himself' to hear what Gardiner and Hertford had to say.

They went at length over the often-trodden ground. They complained of Granvelle, whose language, they said, touched the Emperor's honour. They tried to have confidence in himself, but they knew not what to think; and Hertford, without betraying names, mentioned the words which Cardinal du Bellay had used to Paget.

Charles replied, and with extreme graciousness. He professed his deep regard for the King. There had been matters between them, it was true, in time past, which, in other hands than his, might have caused displeasure; but he had put them aside; and now, he should have thought, his goodwill could scarcely be suspected. He had examined the treaty, and he seemed to admit that there was a kind of force in it. But it was now winter. If he declared war as they de-

⁴⁴⁶*State Papers*, vol. x. p. 201.

sired, he could not move till the spring; while at present, as a friend of France, he could use his intercession to some advantage. Compared to Charles, what a novice in diplomacy was Granville! The envoys had come full of indignation, and resolute to force an answer clear and positive. The courteous manner disarmed their attacks; the evasion was so delicate, that it could not offend. At such a season, as the Emperor suggested, the delay of a few weeks was of no importance; and it was hinted that the French were slower than they ought to have been in evacuating the towns in Savoy. On the whole, it seemed better to the Bishop of Winchester—still clinging to the skirts of his vanishing dream—'to depart with a dark answer than with a clear resolution,' if an unfavourable one. The interview closed as the rest had closed—not, however, without a few plain words, for which we may perhaps credit Lord Hertford.

'They desired the Emperor to consider the matter, and to remember that his Majesty was a prince of knowledge and of courage, who, upon confidence of the Emperor's amity, had entered the war with a marvellous charge. Hitherto the treaty had served the Emperor's purpose, and now it was reason his Majesty had some commodity by it; and if it was not regarded now, it would never be regarded. And how that would wound his Majesty's heart, and the hearts of his Highness's subjects likewise, it was good to be considered, and with speed. England had stood the Emperor in good stead. Let the Emperor order England so as it might do so again. The world of itself was changeable, and he had to do with a people that had changed with him often.'⁴⁴⁷

The circulars for the Council of Trent had meanwhile been sent round among the higher clergy. The unwearied Pope began again to weave a league against England; and in the first week in December a war was talked of in the Netherlands, which events seemed as if they might easily precipitate.⁴⁴⁸ Charles's Catholic subjects, who wished well to France, had fitted out ships in the Scheldt, and carried stores into the French harbours. French merchants had hired Flemish ships to carry on their trade, covering their cargoes under

⁴⁴⁷Hertford and Gardiner to Henry VIII.: *State Papers*, vol. x. p. 206.

⁴⁴⁸'They begin to say abroad that the Bishop of Rome solicitates much the Emperor to make a league betwixt the Emperor, the French King, and him, whereby he would attempt to force your Majesty to agree to their opinions; and they that speak hereof seem to fear the breach of amity betwixt your Majesty and these countries.'—Wotton to Henry VIII.: *ibid.* p. 231.

a neutral flag. The English privateers held themselves at liberty to enforce blockades, under pain of confiscation, and seize enemies' goods wherever they could find them. Sixteen or seventeen vessels belonging to Antwerp were brought into Dartmouth and Fowey, and condemned. The owners were furious, and clamoured for reprisals. Simultaneously the Inquisition began its work in the Low Countries. Prohibitory edicts were issued. Heretics began again to be hunted out, seized, and burnt. Even to common observers the situation revealed its meaning. It was time for all who intended to escape from being crushed by the Papacy to look about them. Mont's letter from Germany, and Paget's answer, were followed speedily by positive advances. The princes of the Smalcaldic League aroused themselves to a sense of their peril. Francis was said to have vowed revenge for the grant of aid in the war by the Diet. The fate of the Duke of Cleves taught them what to expect from Charles if he really intended to deceive them. An alliance with England was the best hope for themselves and for their cause. Maurice of Saxe sent offers to take service under Henry against France. The Landgrave more positively undertook to join him with twelve thousand men. Henry replied to them both, with an eager welcome as soldiers; and he confirmed the hope that a deeper union was no longer impossible. In England, as well as Germany, it is likely that principle was quickened by self-interest. The Protestant Alliance was the invariable resource when the attitude of the Empire was ambiguous. Yet that Henry was prepared to accept a further progress in the Reformation, as forced upon him by Charles's treachery, the following message, which he addressed through Mont to Prince Maurice and the Landgrave, may be allowed to prove:—

Albeit, heretofore, certain commissioners of both parties assembled together, and being without respect one to another's policy, and more earnest and vehement in some points on both sides than was requisite, they departed without any such conclusion as with some indifferent handling might have succeeded, to the ensured conjunction and amity of both us and our dominions, and the universal weal and quiet of all Christendom, you,' the King said to Mont, 'shall say that, of this entry and beginning again you trust to see some good effect succeed of these matters, wherein no nations of Christendom be so like to agree as we be ... having one *certain* enemy the Bishop of Rome, and being both of such a zeal as, if they would grow to some

good moderation, and address some good men and well learned to talk and confer again in the matters of religion, with commissioners to be appointed for our part—either party somewhat relenting from extremities, and framing themselves to a godly indifferency and moderation—the agreement and conclusion must needs ensue of the said meeting, which hitherto hath been so often desired, to the glory and honour of God and His word, the establishment of a perfect amity between us, and to the terrour of others which have always, and yet do still continually travail and practise to hinder and impeach the same.⁴⁴⁹ The promise of union was again fair: again it was fated to fail.

⁴⁴⁹Henry VIII. to Beauclerk and Mont: *State Papers*, vol. x. p. 222.

CHAPTER XXII

THE INVASION

THE fortifications necessary for the defence of Boulogne, the garrison, the fleet, the ordnance stores, the troops at Calais, on the Scottish Border, and in Ireland, were reported as likely to cost, in the six months from December to May, a hundred and four thousand pounds.⁴⁵⁰ The second instalment of the last subsidy—which had been collected, but was not yet paid into the treasury—would yield, it was calculated, a hundred thousand; but nearly half that sum was already due for the arrears of the past year. Upwards of forty thousand more would be, therefore, in instant requisition; and the King had coined down the crown plate, and had raised the last penny which he could for the present obtain by sale or mortgage of his estates. Parliament was to have met on the 1st of February; and as the nation was placed on its mettle by the Emperor's desertion, Parliament would no doubt be liberal. But a money bill could not be carried through the Houses in less than a month; and, by general usage, five months were always allowed to elapse between the vote of a supply and the levy of the first payment. It was thought unjust, also, to press so soon for a second war tax on the body of the people; and at a moment when every nobleman and gentleman was exerting himself to the utmost in preparing his tenants for service in the ensuing summer, to bring many of them to London in the winter and the spring would distract them from their duties, and expose them to a needless expense.⁴⁵¹ For these reasons the privy council decided that the meeting of Parliament should be postponed till the following autumn; and

⁴⁵⁰Minute of Mr Secretary Paget on the State of the Realm: HAINES' *State Papers*, vol. i.

⁴⁵¹HAINES' *State Papers*, vol. i. The readiness of the country to support the Government is well described by Becon: 'When the King's letters were delivered for the preparing of certain people apt for the wars, how expeditely was his Grace's pleasure accomplished in every condition! The gentlemen, all other businesses laid aside, immediately provided their appointed number of men, arraying them with decent martial armour, so that nothing wanted, but all things set at such a stay that they, receiving premonition of very little time, were ready at all hours to bring forth their men apt and ready for the wars. The men which were pressed to go unto the wars it was almost incredible to see and perceive what alacrity and quickness of spirit was in them. They seemed to be so desirous to defend their country, that they in a manner neglected their domestical travails, their private business, not much esteemed their dear wives and children, no nor yet their own lives, so that they might in any

that, for immediate necessities, a benevolence should be levied exclusively from the opulent classes. Should the war continue, a subsidy might be asked for when it could be paid with less inconvenience.⁴⁵² 'The common people,' for the current year 'should not be grieved;'⁴⁵³ and no person should be called on to contribute unless with his own consent, or unless his circumstances notoriously justified a demand upon him.⁴⁵⁴

Fifty or sixty thousand pounds, it was calculated, might be raised in this way; and thus they might struggle on till May. Forty thousand more would then fall in from sales of Crown lands already effected; and the ordinary revenue might afterwards be sufficient for the summer campaign. The estimate of expenses (as usual in such cases) fell far short of the reality; but the alternative lay only between a bold bearing, at whatever cost, and a peace equivalent to a defeat. The bulk of the people had no cause to complain; and the gentlemen preferred the honour of their country to their personal convenience. The clergy, being unable to give active assistance, were expected to be the largest contributors. The Bishop of Bath—not, indeed, without some gentle pressing—yielded a thousand marks.⁴⁵⁵ In general the money was paid in cheerfully; and the only resistance of a demonstrative kind was offered by a few tradesmen and merchants in London. Alderman Reed objected to a demand which he considered unconstitutional. Alderman Rock was insolent to the commissioners for the collection. The latter was consigned to three months' meditation in the Fleet Prison. The former, appealing to the letter of his bond, was taken at his word. The feudal duties of his office, though commuted

point do good to the public weal of England.'—STRYPE's *Memorials*, vol. i. pp. 601, 602.

⁴⁵²Paget takes credit to the council for patriotism in this arrangement. 'If we should regard our private commodities,' he says, 'we would rather desire a Parliament than none, for then we should pay nothing mora than the law appoint eth; whereas now, Upon prorogation of the Parliament, we shall pay that which the law will bind us unto, and also every of us will stretch himself besides to his power in benevolence.'—Paget's Minute: HAINES, vol. i.

⁴⁵³*Ibid.*

⁴⁵⁴*Ibid.* From a passage in the same minute it seems that the unfruitfulness of the King's last marriage was creating great anxiety. 'As to the matter of the succession,' he says, 'as it is undoubtedly a marvellous great matter, so we trust that God, which hath hitherto preserved his Majesty to his glory and honour, and to our comfort, will preserve him longer and send him time enough both to proceed for that and many other things which be to be looked upon.'

⁴⁵⁵MS. *State Paper Office, Domestic*, vol. xvi.

by long usage for money payments, bound him to render military service for a fixed period at the call of the Crown: he was ordered to the Scotch Border to join the troops under Lord Evers.⁴⁵⁶ With these insignificant exceptions, the Government had no cause to complain of backwardness.

Meanwhile Sir Thomas Seymour kept the seas open with the fleet, while supplies were thrown into Boulogne. The Thames and the harbours along the southern coast were crowded with prizes brought in by the adventurers. The amount of provisions which had been taken was so considerable as to affect the markets, and keep down for the present a rise of prices; and (a noticeable evidence of the temper of the time) the churches belonging to the suppressed houses of religion in London were converted into warehouses for reception of the confiscated cargoes. The Grey Friars was filled with wine; Austin Friars and Black Friars with salt herring and dried cod. Nor had the winter suspended more active hostilities. France had risen for the struggle as gallantly as her ancient rival. The shadow of English domination, which had receded to the single point of Calais, was again threatening to advance; and the French people, exhausted as they were, threw out their whole strength for the conflict.⁴⁵⁷ They would drive the intruders from the Continent. They would carry the war across the Channel. They would seize Thanet or the Isle of Wight. Their spies were surveying Kent and Surrey, for a possible march upon

⁴⁵⁶Holinshed; Stow; Lord Herbert.

⁴⁵⁷'Last year the French King had much ado to get any money of his subjects against the Emperor. Against us they are content to give all that they have.'—Wotton to Paget: *State Papers*, vol. x. p. 461: and see DU BELLAY'S *Memoirs*.

London.⁴⁵⁸ Before all things, and without delay, they would recover Boulogne.

On the 26th of January M. de Biez, with fourteen thousand men, encamped opposite the town, across the river, and commenced throwing up works to command the entrance of the harbour.⁴⁵⁹ The site which he designed for the fort was by the sand-hills, close to the sea; and could he have succeeded in establishing himself there, he could have sunk any vessel which attempted to pass, and the fall of the place would have been inevitable. But the English engineers had been too quick for him: a chain of works had been extended along the ridge which follows the north bank of the river, from the citadel to the mouth. At the extremity, where a pillar stood which was called 'the Old Man,' batteries, heavily armed, commanded the southern shore,

⁴⁵⁸Stephen Vaughan sent the following information to the King, from Antwerp: 'A French broker,' he said, 'hath secretly called upon me. He asked me if there was not in England an island called Sheppy, and a place by it called Margate, and by those two a haven. I said there was. 'Then,' said he, 'you may perceive I have heard of these places, though I have never been there myself. To the effect of my discovery,' said he, 'you shall understand that the French King hath sent unto this town of Antwerp a gentleman of Lorrayne named Joseph Chevalier. The same hath sent out of this town, two days past, a Frenchman, being a bourgeois of Antwerp, named John Boden, together with another man that nameth himself to be born in Geneva, but indeed he is a Frenchman. These two,' he said, 'were sent from hence in a hoy by sea, and had delivered unto them eleven packs of canvass to be by them uttered and sold in London, and the money coming thereof to maintain their charges there. The said Joseph Chevalier, besides these two, hath sent another broker named John Young, also of this town; he speaketh singularly well the English tongue. These three shall meet together in London, and shall lodge in a Fleming's house dwelling by the Thames, named Waters. The first two shall have charge to view and consider the said Isle of Sheppy, Margate, and the grounds between them and London; what landing there may be for the French King's army, what soils to place an army strongly in. For,' said he, 'the French King hath bruited that he will send forth this summer three armies, one to land in England, the second in Scotland, and the third he mindeth to send to Boulogne, and Guisnes, and Calais. But his purpose is to send no army to Scotland, for he hath appointed with the Scots that while his armies shall be arrived, the one at Margate and the other at Boulogne, they shall set upon the north parts of England, with all the power they can make. The French King proposeth with his army that he appointeth to land in the Isle of Sheppy and at Margate, to send great store of victuals, which shall be laden in boats of Normandy with flat bottoms, which, together with the galleys, shall then set men on land. This army shall go so strong that it shall be able to give battle, and is minded, if the same may be able, to go through to London, where,' said he, 'a little without the same is a hill from which London lyeth all open, and with their ordnance laid from thence they shall beat the town.'—*State Papers*, vol. x. p. 302.

⁴⁵⁹Du Bellay's *Memoirs*

and from their elevated situation could search the French trenches. M. de Biez was compelled to take a position, comparatively useless, in front of Boulogne itself. Here for ten days he was allowed to remain disturbed; but the number of the garrison had now been raised to seven thousand—the choicest soldiers which England could supply; and Lord Hertford was in command, whose ability as a general was as remarkable as his weakness as a statesman. Waiting for a favourable tide, they stole across the water two hours before day-break on the 6th of February, and flung themselves in the darkness on the French camp. The surprise was complete, and caused a panic, instant and irredeemable. Tents, stores, artillery, were left to their fate; the whole army thought only of saving their lives, and fled towards Mottreul, being chased as far as Hardelot sands by a reserve of English cavalry, who, returning at their leisure, swept the supplies of the country before them within the lines of Boulogne.⁴⁶⁰

This brilliant exploit was a fair commencement of the year. The lustre of it was clouded by a disaster which followed shortly after in Scotland. The sack of Edinburgh and the havoc on the Borders had been intended for a punishment; but the effect, so far from being salutary, had only been to exasperate. The Government was strengthened everywhere by an effervescence of patriotism; the Earl of Lennox had been forced to take refuge with Henry, who rewarded his services with the hand of Lady Margaret Douglas.

Lord Evers continued through the winter his desolating inroads; and the numbers and condition of his troops were maintained on so high a scale, that the Scots could neither retaliate nor effectually check them. Jedburgh and Kelso were again ravaged. Coldingham was taken and fortified, and an English garrison was left in possession; and though Arran attempted to recover it by assault, he failed disgracefully: except for the energy of Angus, whose patriotism was stronger than his promises to Henry, he would have left his guns under the walls to the enemy. Yet these misadventures added only to the hatred of the people without exciting their fears. The rumour had gone abroad of the menace of the annexation. Evers and Sir Brian Layton, it was said, had promised to conquer the whole country south of the Forth. Imagination had added that the land was to be desolated, 'the noblemen to be made into shepherds,' or else the population—

⁴⁶⁰Holinshed; Hall; Du Bellay: *State Papers*, vol. x. p. 289.

man, woman, and child—to be exterminated.⁴⁶¹ Encouraged by the despair which these stories provoked, by the promise of assistance from France, and the expectation of a war between England and the Empire,⁴⁶² the Scots determined that they would never yield while a sword remained unbroken or an arm was left to strike a blow. The Douglasses continued to correspond with Henry and affect a goodwill; but the King judged their intentions from their actions rather than their words; and the Wardens of the Marches, who had spared their estates so long as they were believed to be on the English side, had in the late inroads involved them in the general ruin.

The Scots could not bring a power into the field to meet their enemies openly; but stratagem might, perhaps, balance the inequality of force. High words passed in the middle of February between Evers and Sir George Douglas, on account of the rigorous execution of the last orders.⁴⁶³ A few days later a party of Scots, pretending to be confederates with the English, brought information to Berwick that the Regent was lying with a small force at Melrose, and might be surprised. Evers started to seize him, with from four to five thousand men. on the 25th of February. The Regent retired as he advanced. Evers took possession of the abbey, and, either disappointed of expected assistance from the Earl of Angus, or hearing that he was with the Regent, he allowed his irritation to provoke him into an act of gratuitous barbarism. The princely ancestors of the Earl, for centuries the arbiters of Scotland, slept in the aisles of Melrose Abbey. Evers insulted the waning greatness of an almost imperial family, by desecrating their tombs. He then turned in pursuit of the Regent, who hovered at a distance, and would not allow himself to be overtaken; and the English, after an ineffectual chase for a day and a night, at length gave up the enterprise, and on the morning of the 27th were returning from Melrose to Jedburgh, across Ancram Muir. They were weary with a long march. The Scots, though they did not know it, were before and behind them; and at this time, whatever may have been their previous intentions, the Douglasses were with the Regent.

⁴⁶¹ Henry VIII. to Sir George Douglas; Douglas to Henry VIII.: *State Papers*, vol. v. pp. 415–418. The inroads of the English in the winter were distinguished by peculiar ferocity. Evers's troops were many of them English Marchers, who carried their personal feuds into the war; and if Sir George Douglas spoke the truth, some of these had even killed women and children.

⁴⁶² *State Papers*, vol. v. pp. 415–418.

⁴⁶³ *State Papers*, vol. v. p. 417.

The first body of the enemy which the English saw they rushed upon with careless eagerness; but a high wind and a violent dust threw them into disorder. Angus shouted to Arran, 'Thou art suspected to be a coward, and I to be a traitor: if thou wouldst purge thyself of slander, let deeds, not painted speeches, now make your apology.' A heron rose out of the moor as they charged upon the shaken ranks of the invaders. 'I would my good goss-hawk were here,' he cried; 'we should all yoke together.' The English stood their ground for a time; but they were surprised in an ambuscade,⁴⁶⁴ and found themselves attacked on all sides by enemies, who appeared to have arisen out of the morasses. They wavered, broke, and fled in utter disorder, leaving their commanders to their fate.

English gentlemen, in early ages as well as late, seem to have known how to behave on such occasions. Evers, Layton, Lord Ogle, and a hundred more, 'most of them persons of quality,'⁴⁶⁵ were killed; a thousand prisoners—among them the recalcitrant alderman of London—paid for their cowardice by the ransom which was wrung from them. The victory had been won by Angus, in a not unjust revenge. But he remained, or pretended to remain, true to a cause with which he refused to identify the English commander. His friends condescended to apologize for his conduct, as forced upon him,⁴⁶⁶ and the Earl himself, if the words which he was said to have used, when threatened with the anger of Henry, were truly ascribed to him, implied that he had rather been provoked by an affront, than

⁴⁶⁴They were probably trusting to the guidance of the Scots, who had drawn them into the expedition. Paget, writing from the Netherlands to the King, says, 'There was some treason among the Scots that were come in to your Majesty; that being a thing before contrived and conjurated bet ween them and the governour, and therefore a certain conclusion made among them that the thing must follow as it did, the Scots advertised the same not being yet done over hither as a thing already done. For the same day the fight was in Scotland the question was asked me here of the thing, and whether your Highness's lieutenant was slain or taken with all his army.' And again, in a letter from the privy council we find: 'If Ralph Evers had not given too much credit to those false new reconciled Scots, he was like to have had as good success and as much honour of that journey as ever he had of any since the beginning of these wars.'—*State Papers*, vol. x. pp. 334, 354.

⁴⁶⁵Buchanan and Calderwood say 'two hundred.' They have doubled the real number. See *State Papers*, vol. x. p. 354.

⁴⁶⁶As anentis the last business where your subjects gate displeasure, your Grace may be sure on mine honour it was so far sought by your Majesty's warden on the Earl of Angus, that he behoved to fight or take great shame.'—The Earl of Cassilis to Henry VIII.: *State Papers*, vol. v. p. 425.

become false to his general policy. 'Is our good brother offended,' he exclaimed, 'that I am a good Scotchman; that I revenged on Ralph Evers the abusing of the tombs of my forefathers at Melrose? They were more honourable men than he; and I ought to have done no less. Will King Henry for that have my life? Little knows he the skirts of Keriietable. I will keep myself there from the whole English army.'⁴⁶⁷ Young Leslie, the Master of Rothés, one of the party who had volunteered to kill Beton, was also in the battle, and, after Angus, contributed most to the victory of the Scots. If conciliation had failed to gain the body of the people, chastisement seemed to have alienated the few who were well inclined.

Ancram Muir was almost the last success which the Scots gained. The substantial advantage was nothing. The English army was increased to thirty thousand men; and fresh devastations, to which no resistance could be attempted, avenged the defeat. One small party from Carlisle was cut off on the West Marches, and then the heavy hand of Hertford was again laid on Scotland.

Abroad, however, the consequences might have been more serious. The exulting eagerness of the Catholics magnified a skirmish into a battle, and the destruction of a marauding division into a lost campaign. The strength of England was said to be broken; and even the cautious Emperor was encouraged further in the belief, of which he had already given evidence, that he might himself venture into the lists. A secret correspondence commenced between Charles, Cardinal Pole, and the Papal faction in the Scottish Government;⁴⁶⁸ and that from the Empire a serious danger was threatened, the English Government had too much reason to fear. The nice point of the right of neutrals in time of war, which had been raised by the seizure of the Flemish ships, might have been settled by an amicable conference. The treaty of 1543, foreseeing possible differences between the two Governments, had prescribed an especial method of dealing with any disputes which might arise. But Charles had evidently no desire for

⁴⁶⁷CALDERWOOD, vol. i. p. 182.

⁴⁶⁸Forasmuch as the Scottish priests lately taken on the seas hath declared and shewed unto us certain things as well touching the secret dispatch of the Emperor into land, whereof we lately advertised, as also the conveyance of letters to and from Cardinal Pole by an English friar at Antwerp, which we caused him to put in writing, we have thought good to address these unto you with the same writing of the priest's own hand.—Tunstall and Sadler to Paget: *State Papers*, vol. v. p. 447. The priest's confession is in the note in the same page.

a settlement. The treaty prohibited reprisals. On the 6th of January the English subjects in the Low Countries had been arrested, their property was sequestered, their ships were seized, and an Imperial edict explained so violent a measure as a retaliation for the outrage committed by the English privateers.⁴⁶⁹ The impression in Antwerp was, that a declaration of war would immediately follow. There was a panic upon the Bourse; and the large population which depended for their living on the manufacture of English wool expected immediate ruin.⁴⁷⁰ The case was a difficult one. It was agreed on both sides that 'munitions of war' were liable to seizure; but were provisions landed upon a coast where an army was in the field comprehended under that designation? Moreover, among the cargoes there were goods definitely the property of French owners. Could an enemy trade securely under a neutral flag? Henry, in default of a public law to guide him, had directed that goods which could be proved to be French should be retained as a lawful prize; that the provisions should be sold in England, and the price should be paid over to the Flemish owners; that the ships, with their remaining contents, should at once be restored.⁴⁷¹ There was a common-sense propriety in this decision which Charles ought to have recognized; but he chose to have a verdict more absolute in his subjects' favour. To supply food to a fleet or camp might be illicit, he said, but not to send it into a district where it might possibly be taken up by military or naval contractors. The sale in England did not satisfy him, because in France the scarcity created by the war had enhanced prices enormously, while across the Channel they were at their ordinary level. He insisted on complete redress; and, until it was conceded, he declared his fixed intention of maintaining the arrests.

Prudence obliged the King to disguise his displeasure. He wrote to the Emperor, saying that 'he was much grieved by his strange and unkind demeanour.' The privy council instructed Wotton to add that, if the English ships, with their crews and owners, were detained, they

⁴⁶⁹*State Papers*, vol. x. pp. 241–243.

⁴⁷⁰Since the arrests made here by the Emperor, all the inhabitants of this town ... shrink at it, fearing the utter decay of their traffic. Great numbers of fullers, shear-men, dyers, and others thought their livings were utterly bereaved from them ... It hath made many to confess to me that it were better for this country to have twenty years' war with France than one with England.'—Vaughan to the Privy Council: *State Papers*, vol. x. p. 257.

⁴⁷¹*State Papers*, vol. x. p. 245, &c.

could not suppose that the alleged cause was the real cause. 'You shall pray them to be plain,' the letter ran, 'and dissimulate the matter no longer; for their plain dealing his Majesty will accept, in some part of friendship.' The Venetians complained that the Emperor had betrayed them; the French, 'in times past,' declared that his word was not to be relied upon; the Germans did not trust him; and his conduct had even perplexed the Pope. For themselves, 'they hoped that there would be no new cause invented to make a quarrel with England;' 'whereunto,' they added, 'his Majesty considers whosoever would go about to provoke the Emperor, regarding only the present visage of things, should, if he cast his eye to the sequel, hereafter see more hurt than benefit ensue, both to the Emperor and also to his posterity.'⁴⁷²

Wotton gave the message; but it bore no fruits. The Emperor was courteous in manner; but he refused to explain himself or recall his edict. He would not say that he required his subjects to be allowed unrestricted liberty of trade; he would not say that he did not. He was simply obstinate and immoveable, as if he desired a rupture, and meant to compel the English to commence.

In the presence of the new danger the negotiations with the Germans were not allowed to languish. On the 12th of February the King directed his agents to repair to the Landgrave, and warn him of the evident combination of the Catholic powers, and the necessity of a rapid combination to oppose them. The best and only enduring security would be a general league among the anti-Papal powers, cemented by common articles of belief. But circumstances were pressing, and such a league would be a work of time. In the interval, the Landgrave, the King of Denmark, the Duke of Holstein, the free towns, and himself might unite in a political combination, offensive and defensive. When this preliminary measure was effected, commissioners might meet with despatch and secrecy, and draw the terms of the larger confederacy. The minor difficulties which had caused a first failure need not occasion a second. As he had before urged, they had one common enemy, the Pope—one common object, the abolition of idolatry, the spread of the knowledge of the Bible, and the glory of God. With so broad a foundation of amity, disputes on the details of doctrine might surely be composed, 'either party,'

⁴⁷²*State Papers*, vol. x. p. 271. &c.

as he once more said, 'relenting from extremities, and framing themselves to a godly indifferency and moderation.'⁴⁷³

The advances having been commenced by the Landgrave, the prospect of success appeared to be favourable; but the Landgrave would take no positive step without the advice and consent of the Elector; and the Elector, the brother-in-law of the Duke of Cleves, could not bring himself to regard Henry with anything but incurable dislike. He had yielded twice to the apparent necessity of union; once in 1538, when the Lutheran divines visited England; again when the marriage with a Protestant princess promised a renewal of cordiality. On each of these occasions the result had been a failure, for which England was more in fault than Germany; and the second disappointment had been accompanied with scandal and affront. To another effort he may not be censured for having refused to consent. He closed his eyes to the obvious intentions of the Emperor, He could pardon him his treachery to England while he believed him faithful to his promises to the Diet; and, although the more far-seeing among the Lutheran statesmen deplored his unseasonable prejudice,⁴⁷⁴ they could prevail only so far as to prevent an absolute rejection of the English offers, and to postpone a final answer till their approaching assembly at Worms.

England was thus left to her own strength. It was well that she would not be taken unprepared. The abbey lands had been melted into cannon; the swords and lances stood ready in the castle halls; the longbow leant against the wall of the peasant's cottage and the sheaf of arrows hung above the chimney. Charles, if he so pleased, might use his opportunity; and it might prove less favourable than his hopes represented it. At all events, Henry would not tolerate the injuries of English subjects; the Emperor had sent no answer to his letter, and Wotton could not discover his intentions; the task of dealing with him was entrusted to the dexterous and fearless Paget; and the King with his own hand instructed the ambassador in the terms which he was to use in detailing the injuries of which England complained. 'If the Emperor,' he continued, 'shall still fodder us forth with fair words, keeping, nevertheless, the goods under arrest, we cannot think that

⁴⁷³Instructions by the King's Majesty to Beauclerk and Mont: *State Papers*, vol. x. p. 278

⁴⁷⁴A quo ejus intempestivissimo præjudicio multos optimos viros diversissimum sentire scio. Maxime cum modo Romanus episcopus contra utrosque calamum stringat, sæviat, et convitia expuat.—Mont to Henry VIII.: *State Papers*, vol. x. p. 288.

he dealeth friendly with us, but rather that he intendeth to break; which if he mind to do—well—we must bear it as we may. God, that hath known our meaning since our entry into the treaty, will judge between us and him, and give us force to withstand the malice of all our enemies. At the least, if he will needs break, you shall require him to deal with us like a prince of honour, and to give order, as we will for our part, that the subjects on both parts may have a reasonable time to depart with their goods, as hath always been accustomed between princes in semblable cases. We trust he will not be found faulty in that point, that not long ago he laid to other men's charge. When the French King, contrary to his saying that he intended no such thing, suddenly brake with him, he blamed his honour much, which mote, we trust, our good brother will eschew.⁴⁷⁵

Paget as little as any one understood the Emperor's conduct; but he was the person most likely to discover the meaning of it. If ordinary inquiry was baffled, he possessed an art of high-bred insolence, which generally exasperated the best-trained dissemblers into momentary openness. Charles knew him well; and if he had chosen a minister from the English council whom he would have desired not to receive, it was Sir William Paget. He could not refuse him an audience, however, and the conversation commenced with the secretary playing over as a prelude the articles of the treaty with England, and of the Peace of Crêpy. The Emperor, as usual, attempted to 'scold the matter out.' Paget alluded to the contingent under Sir John Wallop, which had been sent to the Netherlands in 1543, and then spoke of the attack on Guisnes, the analogous request which had been made for assistance, and the refusal.

'The French King,' he said, 'invading any one of you, is enemy to both by the treaty. Your Majesty cannot avoid that.'

The Emperor 'was put to the bay;' he 'began to study.' 'You press me with the treaty,' he presently said, 'and you tell me you had respect to my necessity. It was your not going forward according to your treaty that drove me to do as I did.'

The agreement, Paget replied, was *selon la raison de la guerre*, as the Emperor well knew. Both armies had, in fact, acted in the same manner; neither could go forward, leaving fortified towns in their rear.

⁴⁷⁵ Instructions by the King's Majesty to Sir William Paget: *State Papers*, vol. x. p. 295, &c.

'Well,' Charles said, 'I know by the treaty what he should have done.'

'And so do I,' said Paget, 'for I was at the making of the treaty, and, by your favour, Sire, I know the meaning of all them that were at the making of it.'

'And I understand French,' rejoined Charles, 'as well as another; and there is no more in this matter but I and my council interpret the treaty one way, and the King my brother interprets it in another way.'

'The treaty,' the ambassador answered, 'is plain enough, and should have none other interpretation than the words bear. You may take it as it shall please you, and there is no other judge between you two but honour here and God above.'

He waived the hopeless dispute, and turned to the arrest. What was the meaning of it? he asked. What could 'the French, their mortal enemies,' do worse? Sharp words passed and repassed. The Emperor equivocated: he spoke of merchandise, as well as provisions, captured and appropriated. Paget had his proofs ready that the merchandise which had been detained belonged to French owners; that the ships and their other contents had been restored. Charles said he did not know that there had been a restitution. The English minister assured him quietly that he had forgotten himself, since he had seen with his own eyes a letter from the Spanish ambassador to the Emperor, in which the fact was explicitly mentioned. Again Charles shifted his ground. 'There must be satisfaction for the future,' he said; he must have security that his subjects should not be molested any more in their trade with France.

'In France, Sire,' Paget replied, 'your subjects may sell nothing, nor yet have any traffic thither, if you do according to your treaty, which, if it shall like you to observe, then the point you speak of is provided. Either there is a treaty or there is none. If there is none, it is another matter; if there is, let it be observed.'

'Keep the treaty!' the Emperor cried. 'I would other men had kept it with me as I have kept it with them, and then this needed not to have been. My good brother looketh to be superior over me in all things, and that I may not endure. It is not for mine honour. He began first with me, or else it should have been long ere I should have begun with him. I would be glad to do him all the friendship and pleasure that I could, and to have his love and friendship. I have been glad to seek it almost on my knees.'

He began to complain of his gout, and desired the discussion to be brought to an end. 'I conclude, then,' Paget said, 'that I am to take for an answer that, until everything is done in England which your subjects require, every demand paid, reasonable and unreasonable, and an order taken that your subjects may traffic with France at their liberty, you intend to keep the English merchants prisoners, and their property under arrest.'

The word 'prisoners' sounded harshly. The Emperor winced a little, and muttered that the arrest of 'the persons' might have been hasty, and his council would see about it. More he could not say, nor at the moment would his illness allow him. He rose, and left the room.
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So closed the first interview, which Paget said he 'liked never a deal.' The merchants would probably be allowed to depart. Their property, he had ascertained, was not more than equal to the aggregate debts of the English residents in the Low Countries; so that, except in the stoppage of their trade, they would not seriously suffer; but as to his ulterior object, Charles had baffled him.⁴⁷⁷

A week later, M. Scory, president of the Flemish council, furnished some clue. They had heard, he said, that the English people were so exasperated by the Peace of Crêpy, and the King spoke so indignantly of the Emperor, that when the ships which were going to France were seized they expected England would declare war against them, and they made the arrest 'to be sure of a good pawn.'⁴⁷⁸ 'You may see,' Paget said, in reply, 'what an evil conscience doth; there was no such thing meant on our behalf.' But he felt that there was a mystery below which he had not penetrated; and Charles, it is more than likely, was waiting for the result of the war, and was fomenting a dispute which could be converted into a quarrel, if England should materially suffer in the approaching struggle. March passed on. The ships were not released; but no further act of hostility was committed. The English residents were allowed to leave the country; and to Paget himself the Imperial ministers remained outwardly smooth, profuse in soft words, insisting that the Emperor wished nothing but good to Henry; that he would mediate with France; that, if his mediation was not accepted, he would even threaten to re-open the war, provided it was under-

⁴⁷⁶I have been obliged to abridge the conversation and condense the sentences.

⁴⁷⁷*State Papers*, vol. x. p. 310, &c.

⁴⁷⁸*Ibid.* p. 336.

stood by England that the threat would not be acted on.⁴⁷⁹ But this was not reassuring. He felt that he was resting on a field of treacherous ice; and in a mood of characteristic melancholy he poured out his feelings in cipher to his friend Sir William Petre:—

'What care they if what they do make for their purpose? All is one. *Nusquam tuta fides*. Dissimulation, vanity, flattery, unshamefastness reign most here, and with the same they must be rencontred. There is no remedy as the world goeth now. Surely, Master Petre, you will not believe how this their proceeding with the King's Majesty grieveth me. But what remedy! By my troth none, but wink at it for the time, and dissemble. I intend, if I can, to speak with the Emperor, with whom I intend, with just consideration of the persons both of him and the King's Majesty, to tell so plain a tale as peradventure was never told him, and yet so reverently as he shall think I mind but to tell the truth to him. I am weary of being here; and I wish, without the offence of his Majesty, that I had never come hither.'⁴⁸⁰

In the particular occasion of dispute, since the Emperor was obstinate, Henry partially gave way. The condition for the release was the concession of liberty of traffic of all kinds between the ports of France and the Netherlands; and the King, stipulating only that ships belonging to the Low Countries entering French harbours should not be appropriated for purposes of war, consented, till a joint commission should have discussed and settled the general question. The necessary edicts were then issued, the English trade was renewed, and Charles again affected to be anxious for the success of 'his allies' in the war.

While this angry interlude was in progress, the German Diet was opened by Ferdinand at Worms; and simultaneously the cardinals began to assemble at Trent. The council so long talked of, so loudly clam-

⁴⁷⁹'Mistrust not the Emperor,' President Scory said to Paget, 'for, whatever we say unto you, the Emperor intendeth to use all the means he can to bring them to a conformity, and to tell them that you will call upon us for the declaration of war, and that we cannot avoid it, and that they must come to reason; or else we must needs declare ourselves, for we must needs keep our promises unto you.' 'Marry,' quoth I, 'this will be a good tale and a true, and if they will not come to reason, the best part of the tale is to declare indeed.' 'Nay,' quoth he, and laughed, 'there shall be nothing left unsaid that may further the matter.' 'Nor undone?' quoth I. 'I wot what you mean,' quoth he; 'but as for that, however we intend for the advancement of your affairs to use that matter in our conferences with them, yet I pray you molest us not withal.'—Paget to Henry VIII.: *State Papers*, vol. x. p. 364.

⁴⁸⁰Paget to Petre: *State Papers*, vol. x. p. 376.

oured for, so angrily deprecated, to which for years Western Christendom had been looking with hope or fear, was at last to become a fact. The dream had lingered long of a free assembly, summoned by the princes, as the exponent of the intellect of Europe. The Germans, duped by the Edicts of Speyer, had persevered, in spite of warnings from England, in nourishing the pleasant vision; and now the thing which they had so pertinaciously demanded was come. From, the opening-speech, of the King of the Romans the Diet learnt, for the first time, that the religious differences of Europe would be referred to a synod of bishops, who were assembling at the invitation of the Holy Father of Christendom; and Luther, in bitter scorn, sketched before their dull eyes the image of their infatuation.⁴⁸¹ The King of England, whose refusal to recognize any council called in the name of the Pope, had long been intimated, saw only his anticipations confirmed, and was prepared to deal substantially with the contingency.

Among the strange phenomena of the times none is more remarkable than the popularity of Henry VIII. among the younger Italians. The closer the acquaintance with the Papacy, the greater was the respect for the prince who had dared to take the spectre by the throat; so deeply the feeling had penetrated, that Paul found it prudent to assist Francis in the war with money rather than men, lest the contingent which he had promised should desert to the English;⁴⁸² and Henry, though pressed on so many sides, found leisure to avail himself of the goodwill of his friends in their own country. Ludovico de l'Armi, a Venetian nobleman, raised a corps of free-lances for the English service, who, hovering on the skirts of the territory of the Republic, flut-

⁴⁸¹ He published a caricature, the description of which must be conveyed in another language: 'Le Pape revêtu de ses ornemens y paroissoit assis sur une truie fort large, et dont les mammelles étoient fort amples qu'il piquoit à coup d'éperons. Il donnoit en même temps sa benediction à tous ceux qu'il reucontroit avec les deux doigts de la main droite étendus scion la coutume; et de la gauche il tenait un excrément frais et tout fumant. A l'odeur de cette ordure la truie tournoit sa tête et tâchoit de saisir la proie de ses narines et de son grouin; le Pape pour se moquer d'elle la piquant durement. Il faut, lui disoit-il, que tu me souffres sur ton dos, et que tu sentes les éperons quoique ce soit malgre toi; tu m'as déjà donné assez de chagrin au sujet de concile où tu veux me conduire pour m'y accuser librement; voilà ce concile que tu demandes si instamment. Par la truie Luther vouloit désigner l'Allemagne.'—SLEIDAN, vol. ii. p. 260. Traduit en François par Pierre de Courrayeur.

⁴⁸² Harvel to Henry VIII.: *State Papers*, vol. x. p. 492. During the siege of Boulogne by the French, the Italians in the pay of Francis actually did desert to the English in twenties and thirties.—Ibid. p. 569, &c.

tered the dovescotes of the right-reverend legislators. Reginald Pole, in mere terror of being clutched and carried off to England, durst not adventure to join them till the Pope applied to De l'Armi for a passport. The passport was refused; he was forced to steal to the meeting-place of the cardinals in disguise;⁴⁸³ and even when arrived within the walls of Trent, he was still insecure, and lived only 'in incredible and continual fear.'⁴⁸⁴

The Germans, too, were stirred by the announcement of Ferdinand into unusual vitality. The Diet replied to his address with a protest which was doubtfully received; and the Landgrave, released for the moment from the influence of the Elector, once more consulted the English, agents. He told them that, if the King continued to wish for the league, he would do his best to 'travel in it;' and, 'wishing only that he had done so when they were last with him,' they undertook to re-open the negotiations.⁴⁸⁵ The Landgrave consulted the representatives of the other Protestant States; and if the undisguised exultation of the Romanists could have assisted them to a resolution, the alliance would rapidly have been concluded. The Emperor appeared at the Diet in the beginning of May, accompanied by Cardinal Farnese. Events were not yet in train for a demonstration of open hostility to the Reformation, and he attempted to resume his usual plausible disguise; when a hot Franciscan, the Sunday after his arrival, betrayed the truth in an impatient sermon. Charles, Ferdinand, Farnese, and Granvelle were present in the church. The preacher, after sketching the character of the Lutherans with the diabolical features ascribed to them in the orthodox imagination, wound up with a passionate peroration urging their destruction. 'Now, O Emperor!' he exclaimed, directly addressing Charles, 'now is the time to fulfil your duty; enough of trifling, enough of loitering on the way; long ago you should have done the work: God has blessed you with power; He has raised you on high to be the defender of his Church. Up, then! Call out your armies! Smite and destroy the accursed generation; it is a crime to endure longer these venomous wretches crawling in the sunshine, and venting their poison over all things. Say not that you will do it hereafter; now is the time, do it now; each day new thousands of souls

⁴⁸³*State Papers*, vol. x. pp. 367, 368, 399, 400.

⁴⁸⁴*Ibid.* p. 453.

⁴⁸⁵Beauclerk and Mont to Henry VIII.: *State Papers*, vol. x. pp. 422, 423.

are in peril of damnation through the madness of these men, and of you the account will be demanded.⁴⁸⁶

Since the preacher was neither arrested nor punished, the reality of danger penetrated the densest understanding. Farnese, in fear of being murdered, stole away on a stormy night, disguised as a servant; and the Landgrave became more eager and energetic than ever. But his efforts, unhappily, were still in vain; the Elector continued obstinate; the majority of the Smalcaldic League—considering, not without truth, that Henry had only sought their friendship hitherto when despairing of the Emperor—had accustomed themselves to look for support, if Charles should attack them, rather to France than to England. The preference, in fact, was not confined to the princes, but extended to the people. Both Francis and Henry desired to recruit among the Lanzknechts for the war. Francis was embarrassed by the numbers who offered him their services, and his German legions were among the most faithful of his troops. Henry found only false promises, broken engagements, mutiny, and desertion.

Thus, between the soothing duplicity of the Emperor and a false reliance upon France, the German Protestants allowed the scheme to die away into an offer to be mediators in a peace, and into conditions of alliance to which Henry could not listen. After two months' deliberation, they replied that they could pledge themselves to nothing. It was possible only that they might consider the King of England's offers, if he on his side would bind himself to assist them, should they be attacked on a pretext of religion, and would deposit 200,000 crowns as caution-money with the senate of Hamburg, which, in case of necessity, they might appropriate.⁴⁸⁷

Two years later the princes of the League could better estimate the relative importance of the alliance to England and to themselves. In fact, perhaps, the attitude of all the powers, Catholic or Protestant, in Europe towards this country depended on the issue of the struggle which the opening summer would bring with it. France was known to be straining every nerve to bring her old rival on her knees. Men, ships, and money were collected with unheard-of profusion; and the French themselves were so confident of success, that other nations shared inevitably, to some extent, the same expectations. The siege of Boulogne had not been pressed. The intention was to collect a fleet so

⁴⁸⁶Sleidan.

⁴⁸⁷*State Papers*, vol. v. p. 554.

large as absolutely to command the Channel. The occupation of the Isle of Wight—a more feasible enterprise than the march on London—would be the prelude of an attack on Portsmouth and the destruction of the fleet; and in the same stroke which crippled their naval power, the English would lose not Boulogne only, but their last hold upon the French soil. Montgomery, with five thousand men, was sent into Scotland to defend the Borders. The whole available strength of France remaining was collected at the mouth of the Seine. A hundred and fifty ships of war and twenty-five galleys, which had dared the dangers of the Bay of Biscay, and had come round from Marseilles, were to form the convoy of sixty transports, and sixty thousand men. William the Norman had brought as large a force with him, but his fleet was nothing. The Spanish Armada was as powerful on the sea, but the troops intended for land-service scarce amounted to half the army of Francis. The aim of the expedition was successfully concealed. Rumour pointed alternately to Scotland or the western counties, to Kent or Sussex, to the Humber, the Thames, or the Solent; and the English Government, to be prepared on all sides, had a hundred and twenty thousand men in the field throughout the summer. Thirty thousand, under Hertford, guarded the Marches of Northumberland; the Duke of Norfolk in Lincolnshire and Suffolk, Lord Russell in the West, were each in command of an equal force; while the Duke of Suffolk, with the fourth division, held Sussex, Kent, and Hampshire, and was prepared, if necessary, to cross the Channel.⁴⁸⁸ The garrisons at Calais, Guisnes, and Boulogne were, at the lowest, fifteen thousand strong. The new fortresses along the coasts were largely manned. The number of English soldiers in receipt of pay fell scarcely short of a hundred and forty thousand, in addition to German contingents perpetually raised and perpetually useless, and the small but effective company of Italians under De l'Armi.

On the sea, also, the returns were tolerably satisfactory. The ships, indeed, in commission, belonging to the Crown, did not exceed sixty; but several were larger than the largest of the French, and all were more efficiently manned. The 'Great Harry,' a ship of a thousand tons, with a crew of seven hundred, carried Lord Lisle's flag. The 'Venetian,' with the flag of Sir Peter Carew, was seven hundred tons; her crew four hundred and fifty. The rest were rather smaller, although they passed at the time as vessels of first-class power. In collective

⁴⁸⁸ Paget to Petre: *State Papers*, vol. x. p. 468.

force, nevertheless, the enemy had the advantage. The whole number of sailors in the fleet at the beginning of June amounted only to twelve thousand.⁴⁸⁹

The royal squadron, however, properly so called, formed but a small part of the naval strength of England. The sea-going population had not thought it necessary to discontinue their ordinary occupations; the Iceland and Ireland fishing-fleets sailed as usual in May; but there remained a number of vessels, of various sizes, belonging to Falmouth, Truro, Fowey, Plymouth, Dartmouth, Dittisham, Totness, Poole, Rye, Bristol, and other places, which through the winter had been out as privateers; and, having gorged themselves with plunder, were called in, as the time of danger approached, to join the lord admiral at Spithead. The two services had absorbed between them the effective male inhabitants of the coast towns. There was a fear that the home fisheries would be neglected, and an important item in the food of the people might fall short. But this anxiety was found unnecessary. The wives and daughters of the absent sailors along the western shores, the mothers of the hardy generation who sailed with Drake round the world, and explored with Davis the Polar Ocean, undertook this portion of their husbands' labours. 'The women of the fishers' towns,' wrote Lord Russell,⁴⁹⁰ 'eight or nine of them, with but one boy or one man with them, adventure to sail a-fishing sixteen or twenty miles to sea, and are sometimes chased home by the Frenchmen.'

A greater difficulty was occasioned by the multitude of prisoners who had been brought in by the privateers, and could neither be efficiently kept, for want of men to guard them, nor could be allowed to escape without danger. Minor perils, however, could and must be overlooked. The whole serviceable fleet remaining in the English waters was collected by the end of June at Portsmouth—in all a hundred sail and sixteen thousand hands.

In England itself party animosities were for the time forgotten. The counties vied with each other in demonstrations of loyalty. The Duke of Norfolk, after a general survey of England, reported that 'he found both gentlemen and all others very well minded to resist the enemy if they should land—the most part saying, 'My lord, if they come,

⁴⁸⁹*State Papers*, vol. x. p. 468.

⁴⁹⁰Lord Russell to the Council: *State Papers*, vol. i. p. 828.

for God's sake bring us between the sea and them."⁴⁹¹ The martial ardour had even penetrated to the highest places of the order who were generally exempt from military service: the Archbishop of Canterbury desired to have a battery of light artillery placed at his disposal for the defence of the coast of Kent.⁴⁹² But the best blood of England, if we may judge by the list of names, was seeking in preference the more novel glory which might be earned in the fleet. Berkeleys, Carews, Courtenays, St Clairs, Chichesters, Clintons, Cheyneys, Russells, Dudleys, Seymours, Willoughbys, Tyrrells, Stukeleys, were either in command of the King's ships or of privateers equipped by themselves. For the first time in her history England possessed a navy which deserved the name; and in the motley crowd of vessels which covered the anchorage at Spithead, was the germ of the power which in time was to rule the seas.⁴⁹³

The westerly gales, which had continued into the summer, delayed the opening of active operations. One only enterprise was projected by Lord Lisle in an interval of fair weather: he proposed to convert thirty merchantmen, which had been brought to the Downs as prizes, into fire-ships, and to send them in with the tide upon the enemy's anchorage at Havre.⁴⁹⁴ The prizes designed for this purpose escaped in a storm; but Lisle, not choosing to be disappointed, sailed without them, and ventured himself into the Seine, within shot of the French. The galleys came out to skirmish, but the weather became again dangerous; and the admiral, as much in fear of a lee shore as of the enemy, returned to Portsmouth.

At last with July came the summer, bringing with it its calms and heat; and the great armament, commanded by D'Annebault in person, sailed for England. A few straggling ships, in search of plunder, or to mislead the English, made a first attempt to effect a landing at Brighton; but the beacons were fired, the country rose and the few

⁴⁹¹MS. *State Paper Office, Domestic*, vol. xvi. The MSS. in this volume are the principal English authorities for the events of the summer.

⁴⁹²'My Lord of Canterbury, having required certain pieces of artillery to be drawn to and from sundry places upon the cliffs with horses, at the charge of the country, for the repelling of the enemy, shall be furnished of the same, if Mr Seymour, upon view of the place, shall think it convenient.'—Note of the State of the Realm: *State Papers*, vol. i. p. 786.

⁴⁹³The watchword at night was perhaps the origin of the 'National Anthem.' The challenge was 'God save the King.' The answer was, 'Long to reign over us.'—*Ibid* p. 814.

⁴⁹⁴MS. *State Paper Office*.

companies who were on shore were driven back before they had effected more than trifling injury.⁴⁹⁵ The main body, which they soon rejoined, had held their course direct to the Solent.

The King was at Portsmouth, having gone down to review the fleet, when, on the 18th of July, two hundred sail were reported at the back of the Isle of Wight. The entire force of the enemy, which had been collected, had been safely transported across the Channel. With boats feeling the way in front with sounding-lines, they rounded St Helen's Point, and took up their position in a line which extended from Brading Harbour almost to Hyde. In the light evening breeze, fourteen English ships stood across to reconnoitre; D'Annebault came to meet them with, the galleys, and there was some distant firing; but there was no intention of an engagement on either side. The English withdrew, and night closed in.

The morning which followed was breathlessly calm. Lisle's fleet lay all inside in the Spit, the heavy sails hanging motionless on the yards, the smoke from the chimneys of the cottages on shore rising in blue columns straight up into the air. It was a morning beautiful with the beauty of an English summer and an English sea. But for the work before him, Lord Lisle would have gladly heard the west wind whistling among his shrouds; at this time he had not a galley to oppose to the five-and-twenty which D'Annebault had brought with him; and in such weather the galleys had all the advantages of the modern gunboats. From the single long gun which each of them carried in the bow they poured shot for an hour into the tall stationary hulls of the line-of-battle ships; and keeping in constant motion, they were themselves in perfect security. According to the French account of the action, the 'Great Harry' suffered so severely as almost to be sunk at her anchorage; and had the calm continued, they believed that they could have destroyed the entire fleet. As the morning drew on, however, the off-shore breeze sprung up suddenly; the large ships began to glide through the water; a number of frigates—long, narrow vessels—so swift, the French said, that they could out-sail their fastest shallows—came out with 'incredible swiftness';⁴⁹⁶ and the fortune of the day was changed. The enemy were afraid to turn, lest they should be run over; if they attempted to escape into the

⁴⁹⁵A beautifully-finished drawing of the French galleys on the beach under Brighton is in the Cotton Library.

⁴⁹⁶The action is related with great minuteness in DU BELLAY'S *Memoirs*.

wind, they would be cut off from their own fleet. The main line advanced barely in time to save them; and the English, whose object was to draw the enemy into action under the guns of their own fortresses and among the shoals at the Spit, retired to their old ground. The loss on both sides had been insignificant; but the occasion was rendered memorable by a misfortune. The 'Mary Rose,' a ship of six hundred tons, and one of the finest in the navy, was among the vessels engaged with the galleys. She was commanded by Sir George Carew, and manned with a crew who were said, all of them, to be fitter, in their own conceit, to order than obey, and to be incompetent for ordinary work. The ports were open for action, the guns were run out, and, in consequence of the calm, had been imperfectly secured. The breeze rising suddenly, and the vessel heeling slightly over, the windward tier slipped across the deck, and, as she yielded further to the weight, the lee ports were depressed below the water-line, the ship instantly filled, and carried down with her every soul who was on board.⁴⁹⁷ Almost at the same moment the French treasure-ship, 'La Maîtresse,' was also reported to be sinking. She had been strained at sea, and the shock of her own cannon completed the mischief. There was but just time to save her crew and remove the money chest, when she too was disabled. She was towed to the mouth of Brading Harbour and left on the shore.

These inglorious casualties were a feeble result of the meeting of the two largest navies which had encountered each other for centuries. The day had as yet lost but a few hours, and D'Annebault hearing that the King was a spectator of the scene, believed that he might taunt him out of his caution by landing troops in the island. The sight of the enemy taking possession of English territory, and the blaze of English villages, scarcely two cannon-shot distance from him, would provoke his patience, and the fleet would again advance.⁴⁹⁸ Detachments were set on shore at three different points, which in Du Bellay's description are not easy to recognize. Pierre Strozzi, an Italian,

⁴⁹⁷The French believed, not unnaturally, that the 'Mary Rose' sank from the effect of their shot. But the cause of the accident was ascertained beyond all doubt.—See *State Papers*, vol. i. p. 794. There are also several letters, by eye-witnesses, in MS. in the State Paper Office on the subject. The hull has been recently broken up, and some of the guns have been recovered. A good account of the loss may be bought at Portsmouth, composed chiefly of extracts from the *State Papers*, and bound with oak covers made from the timbers of the ship.

⁴⁹⁸Du Bellay.

attacked a fort, perhaps near Sea View, which had annoyed the galleys in the morning. The garrison abandoned it as he approached, and it was destroyed. M. de Thais, landing without resistance, advanced into the island to reconnoitre. He went forward till he had entangled his party in a glen surrounded by thickets; and here he was checked by a shower of arrows from invisible hands. The English, few in number, but on their own ground hovered about him, giving way when they were attacked, but hanging on his skirts, and pouring death into his ranks from their silent bows, till prudence warned him to withdraw to the open sands. The third detachment was the most considerable; it was composed of picked men, and was led by two of the most distinguished commanders of the galleys. These must have landed close to Bembridge. They were no sooner on shore than they were charged by a body of cavalry, There was sharp fighting; and the soldiers in the nearest ships, excited at the spectacle of the skirmish and the rattle of the carbines, became unmanageable, seized the boats, and went off, without their officers, to join. The English being now out-numbered, withdrew; the French straggled after them in loose order, till they came out upon the downs sloping up towards the Culver Cliffs; and here, being scattered in twos and threes, they were again charged with fatal effect. Many were cut in pieces; the rest fled, the English pursuing and sabreing them down to the shore; and but few would have escaped, but that the disaster was perceived from the fleet; large masses of men were sent in, under shelter of the guns, to relieve the fugitives; and the English, being badly pressed in return, drew off, still fighting as they retreated, till they reached a stream,⁴⁹⁹ which they crossed, and broke the bridge behind them.

It was by this time evening; and the day had produced little except remarkable evidence of incapacity in the French commanders. In the morning a council of war was held. The English fleet, to avoid exposing themselves a second time to the attacks of the galleys, had withdrawn into the harbour or under the shore; and D'Annebault, confident in numbers and French daring, proposed, since they would not venture out, to go in and attack them where they lay, and, if possible, carry Portsmouth. The crews, brave as lions, desired nothing better. The pilots, when consulted, declared the enterprise impracticable. In order to reach the enemy, they would have to advance up

⁴⁹⁹The brook at the head of Brading Harbour probably. Du Bellay evidently wrote from the account of persons who were present.

a channel which only four ships could pass abreast. They must take the flow of the tide; and the current was so violent that, if any misadventure befell the first which entered, the whole line would nevertheless be obliged to follow, and they would all be crushed together in confusion. The admiral disbelieved in difficulties. He thought they might anchor and bombard the town. But their cables, the pilots declared, would not be strong enough to bring them up, at the rate at which they would be going; or they might be cut; or the eddies, perpetually shifting the position of the ships, would lay them open to be swept by the English batteries. Imagining that the reluctance might arise from cowardice, D'Annebault, as soon as night fell, sent in boats with muffled oars, to try the soundings and measure the passage into the harbour. They returned with more than a confirmation of the unfavourable reports. A single ship, they stated, could only enter in experienced hands; and they had found the approaches so full of shoals and hidden sand-bars, that, for a fleet to advance in the face of an enemy was, as the pilots said, an impossibility.

It remained, therefore, to decide whether the army should land in force upon the island, and drive the English out of it, as they might easily do. They had brought with them seven thousand pioneers, who could throw up fortresses rapidly at Newport, Cowes, St Helen's, and elsewhere; and they could leave garrisons strong enough to maintain their ground against any force which the English would be able to bring against them. They would thus hold in their hands a security for Boulogne; and as the English did not dare to face their fleet in the open water, they might convert their tenure into a permanence.

This was the course which they were intended to pursue; and it was the course which, in the opinion of Du Bellay, one of the ablest generals in France, they indisputably ought to have pursued. In neglecting it he considered that an opportunity was wasted, the loss of which his confidence in Providence and in the destinies of France alone enabled him to forgive.

D'Annebault, however, had received discretionary powers; and, for some unknown reason, he determined to try his fortune elsewhere. After three days of barren demonstration, the fleet weighed anchor and sailed. His misfortunes in the Isle of Wight were not yet over. The ships were in want of fresh water; and on leaving St Helen's he went round into Shanklin Bay, where he sent his boats to

fill their casks at the rivulet which runs down the Chine. The stream was small, the task was tedious, and the Chevalier d'Eulx, who, with a few companies, was appointed to guard the watering parties, seeing no signs of danger, wandered inland, attended by some of his men, to the top of the high down adjoining. The English, who had been engaged with the other detachments two days before, had kept on the hills, watching the motions of the fleet. The Chevalier was caught in an ambuscade, and, after defending himself like a hero, he was killed, with most of his followers.⁵⁰⁰ Persecuted by small misadventures, the fleet now dropped across the opening of the Solent; the weather threatened to change; there were signs of a wind from the westward; but, uncertain of their movements, they lay for two nights between Selsea Bill and the mouth of Chichester harbour.

It was now Lord Lisle's turn to act on the offensive. In calms and light airs the French galleys had an advantage over him; in a strong breeze the galleys were useless; and the massive and ably-manned English ships might compensate, with their size and the weight of metal which they carried, for their inferiority in numbers. The enemy was anchored on a lee shore. The same evening the English admiral sent in a boat from the 'Great Harry,' with the following note to the King:—

'It may please your Highness to understand that I do perceive, by my Lord of Surrey, it is your Majesty's pleasure that I should declare unto you by writing the effect of a certain purpose which, by occasion of a little gale of wind that we had for a while yesternight, came in my mind, which is after this sort:—In case the same gale of wind had grown to be stable, being then at plank west, and had blown to a course and a bonnet off (which were the terms that I examined the masters by), whether then the French fleet were able to ride it out in that place where they lie; and they said, very well, they ought to do it. And then I asked whether, if they saw or perceived us to come under sail, making towards them, whether they would bide us at anchor or not? and they said, if they did bide us at anchor, they were cast away; for we, coming with a fair wind, should bear over whom we listed into the sea; and therefore they would not bide that adventure, but rather would come under their small sail, to abide us loose, for that were their most advantage. I asked, if they were once loose and put from their anchors with that strainable wind, whether they

⁵⁰⁰DU BELLAY's *Memoirs*.

could seize any part of the Wight again. And they said, it was not possible for them to do it, but of force must go room with the high seas, and much ado to escape a danger called the Owers; and that some of them of likelihood should rest there, if such a wind should come and they were put from their anchors. So thought I, and said then to my Lord of Surrey, that these Frenchmen which be here, if they land, they may happen to find such a blast that they should never see their own country again.

'This is the effect of this purpose serving to none other end but if such a wind should chance, this, I doubt not, would follow, if it shall like your Highness that we endeavour us to the same. Wherein neither in no other enterprise, being never so feasible, I will not attempt, your Majesty being so near, without first making your Majesty privy thereunto; and not without your Grace's consent thereunto; albeit that I would not, for mine own part, little pass to shed the best blood in my body to remove them out of your sight. But have your Grace no doubt of any hasty or unadvised presumptuous enterprise that I shall make, having charge of so weighty a matter under your Majesty, without being first well instructed from your Highness; for if I have any knowledge in any kind of thing, I have received the same from yourself. In the 'Harry Grace a Dieu,' 21st of July, at eight o'clock in the evening. Your Majesty's faithful servant to command,

'JOHN LISLE.'⁵⁰¹

If Lisle's project had been executed, the mutilated action in the Solent would have been followed by an engagement which would have satisfied the most sanguinary expectations, and the question of the sovereignty of the Channel would have required no further settlement. The King consented to the risk. The night following the wind blew up from the south-west, and the fleet was preparing to start; but the distance was short; a Flemish spy carried news of his danger to D'Annebault, and the admiral at once slipped from his anchorage, and made off into the open sea.⁵⁰² He crossed the Channel to Boulogne, where the French had by this time an army of twenty thousand men, and, landing his pioneers, he returned to the English coast with his vessels less inconveniently crowded. A desultory attack on

⁵⁰¹HAINES' *State Papers*, vol. i. p. 51.

⁵⁰²Du BELLAY's *Memoirs*. It is not often that in the independent records of two countries, we find separate portions of the same story which fit so accurately as Du Bellay's narrative and the letter of Lord Lisle.

Seaford was his next effort. A landing was effected, and the village was pillaged and set on fire; but, in an over-confidence that the country was unguarded, the French remained too long. The hardy Sussex volunteers were brought down upon them in swarms by the smoke of the conflagration. Every wall and hedge became alive with armed men, the boats were destroyed at the piers, and but a small fraction of the invaders recovered the fleet.⁵⁰³ Encouraged by these successive failures, Lisle now ventured out into the Channel to cover the transport of troops to Calais. The hot weather had returned; August brought with it its light easterly winds and calms; and, if we may judge by the constantly recurring complaints in the correspondence, it was sultry beyond the ordinary heat of an English summer. The beer which was supplied for the fleet turned acid; fresh meat would not keep for two days. The English admiral was obliged to hang along the shore, where boats passing to and fro continually could furnish a succession of supplies. After a fortnight of ineffectual cruising, the two fleets, on the morning of the 15th, were in sight of each other off Shoreham. The light air which was stirring came in from the sea. The French were outside, and stretched for five miles along the offing. Having the advantage of the wind, they could force an engagement if they pleased, and Lisle hourly expected that they would bear down upon him. The galleys came out as before; but the English were better provided than at Spithead. They had several large galliasses, and 'shallops with oars;' one of the former commanded by Captain Tyrrell, of four hundred and fifty tons, as swift as those of the enemy, and more heavily armed. An indecisive battle lasted till the evening, when the French retreated behind their larger ships, and by that time the whole line had drifted down within a league of the English. Lisle cast anchor, to show that he was ready for them if they cared to approach him nearer. As darkness fell the enemy appeared to be imitating the example, and a general action was confidently looked for in a few hours. A breeze, however, sprung up at midnight. As day broke, the space which they had occupied was vacant, and the last vessel of the fleet of D'Annebault was hull down on the horizon, in

⁵⁰³There is a difficulty in fixing the day of the failure at Seaford; Du Bellay relates it as if it followed immediately on the departure from the Isle of Wight. But there may have been some other attempt elsewhere, or he may have mistaken the exact order of events.—See HALL, HOLINSHED, and a letter among the MSS. *State Paper Office, Domestic*, vol. xvi. On the 30th of July D'Annebault was at Boulogne.—*State Papers*, vol. i. p. 795, note.

full sail for France.⁵⁰⁴ Disease had given a victory to the English which they had no opportunity of winning with their cannon; and the admiral had paid dearly for his ruinous mistake at St Helen's. He had been a month at sea; his soldiers were cooped together in multitudes in the holds of ill-ventilated vessels; their meat was putrid; their water was foul; the plague had broken out among them, and they had perished by thousands. The single hope to save those who remained was to disembark them instantly; and officers and men, terrified at their invisible enemy, had but one desire, to escape from their prisons, which had become charnel-houses of corruption. The English despatch-boats, which followed them to the mouth of the Seine, watched the wreck of the late magnificent army lifted out upon the shore; and 'there was no manner of courage, nor gladness, nor appearance of comfort in them. Such a number of sick and miserable creatures they never saw.'⁵⁰⁵

This was the disastrous conclusion of the mighty effort which was to lay England prostrate. The resources of France had been concentrated upon one grand experiment, and, from combined misfortune and bad management, it ended in a collapse, which left their rivals, almost without a blow, undisputed masters of the sea. But they were not the only sufferers. In the English fleet, also, disease had appeared in a deadly form. There were complaints of swellings in the legs, and face, and head; the 'bloody flux' was prevalent, and here too were instances of 'plague.' The larger size of the ships, the far smaller number of men to be accommodated in them, together with the more regular supply which had been maintained of fresh provisions, kept the evil within milder limits for a time. They remained together a few weeks longer. On the 3rd of September they landed six or seven thousand men in Normandy, and after burning Treport and the adjoining villages, they retired with the loss of but three men.⁵⁰⁶ But the health of the men becoming worse, the fishermen being anxious to be at home to prepare for the herring season, and the privateers dropping off on their own adventures, the service for the summer was held to be closed. A small squadron was kept in commission to protect the communication with Boulogne; the rest of the ships were paid off,

⁵⁰⁴Lisle to Gage: *State Papers*, vol. i. p. 816.

⁵⁰⁵Lisle to Henry VIII.: *ibid.* p. 823.

⁵⁰⁶'Whereof two of them wilfully cast away themselves, and more would have done so if they had not been looked unto.'—Lisle to Henry VIII.: *State Papers*, vol. 1. pp. 829, 830.

and their crews dismissed. Little glory had been gained by either side; but the English had obtained the substantial advantages of victory, if without its distinction, and to the French the reality of defeat was aggravated by the discredit of mismanagement. On D'Annebault, who was the principal author of the war, the responsibility of the failure chiefly rested; but the catastrophe had been on so large a scale, and the defensive powers of England had been so remarkably illustrated, that neither the French nor any other nation would be likely to renew the attempt at an invasion.

It remained to be seen if they could retrieve their fortunes by the recovery of Boulogne, for on this side lay their only present hope. The Comte de Montgomery had been landed with his five thousand men in Scotland, and from him also there had been great expectations.⁵⁰⁷ An ominous entry in the State Papers measured too plainly the extent of service which French assistance could render in return for Scottish fidelity. While Lisle was watching the dissolution of D'Annebault's fleet, Lord Hertford was making his preparations to undo the effects of Ancram Muir. When the harvest was ripe for destruction, he re-crossed the Border, under the eyes of the Regent and Montgomery, and the following brief epitome of desolation records his exploits there:—'List of fortresses, abbeys, friars' houses, market towns, villages, towers, and places burnt, razed, and cast down by the Earl of Hertford, the King's Majesty's lieutenant in the north parts, in the invasion of Scotland, between the eighth of September and the twenty-third of the same, anno 1545. Monasteries and friars' houses, seven; castles, towers, and piles, sixteen; market towns, five; villages, two hundred and forty-three; mills, thirteen; spitals and hospitals, three.'⁵⁰⁸ Barbarous and useless havoc! for the spirits of the proud Scots were tough and hard as steel. English conciliation had failed to bend them; and English ferocity could as little break their ineffectual but indomitable gallantry. Only God Almighty and the common cause of the Reformation could fuse at last the jarring elements, and undo the hatred which had been bred by human folly.

The Comte de Montgomery was not to recover the lost laurels of his country. The prospect of success now was at Boulogne, where, on the site of the camp from which he had been driven in February, De Biez began again in July to collect an army. The new fort, defended by

⁵⁰⁷ *State Papers*, vol. v. p. 467.

⁵⁰⁸ HAINES' *State Papers*, vol. i.

a force too considerable for an attack, rose rapidly; and so long as D'Annebault held the sea, the approaches were closed, and the town effectually blockaded. The French commander had only to maintain his advantage, and the place must soon be his own. Poynings promised his Government to hold out to the latest hour that man could endure; but the arrival of that 'latest hour' was matter of certainty, and could easily be calculated.⁵⁰⁹

The dispersion of the fleet, however, soon relieved the anxiety of the garrison. Thirty-five thousand men, with D'Annebault's pioneers, lay in front of the town; but day after day the English provision-ships sailed calmly into the river, under the guns of the Old Man, free to come and to go as they pleased. The irritated army accused De Biez of treason; De Biez quarrelled with his officers; and the officers were in turn distrusted by the men. In suspicion, divided counsels, indecision, and want of discipline, there were all the materials of fresh disappointment. Francis, who was staying at a hunting lodge a few leagues distant, interfered with the management without improving it; and although the camp was the lounge of the young nobles of his train, whose amusement was to ride over to Boulogne, and break a lance with the English cavalry, exploits of individual gallantry effected little towards dismounting cannon or cutting off supplies. Siege-guns were placed in position at the fort, but they were too distant to injure the defences; and the English works had been constructed so skilfully, that on the river side they could not be brought nearer. Treachery was next tried. Three engineers from the Netherlands volunteered to take service with the garrison, intending to blow up the magazines; but the mine was countermined; the engineers were 'hoist with their own petard;' and in the discovery of one treason the clue was found of another. The Government fell on the scent of a priest who was busy in disguise among the Spanish soldiers in the English service at Berwick; and the man was detected and hanged.⁵¹⁰

A desire to obtain a command of the river had been the temptation which placed the French in their present position; and De Biez, finding that he could not succeed, resolved to remove to another. His conduct throughout the siege was strange. His desire to attempt the town on the other side was intelligible in itself; but he created suspi-

⁵⁰⁹The Council at Boulogne to the Privy Council; *State Papers*, vol. x. pp. 547-8.

⁵¹⁰*State Papers*, vol. x. p. 574.

cion by giving as a reason, in a council of war, at which Du Bellay was present, that he understood an English force was coming with supplies from Calais. The officers felt the absurdity of supposing that the enemy would hazard a battle to relieve a place to which they had undisputed access by sea;⁵¹¹ and Francis, though giving an equally absurd reason for his belief, expressed a doubt of the General's integrity.⁵¹² The marshal, however, was left in command; the move was effected; and a new camp was formed on Mount Lambert, on the lines which had been occupied by Henry in the preceding summer. Here they were nearer the town; but they were as little able as before to reply effectively to the English batteries; and the change produced no alteration in the monotony of the siege, except that, there being no longer a river in their way, the sallies of the garrison were incessant; and the war resolved itself into a succession of skirmishes. In these adventures the knightly gallantry of the French showed to better advantage than their generalship; and on one occasion a young nobleman, whose name in later life sounded ominously in English ears, first showed the metal of which he was made. There had been an engagement of cavalry, in which the French were yielding before superior numbers, when Francis of Lorraine, the eldest son of the Duke of Guise, dashed into the *mêlée*. He was struck with a lance through the bars of his helmet. The steel head pierced both cheeks, and six inches of the shaft were snapped off by the violence of the blow. He sat firm in his saddle, and rode back unassisted to his tent; and when the surgeon thought he would die of pain, when the iron was extracted, 'he bore it as easily as if it had been but the plucking of a hair out of his head.'⁵¹³ Francis of Lorraine bore the scar of that wound to his grave; but he lived to repay the stroke by waving the fleurs-de-lys on the battlements of Calais, whilst the remnants of the last English garrison were taking leave for ever of the soil of France.

His turn of victory was to come; but at another time, and in another reign. For the present Boulogne would not be taken; and the ally which had done the English so great a service at sea came again

⁵¹¹'La quelle tous les jours a nostre veue et sans danger il refreschissoit par mer.' DU BELLAY.

⁵¹²'Le roy me dit qu'il pensoit que le dit mareschal n'eust voulu que Boulogne eust esté reprise craignant perdre son autorité de commander aux princes et a une si grosse armée.'—DU BELLAY.

⁵¹³'Il porta la doulour aussi patiemment que qui ne luy enst tiré qu'un poil de la tête'—DU BELLAY.

to their aid. The plague, introduced perhaps by the soldiers who had disembarked from the ships, burst out in the besieging army; whole companies were annihilated by its fury; and at length the men died so fast that they were not even buried. The corpses were flung out to putrify in heaps, and saturate the air with pestilence. A few weeks of suffering made the continuance of operations by land as impossible as in the fleet. Four thousand men were left in the fort, and at the end of September the siege was raised.

One exploit only the army accomplished before their dispersion. The Calais Pale was strongly defended on the French frontier. Towards the Netherlands, the friendly, or at least the neutral, territory of the Emperor had been considered an adequate protection. Either careless of Charles's displeasure, or confident that he would not be displeased, they broke in suddenly through Bredenarde, overran the country, killing the unarmed peasants and villagers, and, except for the rain which had filled the dykes and impeded their movements, they might perhaps have carried Guisnes by surprise.⁵¹⁴ The more important object was missed, but several hundred people were destroyed; and having inflicted heavy injury by burning farms and villages, they retired at their leisure, by the route by which they had advanced; they recrossed into France, broke up, and the campaign was over.

The adventure might have been pardoned if it had formed the close of a series of successes; but the alliance with England, recklessly as the Emperor had dealt with it, continued to exist, and the desire for its maintenance was beginning to revive. It was true that his obligations were interpreted by his convenience; but France, exhausted by failure, and England, inspirited by victory, were no longer in the same relative positions as at the Peace of Crêpy. The religious enthusiasm, and the zeal for Catholic unity, had been cooled by a slackness on the part of Francis in evacuating Piedmont; and at this very time, on the 9th of September, the Duke of Orleans, whose marriage with his niece or his daughter was to form the connecting link between the two Catholic powers, had died. Under such circumstances the French General had been unwise to presume too far on the indifference of the Emperor to the observance of his treaties. There had been a moment, indeed, in the summer, when he assumed an aspect towards England most dangerously menacing. The first quarrel had

⁵¹⁴DU BELLAY; and see *State Papers*, vol. x. p. 609.

been scarcely disposed of when Henry, in consequence of the notoriety of the intended French invasion, applied, in compliance with the special article which referred to such a contingency, for assistance in men or money. While Charles was seeking excuses to parry this demand, an opportunity was thrown in his way by a complaint which reached him from Spain. The English merchants, being heretics, were not allowed to plead in the Castilian courts, or their evidence was not admitted against true believers, and they were exposed to outrages of all kinds without possibility of redress. Injustice produced injustice. An Englishman who had been robbed by the authorities in a Spanish port, indemnified himself on the high seas at the expense of the first Spanish ship which he fell in with. The Emperor required that he should be surrendered to justice. Henry refused to sacrifice a man who had been the first sufferer by a sustained and intolerable injury; and letters of general reprisal against all English property in Spain were in consequence threatened. The two countries seemed now to be drifting into a quarrel which neither would nor could be settled without war. The only prospect of escape, indeed, appeared to lie in the success of a commission which, in the beginning of June, met at Gravelines to discuss the various difficulties which had arisen under the treaty. It was composed of Sir William Petre, Dr Thirlby, and Eustace Chapuys, the late Ambassador of the Emperor in London. To the English representatives instructions characteristic of the givers were furnished by the King and by Sir William Paget.

The privy council, writing at Henry's dictation, after dwelling on the many injuries of which English subjects complained, continued thus:—

'Either they think we are afraid of them, which if they do they are abused, for we have God on our side, and he will keep us when all the world will be against us; or else they think us beasts that, doing us openly and wittingly wrong in ten things, look to have redress at their beck at our hands in every one thing seeming to them wrong. Pray them to weigh things more indifferently. To charge us with breach of covenant when they break first, to bind us to the words of a treaty when it maketh for their purpose, and to use the benefit of a glosed interpretation when the words make against them, what equity, reason, honour, justice, treaty, or amity, can bear it? and this his Majesty would were told them earnestly, vehemently, and yet as it were by way of friendly complaint, that an old friend making himself in felic-

ity and quietness partaker of his friend's trouble and un quietness, should for his good will and friendship not only be left alone in the hands of their common enemy, but also of his friend, be thus himself and his subjects as it were tossed and turmoiled.'⁵¹⁵

The excellent Paget, on the other hand, the cleverest of living men, the father of that whole race of English statesmen, who, finding their lot cast for them in hard times, have trusted more to intellect than to virtue, improved the opportunity to give to his friend Petre a lesson in diplomacy and on the character of the man with whom he would have to deal.

'For Chapuys,' he said, 'I never took him for a wise man, but for one that used to speak *cum summâ licentiâ* whatsoever came *in buccam* without respect of honesty or truth, so it might serve his turn; and of that fashion it is small mastery to be a wise man. Indeed he is a great practicer, with which honest term we cover tale-telling, lying, dissimuling, and flattering. As you have learnt to scold mannerly, so must you also, if you will deal with him, learn to lie falsely, but yet artificially, that you be not perceived, or at the least so unshamefastly that, though you be perceived, yet he to whom you tell the lie shall not dare for shame reproach you of it for fear of your falling out with him.'⁵¹⁶

But the English commissioners could neither touch Chapuys' conscience, nor, however well instructed, were they a match for him in the art of lying. The conferences were fruitless. Charles resumed the management of the quarrel into his own hands; and carrying out his threat, repeated against the English in Spain the same measure which had been practised with success in the Netherlands. Ships and persons were arrested everywhere, and the Emperor appeared to desire to exhibit to the Catholic world the indignities to which he could compel England to submit.

The opportunity for this measure was chosen when the danger from the French was at its highest; but Henry had gathered confidence from the spirit of his subjects. By an accident, two Spanish ships, one of them 'of great value,' probably loaded with bullion, were reported as on their way from South America to the Low Countries. The King stretched out his hand into the Channel and secured

⁵¹⁵*State Papers*, vol. x. p. 481, &c.

⁵¹⁶Paget to Petre: *State Papers*, vol. x. p. 466.

an ample indemnity for the English losses.⁵¹⁷ He desired Wotton to state that 'he could do no less in so manifest a case of injury,' unless he would have it appear that he would not or durst not resent it; and if the Emperor used 'any high words or threatenings,' as 'when he was told things which he liked not he was noted to use,' the ambassador should say that 'his Majesty knew him to be a great prince and never the worse by his means, and if he intended to take that way with him, his Majesty would have him to think that he was a prince too, and had a Milan in his hand for the French King as well as he; and that rather than he would be overtrodden by him in that sort, he would do things for the satisfaction of himself that the Emperor would not, peradventure, think, and would be loath he should.'⁵¹⁸ Either because he feared that Henry would execute his threat, or because a further step in the way of reprisal would be followed by war—and as yet prudence warned him to hesitate—the Emperor lowered his tone; he professed a sudden anxiety to mediate between France and England for a peace, and for an amicable arrangement of his own quarrel. The change of attitude was so apparent as to provoke Wotton's suspicions,⁵¹⁹ and three weeks later the alteration became more patent. When D'Annebault's failure at the Isle of Wight became known, the Emperor professed himself ready to send assistance in money according to the treaty,⁵²⁰ and his desire for cordiality increased in warmth in proportion to the improvement of the English prospects. The Duke of Orleans died while the direction of the current was changing; and as if the subordinates of the French and Imperial Governments were

⁵¹⁷*State Papers*, vol. x. pp. 499, 506.

⁵¹⁸*Ibid.* p. 503.

⁵¹⁹'I marvel whence proceedeth this sudden ostentation of amity in offering to labour for a peace. Peradventure some scorpion may be hidden under the stone.'—Wotton to Paget: *ibid.* p. 514. And again, 'In the coldest of the winter these men were soon chafed, and took matters very hot upon light causes; and now, in the hottest of this hot summer, upon greater occasion to be somewhat chafed, they shew themselves somewhat colder than I thought they would have done; what the cause is I cannot well perceive.'—Wotton to Wriothesley: *State papers*, vol. x. p. 535.

⁵²⁰'As concerning the aid demanded, he (Granville) said that the Emperor was contented to give it, and to give it in money as it was required, and for the whole time that it was required; to begin as soon as by the treaty it ought to do: but under condition that your Majesty would require nothing of the Emperor against the treaty made betwixt him and France, and that your Majesty would promise to give like aid to the Emperor when the like case should occur. This was a good indifferent way.'—Wotton to Henry VIII. *State Papers*, vol. x. p. 552.

conscious of the probable consequences, their attitude to each other in Piedmont became daily more hostile.⁵²¹

It was under these circumstances that the army which broke up from Boulogne ventured on a violation of the Netherlands frontier, and it will be seen that the occasion was ill-timed. Without actually threatening Francis, Charles declared more distinctly his anxiety to bring about a settlement. As an evidence of his friendship with England he consented, though with some reluctance, to an interview with the King, should the King desire to see him; and more pointedly he furnished Henry with a copy of a letter revealing the abominable treachery which the Catholic party in Europe were meditating towards England; and in which the Emperor, had the fortune of war been more favourable to the French, would doubtless have been ready to bear a part.⁵²²

⁵²¹In Piedmont the things between the Imperials and French proceedeth very roughly, every part engrossing himself as in just wars, so great is the suspicion between the parties, whereby men conjectureth manifest rupture between the Imperials and the French.—Harvel to Henry VIII.: *ibid.* p. 646.

⁵²²The Protestant Princes were feeling their way at Paris towards mediating for a peace with England. A certain Gabriel de Guzman, described as 'a creeping friar' and a secret agent between Francis and Charles, was told to let the Emperor know indirectly of those overtures, in order that he might himself come more prominently forward; a peace might then be arranged, but with an understanding that it was not to be observed; and De Guzman laid the views of the King of France before the Emperor with the most devout *naïveté*. 'Juntamente con esto, me mandó al despedir que procurase de sentir en la Corte de Vuestra Majestad Sy holgaria de juntarse con el contra el Ingles, mandando se lo la Iglesia como ya otra vez a Vuestra Majestad propuse, y anadiendo de nuevo dos puntos mas. El primero, que para la honestidad y excusa de Vuestra Majestad, el Rey haria paz con el Ingles con las mejores condiciones que el pudiese, estando seguro que despues la Iglesia mandaria a todos los Reyes Christianos que castigasen al Ingles y segun el derecho commun le privasen de sus bienes como a cismatico y herege; y que entonces seria la causa commun y ygual a todos; y con esto Vuestra Majestad no seria mas notado que los otros, pues todos ygualmente ternian paz con el Rey de Inglaterra; y complir los mandamientos de Iglesia, en cosa tan sancta y pia, no es contra la palabra ni juramento, pues nadie puede prometer contra la obediencia de la Iglesia; y en esta expedition seria contento contribuir ygualmente, y se contentara con Gales, Guinas y Bologna y la renunciacion del derecho pretenso al reyno, y pension por el dicho Ingles; y que todo lo demas quedase a la disposition y voluntad de sua Majestad.' The second point refers to the efforts of the Duke of Orleans, and is unimportant. The pious Catholics, it seems, however, distrusted the sincerity of Francis in his perfidy. 'Vuestra Majestad,' sighs De Guzman, in conclusion, 'crea que tiene tanta gana y necesidad de hazer paz con el Ingles que temo sy Dios no le alumbra que haga alguna cequedad tal como la llamada del Turco. Nuestro Señor la provea por su sancta bondad, y de

The campaign being over, the King of France now signified his readiness to treat for a peace; and, though little confidence could be placed in his good faith, something might be expected from his exhaustion. The Germans on the one side, and the Emperor on the other, offered their services to assist an arrangement; and the two factions in the French and English councils were indulged in their several sympathies, and were allowed to contend with each other for the privilege of securing for their respective countries the most favourable terms.

The great obstacle would still be the English conquest. The majority of Henry's advisers were of opinion that enough had been done for the honour of England. They had taken Boulogne; they had proved that it could not be wrested from them by force; but it was not worth to them the expense of further contention. 'If we leave it now,' said Gardiner,⁵²³ 'we shall win this opinion, that we might do what we list, were it not for respect that the King's Majesty hath for Christendom. In this opinion we be abroad in the world now; and this opinion may be maintained by a peace. I esteem nothing Boulogne in comparison of the mastery we have won in keeping it and defending of our realm alone.' The Duke of Norfolk was led by his French sympathies to the same conclusion; and the King was all but alone in maintaining an opposite view. With the evidence in his hands of the bad faith of the Continental powers, he trusted as much to the substantial thing which he had grasped as to the sentiments which might be entertained of him. He had felt the value of a 'Milan for the French King,' which he could play off against the Emperor; and the power of restitution was a card which he preferred to retain in his hand. Lord Surrey, who was now with the garrison at Guisnes, took the same side; but rather, it was thought, because he was crippled with debt, and believed that, if the war lasted, he might cut his way out of his embarrassments, than from public spirit.

a Vuestra Majestad la salud y vida que su Iglesia a menester.' To what schemes, to what treacheries, must not Charles have been a party, before a confidential servant could address such a letter to him; and yet it perhaps required even greater effrontery to make use of it for political capital. He sent an emissary into England, 'and to the intent that the King's Majesty should perceive the Emperor's good meaning and affection towards his Highness, the said emissary brought with him a certain letter, to be shewed to his Majesty, written to the Emperor, for a practice against the King's Majesty of great importance.'—*State Papers*, vol. x. p. 619.

⁵²³*State Papers*, vol. x. p. 664.

⁵²⁴ Henry only, on definite grounds, insisted that Boulogne was the gage for which the battle was fought—that England could not afford the appearance of yielding—that her position and her prospects depended on the evidence which she could offer of her strength.

Since the King insisted, the council were forced to yield; the negotiations opened, to come on one side to a rapid end. Gardiner went to Brussels to meet D'Annebault and Boyard—'as fearful,' he described himself, 'as a doe that stayeth hearkening to every crash of a bough.'⁵²⁵ At the opening interview D'Annebault stated distinctly that, 'as the King of England had gained much honour in taking and keeping Boulogne, so he must now have the honour of restoring it.' Boyard said that the King of France would waste his realm to recover it. He might suffer wonderfully, but do it he would. He would not endure the disgrace of the loss. ⁵²⁶ Gladly would Gardiner have consented. 'If we take peace now,' he wrote to Paget, 'we establish the valiantness of England for ever. We be wonderful winners. We be esteemed to have treasure infinite, and to exceed all other.' But his desires were bounded by his powers, and the conference was useless.

The Emperor would not openly interfere, but he allowed the Bishop to console himself for his disappointment by remaining at Brussels for a revision of the treaty. He held out a hope that, under a new form, it might recover its damaged obligations, and become in fact, as, if words had meaning, it ought to have been already, the basis of a genuine alliance. The other negotiation was entrusted to the only hands which combined the necessary delicacy with the equally necessary strength. Paget alone could be relied upon to ascertain the true disposition of the Lutherans. The German contingent, commanded by a friend of the Landgrave, had accepted the King's money, and had never crossed the frontier. Some thousands who had been with the army at Calais, had mutinied and deserted. ⁵²⁷

⁵²⁴ See *State Papers*, vol. x. p. 617, note. The Duke of Norfolk cautioned him how he encouraged Henry in his resolution. 'Have yourself in wait,' he wrote, 'that ye animate the King not too much for the keeping of Boulogne, for who so doth at length shall get small thanks. Look well what answer ye make to the letters from us and the council; confirm not his enterprises contained in them.'—Norr's *Surrey*, p. 178.

⁵²⁵ Gardiner to Paget: *State Papers*, vol. x. p. 664.

⁵²⁶ *Ibid.* p. 673.

⁵²⁷ An English officer wrote to Paget of the German troops that 'he did perceive that the King's Majesty was bought and sold amongst a great many of false harlots,

The delegates at Worms had trifled with Henry's offers of alliance. The Elector personally hated him. The present ambassadors might be the willing instruments of French cunning, or they might be themselves its dupes.

After receiving their instructions from the French Government, the Protestant representatives arrived at Calais in the middle of November. They consisted of Sleidan the historian, John Bruno, Sturmius—not the theologian, but another person of the same name and of more worldly qualities—and two or three more, of no particular note. Paget's first business was to satisfy himself of their characters. In separate interviews he found that Bruno and Sturmius were the only important persons. In Bruno he saw evidently an open-minded, honourable man, 'like a Spaniard in feature and colour,' too frank for diplomacy, but of a genuine and noble nature. Sturmius was a 'practitioner,' 'altogether French,' a keen intriguer, and a match for himself. Their colleagues, including the historian, Paget described as 'sheep,' 'gross Almaines,' of whom nothing could be looked for but blunders.

It soon appeared, too, that the difference of qualities had been appreciated in Paris. The open mission had been entrusted to Bruno.

He spoke to Paget of the condition of Europe. The Pope, he said, was making a great effort to unite the Catholic powers. He had stimulated the war in order to weaken England; and his hope was at last to crush Germany and England also. To oppose him successfully, Francis must be divided from the Emperor; and he was empowered to say that, if peace was made by their present mediation, and if the King of England did not press for too stringent conditions, that object might possibly be obtained, and perhaps also the French might separate from the Papacy.

All this was a matter of course. There was no doubt of Bruno's sincerity, but he had said nothing specific, he had nothing specific to say; Paget knew too well the meaning of such vague language.

'To allure you to travail with us, to bring their purpose to pass,' he replied, 'they make you believe it is the mean to bind them to work against the Bishop of Rome, which tale, as it is new to you, and pleasant, because you do desire it, so it is to us very familiar. Heretofore

which did take his Grace's money and did laugh his Grace to scorn, and also lewdly did report of him.'—Dymock to Paget: *State Papers*, vol. x. p. 579, note; and see a Letter of Thirlby to Paget: *ibid.* p. 632.

when they would work anything with us, then had they nothing in their mouths but the Bishop of Rome's matters, the devising of a Patriarchate, which hath been so often said, so little done.' What had been their real conduct? They had bound themselves in their last treaty with the Emperor to maintain the Council of Trent, and the two Courts were known to be plotting a Catholic league. The safeguard of the Reformation would have been the Evangelical Alliance, and Bruno, while he regretted that it had not been completed, admitted that the fault had not been with England.

Evidently Bruno had not been admitted to the full secrets of the mission, and the minister repaired to Sturmius.

Privatus cum privato, in strictest secrecy, the latter said that he was allowed to mention the terms of peace to which the King of France had resolved to consent. Both Francis and the Dauphin distrusted the Emperor. Milan would never be surrendered. Madame d'Estampes hated the Admiral and all the Imperial faction; and the prolonged stay of Gardiner at Brussels had filled the friends of England at Paris with alarm. Granvelle was believed to have repeated the suggestion of a daughter of Ferdinand as a suitable wife for Prince Edward. Rumour added that Charles was again thinking of the Princess Mary, and Philip might complete the union of the families by taking Elizabeth. Let these views be given up, let Gardiner be recalled, and the Imperialist and Romanizing factions would be out of favour, and peace would be granted to the English on the most liberal conditions. They should keep Boulogne; the pensions should be paid; the Queen of Scotland should be placed at Henry's disposal, and be carried to England whenever he desired. Let a treaty be accepted upon these terms, and the Protestant States would be comprehended in it, the Council of Trent would be disowned, and the Reformation would be saved.

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The adventitious matter of this communication the English ambassador could estimate at its proper value; but the special proposals were not inadmissible; if they were made in sincerity, it was difficult to see why Bruno and Sturmius had received separate commissions; they were referred, however, without delay to the King. A day or two after Sturmius was summoned to Paris, by an express from Madame d'Estampes, and a private messenger came to Paget to entreat, in her name and that of the Queen of Navarre, for an immedi-

⁵²⁸Paget to Henry VIII.: *State Papers*, vol. x. p. 708, &c

ate answer. The opposite faction, he said, were busily at work. If they succeeded, the two ladies, and all that were against the Pope, were ruined; while if peace could be made, 'the Admiral and the Cardinal Tournon would be sent to the devil headlong.'

In treating for peace with a great nation it was dangerous to hold a secret correspondence with intriguing women. Paget was cold. The messenger grew feverish.

'O,' he cried, 'help now; for herein resteth the deliverance of France out of the tyranny of the Pope, and the conservation of your liberty.'

'If there were peace,' asked Paget, 'would the King your master leave the Pope?'

'I say not so directly,' he answered; 'but Madame d'Estampes and the Queen of Navarre say it cannot choose but follow.'

But Madame d'Estampes and the Queen of Navarre were not the French Government. 'I am of gross understanding,' Paget replied. 'I can advise nothing, nor set forth any other practice, but after a rude and plain fashion. Let us enjoy Boulogne; pay us that you owe us, and assure us of our pension.'⁵²⁹

A few days after, Sturmius returned. He had seen the King of France himself, and with great difficulty he said that he had prevailed upon him to consent really and truly to pay his debts to England—the amount of arrears to be assessed by the Germans; to leave Boulogne as a security in the hands of the English; and either to force the Scots to observe the treaty of 1543, or, if they refused, to leave them without support or encouragement.

Had this been a *bonâ fide* offer on the part of the French Government, the war was at an end; but Paget, on asking a few questions, discovered circumstances which induced him to hesitate. It appeared that when D'Annebault was at Brussels a conversation had passed between him and the Emperor, in which the latter had said that, 'unless the French King would agree with him *in omnibus rebus litigiosis*, he would not travel for the restitution of Boulogne; and in that case he would.'⁵³⁰ Francis, who looked for no conditions, was irritated; and Madame d'Estampes took the opportunity of urging a peace with England. When out of temper Francis would say more than he meant; and Sturmius's first conversation with Paget had been based upon hasty expressions which the King let fall in the heat of the

⁵²⁹ *State Papers*, vol. x. p. 755.

⁵³⁰ *State Papers*, vol. x. p. 774.

moment. Tournon and D'Annebault had afterwards remonstrated; the King was relapsing into hostility; when at the moment Friar Gruzman brought an intimation from the Emperor that he was resolved after all to keep Milan. Francis was at once incontrollable. The name of Milan drove him into madness; he swore, *par la foy de gentilhomme*, that he would make a league with the Protestants; he desired Madame d'Estampes to summon Sturmius; and out of the fit of bad temper arose the articles now proposed.⁵³¹

'The Frenchmen,' Paget wrote to the King, 'be naturally fantastical; and a man shall have at one time that he cannot at another;' he doubted whether it might not be better to close with them at once; and yet there was a distrust of conditions arrived at in a passing humour, and disapproved by a powerful faction. The expenses of the war and the terms on which Boulogne was to be held, required to be ventilated; and suspicion was justified by a discovery soon after that Francis had sent to Scotland, instructing Beton to practise for a peace, and 'not to stick to promise what the King of England would, so that he would render Boulogne; for, whatsoever promises the Scots made, the Queen being an infant, she might go from it when she came of age.'⁵³² The King had fallen among thieves, and more than ordinary precautions were necessary. In vain Sturmius flattered the English successes. Paget said that he had the peace so much at heart that he ate it, drank it, slept it, dreamt it; but he knew that the French were exhausted, and that sooner or later the same terms would be offered, with the consent of all parties, and with security that they would be faithfully observed.

The ambassador's own conduct must be described by no pen but his own. Troubled with a needless fear that, from youth and inexperience, he had fallen short of what he ought to have accomplished, at an intricate point in the negotiations he poured out his heart to Henry:—

'Good will,' he said, 'your Majesty is sure of in us all; and for my part, so that all things were concluded to your Majesty's contentation, I would say with all my heart, as St Paul said, *Cupio dissolvi et esse cum Christo*. I have omitted no manner of thing, neither of your Majesty's forces, your riches yet in store, the forwardness of your subjects, their wealth, their contributions, what forces you intend to make, what

⁵³¹ Ibid. p. 775.

⁵³² Sir Edward Karne to Henry VIII.: *State Papers*, vol. xi. p. 80.

you will do, yea, things unthought of, rather than fail if the French King agree not; how your Majesty will invade him on this side by sea and land, on Piedmont side by the Duke of Savoy; and if he touch your Majesty's countries, or help the Scots, then the Emperor will be his enemy, and after fall out with him for Savoy, Piedmont, and Burgundy. On the other side I have said that there yet remaineth a love in your Majesty's heart towards him; what wonderful things he may hope of your Majesty, if he make this peace with you; how they (the Protestants) may hope touching religion; how I am French, how I am Evangelic, how I will and have the means to move *maria et montes* for them and the French King. Finally, touching your Majesty, the Emperor, the French King, the Almayns, and every prince's councillors, I have praised, dispraised, given hope, fear, mistrust, jealousy, suspicion, respectively; I have lied, said truth, spoken fair, roughly, pleasantly, promised gifts, pensions, and done all that may be done or said for the advancement of this matter, and much more than I will abide by, as Will Somers⁵³³ saith, if I were asked the question. But all is in God's hands; and it is He that beyond all men's expectations directeth things at his pleasure to his glory.⁵³⁴

A sufficient result would arise in due time from these honest services. The difficulty was already less in the terms on which a peace might be made, than on the security which could be obtained for their observance. After a weary correspondence, Henry declared that he would be satisfied if Boulogne with the country adjoining was left in his hands till the arrears of his debts were paid, if hostages were given for the future payment of the pensions, and the connection with the Scots relinquished. In these points the discussion terminated; and an arrangement was all but concluded, when the Romanist party made a last effort, and succeeded in breaking off the negotiations. The Protestants withdrew; and the war was renewed, till the impossibility of wresting better conditions from England was more completely proved.

Lord Surrey commanded at Boulogne through the winter, with perpetual skirmishes and alternate successes and failures. The garrison of the French fort had suffered, like the rest of the army, from the plague. Surrey had cut short its supplies, and famine had been added to disease. On the 7th of January his good fortune was

⁵³³The King's jester.

⁵³⁴Paget to Henry VIII. *State Papers*, vol. x. p. 782.

interrupted by a catastrophe. The enemy, five thousand strong, were reported to be approaching with a convoy of provisions from Motreul. The Earl attempted to intercept them; and in a severe action which ensued, several companies of infantry, in 'a humour' which, Lord Surrey said, 'sometimes reigned among Englishmen,' were seized with a panic, and ran, leaving their officers to be destroyed.⁵³⁵ But, as with the defeat of Ancram Muir, a single reverse produced little difference in the bearings of the war: Surrey was superseded; in March Lord Hertford was again in France with thirty thousand men, while Lord Lisle, 'God's own knight,' as he was called, was preparing a fleet at Portsmouth a third more powerful than that which had baffled D'Annebault. The Emperor had accepted and signed a revised version of the treaty, by which he again bound himself to interfere if England or the Calais Pale was invaded, and his differences with France left little doubt that this time he would keep his word. The Germans had halted between two opinions till the course which they ought to have followed was no longer open to them. At one moment they deplored their rejection of the English advances;⁵³⁶ they entreated Henry again to join them,⁵³⁷ even though they declined to take part with him in the war;⁵³⁸ in the next, careless of offending him, and reckless of the consequences, they threw open their frontiers to the recruiting officers of the French.⁵³⁹ Christopher Mont remonstrated with the Landgrave, and the

⁵³⁵Surrey to Henry VIII.: *State Papers*, vol. xi. p. 3, &c.

⁵³⁶*Discessum Domini Bucleri plerique omnes Protestantes et boni viri dolent. Cupiunt enim conjunctionem cum serenissimo rege inire quod modo in hisce comitiis Francfordianis fore speraverant. Vident enim Romanum episcopum cum suis complicibus non desistere a cœlo terræ confundendo; et ut in causâ cum serenissimo rege conjuncti sunt, ita admodum cupiunt communi consilio et sociis armis erip-tam libertatem contra Romani episcopi tyrannidem vindicare.*—Mont to Paget: *State Papers*, vol. x. p. 822.

⁵³⁷*Ibid.* vol. xi. p. 33.

⁵³⁸*Ibid.* vol. x. p. 36.

⁵³⁹One thing there is which much offendeth the King's Majesty, that seeing the French King is in league with the Bishop of Rome, the apparent enemy of those Princes, and who hath in no one point joined himself with the Protestants nor will not, yet they esteem his friendship so much as they do, suffering men of his to be so familiar with them, and to levy in their countries against the King's Majesty. Let them look to the matter. The weaker they suffer his Majesty to be made, they shall find at length their part therein, and so tell them hardly their part is more therein than they know of. But few words sufficeth a wise man: for whensoever it pleaseth their enemies, they have in their hands wherewith to bring their antient friend, as

Landgrave pointed despondingly to Henry's renewed league with the Empire; not choosing to confess, and yet unable to deny, that the same league had been within their own reach, and that they had trifled with their opportunity. Repentance now was too late. The substantial support of the Emperor, however hollow might be the motive with which it was given, was too valuable to the English to be flung away in the uncertain hope of a friendship unpopular in itself with most of them, and politically made useless by divided counsels and instability of purpose.

How little they could expect from France the Lutheran league had soon occasion of knowing. As soon as the attitude of Charles was definitively taken, the cabinet of Paris had no longer a serious intention of continuing the war. They had other work upon their hands. The glens of Languedoc and the valley of the Loire were already ringing with the shrieks of perishing heretics. The blood of four thousand innocents—old men, women, and children—was the pious expiation with which, at the opening of the Council of Trent, Francis sought to purchase remission for his dealings with the enemies of the faith; and the Germans awoke to find in their Pharaoh a bruised reed, which had run into their hand and pierced it.

On the 6th of May, no longer with the assistance of mediators or female intriguers, Lord Lisle, Paget, D'Annebault, and Boyard, the president of the French council, met at Ardes for a concluding arrangement, and this time the conference opened with a frankness on both sides which promised well for the result. Paget said that England had been drawn into the war to recover her debts, and four times the amount of the debt, he allowed, had been already spent in the process of recovery.

'You have well scourged us,' D'Annebault said, with equal honesty, 'for that your money was not paid. You have slain our people, and devastated our country, and also compelled us to pay our debts, which is a sufficient pain for nonpayment, and a great honour to your master.'⁵⁴⁰

Honour had been the chief point in the quarrel—England could not submit that its debts should be disowned. Honour being satis-

they call him, the French King, on their necks with his drawn sword in his hand to overthrow those heretics, as the French King calleth them among his council.'—Paget to Mont: *State Papers*, vol. xi. p. 61.

⁵⁴⁰*State Papers*, vol. xi. p. 132.

fied, it was vain to expect that the whole expenses could be recovered, although it was just to insist upon a portion of them.

Successive offers and successive demands were referred to London and Paris. On the 15th of May, Paget informed the King of the conditions to which the French would agree:—

1. On or before Michaelmas, 1554, they would pay two million crowns, for the arrears due to England, for the fortifications which had been erected at Boulogne, and the expenses of the war.

2. The claim for the half-million crowns expended by England in 1528, in support of the army in Italy, should be referred to a commission, and should be paid, if determined to be just.

3. The life-pension to the King of a hundred thousand crowns, and the perpetual pension to England of fifty thousand, should be also paid.

4. Boulogne, and the county of Boulogne, should be left in the hands of the English for eight years as a security, or till the completion of the payments.

5. The Scots should be comprehended in the peace, but under conditions which should leave them still bound by the treaties of 1543.
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These terms were less than those which England had expected—less, perhaps, than those which she might have exacted at the close of another campaign. But the war had already cost fifteen hundred thousand pounds. A fresh subsidy had been cheerfully granted by Parliament, when it met in November;⁵⁴² but the expenses of the enormous force which the King had been obliged to maintain in the past summer had fallen at a time when there were no ordinary means of meeting it; the financial expedients, so easy in the present constitution of society, were then impossible; and after mature deliberation, and satisfied that so extreme a measure was justified by necessity, the council had applied for a temporary loan from the Mint, which would occasion a debasement of the currency. It was a proceeding not distinguishable, except in form, from the suspension of specie payments in 1797, and it was caused by a similar pressure. The effect was less immediately felt in the enhancement of prices, because at the earlier period the tariff of the necessities of life was assessed by law, and the shilling, whatever was its purity, was for a time equally efficacious in

⁵⁴¹ *State Papers*, vol. xi. p. 163: and see DU BELLAY.

⁵⁴² For the account of this Parliament see the next Chapter.

the market. But artificial prices are, in their nature, incapable of being long maintained, and the evil of a depreciated currency was no mystery to the able ministers of Henry. The loan was accompanied with a definite engagement from the Lord Chancellor that it should be repaid at the earliest moment;⁵⁴³ and inevitable as the war had been at its outset, yet prudence and honesty alike recommended a return to peace when the credit of the country had been adequately maintained, without a further drain on its resources. Sir William Paget had been so earnest for the acceptance of the French offers, as to have displeased the King by his warmth; but he still persisted: 'No man living,' he wrote to Petre, 'taketh so much care as I do for the avoiding every manner of thing which might offend his Majesty; not for any servile fear, for there is none in me, but for the singular love and entire affection which God, my conscience, and honesty have grafted and nourished in my heart to my sovereign and most benign and gentle master. As for peace, when I remember that God is the Author of it, yea, peace itself, and that Christ praised always peaceable men all the time of his being among men visibly, and at his departing from them recommended most specially peace, I cannot but praise peace, desire peace, and help to my power the advancement of peace. I see, and so doth all his Majesty's council, as both I and you have heard them say when they are together, the continuance of the war, for the charge thereof so uncertain, the ways and means for the relief thereof so strait, and at such ebb, as my heart bleedeth in my body when I think of it. So as we had peace to the King's Majesty's satisfaction, I would gladly be sacrificed for it, if my death might help forward the matter.'⁵⁴⁴

Round the earnestness of the persuasion an English humour flickered playfully. 'I remember,' he said, 'President Scory's tale to me at my last being with the Emperor, of one that, being condemned to die by a certain king, which had an ass wherein he had great felicity, the man offered—to save his life—that within a twelve-month he could make the king's ass to speak; whereunto the king accorded; and being said unto the man by a friend of his, What! it is impossible; hold thy peace, quoth he, *car ou le Roy mourera ou l'asne mourera, ou l'asne*

⁵⁴³*State Papers*, vol. i. pp. 830, 835. It was under this aspect that the tempting resource first suggested itself. Nor is it fair to condemn a measure to which, under some form or other, all nations in times of difficulty have had recourse, because the promise of repayment was subsequently broken with infinite injury to the country.

⁵⁴⁴Paget to Petre *State Papers*, vol. x. p. 139.

parlera ou je mourera, signifying thereby that in time many things are altered. And so, ere the time of payment come, either we shall make some new bargain to keep Boulogne, or the French King, for want of keeping his covenants, shall forfeit it; or the French King shall die, and his son need not so much desire the recovery of it; or some other thing will chance in the mean time.⁵⁴⁵

The reasoning and the tale prevailed. Henry acquiesced in the French proposals without alteration, and after some minor differences on the frontier line, and on the tenure of property within the conceded territory, peace was concluded on the 7th of June, 1546.⁵⁴⁶

Scotland had been one of the chief causes of the war. Scotland had been among the chief difficulties in the conclusion of it. Yet here, too, while the commissioners were debating at Ardes, the principal occasion of trouble was removed, and the chief pillar of the anti-English policy was struck suddenly away.

The schemes which had been formed against the life of the Cardinal appeared to have dropped to the ground, and he had continued his war against the Reformers with sword and stake. He had done the work of the Ultramontanes effectively. He had saved the authority of the Pope at a moment when it was tottering to its base; and the clergy within the realm and without had not been slack in their recognition of his merits. But being supreme, he was pleased that his position should be universally acknowledged; and on an inquisitorial visit which he had paid to Glasgow, an indecorous dispute had arisen between himself and a rival archbishop on the score of precedence, when they were going to mass in the cathedral.⁵⁴⁷ The cold-

⁵⁴⁵ Paget to Petre: *State Papers*, vol. xi. p. 164.

⁵⁴⁶ RYMER'S *Fœdera*, vol. vi. part 3, p. 136.

⁵⁴⁷ The Cardinal alleged, by reason of his cardinalship, and that he was *legatus natus* in the kingdom of Antichrist, that he should have the pre-eminence, and that his cross should not only go before, but that it only should be borne wheresoever he was. The Archbishop (of Glasgow) also lacked no reason, as he thought, for maintenance of his glory. He was an archbishop in his own diocese, and in his own cathedral, see, and kirk, and therefore ought to give place to no man. However these doubts were resolved by the doctors of divinity of both the prelates, yet the decision was as ye shall hear. Coming forth or going in at the choir door of Glasgow Kirk began striving for state between the two cross-bearers, so that from glooming they came to shouldering, from shouldering they went, to buffets; and then for charity's sake they cried, '*Dispersit dedit pauperibus*,' and assayed which of the crosses was of finest metal, which staff was strongest, and which bearer could best defend his master's pre-eminence; and that there should be no superiority in that behalf, to the ground went both the crosses; and there began no little fray, but yet a merry game, for rochets

ness which had followed had been too injurious to Catholic interests to be allowed to continue; the two prelates were soon reconciled, and the occasion was chosen for the execution, or the murder, whichever we prefer to call it, of the most dangerous of the present leaders of the Reformation.

George Wishart, one of a numerous race who at that time bore the name of Wishart in the Lowlands, had been educated at Cambridge. At the University he had borne the character of saintliness; not perhaps the mild and feminine disposition which the word now suggests to us, but a character like Latimer's or Tyndal's. He had afterwards in England exposed himself to honourable peril. A letter of the Mayor of Bristol to Cromwell, in 1539, complains of his presence and his teaching;⁵⁴⁸ and Bristol was the hotbed of orthodoxy, the most dangerous of English towns to an Evangelical preacher. From this time (unless he was the messenger who carried to Hertford the intimation of the conspiracy against the Cardinal) his name disappears until he came forward in his own country, on the brief service by which he was to earn his martyrdom.

In the autumn of 1545 he began to preach in the fields in various parts of Scotland, followed, like his Master, by crowds of the poor, and, like Him, teaching them to abandon their sins, and to lead pure, sober, and industrious lives. Such an occupation might have been considered innocent, perhaps even laudable; but it is likely that he did not conceal his opinion of those whose functions he was obliged to usurp. He became formidable by a popularity as extensive as it was rapid; and the Cardinal, as the readiest method of delivering himself from a troublesome person, commissioned a priest to stab him.⁵⁴⁹ The priest prepared to obey; but Wishart detected a suspicious figure among his listeners, and a suspicious movement; he caught the arm as it was raised under the gown, and the poniard dropped from the hand. The first failure was followed by a second. A hasty mes-

were rent, tippets were torn, crowns were knyppit, and gowns might have been seen wantonly wag from one wall to the other. Many of them lacked beards, and that was the more pity, and therefore could not buckle other by the byrss as some bold men would have done. But fie on the jackmen, they did not their duty, for had the one part of them rencountered the other, then all had gone right.'—KNOX's *History of the Reformation*.

⁵⁴⁸MS. *State Paper Office*, first series, vol. x.

⁵⁴⁹Knox, who is the principal authority for the circumstance of Wishart's ministry, was in constant attendance upon him, and speaks with the authority, if also with the prejudices, of an eye-witness, a friend and companion.

sage, brought at midnight, summoned the preacher to the bedside of a dying kinsman, and armed men lay in ambush on the road, to take him dead or alive. Here also a seasonable prudence preserved him for a time. But his enemy was too powerful; the Earl of Bothwell next undertook the capture, and succeeded. John Knox, who, since the attempts at the Reformer's destruction, had attended him with a sword, desired still to share his fortunes; but Wishart, who had seen how precious a mind and heart lay behind the rugged features of his follower, would not allow it. 'Gang home to your bairns,' he said to him, 'ane is sufficient for a sacrifice.'⁵⁵⁰ He accompanied Bothwell alone, and was imprisoned, first at Edinburgh, and then in the fatal Sea Tower at St Andrew's. This was in January, 1546.

A Convocation of the clergy was held by the Cardinal in the following month, the Archbishop of Glasgow was present, and the criminal against the Church was brought out for trial. The heresy was readily proved; but, as we know, the spiritual law, and spiritual men, though they could convict, yet might not sentence to death. They washed their hands, like Pilate, and handed over their offenders to secular judgment and secular execution. In decent observance of these formalities, Beton applied to the Regent for the assistance necessary to complete the proceedings; and the Regent would have acquiesced as a matter of course, but, at the entreaty of a friend, he was persuaded to hesitate, and directed the Cardinal to proceed no further until he could himself examine the prisoner in person.⁵⁵¹ The Cardinal in an ordinary matter might have endured Arran's interference; in the present instance he declined the responsibility of obedience. He arranged a pseudo-official condemnation in one of his own courts, where a lay magistrate transacted the necessary forms; and on the 1st of March a pile and a gallows were prepared under the windows of the Castle, where the two Archbishops might sit in state and preside over the ceremony.

In anticipation of an attempt at rescue, the Castle guns were loaded and the portfires lighted. 'After this, Mr Wishart was led to the fire, with a rope about his neck, and a chain of iron about his middle; and when that he came to the fire, he sat down upon his knees and rose up again, and thrice he said these words: 'Oh, thou Saviour of the world, have mercy on me. Father of Heaven, I commend my spirit

⁵⁵⁰ Knox was at this time teaching the family of the Laird of Ormiston.

⁵⁵¹ CALDERWOOD, vol. i. p. 201.

into thy holy hands." He next spoke a few words to the people; and then 'last of all the hangman, that was his tormentor, sat upon his knees and said, 'Sir, I pray you forgive me, for I am not guilty of your death; 'to whom he answered, 'Come hither to me;' and he kissed his cheek and said, 'Lo, here is a token that I forgive thee. Do thy office.' And then he was put upon a gibbet and hanged, and then burnt to powder.'⁵⁵²

Life for life. If Wishart was an instrument of the conspiracy against Beton, in the eyes of his friends, he was still a martyr, and Beton was a murderer. Law, in its pure and proper sense, there was none in Scotland; the partition lines between evil and good were obliterated in the general anarchy; and right struggled against wrong with such ambiguous weapons as the 'wild justice' of nature suggested.

With a misgiving that danger was in the air, the Cardinal strengthened his faction by marrying one of his bastard daughters to the Earl of Crawford. The secret overtures of the Laird of Grange and Norman Leslie to the English Government, it is likely, had been betrayed to him; and another Leslie, the brother of the Earl of Rothes, on Wishart's death, had been heard to mutter that 'his hand and dagger should be priests to the Cardinal.' Throughout the spring, in the lengthening days, a hundred workmen were busy, from sunrise to sunset, converting the episcopal palace of St Andrew's into an impregnable fortress, where dungeons were already destined for the custody of perilous conspirators.

The night of the 28th of May the great churchman passed with his mistress; she was seen in the dawn of the morning to leave the postern which led to his private apartments;⁵⁵³ and about the same hour the drawbridge was lowered, and the front gates were thrown open, to admit the masons and the stone-carts. As the labourers were collecting, William Kirkaldy, the treasurer's eldest son, a boy of about seventeen, and five or six other young men, sauntered to the porter's lodge, and inquired if the Cardinal was stirring. They were told that he had not yet appeared, and they affected to be looking at the alterations, and asking indifferent questions, when presently the Master of Rothes came up, with two or three more, and afterwards John Leslie. The first two parties had caused no suspicion. It was daylight; the castle was full of men; and the idea of danger occurred to no one.

⁵⁵²Knox; Calderwood.

⁵⁵³Knox.

John Leslie, however, was known to be on bad terms with Beton, and as he crossed the bridge, the porter started and attempted to close the gates. But the movement was too late. Kirkaldy struck him down with a single blow, snatched the keys from his girdle, and flung him into the foss. Leslie sprang through; the workmen, confused by the sudden surprise, and some of them perhaps in the secret of the plot, were thrust out, and the gates were locked behind them; and while young Grange kept guard over the postern, the rest of the party secured the servants in their rooms, and dismissed them one by one. Beton's apartment overlooked the quadrangle. Being disturbed by the noise, he threw open his window, and called to know the meaning of it. Some one cried that Norman Leslie had taken the castle. He drew back and darted to the back gate, but it was closed; he was caught in the trap, and returning to his room, he barricaded the door, and sat waiting for his fate.

It was not long in finding him. The tramp of steps sounded along the gallery; a voice summoned him to open. 'Who calls?' he cried. 'Leslie!' was the answer. 'Is it Norman?' he said. The Master of Rothies was but a boy, and he might hope to soften him. But Norman was below in the court; it was John, who had sworn to give Wishart's murderer the last sacrament with his poniard, and with him James Melville and Carmichael—names, both of them, of equally portentous omen.

The Cardinal did not move; the door was strong; and he cried out to know if they would spare his life. 'Perhaps,' Leslie answered. 'Nay,' exclaimed the wretched voice, 'but swear that you will; 'swear by God's wounds.' 'That which was said is unsaid,' shouted the avenger. He called for fire; a pan of burning charcoal was laid against the panels, and the crackling of the blazing wood soon told the hopelessness of resistance. A boy who was in the room drew back the bolts; the armed men strode in through the smoke, and their victim stood before them half-dressed and trembling. In the hard eyes and the drawn swords he read his doom. He sank back into a chair. 'I am a priest! I am a priest!' he said; 'ye will not slay me.' Leslie and Carmichael darted forward, without speaking, and each stabbed him. They drew back their arms to repeat their blows, when James Melville, 'being a man,' says Knox, 'of nature most gentle and modest,' perceiving them both in choler, withdrew them; 'This work and judgment of God, although it be secret,' he cried, yet ought it to be done with greater

gravity.' Holding his sword at Beton's throat, 'Repent thee,' he said to him, 'of thy former wicked life, but especially of the shedding of the blood of that instrument of God, Mr George Wishart, which, albeit the flames of fire consumed before men, yet cries it with a vengeance upon thee; and we from God are sent to revenge it. I protest that neither the hatred of thy person, the love of thy riches, or the fear of any trouble thou couldst have done to me in particular, moved or move me to strike thee, but only because thou hast been, and remainest, an obstinate enemy to Christ Jesus and his Holy Evangel.' 'And so he struck him twice or thrice through with a sword,' and so he fell, cut off even in the blossom of his sins, only shrieking miserably, 'I am a priest; I am a priest. Fie! fie! all is gone!'

The cry went out through the castle, and up into the borough of St Andrew's. The alarm-bell rang. The provost and four hundred of the townspeople streamed down under the walls before the gate, and clamoured to bring out the Cardinal. 'Incontinent, they brought the Cardinal dead to the wall head in a pair of sheets, and hung him over the wall by the tane arm and the tane foot, and bade the people see there their god.'⁵⁵⁴

'The faithless multitude, that would not believe till they did see, departed without *requiem æternam* or *requiescat in pace* sung for his soul. Because the weather was hot,' says the pitiless Knox, 'and his funeral could not suddenly be prepared, it was thought best to bestow enough of great salt upon him, a coffin of lead, and a corner in the bottom of the Sea Tower, to await what exequies his brethren the bishops would bestow upon him.'⁵⁵⁵

⁵⁵⁴ Lyndsay to Wharton: *State Papers*, vol. v. p. 560; Buchanan; Calderwood; Knox.

⁵⁵⁵ As an immediate consequence, a popular outbreak and a pillage of the religious houses was looked for. On the 11th of June or July (the record is ambiguous), 'My Lord Governour, with advice of the Queen's Grace and lords of the council, understanding that through the occasion of this troublous time, and great inobedience made both to God and man in the committing of divers enorme and exorbitant crimes, it is dread and feared that evil-disposed persons will invade, destroy, cast down, and withhold abbeys, abbey places, kirks, as well parish churches as other religious places, priories of all orders, nunneries, chapels, and other spiritual men's houses, against the laws of God and man, and incontract the liberty and freedom of holy kirk, for the eschewing of such inconvenients, it is statute and ordained that letters be directed into all parts of the realm, with open proclamation and charge to all our Sovereign Lady's lieges, that nane of them take on hand to cast down or destroy any such places ordained for God's service or dedicated to the same, under the pain of tinsall of life, lands, and goods.'—*Acta Parliamentorum Mariæ*, 1546.

Thus perished David Beton, and with him the cause of the Papacy in Scotland. The national faction survived his death. Mary of Guise and her friends continued to lean upon France, and the ancient religion appeared for a few years longer to maintain itself at their side. But the spirit of Romanism as a living superstition was extinguished with its latest representative; and the mass was no longer the expression of a true inward belief. Those who professed to be the friends of the Church shared with its enemies in its present plunder. In a few years the once beautiful fabric lay prostrate in confused ruin.

CHAPTER XXIII

THE DEATH OF HENRY VIII

A WAR which had exhibited at a critical time the military power of England, repaid its cost in an increase of security; yet, though oscillating in separate points with the deeper impulses of the age, it remained as it began, substantially unconnected with those impulses. Beneath the contests of diplomatists, the movements of armies, and the clash of hostile fleets, the tide of inward revolution flowed on upon its separate course, and the conflict, so absorbing while it continued, was but an expensive accident in respect to the vital interests of the nation. The result of greatest importance had been the destruction of pleasant illusions. The conservatives, who had fixed their hearts on the alliance with the Emperor—the Protestants, who would unite the fortunes of the Anglican and German Reformation, had alike been disappointed. The Emperor might remain, while it suited his convenience, a political confederate; in his heart he belonged to the Papacy. The Lutherans, timid and irresolute, had first held out their hand, and had shrunk back when it was accepted. Thus the two parties which divided England were left to determine by themselves the form of their future; and if the moderate good sense of the country could prevent an armed collision between the fanatics of either extreme, it was likely to arrange itself into a compromise. The elements of danger were still considerable; yet the revolution, which had already been securely accomplished, might inspire a reasonable confidence. Sixteen years had now elapsed since the memorable meeting of Parliament in 1529; and in those years the usurpation of Rome had been abolished; the phantom which overshadowed Europe had become a laughing-stock; the clergy for four centuries had been the virtual rulers in State and Church; their authority had extended over castle and cottage; they had monopolized the learned professions, and every man who could read was absorbed under the privileges of their order; supreme in the cabinet, in the law courts, and in the legislature, they had treated the Parliament as a shadow of Convocation, and the House of Commons as an instrument to raise a revenue, the administration of which was theirs: their gigantic prerogatives had now passed away from them; the Convocation which had prescribed laws to the State endured the legislation of the Commons, even on the Articles of the Faith; the religious houses were swept

away; their broad lands had relapsed to the laity, with the powers which the ownership conveyed with it; the mitred abbots had ceased to exist; the temporal lords had a majority in the House of Peers: and the Bishops battled ineffectually to maintain the last fragment of their independent grandeur.

Tremendous as the outward overthrow must have seemed to those who remembered the old days, the inward changes were yet more momentous. A superstition which was but the counterpart of magic and witchcraft, which buried the Father of heaven and earth in the coffins of the saints, and trusted the salvation of the soul to the efficacy of mumbled words, had given place to a real, though indistinct, religion. Copies of the Bible were spread over the country in tens of thousands. Every English child was taught in its own tongue the Lord's Prayer, and the Creed, and the Commandments. Idolatry existed no longer; and the remaining difficulties lay only in the interpretation of the Sacred Text, and in the clinging sense, which adhered to all sides alike, that to misunderstand it was not an error, but a crime. Here, although Catholic doctrine, not only in its practical corruptions, but in its purest 'developments,' shook at the contact with the Gospels, yet the most thoughtful had been compelled to pause embarrassed. If mistake was fatal, and if the Divine nature and the Divine economy could not be subject to change, to reject the interpretations on which that doctrine had maintained itself, was to condemn the Christian Church to have been deserted for a thousand years by the spirit of truth, and this was a conclusion too frightful, too incredible to be endured. The laity, so bold against the Pope and the monasteries, turned their faces from it into the dogmatism of the Six Articles.

Yet still the genius of change went onward, caring little for human opposition. To move with it, or to move against it, affected little the velocity with which the English world was swept into the New Era. The truth stole into men's minds they knew not how. The King, as we have seen, began to shrink from persecution, and to shelter suspected persons from orthodox cruelty. The Parliament which would not yet alter the heresy law, tempered the action of it, and was rather contented to retard a movement which threatened to be too wildly precipitate than attempt any more to arrest it.

Next to the Bible, there are few things which have affected the character of the modern English more deeply than the Liturgy. The beau-

tiful roll of its language mingles with the memories of childhood; it is the guide of our dawning thought, and accompanies us through each stage of our life with its chaste ceremonials from the font to the edge of the grave. Having been composed at a period when old and new beliefs were contending for supremacy, it contains some remnants of opinions which have no longer perhaps a place in our convictions; but the more arduous problems of speculation are concealed behind a purposed vagueness which shrinks from definition; and the spirit of the Prayer Book is the spirit of piety more than of theology, of wisdom more than of dogma.

Thus, although as an historical document the Liturgy is valuable as a picture of the minds of the English Reformers, it is with a keener interest that we watch the first germs of it passing into the form with which we are so familiar. Two English primers had been published since the commencement of the movement, one in 1535, another under the auspices of Cromwell in 1539; but the first of these was passionate and polemical, the second was slightly altered from the Breviary. If we except the Creed, the Commandments, and the Lord's Prayer, which were attached to the articles of religion sent out in 1536, the earliest portion of our own Prayer Book which appeared in English was the Litany, prepared by the King in the summer of 1544, and perhaps translated by him. On the eve of his departure to Boulogne he sent it, with the following letter, to Cranmer, to be circulated through the country.

'Right Reverend Father in God, right trusty and well beloved, we greet you well; and let you wit that, calling to our remembrance the miserable state of all Christendom, being at this present, besides all other troubles, so plagued with most cruel wars, hatreds, and dissensions, as no place of the same—almost being the whole reduced to a very narrow corner—remaineth in good peace and concord—the help and remedy hereof, far exceeding the power of any man, must be called for of Him who only is able to grant our petitions, and never forsaketh or repelleth any that firmly believe and faithfully call upon Him; unto whom also the examples of Scripture encourage us in all these and others our troubles and necessities to flee. Being therefore resolved to have continually, from henceforth, general processions in all cities, towns, churches, and parishes of this our realm, said and sung with such reverence and devotion as appertaineth, for as much as heretofore the people partly for lack of good instruction and

calling, partly for that they understood no part of such prayers and suffrages as were used to be said and sung, have used to come very slackly to the processions, where the same have been commanded heretofore, we have set forth certain godly prayers and suffrages in our native English tongue, which we send you herewith; signifying unto you that, for the especial trust and confidence we have of your godly mind and earnest desire to the setting forward of the glory of God and the true worshipping of his most holy name, within that province committed by us unto you, we have sent unto you these suffrages, not to be for a month or two observed and after slenderly considered, as our other injunctions have, to our no little marvel, been used; but to the intent, as well the same as other our injunctions, may earnestly be set forth by preaching, good exhortation, and otherwise, to the people, in such sort as they, feeling the godly taste thereof, may godly and joyously, with thanks, embrace the same as appertaineth.⁵⁵⁶

In the year following a collection of English prayers was added to the Litany, a service for morning and evening, and for the burial of the dead;⁵⁵⁷ and the King, in a general proclamation, directed that they should be used in all churches and chapels in the place of the Breviary. It was the duty of the sovereign, he said, to endeavour that his subjects should pass their lives devoutly and virtuously, to the honour of God, and the salvation of their souls. Prayer was the appointed and the only means by which such a life was rendered possible; but prayer of the most passionate and ravishing kind was of little profit, if it was an emotion undirected by the understanding; and to make use of words in a foreign language, merely with a sentiment of devotion, the mind taking no fruit, could be neither pleasing to God, nor beneficial to man. The party that understood not the pith or effectualness of the talk that he made with God, might be as a harp or pipe, having a sound, but not understanding the noise that itself had made; a Christian man was more than an instrument; and he had therefore provided a determinate form of supplication in the English tongue, that his subjects might be able to pray like reasonable beings in their own language.⁵⁵⁸

⁵⁵⁶Henry VIII. to the Archbishop of Canterbury: WILKINS's *Concilia*, vol. iii. p. 869.

⁵⁵⁷See *Primers put forth in the Reign of Henry VIII.* Oxford. 1834.

⁵⁵⁸WILKINS, vol. iii. p. 873.

The surest testimony to wise and moderate measures is the disapproval of fanatics of all kinds. Amidst the factions which were raging round him, the King, with his rational advisers, had no desire to swell the clamour; he sought to accomplish something unquestionably genuine and good, which might bear fruit at a future time. But to the eager Protestants the prayers were tainted with Popery; falling short of their own extravagances they seemed as worthless as the Latin forms which they displaced: while the reactionaries, on the other hand, looked on with mere dismay, and watched for some change of fortune, or some fresh access of folly in their adversaries, to compel Henry once more to turn back upon his steps. As the moderate party was gaining ground, the discord between the extremes grew louder and more bitter; and in the midst of it Parliament met, after a longer interval than usual, in November 1545. From the 'Statute Book' it would have appeared that the business of the session had been principally secular, or, at least, had touched but lightly on theological controversy. Fresh war taxes were voted.⁵⁵⁹ There were measures of law reform, and for the simplification of landed tenures. A remarkable Act stated that the laws of high treason had been made the instruments of private malice. Anonymous libels had been put in circulation, accusing innocent persons of having used seditious language against the King; and, to prevent the multiplication of calumnies and suspicions, any person or persons who should have published any such charges, and not come forward in his own name to prove his statements in the Star Chamber, should in future suffer death as a felon.⁵⁶⁰ The Reformers obtained a victory in the dispensation from the vow of celibacy which was granted to the Knights of St John.⁵⁶¹ A commission was again appointed to revise the canon law; and married laymen were permitted to exercise jurisdiction in the ecclesiastical courts.⁵⁶²

The dissolution of the monasteries had shaken the stability of all other religious or semi-religious corporations. Grants for religious uses, of whatever description, were no longer supposed to be permanent; and the founders, or the representatives of the founders, of colleges, hospitals, fraternities, brotherhoods, and guilds, had shown

⁵⁵⁹ 37 Henry VIII. capp. 24, 25.

⁵⁶⁰ Ibid. cap. 10. Details illustrative of the causes which occasioned this statute will be found in the *Acts of the Privy Council*, vol. vii.

⁵⁶¹ 37 Henry VIII. cap. 31.

⁵⁶² 37 Henry VIII. cap. 17.

a disposition to resume their gifts. In some places the wardens or the occupiers had been expelled; in others sales had been effected by fraudulent collusion; in others the lands belonging to the foundations had been granted away in leases upon lives, the incumbents securing their personal interests by fines. Irregularities so considerable required interference, and, by a sweeping Act, all such properties were at once vested in the Crown, that the institutions to which they had belonged might be refounded on a fresh basis, if their continued existence was desirable.⁵⁶³ A momentary panic was created at Oxford and Cambridge, where the colleges expected the fate of the religious houses; and Doctor Coxe, the prince's tutor, who was Dean of Christ Church, wrote, in some agitation, to Sir William Paget: 'Not,' he said, 'that I distrust the King's goodness, but because there are such a number of importunate wolves as are able to devour chauntries, cathedral churches, universities, and a thousand times as much.'⁵⁶⁴ The alarm

⁵⁶³Ibid. cap. 4.

⁵⁶⁴LORD HERBERT, p. 254. Another letter of Dr Coxe, written a short time previously, containing an account of the character and education of the prince, may be added in this place. The MS. is much injured, and the name of the person to whom the letter was addressed is wanting. 'As concerning my lord and dear scholar, it is kindly done of you to desire so gently to hear from him and of his proceedings in his valiant conquests. We can now read, and God be thanked sufficiently; [and as] He hath prospered the King's Majesty in his travels at Boulogne, surely [in] like [manner thanks be] unto God, my lord is not much behind on his part. He hath expunged and utterly conquered a great number of the captains of ignorance. The eight parts of speech he hath made them his subjects and servants, and can decline any manner Latin nown, and conjugate a verb perfectly, unless it be anomalum. These parts thus beaten down and conquered, he beginneth to build them up again, and frame them after his purpose with due order of construction, like as the King's Majesty framed up Boulogne after he had beaten it down. He understandeth and can frame well his three concords of grammar, and hath made already forty or fifty pretty Latin verses, and can answer well favouredly to the parts, and is now ready to enter into Cato, to some proper and profitable fables of Æsop, and other wholesome and godly lessons that shall be devised for him. Every day in the mass time he readeth a portion of Solomon's Proverbs for the exercise of his reading, wherein he delighteth much; and learneth there how good it is to give ear unto discipline, to fear God, to keep God's commandments, to beware of strange and wanton women, to be obedient to father and mother, to be thankful to him that telleth him of his faults. Captain 'Will' was an ungracious fellow, whom to conquer I was almost in despair. I went upon him with fair means, with foul means, that is, with menacing from time to time, so long that he took such courage that he thought utterly my meaning to be nothing but dalliance. *Quid multa?* Before we came from Sutton, upon a day I took my morice pike, and at 'Will' I went, and gave him such a wound that he wist not what to do, but picked him privately out of the place that I never saw him since. Methought it the

was natural, but it was unnecessary. The King's object was rather to preserve and to restore than to destroy, and the scale and scope of his intentions were soon displayed so clearly as to dispel all uneasiness, by the foundation of the Hospital of St Bartholomew, and of Trinity College at Cambridge.

But the session, if the debates had been preserved to us, would have presented a less tranquil appearance than it wears in the records of its accomplished legislation. From the 'Journals of the House of Lords' we discover that, on the 27th of November, four days after the meeting of Parliament, a fresh heresy bill was brought forward in the Upper House.⁵⁶⁵ It was referred to a committee, again brought in, discussed at length,⁵⁶⁶ and again set aside for consideration; finally, it was passed without a dissentient voice, and sent down to the Commons, where it disappeared. No hint remains of the provisions of this bill. The objects of it are described as the abolition of heresies, and the suppression of certain books infected with false opinions. Perhaps it was some severe measure of arbitrary repression, introduced by the reactionaries; perhaps it was a moderate endeavour to check Anabaptist and Puritan excesses, and was withdrawn or relinquished from experience of the past feebleness of legislative interference with opinion. The progress of the bill may have been stopped by the Lower House; it may have been arrested by the Crown. But, at all events, the phenomenon of the attempt and of the failure is not a little remarkable, and connects itself with a memorable scene with which the session was closed. On the 24th of December, the King for the last time in his life appeared in Parliament for the prorogation. When the business was over and the address was presented, the chancellor was beginning as usual to reply in his name, when Henry unexpectedly rose from his seat, and, with a half-apology for the interruption, requested to be allowed to speak in his own person.⁵⁶⁷

luckiest day that ever I had in battle. I think that only wound shall be enough for me to daunt both 'Will' and all his fellows. Howbeit, there is another cumbrous captain that appeareth out of his pavilion, called 'Oblivion,' who by labour and continuance of exercise shall be easily chased away. He is a vessel most apt to receive all goodness and learning, witty, sharp, and pleasant.' Dr Cox to —: *MS. State Paper Office, Domestic*, vol. xvi.

⁵⁶⁵*Lords Journals*, 37 Henry VIII.

⁵⁶⁶Post longam examinationem.'-Ibid.

⁵⁶⁷Two independent accounts of this speech remain: one is given by Hall, whose language implies that he was present: the other is in a letter of Sir John Mason to Paget, in MS. in the State Paper Office. The first is the longest, the second is the most

The address had contained the ordinary compliments to royalty. The King commenced by saying that he regarded such expressions rather as a point of rhetoric, to put him in remembrance of qualities lacking in him, which he would use his endeavours to obtain; and he trusted his hearers would help him with their prayers. If any point or iota of them were already in him, God was therefore to be thanked, and not he, from whom came all goodness and virtuous quality. He then thanked the Houses for their liberality in the grant of the subsidy, for which, however, he said, considering it was to be employed not for his own use, but for the safety of the commonwealth, he felt not so much obliged, as for the permission which they had given him to dispose as he should think good of the chantries and colleges. This measure he accepted as a proof of their confidence as well in his integrity as in his discretion; and they would see in the dispositions which he intended to make, that he desired to serve God faithfully, and to provide for the wants of the poor.

His manner was unusual. 'He spoke,' said Sir John Mason, 'so sententiously, so kingly, so rather fatherly,' that he was listened to with peculiar emotion.

He had spoken of the business of the session. He then paused—hesitated—his voice shook—he burst into tears.

The present, he said, was not the first time that his subjects had allowed him to see their affection for him; he trusted that they knew that, as their hearts were towards him, so was his heart towards them. One other thing there was, however, in which he could not work alone; and he must call upon them all to help him, in the name and for the honour of Almighty God.

'I hear,' he continued, 'that the special foundation of our religion being charity between man and man, it is so refrigerate⁵⁶⁸ as there was never more dissension and lack of love between man and man, the occasions whereof are opinions only and names devised for the continuance of the same. Some are called Papists, some Lutherans, and some Anabaptists; names devised of the devil, and yet not fully without ground, for the severing of one man's heart by conceit of opinion from the other. For the remedy whereof, I desire, first, every man of himself to travel first for his own amendment. Secondly, I ex-

interesting from the description of the manner in which the words were spoken and of the effect which they produced.

⁵⁶⁸This was his term.—Mason to Paget.

hort the bishops and clergy, who are noted to be the salt and lamps of the world, by amending of their divisions, to give example to the rest, and to agree especially in their teaching which, seeing there is but one truth and verity, they may easily do, calling therein for the aid of God. Finally, I exhort the nobles and the lay fee not to receive the grace of God in vain; and albeit, by the instinct of God, the Scriptures have been permitted unto them in the English tongue, yet not to take upon them the judgment and exposition of the same, but reverently and humbly, with fear and dread, to receive and use the knowledge which it hath pleased God to show unto them, and in any doubt to resort unto the learned, or at best the higher powers. I am very sorry to know and hear how unreverently that precious jewel the Word of God is disputed, rhymed, sung, and jangled in every alehouse and tavern. This kind of man is depraved, and that kind of man; this ceremony and that ceremony. Of this I am sure, that charity was never so faint among you; and God Himself, amongst Christians, was never less revered, honoured, and served. Therefore, as I said before, be in charity one with another, like brother and brother. Have respect to the pleasing of God, and then I doubt not that love I spake of shall never be dissolved betwixt us. Then may I justly rejoice that thus long I have lived to see this day, and you, by verity, conscience, and charity between yourselves, may in this point, as you be in divers others, accounted among the rest of the world as blessed men.'

With these words Henry passed down from the throne and departed. Many of his hearers had been overcome, like himself, and were in tears,⁵⁶⁹ both in Parliament and the country a sensation was created, profound while it lasted; and perhaps it might have been more permanent in its effects, had not the remedy which the King prescribed been the exercise of the one virtue for ever unknown in controversies of religion. Yet, although the admonition was addressed to all sides, it was a declaration in favour of freedom. It prescribed toleration, which the Catholics considered to be a crime. It prescribed charity where they believed it to be their duty to hate. In January their alarm was increased by a circular prepared at the King's desire by Cranmer, forbidding the adoration of the cross on Palm Sunday

⁵⁶⁹His words, says Mason, 'to you that have been used to his daily talking, should have been no great wonder—and yet saw I some that hear him often enough largely water their plants—but to us that have not heard him often were such a joy and marvellous comfort, as I reckon this day one of the happiest of my life.'—Mason to Paget: MS.

and the ringing of bells on All-hallows Eve, which was a relic of Pagan superstition. Gardiner, who at the moment was busy completing at Brussels the revision of the treaty with the Emperor, succeeded in suspending for the moment the issue of the order. He assured the King that, if such an evidence of English tendencies was given to the world, his labours would be fruitless.⁵⁷⁰ But the intention was none the less alarming to the Bishop of Winchester's supporters, none the less encouraging to their opponents. The orthodox faction were still powerful. They had the law upon their side; the Duke of Norfolk stood by them, stoutly supported by Wriothesley, who was now chancellor, and the body of the peers. If they had failed in their late heresy bill, they had still the Six Articles to fall back upon; and as the King was as anxious as he had ever been to check the extravagances with which the Protestant preachers were outraging the prejudices of the people, they had the advantage of a defensive position, and they determined to use their power so long as it remained to them.

They had not long to wait for their opportunity. Many of the chantries had been suppressed under the late Act, and their disappearance, if left to its silent operation, would have carried its own lesson. Dr Crome, a loud advocate of the party of movement, with the appetite for inconvenient dilemmas which belongs so frequently to clever unwise men, preached a sermon at the Mercers' Chapel, in which he worked the statute into an argument against purgatory. Either, he said, the mass priests ought to have been maintained, and a wrong had been done to the souls of those who had left lands to support them, or the singing of masses by living men did not and could not affect the condition of those souls. The reasoning was unanswerable; but where a victory is to be gained over a deep-rooted prejudice, sensible men are contented with the acceptance of premises, and leave the conclusions to follow of themselves. The preacher was invited, by an order from the King, to explain himself at Paul's Cross. He was warned to be careful 'of his brethren in London; not to yield to their fantasies; and to beware that he said not that he came not to recant.'⁵⁷¹ He shuffled in the usual manner; he trifled as Jerome had trifled; and he was then summoned before the council, when he was compelled into a formal abjuration.

⁵⁷⁰JENKINS'S *Cranmer*. vol. i. pp. 318, 319: FOXE, vol. v.

⁵⁷¹*State Papers*, vol. i. p. 843.

If the evil had rested with himself, his impatience would have met with a not undeserved reward; but the spirit of persecution once aroused, would not be appeased without a victim; and an attempt was next made to destroy a more formidable person.

Since his resignation of his bishopric, Latimer had remained in retirement; but his silence had not softened the exasperation which he had before provoked; Crome had received advice from him which might perhaps be heretical; he was sent for and examined.

More than once before, Latimer had been saved by the King. He was out of danger on the great point of transubstantiation, for he still adhered to the old belief; and in any lighter matter he felt that he might trust to the same support and defy the danger. The council 'ministered unto him an oath, with divers interrogatories.'⁵⁷² He would not answer them. It was dangerous, he said; and their proceeding was more extreme than if he lived under the Turk.⁵⁷³ He was told that it was the King's will. He was altogether doubtful of that, he replied, 'and desired to speak with his Majesty himself.' He had been told that it was the King's will that he should give up his bishopric; and he found afterwards that the King had willed nothing of the kind, and had 'pitied his condition.' He was rebuked for his disrespect, but he was very indifferent; and when pressed further with questions, 'he answered them,' the council said, 'in such sort as they were left as wise as they were before.'⁵⁷⁴ A physician named Huick was next called in; but he imitated Latimer, and appealed. He drew up a statement of his belief in writing; but, in a purposed contempt of his examiners, he added to his answer that it was for the King only, and he desired that 'two or three gentlemen of the privy chamber' might take charge of it.⁵⁷⁵

The council laid the behaviour of the prisoners before Henry, and the Reformers seemed to be bent on making their protection as difficult as possible; but, so far as we can discover by the event, the appeal was allowed, and they were troubled no further. Except against those who were heretical on the eucharist, it was plain that no further persecution would be permitted; and even here the Bishop of Winchester felt his prey sliding from his grasp. His enemies were in

⁵⁷²Ibid. p. 848, &c.

⁵⁷³Ibid.

⁵⁷⁴*State Papers*, vol. i. p. 848, &c.

⁵⁷⁵Ibid.

Parliament, on the council board, in the royal household, perhaps on the throne itself; and it seems to have been on this occasion that an attempt was made against Henry's last Queen. Unvouched for, unlabeled to by any contemporary authority as yet discovered, diluted through Protestant tradition for two generations, till it reached the ears of Foxe, the popular legend can pretend to no authenticity of detail. We can believe, however, that, if the Queen had been actively encouraging the more vehement forms of Protestantism in the palace, she must have added materially to the difficulties of the King's position; that Gardiner brought complaints against her; that the King examined into them, and finding that the story was either an invention, or was maliciously exaggerated, dismissed the accusers with a reproof, as he had dismissed them before in their attacks upon Cranmer.⁵⁷⁶

Success in a lower quarter, however, was still possible to the persecutors.⁵⁷⁷ John Lascelles, one of the gentlemen of the bed-chamber,⁵⁷⁸ had been examined with Crome and Latimer. He had declined to reply to the questions which were submitted to him unless he had a promise of the King's protection;⁵⁷⁹ but while in prison he collected his courage, and wrote a deliberate denial of the real presence.⁵⁸⁰ Three other persons were at the same time convicted of the same offence. Nicholas Belemian, a Shropshire priest, John Adams, a tailor,

⁵⁷⁶FOX, vol. v. Foxe has weakened his story by a blunder in the only point on which we are able to test it. He connects the attack on the Queen with Gardiner's disgrace; and Gardiner's disgrace only followed on the discovery of Lord Surrey's designs upon the regency in the ensuing December.

⁵⁷⁷The body of the Council certainly were acting with Gardiner. Latimer's examiners were Wriothesley, Norfolk, Essex, Sir John Gage, Sir Anthony Browne, Sir Anthony Wingfield, the Bishops of Durham and Winchester, and, strange to say, Lord Russell. On the other side were only the small but powerful minority, composed of Cranmer, Lord Parr, Lord Hertford, and Lord Lisle.—See *State Papers*, vol. i. p. 851.

⁵⁷⁸Probably the same Lascelles who was mentioned as regretting the death of Cromwell, and perhaps the brother of the lady who revealed the iniquities of Catherine Howard, and who first carried the story to Cranmer. If he was indeed the same person, we can understand the animosity with which he must have been regarded by the Anglo-Catholics.

⁵⁷⁹Lascelles will not answer to that part of his conference with Crome that toucheth Scripture matters without he have the King's Majesty's express commandment, with his protection; for he saith it is neither wisdom or equity that he should kill himself.—*State Papers*, vol. i. p. 850.

⁵⁸⁰FOX, vol. v. p. 551.

and a lady, the tragedy of whose martyrdom, being visible in all its details, overshadows the fate of her fellow-sufferers.

Anne, daughter of Sir William Ascue,⁵⁸¹ was born at Kelsey, in Lincolnshire. In her early youth or womanhood she must have remembered the rebellion in which her father was, perhaps, unwillingly implicated, and she must have lived surrounded by the passions which it had roused. She was married to a violent conservative, a gentleman named Kyme; but from some cause she was unable to follow in the track of her husband and father; she became a Protestant, and was disowned and disclaimed by them; and then we find that she was to be seen from time to time in the aisles of Lincoln Cathedral reading the Bible, with groups of priests, in twos and threes, approaching to reason with her, 'yet going their ways again without words spoken.'⁵⁸² In March, 1545, she was first arrested, in London. She was examined before the Lord Mayor, and afterwards brought before the Bishop of London, Bonner, who had a certain kind of coarse good nature amidst his many faults, treated her with courtesy. The Mayor had sent in a collection of idle exaggerated charges against her. Some of them she denied; some of them she passed over and avoided, and the Bishop would not press upon her hardly. He said that he was sorry for her trouble. If her conscience was disturbed, he trusted that she would be open with him, and no advantage should be taken of anything which she might say. When she declined to accept him for her confessor, he was ready to assist her to escape from her position. He drew up an orthodox formula on the real presence, which he desired her to sign. She took a pen, and wrote at the foot of the paper that she believed all manner of things contained in the faith of the Church; and, although irritated by the palpable evasion, Bonner allowed it to pass. She was remanded to prison for a few days, and then dismissed upon bail; and the Bishop, with, perhaps, a kinder purpose than that which Foxe attributes to him, of calumniating a Protestant saint, entered in his register that Anne Ascue had appeared before him, and had made an adequate profession of her belief

⁵⁸¹The authority for the remarkable and otherwise incredible circumstances of Anne Ascue's persecution is a narrative, or rather a series of fragments, written by herself in the intervals of her harassing examinations, at the request of her friends. These were printed by Foxe; though he does not say by what means they came into his hands, there is no reason to believe them forgeries; and the utmost value which can belong to internal evidence must be allowed to their unaffected simplicity.

⁵⁸²Anne Ascue's *Diary*: Foxe, vol. v.

But her name was written among those who were to serve Heaven in their deaths rather than their lives. The following summer she was again seized and brought before the inquisitors, whose appetite had been sharpened by the escape of Latimer. The Gardiner and Wriothesley faction were now her judges. They required her to state explicitly her opinion on the eucharist; and she knew this time that they would either kill her or force her to deny her faith. 'She would not sing the Lord's song in a strange land,' she said; and when Gardiner told her that she spoke in parables, she answered as another had answered, 'If I tell you the truth, ye will not believe me.' She was questioned for five weary hours, but nothing could be extracted from her; and the day after, attempts were made to shake her resolution by private persuasion. The brilliant worldly Paget, to whom confessions of faith 'were no things to die for,' put out the eloquence which had foiled the diplomatists of Europe. His arguments fell off like arrows from enchanted armour. Lord Lisle and Lord Parr, who believed as she believed, tried to prevail on her to say as they said. 'It was shame for them,' she replied, 'to counsel contrary to their knowledge.' Gardiner told her she would be burnt. 'God,' she answered, 'laughed his threatenings to scorn.'

She was taken to Newgate, and, as if to insure her sentence with her own hands, she wrote—

'The bread is but a remembrance of his death, or a sacrament of thanksgiving for it. Written by me, Anne Ascue, that neither wish death, nor yet fear his might, and as merry as one that is bound towards Heaven.'

Her formal trial followed at the Guildhall, where she reasserted the same belief: 'That which you call your God,' she said, 'is a piece of bread; for proof thereof let it lie in a box three months and it will be mouldy. I am persuaded it cannot be God.'

The duty of a judge is to decide by the law, not by his conscience. If there had been a desire to acquit, the judges had no choice before them. After sentence of death had been passed upon her she was taken back to prison, where she wrote a letter to the King, not asking for mercy, but firmly and nobly asserting that she was innocent of crime. She enclosed it under cover to Wriothesley. Whether the chancellor delivered it or kept it, the law was left to take its course.

But the execution was delayed. The Anglo-Catholics had gained but half their object, and they required evidence from her, if possi-

ble, which would implicate higher offenders. The state of the King's health made the prospect of a long minority more near and more certain. Lord Audeley and the Duke of Suffolk, who had held a middle place by the side of the King, had died in the past year. The two parties in the Government were more sharply divided and more anxious to shake each other's credit. A strange incident was connected with Anne Ascue's imprisonment. She was found in possession of more comforts than the customs of Newgate supplied: when she was required to confess how she obtained them, it appeared that 'her maid went abroad into the streets and made moan to the prentices, and they by her did send in money.'⁵⁸³ But this explanation, so touching in its simplicity, failed to satisfy her questioners. They suspected Hertford and Cranmer, and perhaps the Queen; and could they prove their complicity, they had insured their own victory and the ruin of their rivals. The condemned lady was taken from Newgate to the Tower, where the chancellor and the solicitor-general were waiting for her. She was asked if Lady Hertford, the Duchess of Suffolk, or Lady Fitzwilliam belonged to her sect. She refused to say. They told her that they knew she had been maintained by certain members of the council, and they must have their names. She was still silent. 'Then,' she says (and this is no late legend or lying tradition, but a mere truth related at first hand, from the pen of the sufferer herself), 'they did put me on the rack because I confessed no ladies or gentlemen to be of my opinion, and thereupon they kept me a long time; and because I lay still and did not cry, my Lord Chancellor and Master Rich⁵⁸⁴ took pains to rack me with their own hands till I was nigh dead.'⁵⁸⁵ Sir Anthony Knyvet, the Lieutenant of the Tower, lifted her

⁵⁸³ Anne Ascue's Narrative.

⁵⁸⁴ The Solicitor-General.

⁵⁸⁵ 'I understand,' she wrote subsequently, 'the council is not a little displeased that it should be reported abroad that I was racked in the Tower. They say now that what they did then was but to fear me, whereby I perceived they are ashamed of their uncomely doings, and fear much lest the King's Majesty should have information thereof.'—Foxe, vol. v. p. 548. The abominable cruelty of Wriothesley and Rich is perhaps the darkest page in the history of any English statesmen. Yet, as Wriothesley was a man who had shown at other times high and noble qualities, it is hard to believe that bigotry had entirely blinded him to the feelings of humanity. It is possible that the rack was, as he said, employed rather to terrify than to torture, and he may have himself taken charge of it to prevent rather than to insure the active infliction of pain. Anne Ascue may have swooned from fear as well as suffering; and it is to be remarked that she sat two hours with Wriothesley immediately afterwards,

off in his arms. She swooned, and was laid on the floor; and when she recovered, the chancellor remained two hours longer labouring to persuade her to recant. But, as she said, she thanked God she had strength left to persevere; she preferred to die, and to death they left her.⁵⁸⁶

On the 16th of July she was carried out with her three companions to the scene of so many horrors, and chained to a stake. Four members of the council, brought thither, it is to be said, by duty, not by curiosity or vindictiveness, took their places on a raised bench in front of St Bartholomew's Church, and when all preparations were completed, Shaxton, once the most troublesome of the Protestants, now, in the recoil of cowardice degenerate into a persecutor, preached a sermon. The sufferers listened calmly, and when the preacher ceased Wriothesley sent them their pardons on condition of recantation. But neither Anne nor her companions would even look at them. They merely said they were not come thither to deny their Lord and Master. The Mayor rose, and exclaimed, 'Fiat Justitia,' and the pile was lighted.

That the persecution had not been instigated by the King is evident from the whole tenor of his later years, and from the confidence with which all accused persons appealed to him. While these trials were going forward he was pressed by the bishops to issue a proclamation for the surrender of the forbidden volumes of Protestant theology. He consented, but he accompanied the order with a promise that no person who might bring in such volumes should be in danger for their possession under existing statutes; and he directed 'that no bishop, chancellor, commissary, sheriff, or constable should be curious to mark' who the persons were.⁵⁸⁷ He had ceased to sympathize with bigotry; how far he had endeavoured to check it is as difficult to know, as the extent of his responsibility is difficult to measure. It is no easy thing for a sovereign, when he sees his way but doubtfully, to set aside the law, in the face of a powerful party. But, after these

'reasoning with him,' which she could not have done if the screws had been severely strained. Foxe indeed says, that she had been so tortured that she was carried in a chair to the place of execution: but she may have been exhausted by general ill-treatment, and the fact of her two hours' conversation rests on her own authority.

⁵⁸⁶Foxe adds that Knyvet, as soon as they were gone, sprung immediately into a boat and hurried to Whitehall to the King, who expressed himself 'not pleased at the extreme handling of the woman.' Anne herself, however, as may be seen in the last note, said, that the council were afraid lest the King should hear how she had been treated.

⁵⁸⁷Royal Proclamation against unlawful books.—FOXE, vol. v.

last executions, he seems to have been finally revolted, and to have shaken himself free, by a resolute effort, of the whole accursed superstition. The persecutors, who had extended their operations into the counties, as well as exerted themselves in the capital, proceeded in the confidence of success to seize another member of the household, Sir George Blage. He was taken to the Guildhall, accused of heresy on the sacrament, tried and condemned. Only at the last moment Henry received an intimation of his servant's danger through Lord Russell; but he required him by a royal warrant to be instantly set at liberty.

The first step was followed up by a public evidence of his intentions far more marked. As long as he was embarrassed with the war his advances to the Germans were explained, and perhaps in their earlier stages had been caused, by political convenience. He was now himself at peace, and the danger from the Emperor, so long foreseen, was on the point of bursting upon Saxony. Their recent treatment of England had imposed but a slight obligation on the King; to interfere to help the Lutheran princes. He now once more, as if to signify to his own subjects and to the world his resolution to go forward with the Reformation, offered to unite with them in a league offensive and defensive, to be called 'the League Christian.' Inasmuch as he would be called on for larger contributions than any other prince, he desired for himself the principal authority; but his object, he said, was 'nothing more than the sincere union and conjunction of them all together in one godly and Christian judgment and opinion in religion, following the Holy Scriptures or the determination of the Primitive Church' in the first general councils. He entreated again that their 'learned men' would come to England, and settle with him their minor differences, and 'so, they being united and knit together in one strength and religion, it might be called indeed a very Christian league and confederacy.'⁵⁸⁸ At the same time he surprised Cranmer by telling him that he was prepared for the change at home of the mass into the modern communion.⁵⁸⁹ The danger for which Anne of Cleves had been divorced, for which Cromwell had been hunted to death, which the whole energies of the Anglo-Catholics had for ten years been exerted to prevent, had returned at last, and, as it seemed, irresistibly. The Germans, indeed, were so blind to their peril as again to hesitate, and to demand impossible conditions. The false promises of the French

⁵⁸⁸ Henry VIII. to Bruno: *State Papers*, vol. xi. pp. 281, 282.

⁵⁸⁹ See FOXE, vol. v. p. 692: and JENKINS'S *Cranmer*, vol. i. p. 320.

betrayed them to their ruin.⁵⁹⁰ But the King's intentions remained unaffected. Slow to resolve, he was never known to relinquish a resolution which once he had formed; and Elizabeth did but conclude and establish the changes which her father would have anticipated had another year of life been allowed to him.⁵⁹¹

But time was soon to exist no more for Henry. Well done or ill, his work on earth, was nearly finished. In a few more weeks he was to die. It was evident to himself and to all about him that the end was near. The wound in his leg had deepened and spread: he could no longer walk or stand, but he reclined upon a couch and was wheeled from room to room. His death might easily be close at hand. It could not be distant. Under such circumstances what were the prospects of the kingdom? The prince was but nine years old; and the saying 'Woe to the land where the king is a child,' was at that moment signally illustrated in the misery of Scotland. The baby-queen was a plaything, as Henry described it, 'among a sort of wolves'—was that to be the fortune of the boy for whom he and his country had so passionately longed? The Earl of Hertford was the person on whose natural affection he could most surely calculate; and Hertford was true to the Reformation. But a protectorate in the hands of a leader of one of two great parties regarding each other with the animosity which only religion could inspire, was a precarious experiment, and there were personal objections to the choice of no inconsiderable magnitude.

Hertford was hated as a *parvenu* by the old nobility, and by the smaller landowners, who with feudal deference accepted their opinions from the aristocracy; he was dreaded as a heretic by the whole

⁵⁹⁰Unless the Protestants be succoured, the Cardinal du Belai saith that *actum est de negotio evangelii*.... We had long communication of this matter, and, among other things, when I said to him that, if the Protestants could have been contented with reason, peradventure they might have been in league with us ere this. Marry, it is true, quoth he; but to speak frankly with you, they durst not for fear of us, for if they had so done without us we threatened to be against them too: and then, they, being loath to refuse directly your amity, did demand such things of yon as they knew you would not grant unto.'—Wotton to Paget: *State Papers*, vol. xi. pp. 354, 355.

⁵⁹¹I say Elizabeth, rather than Cranmer and Hertford; for the Reformation under Edward VI. was conducted in another spirit. Hertford, however, knew what Henry's intentions were, and partially if not wholly fulfilled them. He wrote to Mary on her complaint of the changes which he had introduced, saying that 'his Grace died before he had fully finished such order as he was minded to have established if death had not prevented him. Religion was not established as he purposed, and a great many knew and could testify what he would further have done in it had he lived.'—STRYPE'S *Memorials*, vol. i. p. 601.

body of the conservatives, whether laity or clergy. His popularity with the army which he had gained by his military successes, and the support of the enthusiastic but ungovernable Reformers, might have enabled him to make head as a leader in civil war, but would assist him little in carrying on the Government. Nor is it likely that the King could wholly place confidence in him. Able without being wise, the Earl possessed precisely the qualities which would be most dangerous to him if trusted with power in an arduous crisis.

Had the conservatives been prudent, they had a fair game in their hands; a power so great as to have compelled Henry VIII. to temporize with it would have recovered its influence with little difficulty in the necessary weakness of a minority. But, either their own hasty anxiety, or the headstrong ambition of one of their leaders, betrayed their interests prematurely, and secured the easy accomplishment of a Protestant revolution. In relating the story of the trial and execution of Lord Surrey, which historians have unanimously described as a gratuitous murder, it will be desirable for me to state with much nakedness the grounds on which I have formed a different opinion.

During the discussions on the succession which had preceded and occasioned the divorce of Queen Catherine, the Duke of Norfolk had been spoken of among those who were likely, in the event of the King's death, to succeed to the crown.⁵⁹² Any hopes which he might have formed disappeared necessarily with the birth of the prince; but he remained one of the most powerful noblemen in England, and since the death of the Duke of Suffolk was without an equal in rank among the peers. He consistently declared and consistently conducted himself as the champion of Catholic doctrine.⁵⁹³ His expressions on the fall of Cromwell betrayed a regret even for the separation from the Papacy,⁵⁹⁴—as indeed the Anglicans generally were learning that there was no true standing ground for opinions divorced from their natural connection. To his father's hereditary sentiments Lord Surrey added a more than hereditary scorn of the 'new men' whom the change of times was bringing like the scum to the surface of the State, and an ambition which no portion of his father's prudence taught him to restrain. With brilliant genius, with reckless

⁵⁹²See GIUSTINIANI's *Letters from the Court of Henry VIII.*

⁵⁹³I know not that I have offended any man, or that any man was offended with me, unless it were such as were angry with me for being quick against the sacramentaries.'—Duke of Norfolk to Henry VIII. LORD HERBERT, p. 265.

⁵⁹⁴*Vide supra*, vol. iii. p. 446.

courage, with a pride which would brook no superior, he united a careless extravagance which had crippled him with debt, and a looseness of habit which had brought him unfavourably under the notice of the Government. So far a brief imprisonment had been considered sufficient punishment for an ordinary folly. He had done good service abroad, which the defeat at St Etienne had but partially eclipsed. There is no appearance that suspicion of any kind continued to attach to him.

Suddenly, however, there was a change. At the end of November, 1546, when the King's illness was notoriously dangerous, and he was in greatest embarrassment as to the settlement of the kingdom, it became known that the young lord had made an alteration in his shield; that where he was entitled to bear the arms of England in the second quarter, as a collateral descendant of the Plantagenets, he had assumed the quarterings which belonged especially and only to the heir-apparent to the throne.⁵⁹⁵ The Earl of Surrey's arms was not a subject entirely new. We may feel assured that, when the riot was inquired into, the remarks of his friends upon his family and his prospects had not been overlooked.⁵⁹⁶ A new and extraordinary affectation in the same matter naturally attracted notice. Questions were asked at the College of Heralds, where it appeared that Lord Surrey had inquired whether he might legitimately assume the royal bearings. He had been told, it was found, that he might not assume them; he had insisted that he would, and he had been served in consequence with a formal inhibition.⁵⁹⁷ A light matter became a large one, when it had been pursued with so peculiar obstinacy. Vanity alone could not have prompted conduct which was technically high treason, when the nature of it was so clearly understood. Suspicion being once aroused, many lips were immediately opened which the fear of Norfolk's family had hitherto kept sealed.

'Sir Edmund Warner, being commanded by Sir William Paget to put in writing all such words and communications as had heretofore been betwixt him and the Earl of Surrey that might in any wise touch the King's Highness and his posterity, or of any other person, what he had heard of the said Earl that might in any wise tend to the same

⁵⁹⁵*Baga de Secretis; State Papers*, vol. i. p. 891. Act of Attainder of the Earl of Surrey and the Duke of Norfolk.

⁵⁹⁶Vol. iii. p. 590.

⁵⁹⁷Depositions on Lord Surrey's Treasons: *MS. State Paper Office, Domestic*, vol. xix.

effect, deposed, that of the Earl himself he had heard nothing; but in the summer last past Mr Devereux did tell him upon certain communications of the pride and vain-glory of the said Earl, that it was possible it might be abated one day; and when he, Sir Edmund Warner, asked what he meant thereby, he said, what if he were accused to the King that he should say, 'if God should call the King to his mercy, who were so meet to govern the prince as my lord his father?'⁵⁹⁸

Sir Edward Rogers, being examined, deposed—

'Sir George Blage was in communication with the Earl and me, and the Earl entered in question with Blage, or Blage with the Earl, who were meetest to have the rule and governance of the prince in case God should disclose his pleasure on the King's Majesty. Blage said he thought meetest such as his Highness should appoint. The Earl contrarywise said that his father was the meetest personage to be deputed to that room, as well in respect of the good service that he had done as also for his estate. Blage answered, saying, he trusted never to see that day, and that the prince should be but evil taught if he were of his father's teaching; and further, in multiplying of words, said plainly to the Earl that, rather than it should come to pass that the prince should be under the governance of his father or you, I would bide the adventure to thrust this dagger in you. The Earl said he was very hasty, and God sent a shrewd cow short horns. 'Yea, my lord,' quoth Blage, 'and I trust your horns also shall be kept so short as you shall not be able to do hurt with them;' and thus they departed in choler.'⁵⁹⁹

Sir George Blage's intemperance may be accounted for by his escape from the destination in Smithfield, which Norfolk's party had intended for him. It is easy from these fragments of evidence to gather that Surrey had for some time been speculating on a Norfolk regency. The prize was one for which he might naturally hope, for which ambition and the interests of his party would alike tempt him to strike; and it would be a recompense for the shadow under which his family had suffered since Catherine Howard had disgraced them.

But a darker charge against him was next to follow.

⁵⁹⁸ Examination of Sir Edmund Warner: *MS. State Paper Office, Domestic*, vol. xix.

⁵⁹⁹ Examination of Sir Edward Rogers: *MS. State Paper Office, Domestic*, vol. xix.

'Sir Gawin Carew, examined, said that my Lady of Richmond⁶⁰⁰ had discovered unto him as strange a practice of her brother as ever he heard of, which was that the aforesaid Earl, pretending the face of a marriage to have succeeded between Sir Thomas Seymour and the said lady, did will and advise her that what time the King's Majesty should send for her (as it should be brought about that the King's Highness should move her in that behalf), she should so order herself as neither she should seem to grant nor to deny that his Majesty did will her unto, but rather to so temper her tale as his Highness might thereby have occasion to send for her again, and so possibly that his Majesty might cast some love unto her, whereby in process she should bear as great a stroke about him as Madame d'Estampes did about the French King.'⁶⁰¹

Another witness confirmed Carew's story. At the time when the proposition was made, when there was no thought of a prosecution of Surrey, Lady Richmond had complained of his language to her with abhorrence and disgust, and had added, 'that she defied her brother, and said that they should all perish, and she would cut her own throat, rather than she would consent to such a villany.'⁶⁰²

It was proved further, that Surrey had used violent and menacing language against Hertford, who had superseded him at Boulogne, and had been sent to retrieve his blunders; and, more suspiciously, that one of his servants had been in secret communication with Cardinal Pole in Italy.

This evidence was collected in the first and second weeks in December. Surrey and the Duke were immediately arrested, and the personal attendance of Lady Richmond being of course indispensable, Sir John Gates and Sir Richard Southwell were sent down for her into Norfolk to Keninghall, and were directed to bring with her at the same time a certain Elizabeth Holland, an ambiguous favourite of the Duke who resided with his family.⁶⁰³

⁶⁰⁰Widow of Henry Fitz Roy, Duke of Richmond, daughter of the Duke of Norfolk, and sister of Surrey.

⁶⁰¹Examination of Sir Gawin Carew: *MS. State Paper Office, Domestic*, vol. xix.

⁶⁰²*MS. Ibid.*

⁶⁰³The only information which we possess about this lady is in the letters of the mad Duchess of Norfolk, the daughter of the Duke of Buckingham; and little credit can be attached to stories which are tinged with a manifest insanity. On one occasion the Duchess says that Elizabeth Holland was originally a laundry-maid at Keninghall, and that Norfolk took her for his mistress. Elsewhere she describes her as a near

Lady Richmond, on learning the object of their visit, at first almost fainted. As soon as she could collect herself she fell on her knees and declared that she had always believed her father to be loyal. Her brother, she said, was a rash young man; but she would tell all that she knew, she would conceal nothing.⁶⁰⁴ The two ladies were brought immediately to London. Elizabeth Holland's depositions, when taken before the council, chiefly affected the Duke. He was not responsible for the alteration of the arms, for which, she said, he had censured Surrey; but he had spoken violently and bitterly of his opponents on the council. They hated him, he had said, because he was true to the Church and the faith, and was an enemy of heretics. The King did not love him, and had withdrawn his confidence from him; but the King would soon die, and the realm would be in confusion, and the less others set by him, the more he would set by himself.⁶⁰⁵

Lady Richmond threw a shield over her father; but against her brother her evidence told fatally. She confirmed the story of the abominable advice which he had given her. She revealed his deep hate of the 'new men,' who, 'when the King was dead,' he had sworn, 'should smart for it.' The painful appearance of a sister bearing witness against her own blood, loses its offensiveness in the outrage which Surrey had dared upon her honour.⁶⁰⁶

Meantime other secrets came to light. The Duke of Norfolk's midnight visits to Marillac were now for the first time made known to the Government, and threw light upon many past difficulties; and next it was said that Gardiner, when at Brussels, had planned a secret scheme with Granvelle for the restoration of the Papal authority in England; that Norfolk was privy to their intentions, and that they had been even aware of the treachery explained in Guzman's letter to the Emperor.⁶⁰⁷ The visits to Marillac could be proved, and, being an unexplained mystery, gave credit to what were perhaps but inven-

relative of Lord Hussey, who was under her husband's protection. Both statements are accompanied with descriptions of family quarrels, monstrous in themselves and refuted by the Duke's solemn denial; and it is an important feature in the case that both Surrey and his sister were on the father's side. The letters are among the *Cotton MSS.*, and are many of them printed by Nott in an appendix to his *Life of Surrey*.

⁶⁰⁴*State Papers*, vol. i. p. 888, &c.

⁶⁰⁵Deposition: *MS. State Paper Office, Domestic*, vol. xix.

⁶⁰⁶*MS. Ibid.*

⁶⁰⁷Duke of Norfolk to the Lords of the Council: *NOTT'S Surrey*, appendix, p. 99.

tions. Truth and falsehood, suspicion and certainty, gathered up in one black ominous thundercloud.

The Duke made no attempt to save Surrey. He knew the schemes which had been formed, and he felt that it was idle to deny them. He contented himself with declaring his own innocence of bad intentions, and his ignorance of the intrigues of Gardiner. He drew up a confession, in which he acknowledged that he had criminally concealed the dangerous purposes of his son, and that, for himself, 'contrary to his duty and allegiance, he had at divers times, and to divers persons, disclosed secrets of the privy council, to the King's peril,'⁶⁰⁸ for which offence he deserved to be attainted of high treason.' But in a letter to the council, he protested vehemently his general fidelity. To the King he declared that he was conscious of no real fault, unless his hatred of 'sacramentaries' was a fault.⁶⁰⁹ He insisted on his services; he disowned any leaning to the Papacy.⁶¹⁰ He seemed to fear that the same measure would be dealt to him which he had dealt to Cromwell, and that he would be attainted and condemned without trial. Yet, even so, he said, Cromwell had been heard by the council; and though he might claim better treatment than had suited the deserts of a plebeian upstart, at least he desired that he might have no worse, and that Henry or the council would hear him.

Parliament was called at once, and circulars, as usual in such cases, were sent to the foreign ambassadors. The substance of the effect which they produced may be gathered from a letter of the Bishop of Westminster, who was then in Germany, to Paget.

'I would write unto you my heart if I could,' he said, 'against those two ungracious ingrate and inhuman *non homines* the Duke of Norfolk and his son; the elder of whom I confess that I did love, for that I ever supposed him a true servant to his master, like as both his allegiance and the manifold benefits of the King's Majesty bound him to have been. Before God I am so amazed at the matter that I know not what to say; therefore I shall leave them to receive for their deeds

⁶⁰⁸Printed by Lord Herbert, p. 265.

⁶⁰⁹Norfolk to the King: LORD HERBERT, *ibid.*

⁶¹⁰Perhaps truly; but if Surrey had succeeded, events would have probably, or assuredly, fallen into the course which they assumed under Mary, as the instinct of the sacramentaries told them. 'There was a nobleman in England,' wrote one of them to Bullinger, 'commonly called the Duke of Norfolk, who was a most bitter enemy to the Word of God, and who, with his son and others, made a secret attempt to restore the dominion of the Pope and the monks.'—*Original Letters*, p. 639.

as they have worthily deserved, and thank God for his grace that hath opened this in time, so that the King's Majesty may see it reformed. Almighty God hath not now alone, but often and sundry times heretofore, not only letted the malice of such as hath imagined any treason against the King's Majesty, but hath so wonderfully manifested it, and in such time, that his Majesty's high wisdom might let that malice to take its effect.... All good Englishmen cannot herefor thank God enough, and for our part I pray God that we may, through his grace, so continue his servants, that hereafter we be not found unworthy to receive such a benefit at his hands. ... To the King's Majesty herein I dare not write, for to enter the matter and not to detest it, as the case requireth, I think it not convenient; and, on the other side, to renew the memory of these men's ingratitude, wherewith noble and princely hearts above all others be soon wounded, I think it not wisdom.⁶¹¹

The Duke of Norfolk was aware of Surrey's intentions. How far he had committed himself to active participation in them may remain uncertain. For the Earl, as his sister's evidence places him beyond the reach of interest and almost of compassion, so no injustice is done to him if we conclude that he was ready to employ any means, however unworthy, to gain an influence over the King; that when Lady Richmond refused to be his instrument, he intended, on Henry's death, to claim the supreme power for Norfolk or himself as the right of their birth; that in the alteration of his arms he was placing prominently forward his connection with the blood-royal to give force to his assumption, and to assist him in taking his place as the premier nobleman of the ancient blood of England. This was the interpretation which at the time was assigned to his conduct; and as his success would have involved the triumph of the faction who had been straining their utmost to anticipate the Marian persecution, there is little to regret if the King saw no reason to look leniently on the insolent ambition which would have ruined a great cause, and filled England with the blood of innocents.

⁶¹¹Thirlby to Paget: *State Papers*, vol. xi. p. 391. Dr Wotton also spoke of 'the devilish purpose of them that maliciously and traitorously conspired.' He was then at the French Court, and Francis inquired minutely into the circumstances. He asked if the treason was proved. Wotton said it was; and that Surrey had confessed 'both against himself and against his father too.' So far as I know, this is the only hint of a confession from Surrey.—*Ibid*, p. 388.

A paper of considerations, written partly by Henry himself,⁶¹² implies a belief that Surrey had even thought of setting the Prince of Wales aside and seizing the throne. 'If a man coming *of the collateral line to the heir* of the crown, who ought *not* to bear the arms of England *but on* the second quarter, with the difference of their ancestry, do presume to change his right place, and bear them on the first quarter, leaving out the true difference of the ancestry, and in the lieu thereof uses *the very place* only of the heir-apparent, *how this man's intent is to be judged, and whether this* impute any danger, peril, or slander to the title of the prince, and how it weigheth in our laws?

'If a man *presume* to take into his arms an old coat of the crown, *which his ancestors never bare, nor he of right ought to bear*, and use it without a difference, whether it may be to the peril or slander of the very heir of the crown, or be taken to tend to his disturbance in the same, and in what peril they be that consent that he should do so?

'If a man *compassing with himself to govern the realm* do actually *go about* to rule the King, and should for that purpose advise his daughter or his sister to become his harlot, thinking thereby to bring it to pass, and so would rule both father and son, what this importeth?

'If a man say these words, 'If the King die, who should have the rule of the prince but my father or I?' what it importeth?'

If a man say these words of a man or a woman of the realm, 'If the King were dead, I would shortly shut him up,' what it importeth?

If a man, provoked or compelled by his duty of allegiance, shall declare such matters as he heareth touching the King, and shall after be continually threatened by the person accused to be killed or hurt for it, what it importeth?'⁶¹³

The last of these questions refers to something of which the evidence is lost; the second to a right pretended by Surrey to bear the arms of Edward the Confessor. Whether the extremity of suspicion was justified is of little importance. Enough had been proved to bring Surrey under the letter of the treason law, and to make him far more than guilty under the spirit of it. He had played for a high stake; he had failed, and had now to pay the forfeit. On the 13th of January,⁶¹⁴ the day before the meeting of Parliament, he was tried before a spe-

⁶¹²The words in italics are the King's. They are alterations made by him in the original draft. The writing is tremulous and irregular.

⁶¹³*State Papers*, vol. i. p. 891.

⁶¹⁴The Duke of Norfolk's confession is dated the 12th.—See LORD HERBERT.

cial commission at the Guildhall; and, after a rhetorical defence, he was found guilty, sentenced, and executed. ⁶¹⁵

The Duke of Norfolk escaped a trial, but he was not to escape attainder. Immediately on the assembly of the Houses, the subject, by the King's desire, was brought before them, and they were requested to lose no time in proceeding with it. In the absence of proof, it cannot be said with certainty that Norfolk's death was not intended; but his long services perhaps pleaded in extenuation of his lighter guilt; and the causes which the King alleged for haste, point to another motive than a wish to shed blood. Feeling his end to be very near, he desired, as the best security for the prince's succession, to see him before he left the world created Prince of Wales and crowned. Every high officer of State had his place in the ceremony; and it was necessary to bestow elsewhere the dignities which Norfolk held, and of which the attainder would significantly deprive him. ⁶¹⁶ A message to this effect was delivered to the Parliament by the chancellor, Thursday, on the morning of the 27th of January. The bill had already passed both Lords and Commons; the royal assent only was wanting; and the King, too ill to attend, had sent down a commission empowering the chancellor to give his sanction. The order was read. The clerk of the Upper House at the close pronounced the customary words—*soit fait comme il est désiré*.

The peers, knights, and burgesses departed to their houses. On the day which followed they met as usual for despatch of business; but their business was a form; they were no longer a Parliament. ⁶¹⁷ On the same morning, an hour after midnight, Henry VIII. had died. Late on Thursday evening the symptoms had become rapidly worse. He

⁶¹⁵See NOTT's *Surrey*: an epitome of the trial is in the *Baga de Secretis*.

⁶¹⁶Hoc die Jovis, 27o Januarii, Dominus cancellarius admonuit omnes proceres utriusque ordinis suas Parliamentares Robas induere ac deinde Prolocutorem Milites et Burgenses omnes vocari jussit e Domo Communi, quo facto idem Cancellarius palam declaravit visum esse Regiæ Majestati ob certas quasdam causas specialiter moventes, ut sine ullâ dilatione expediatur Billa quædam pro attincturâ, Thomæ Ducis Norff. et Henrici Comitis Surrey, maxime vero ut officia quædam dicti Ducis in alios conferri possent et pleno jure per alios exerceri, in sacratissimam solemnitatem coronationis Edwardi Principis quæ jam instat.'—*Lords Journals*, 38 Henry VIII.

⁶¹⁷It has been conjectured that delay in communicating the King's death was caused by a discussion in the council on the fate of the Duke of Norfolk. It is far more likely that, the suddenness of the end having taken the council by surprise, they were examining the will, and considering how to carry out the dispositions which had been made for the Government.

was asked which of his bishops he desired to see. He answered Cranmer. The Archbishop was sent for, but there was some delay; and when he reached Whitehall, the King, though conscious, was speechless. Cranmer, 'speaking comfortably to him, desired him to give him some token that he put his trust in God through Jesus Christ; therewith the King wrung hard the Archbishop's hand,' and expired.⁶¹⁸

The great event was come; and what would follow? Had it occurred a few weeks sooner it would have been the signal of confusion, persecution, perhaps insurrection and civil war. The peril was escaped for the moment; but whether for the moment only might depend on the foresight of the sovereign, who being dead was yet to speak; who had been empowered by the confidence of the country to order the succession, and to direct the form of the Government which was to rule the minority of the prince.

The will was produced. It was dated on the 30th of December, four weeks before, though there is reason to think it had been drawn in its leading features when the King crossed to Boulogne;⁶¹⁹ and that only a few clauses were afterwards altered and certain names omitted. The formal bequests have long been satisfied or defeated. The wisdom or errors of the political provisions have been tried at the bar of time, and the verdict has been pronounced for centuries. But the last words of a remarkable man may still be studied as a reflex of his character and convictions, and as shedding some light upon a disposition which an altered age will never fully comprehend, but which is pregnant with indirect suggestions.

'In the name of God and of the Glorious and Blessed Virgin our Lady St Mary, and of all the Holy Company of heaven,—

'We, Henry, by the Grace of God King of England, France, and Ireland, Defender of the Faith, and in earth immediately under God the Supreme Head of the Church of England and of Ireland, of that name the Eighth, calling to our remembrance the great gifts and benefits of Almighty God given unto us in this transitory life, give unto him our most lowly and humble thanks, knowledging ourself insufficient in any part to deserve or recompense the same, but fear that we have not worthily received the same;—

'And considering further, also, with ourself, that we be as all mankind is, mortal and born in sin, believing, nevertheless, and

⁶¹⁸STRYPE'S *Cranmer*, vol. i. p. 199.

⁶¹⁹See FOXE, vol. v.

hoping that every Christian creature, living here in this transitory and wretched world under God, dying in steadfast and perfect faith, endeavouring and exercising himself to execute in his lifetime, if he have leisure, such good deeds and charitable works as Scripture commendeth, and as may be to the honour and pleasure of God, is ordained by Christ's passion to be saved and to obtain eternal life, of which number we verily trust by his grace to be one; and that every creature, the more high that he is in estate, honour, and authority in this world, the more he is bound to love, serve, and thank God, and the more diligently to endeavour himself to do good and charitable works to the laud, honour, and praise of Almighty God, and the profit of his soul;—

'Also calling to our remembrance the dignity, estate, honour, rule, and governance, that Almighty God hath called us into this world, and that neither we nor any other creature mortal knoweth the time nor place when nor where it shall please Almighty God to call him out of this transitory world;—willing, therefore, and minding, before our passage out of the same, to dispose and order our latter mind, will, and testament, in that sort as we trust it shall be acceptable to Almighty God, our only Saviour Jesus Christ, and all the whole company of heaven, and the due satisfaction of all godly brethren on earth, we therefore, now being of whole and perfect mind, adhering wholly to the right faith of Christ and his doctrine, repenting also our old and detestable life, and being in perfect will and mind by his grace never to return to the same nor such like, and minding by God's grace never to vary therefrom as long as any remembrance, breath, or inward knowledge doth or may remain within this mortal body, most humbly and heartily do commend and bequeath our soul to Almighty God, who in person of the Son redeemed the same with his most precious body and blood in time of his passion; and for our better remembrance thereof,⁶²⁰ hath left here with us, in his Church militant, the consecration and administration of his precious body and blood to our no little consolation and comfort, if we as thankfully accept the same as He lovingly and undeserved on man's behalf hath ordained it for our only benefit and not his.

'Also we do instantly require and desire the blessed Virgin Mary his mother, with all the holy company of heaven, continually to pray for us and with us while we live in this world and in the time of pass-

⁶²⁰The careful reader will observe this language.

ing out of the same, that we may the sooner attain everlasting life after our departure out of this transitory life, which we do both hope and claim by Christ's passion and word.

'And as for my body which, when the soul is departed, shall then remain but as a *cadaver*, and so return to the vile matter it was made of, were it not for the room and dignity which God hath called us unto, and that we would not be noted an infringer of honest worldly policies and customs where they be not contrary to God's laws, we would be content to have it buried in any place accustomed for Christian folks, were it never so vile, for it is but ashes, and to ashes it shall again. Nevertheless, because we would be loath, in the reputation of the people, to do injury to the dignity which we unworthily are called unto, we are content and do will and ordain that our body be buried and interred in the quire of our college at Windsor, midway between the stalls and the high altar; and there to be made and set as soon as conveniently may be done after our decease by our executors at our cost and charges, if it be not done by us in our lifetime, an honourable tomb for our bodies to rest in, with a fair grate about it, in which we will that the bones and body of our true and loving wife Queen Jane be put also; and there be provided, made, and set a convenient altar, honourably prepared and apparelled with all manner of things requisite and necessary for daily masses there to be said perpetually while the world shall endure. Also we will that the tombs and altars of King Henry VI., and also of King Edward IV., our great uncle and grandfather, be made more princely in the same place where they now be at our charges; and, also, we will and specially desire that when and wheresoever it shall please God to call us out of this world transitory, to his infinite mercy and grace, be it beyond the sea,⁶²¹ or in any other place without or within our realm of England, that our executors shall cause all divine service accustomed for dead folk to be celebrated for us in the next and most proper place where it shall fortune us to depart.

'And over that we will that our executors, in as goodly, brief, and convenient haste as they reasonably can or may, ordain and cause our

⁶²¹In anticipation of his possible death in the war. The expression confirms the belief that the will was written in 1544; and the date perhaps explains the direction for the masses which were to be said at his tomb. The final advances in the King's mind belong to the two concluding years of his life. But, as he said himself, 'he would not be noted as an infringer of worldly policies and customs when they were not contrary to God's law.'

body to be removed into our said college at Windsor, and the service of *Placebo* and *Dirige*, with a sermon and mass on the morrow, at our costs and charges, devoutly to be done and solemnly kept, there to be buried and interred in the place appointed for our said tomb; and all this to be done in as devout wise as can or may be done. And we will and charge our executors that they dispose and give in alms to the most poor and needy people that may be found (common beggars as much as may be avoided) in as short a space as possibly they may after our departure out of this transitory life, one thousand marks of lawful money of England, part in the place where it shall please Almighty God to call us to his mercy, part by the way, and part in the place of our burial, after their discretion; and to move the poor people that shall have our alms to pray heartily unto God for remission of our offences and the wealth of our soul.'

Lands and spiritual promotions, to the value of six hundred pounds a year, were then left to the dean and canons of St George's, to provide for the services at the altars, for annual alms to the poor, and for the support of thirteen poor knights, to be called the Knights of Windsor; and after these personal dispositions followed the orders for the settlement of the realm.

The crown was bequeathed to the prince and his issue, or, in default of such issue, to his own heirs, lawfully begotten of his entirely beloved wife Queen Catherine, or any other lawful wife whom he might hereafter marry. 'For lack of such issue and heirs' it was to descend, in compliance with the Act of Parliament, to the Lady Mary and her heirs, and next to Elizabeth and her heirs, provided they married not without the consent of their brother, or of the council to be named for his guardianship. If his own blood failed wholly, the Scottish line was passed over, and the persons next named were the children of the two daughters of his sister Mary, the late Duchess of Suffolk.

In the Government, during the minority, Henry desired the same moderately progressive spirit to prevail which had hitherto directed his own conduct; and, finding no single person whom he could trust, he committed his powers to the representatives of both the parties who had formed his own council. Gardiner's name had been in the list, but he had been compromised in the late conspiracy. The reformers were represented by Cranmer and Hertford and Lisle; the conservatives by the Bishop of Durham, the Chancellor, and Sir Anthony

Brown The remainder⁶²² represented the intervening shades of opinion, whose judgment had been formed by the King himself; and who, having been trusted with the secrets of his further intentions, might follow in the track which he had marked for them. Whatever man could do to ensure the rational progress of the revolution, was provided by these nominations. The King, in leaving his last instructions for their guidance, 'exhorted them in God's name that, for the singular trust and special confidence which he had in them, they would have a diligent eye, perfect zeal, love, and affection to the honour, surety, and estate of his son, and the good prosperity of the realm;' and his last wish was that 'all his trusty and assured servants, and all other his loving subjects, would aid and assist his said councillors in the performance of that his testament and last will, as they would answer before God at the day of judgment *cum venerit judicare mortuos et vivos*.'⁶²³

An adjuration as vain as it was earnest: when the presiding will was gone and the presiding arm was withered, the advice was but as the wind. The years which followed witnessed the alternate supremacy of factions, where selfishness walked hand in hand with fanaticism, where petty passions disguised themselves under sacred names; and the just discontent of the nation with the reformers was allayed only at last when reaction had brought with it a bitter recompense of persecution, and the spirit of the dead King at length revived in Elizabeth. The true commentary on the Government of Henry VIII. is to be looked for in the reigns of his immediate successors. I know not whether I need add any other. To draw conclusions is the business of the reader. It has been mine to search for the facts among statutes and State Papers misinterpreted through natural prejudice and imperfect knowledge, and among neglected manuscripts fast perishing of decay.

But, as it would be affectation to seem to be unconscious that the character of the King, as presented in these volumes, is something different from that which modern tradition has ascribed to him, so for my own sake I desire to say that I have not advanced any novel paradox or conjectures of my own. The history of the reign of Henry

⁶²²Lord St John president of the council, Lord Russell, Sir Edward North chancellor of the augmentations, three of the judges, Sir Edward Montague, Sir Thomas Bromley, and Sir William Herbert, Sir Anthony Denny a member of the household, Sir William Paget, and the two Wottons, Dr Wotton and his brother Sir Edward.

⁶²³RYMER, vol. vi. part 3, p. 142.

VIII. is a palimpsest in which the original writing can still be read; and I have endeavoured only to reinstate the judgment upon his motives and his actions which was entertained by all moderate Englishmen in his own and the succeeding generation which was displaced only by the calumnies of Catholic or Antinomian fanatics, when the true records were out of sight; and when, in the establishment of a new order of things, the hesitating movements, the inconsistencies and difficulties, inevitable in a period of transition could no longer be understood without an effort.

The following passage, written by Ulpian Fulwell early in the reign of Elizabeth, must be received with much qualification. From the language of contemporary panegyric later reflection must ever find something to detract; nor was the writer a person whose judgment is of exceptional or particular value. His words, nevertheless, may be taken to express the general admiration of the King's character which survived in the minds of the people.

'Among the most fortunate kings and princes that ever reigned let the fortunes of King Henry VIII. have a special place. This I may boldly say, that he was blest of God above all kings and princes that ever I have read of, and happy was that prince that might stand most in his favour; for the which divers made great suit, and especially when they stood in need of aid against their enemies, because they perceived that fortune followed his power as handmaid to all his proceedings. A rare example no doubt it is, and meseemeth most strange, that one king should reign thirty-eight years, and that almost in continual wars, and never take foil, but always prevailed as a victor invicted, which, without the assistance of Almighty God, he could never have achieved; an evident token that God was on his side, and therefore who could stand against him. To write at large of all his worthiness and incomparable acts would fill a volume, and were too great a charge. But he was a prince of singular prudence, of passing stout courage, of invincible fortitude, of dexterity wonderful. He was a springing well of eloquence, a rare spectacle of humanity; of civility and good nature an absolute precedent, a special pattern of clemency and moderation, a worthy example of regal justice, a bottomless spring of largess and benignity. He was in all the honest arts and faculties profoundly seen, in all liberal discipline equal with the best, in no kind of literature inexpert. He was to the world an ornament, to England a treasure, to his friends a comfort, to his foes a ter-

rou, to his faithful and loving subjects a tender father, to innocents a sure protector, to wilful malefactors a sharp scourge, to his common weal and good people a quiet haven and anchor of safeguard, to the disturbers of the same a rock of extermination. In heinous and intolerable crimes against the commonwealth a severe judge, in like offences committed against himself a ready port and refuge of mercy, except to such as would persist incorrigibly. A man he was in gifts of nature and of grace peerless; and, to conclude, a man above all praises. Such a King did God set to reign over England; whereof this realm may well vaunt above other nations.⁶²⁴

This is the portrait drawn without its shadows; yet the features described in the language of admiring exaggeration resemble the true image far more closely than the extravagant conception which floats in the modern belief. It is easy to understand how such a conception grew. Protestants and Catholics united to condemn a Government under which both had suffered, and a point on which enemies were agreed was assumed to be proved. When I commenced the examination of the records, I brought with me the inherited impression from which I had neither any thought nor any expectation that I should be disabused. I found that it melted between my hands, and with it disappeared that other fact so difficult to credit, yet as it had appeared so impossible to deny, that English parliaments, English judges, English clergy, statesmen whose beneficent legislature survives among the most valued of our institutions, prelates who were the founders and martyrs of the English Church, were the cowardly accomplices of abominable atrocities, and had disgraced themselves with a sycophancy which the Roman senate imperfectly approached when it fawned on Nero.

Henry had many faults. They have been exhibited in the progress of the narrative: I need not return to them. But his position was one of unexampled difficulty; and by the work which he accomplished, and the conditions, internal and external, under which his task was allotted to him, he, like every other man, ought to be judged. He was inconsistent; he can bear the reproach of it. He ended by accepting and approving what he had commenced with persecuting; yet it was with the honest inconsistency which distinguishes the conduct of most men of practical ability in times of change, and even by virtue of which they obtain their success. If at the commencement of

⁶²⁴ULPIAN FULWELL'S *Flower of Fame*.

the movement he had regarded the eucharist as a 'remembrance,' he must either have concealed his convictions or he would have forfeited his throne; if he had been a stationary bigot, the Reformation might have waited for a century, and would have been conquered only by an internecine war.

But as the nation moved the King moved, leading it, but not out-running it; checking those who went too fast, dragging forward those who lagged behind. The conservatives, all that was sound and good among them, trusted him because he so long continued to share their conservatism; when he threw it aside he was not reproached with breach of confidence, because his own advance had accompanied theirs.

Protestants have exclaimed against the Six Articles Bill; Romanists against the Act of Supremacy. Philosophers complain that the prejudices of the people were needlessly violated, that opinions should have been allowed to be free, and the reform of religion have been left to be accomplished by reason. Yet, however cruel was the Six Articles Bill, the governing classes even among the laity were unanimous in its favour. The King was not converted by a sudden miracle; he believed the traditions in which he had been trained; his eyes, like the eyes of others, opened but slowly; and unquestionably, had he conquered for himself in their fulness the modern principles of toleration, he could not have governed by them a nation which was itself intolerant. Perhaps, of all living Englishmen who shared Henry's faith, there was not one so little desirous in himself of enforcing it by violence. His personal exertions were ever to mitigate the action of the law, while its letter was sustained; and England at its worst was a harbour of refuge to the Protestants compared to the Netherlands, to France, to Spain, or even to Scotland.

That the Romanists should have regarded him as a tyrant is natural; and were it true that English subjects owed fealty to the Pope, their feeling was just. But, however desirable it may be to leave religious opinion unfettered, it is certain that, if England was legitimately free, she could tolerate no difference of opinion on a question of allegiance, so long as Europe was conspiring to bring her back into slavery. So long as the English Romanists refused to admit without mental reservation that, if foreign enemies invaded this country in the Pope's name, their place must be at the side of their own sovereign, 'reli-

gion' might palliate the moral guilt of their treason, but it could not exempt them from its punishment.

But these matters have been discussed in the details of this history, where alone they can be understood.

Beyond and besides the Reformation, the constitution of these islands now rests in large measure on foundations laid in this reign. Henry brought Ireland within the reach of English civilization. He absorbed Wales and the Palatinates into the general English system. He it was who raised the House of Commons from the narrow duty of voting supplies, and of passing without discussion the measures of the privy council, and converted them into the first power in the State under the Crown. When he ascended the throne so little did the Commons care for their privileges, that their attendance at the sessions of Parliament was enforced by a law. They woke into life in 1529, and they became the right hand of the King to subdue the resistance of the House of Lords, and to force upon them a course of legislation which from their hearts they detested. Other kings in times of difficulty summoned their 'great councils,' composed of peers, or prelates, or municipal officials, or any persons whom they pleased to nominate. Henry VIII. broke through the ancient practice, and ever threw himself on the representatives of the people. By the Reformation, and by the power which he forced upon them, he had so interwoven the House of Commons with the highest business of the State, that the Peers thenceforward sunk to be their shadow.

Something, too, ought to be said of his individual exertions in the details of State administration. In his earlier life, though active and assiduous, he found leisure for elegant accomplishments, for splendid amusements, for relaxations careless, extravagant, sometimes questionable. As his life drew onwards his lighter tastes disappeared, and the whole energy of his intellect was pressed into the business of the commonwealth. Those who have examined the printed *State Papers* may form some impression of his industry from the documents which are his own composition, and the letters which he wrote and received: but only persons who have seen the original manuscripts, who have observed the traces of his pen in side notes and corrections, and the handwritings of his secretaries in diplomatic commissions, in drafts of Acts of Parliament, in expositions and formularies, in articles of faith, in proclamations, in the countless multitude of documents of all sorts, secular or ecclesiastical, which contain the real

history of this extraordinary reign, only they can realize the extent of labour to which he sacrificed himself, and which brought his life to a premature close. His personal faults were great, and he shared, besides them, in the errors of his age; but far deeper blemishes would be but as scars upon the features of a sovereign who in trying times sustained nobly the honour of the English name, and carried the commonwealth securely through the hardest crisis in its history.

End of Volume IV